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NEW EDITION

OF THE

BABYLONIAN TALMUD

Original Text, Edited, Corrected, Formulated, and Translated into English

BY

MICHAEL L. RODKINSON

SECTION MOED (FESTIVALS)

TRACTS BETZAH, SUCCAH, AND MOED KATAN

Volume VII.

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EXPLANATORY REMARKS.

In our translation we adopted these principles:

1. *Tenan* of the original—We have learned in a Mishna; *Tania*—We have learned in a Boraitha; *Itemar*—It was taught.

2. Questions are indicated by the interrogation point, and are immediately followed by the answers, without being so marked.

3. When in the original there occur two statements separated by the phrase, *Lishna achrena* or *Waïbayith Aema* or *Ikha d'amri* (literally, "otherwise interpreted"), we translate only the second.

4. As the pages of the original are indicated in our new Hebrew edition, it is not deemed necessary to mark them in the English edition, this being only a translation from the latter.

5. Words or passages enclosed in round parentheses ( ) denote the explanation rendered by Rashi to the foregoing sentence or word. Square parentheses [ ] contain commentaries by authorities of the last period of construction of the Gemara.

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TO

LOUIS STERN, Esq.

IN RECOGNITION OF HIS MANY PHILANTHROPIC DEEDS AND VALUABLE SERVICES IN THE CAUSE OF JUDAISM AND ITS LITERATURE

THIS BOOK IS MOST RESPECTFULLY DEDICATED BY THE EDITOR

MICHAEL L. RODKINSON

TO THE READER.

THIS volume contains three tracts, in order to maintain some uniformity in the size of the volumes,* whereas in former issues one subject required three volumes and another one volume, while in two instances each of two volumes treated of two different subjects; viz., three volumes being devoted to subject Sabbath (including Erubin), one volume to Passover, one to the Half-shekels (Shekalim—which were to be given in the beginning of each year) and New Year, one to the Day of Atonement (including also the Holocausts for the Altar). Of the three tracts now presented, Tract Succah treats of the Booth, Palm Branches, Citrons, etc., and specially appertains to the Feast of Tabernacles, the other two treating of the laws and regulations as to festivals in general; viz., Yom Tob (literally "Good Days") of all festivals, including also the New Year, and Moed Katan (Minor Festivals) of the middle days between the first and seventh days of Passover and between the first and eighth days of Tabernacles.

As to the treatment of the semi-festivals, viz., Hanukka and Purim—the former is included in Tract Sabbath, Volume I., and the latter, which has a tract to itself, named "Megilah," or "Book of Esther," is to appear in the next and last volume of this section, and contains Taanith (the Regulation of Fast Days), Megilah (which is to be read while fasting), and, finally, Ebel Rabbathi (Great Mourning), which is also called "Sema'hoth" (Joys) for reasons which will be explained in our introduction to it.

We do not at present say more about the tracts of this section, as it is our intention to make further comment on them in our next volume.

NEW YORK, *April*, 1899.

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* Each tract, however, is paged separately, for the reason stated in Introduction to Vol. VI., p. xvi.

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TRACT BETZAH (YOM TOB).

CHAPTER I.

REGULATIONS CONCERNING EATABLES AND BEVERAGES: PREPARATIONS FROM THE FIRST DAY OF FESTIVALS TO THE SECOND, FROM THE FESTIVALS TO THE SABBATH, AND VICE VERSA.

MISHNA: An egg laid on a festival may be eaten on the same day. So say the school of Shammai; the school of Hillel, however, say it must not. The school of Shammai say that leaven the size of an olive and leavened bread the size of a date (are to be removed before Passover), but the school of Hillel say that both must be removed when of the size of an olive only. If wild game or fowl is to be slaughtered on a festival, the school of Shammai say one should dig up (the earth) with a spade and cover the blood, but the school of Hillel forbid the killing unless loose earth had been prepared for that purpose the day before. Both schools, however, agree that if the killing had been done, one may loosen some earth and cover the blood with it, for ashes are always ready in the hearth.

GEMARA: To what kind of hen does the Mishna refer? If to a hen designed for eating, why then does the school of Hillel prohibit the eating of the egg? Is it not a part of the eatables which were prepared (for the festival)? If to a hen kept for laying eggs only, what is the reason of the school of Shammai, who permit to eat it? Is this not Muktzah (designation *)? Should we suppose that the school of Shammai do not hold the theory of Muktzah, even then the eating of it could not be permitted, as it is a new-born thing, and even one who denies the theory of Muktzah should hold to the theory of Nolad (new-born thing). Nay, R. Na'hman has declared that one who denies the theory of Muktzah denies also the theory of Nolad.

* See footnote on p. 79 of Tract Sabbath.

If so, then the school of Shammai will be in accordance with R. Simeon (who denies the theory of Muktzah), and the school of Hillel will be in accordance with R. Jehudah (who holds it); but this would not be the case, because did not R. Na'hman state (in Tract Sabbath) that the school of Hillel are always in accordance with R. Simeon and the school of Shammai with R. Jehudah? R. Na'hman may say: Because we found an anonymous Mishna (in Tract Sabbath, p. 375) which is in accordance with R. Simeon, therefore he declares that concerning the Sabbath the school of Hillel hold with R. Simeon, and concerning the festivals we found an anonymous Mishna (Sabbath, p. 375) in accordance with R. Jehudah, therefore he declares that the school of Hillel are in accordance with R. Jehudah, who is more rigorous.

Let us see: Who makes the Mishna anonymous? Rabbi (its editor). Why does he make it anonymous in regard to Sabbath in accordance with R. Simeon, and in regard to festivals (makes it anonymous) according to R. Jehudah? This is no question. Relating to Sabbath, which is so rigorous that it has a capital punishment and there is no fear that anyone will dare to disregard its rules, therefore Rabbi made an anonymous Mishna in accordance with the more lenient R. Simeon; but relating to festivals, which have no capital punishment at all, and the rules are lenient, for fear that otherwise they may be disregarded, Rabbi made an anonymous Mishna in accordance with R. Jehudah.

Now, then, if the Mishna means a hen which is kept for laying eggs, and the reason that the school of Hillel prohibit it, is because the egg is Muktzah, why do they not differ about the hen itself? (whether it is permitted to eat it or not). Therefore said Rabba: The Mishna refers to a hen kept for eating, and to a festival which falls after Sabbath; and the teaching of the school of Hillel is not for the reason of Muktzah, but of preparation; *i.e.*, an egg which is laid to-day Rabba is certain that it was ripe the preceding day, and it is in accordance with his theory, thus: It is written [Ex. xvi. 5]: "And it shall come to pass on the sixth day, when they *prepare* what they shall have brought in"; *i.e.*, only on a week-day shall anything be prepared for the Sabbath or for festivals, but nothing should be prepared on a festival for the Sabbath, and *vice versa*.

Said Abayi to Rabba: Let it then be permitted on a festival which does not come after Sabbath, and he answered: It is as a precautionary measure for the festival which falls after Sabbath.

Said Abayi again: Let it then be permitted on a Sabbath, and he rejoined again: It is a precautionary measure for the Sabbath which falls after a festival. Said Abayi again: Do we take such precautionary measures? Have we not learned in a Boraitha: If one kills a hen on a festival and finds in it ripe eggs, he is permitted to eat them? Now, if such precautionary measures are taken, why should not the same precautionary measure be taken for the above eggs, for fear lest one eat new-laid eggs? Rabba again rejoined: Ripe eggs in the entrails of a hen are not a usual occurrence, and for an unusual occurrence no precautionary measures are taken.

R. Joseph, however, said that (the prohibition of eating an egg from a hen kept for eating) is as a precautionary measure lest one may eat fruit which has fallen from a tree on Sabbath. R. Itz'hak said that the precautionary measure is taken lest one drink the beverages which flow from a tree on Sabbath. From the following teaching we learn that R. Johanan agrees with R. Joseph's opinion, viz.: R. Johanan found R. Jehudah contradicting himself, namely: We have learned in a Mishna in Sabbath, one may not press fruit to derive beverage from it; and even if the beverage flowed of itself, it is prohibited. R. Jehudah, however, said: If the fruit was for the purpose of eating, the beverage which flows from it is permitted, and if the fruit was for beverage, the latter is not permitted. From this we see that although the beverage which flows from the fruit was not prepared on the preceding day, its use is nevertheless permitted; and in another place we find that the same R. Jehudah said, "that an egg which was laid on one festival day may be eaten on the second festival day"—on the second, but not on the first. This contradicts his first dictum, that the beverage may be used on the same day. And R. Johanan answered about this contradiction thus: Say, that it is on the contrary, that not R. Jehudah permits to drink the beverage, but the first Tana in the above Mishna. Now, when R. Johanan contradicted the teaching concerning the beverage and the egg, we must say that the prohibition of both is for one and the same reason.

Rabbina the son of R. Ula said: It is not so. R. Jehudah, who says that the egg must be eaten on the second day, and not on the first, refers to a case where the hen was kept for laying eggs only, and this is according to his theory of Muktzah.

An objection was raised from the following Boraitha: An egg which was laid on Sabbath or on a festival day must not be

handled to cover a vessel with it, or to support the foot of a bed with it. It is permitted, however, to cover it with a vessel to prevent it from breaking. If it is doubtful whether the egg was laid on that day or not, it is also disallowed to use it. Should it become mixed in even with a thousand eggs, all the eggs are prohibited to be used on that day. It is right according to Rabba's teaching, who says that when the egg is prohibited for the reason of preparation, which is biblical, therefore a doubtful egg must not be used because it is doubtful according to a biblical law, and all doubts about biblical ordinances must be decided more rigorously; but according to R. Joseph and R. Itz'hak, who say that it is prohibited only as a precautionary measure, why then is it not allowed to use the doubtful egg that is so only according to a rabbinical ordinance, and all doubts concerning rabbinical ordinances must be decided more leniently? The latter part of the Boraitha means that it was doubtful whether it was laid by a hen biblically forbidden to be eaten (*e.g.*, sick or crippled). If it is so, how will the latter part of this Boraitha, "if it were mixed in even with a thousand eggs, all are prohibited," be explained? It would be right if there were a doubt whether it was laid on a week-day or on a festival, where the prohibition is temporary (because on the morrow all may be eaten); and there is a rule when anything is temporarily prohibited, if it is mixed in with a thousand, the prohibition remains, but if the egg was doubtful to be from a biblically forbidden hen (in which case the prohibition remains in force always), then if it is mixed in with other eggs, why should they all be invalid? Let it be ignored as against the majority? (that one egg be removed, and the remaining should be used). The assumption that an egg is a thing of value, and therefore must not be ignored, would apply only to those who say that all things usually counted must not be ignored; but what can be said to those who say that only things which are *always* sure to be counted may be ignored? (This objection remains.)

R. Ashi said: The meaning of "doubtfulness" in the Boraitha is, whether it is a week or festival day, it is nevertheless prohibited to use it, although according to R. Joseph and R. Itz'hak it is only a rabbinical doubt, because the prohibition is only temporary, and in case of a temporary prohibition even a rabbinical one must wait till the prohibition is over.

We have learned in a Boraitha: Anonymous teachers in the name of R. Eliezer said that the egg in question may be eaten

together with the hen that laid it. To what case does the Boraitha refer? If the hen is kept for eating, then it is self-evident; if it is a hen kept for laying eggs, then both are not allowed to be used. Said R. Zera: The Boraitha means to say that the egg can only then be eaten when the hen which laid it was also eaten. How shall it be explained? Said Abayi: In case the hen was bought not for any definite purpose, if it was slaughtered and prepared, then it is clear that it was bought for the festivals, and the egg may also be used; but if the hen is kept alive, then it is clear that it was bought with the intention to keep it for laying eggs, and then it must not be used. R. Mari, however, said that the Boraitha meant to say nothing, but merely exaggerated (*i.e.*, the egg may be eaten in any manner), as we have learned in the following Tosephta: A new-laid egg may be eaten with the hen that laid it, and a new-born pullet with its shell. As the shell cannot be used and is only an exaggeration, so is it also meant with the egg and the hen which laid it.

It was taught: If Sabbath fell after a festival, or *vice versa*, anything born on one of these days must not be used on the other. So said Rabh. R. Johanan, however, allowed it to be used on the morrow.

Shall we assume that Rabh holds that both are of one and the same sanctitude? Did not Rabh say that the Halakha prevails according to the four old sages* who are in accordance with R. Eliezer, who said that Sabbath and the festivals are of different sanctitudes? Nay, here they do not differ concerning the sanctitudes, but as to the law of preparation mentioned above in the name of Rabba. Rabh is in accordance with this theory and R. Johanan is not.

The Tanaim of the following Tosephta differ on the same point: If an egg was laid on the Sabbath, it may be eaten on the festival, and *vice versa*. R. Jehudah in the name of R. Eliezer, however, said, that there is still a difference of opinion among the schools of Shammai and Hillel. According to the former it may, and according to the latter it may not be eaten.

The householder of R. Adda b. Ahabah had eggs which were laid on a festival preceding the Sabbath; he came to him and inquired whether it is permitted to roast them that day, to be eaten on the morrow. He answered: What is thy question?

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* See Tract Erubin, p. 82.

Because thou thinkest that when Rabh and R. Johanan differ the Halakha prevails according to the latter; yet even R. Johanan permits only to sip the egg when raw on the morrow, but he never permitted to handle it on the same day.

The householder where R. Papa lived, according to others another man, had eggs which were laid on a Sabbath preceding a festival, and he asked R. Papa if they could be eaten on the morrow, and R. Papa answered him: Leave it until to-morrow and come again, because Rabh did not use an interpreter on a festival day after meals to decide questions belonging to the next day, for fear, perhaps, that he had drunk more than a quarter of a lug of wine. When he came on the next day R. Papa said to him: If I had decided the question yesterday, when I was a little light-headed, I would have erred, and would have decided according to R. Johanan, as the rule is where Rabh and R. Johanan differ, the Halakha prevails always according to R. Johanan, and this would not be right, because Rabha said that the case in question is one of the three * where the Halakha prevails according to Rabh, both when he is lenient as well as rigorous.

R. Johanan said: Wood which falls from a tree on Sabbath must not be used on the following festival day; and if it would be asked what is the difference between the wood and the egg, it can be said that the egg can be used while raw just after it has been laid, and if left until the next day, because it must not be used on the same day; but if the wood will be used just after Sabbath is over, one might say that the use of the wood was allowed on the same day, and that it was not used because it was prohibited to make a fire on Sabbath.

R. Mathna said: If wood had fallen down from a tree directly into an oven on a festival day, one may add wood which had been prepared on the preceding day and burn it; but is not this handling a prohibited thing? To this the answer is, because the bulk of the wood may be handled, the rest is ignored. But did he not ignore the prohibited wood intentionally? and a Mishna teaches that a prohibited thing must not be ignored on purpose. This, however, is only true of a biblical prohibition, but not of a rabbinical. But according to R. Ashi, who said that a thing which is prohibited only temporarily, cannot be ignored by any means, what can be said? This is when the prohibited thing is preserved; but here, when the wood is to be destroyed by fire, it is different.

* As it will be explained further on, p. 8.

It was taught about the two festival days in exile: Rabh said if anything was born on the first day, it may be eaten on the morrow, but R. Assi says it must not. Said R. Zera: It seems to me that R. Assi is correct in his opinion, because in our time the time of the calendar is known to us, and nevertheless we hold in exile two days of festival (consequently we must hold all the ordinances which were ordained in that time). Abayi, however, said: It seems to me that Rabh is correct in his opinion, and our keeping of two days of festival in exile is merely because a message was sent to us from the West: Take heed of the customs of your ancestors, as it can happen that the government might forbid the keeping of festivals, and the exact date might be forgotten (after the government should retract the command).

It was taught: Rabh and Samuel both said of the two festival days of New Year: Something born on the first day must not be used on the other.

Rabha said: From the day of the ordinance of Rabban Johanan ben Zakkai,* an egg which is laid on the first day of the New Year festival may be eaten on the next day. Said Abayi to him: Did not Rabh and Samuel both say that it is not allowed? Rejoined Rabha: I say to you that of Johanan b. Zakkai, and you mention Rabh and Samuel to me [says the Gemara: Do really Rabh and Samuel contradict a Mishna? Nay, it presents no difficulty: The ordinance of Johanan b. Zakkai was only for Palestine, but Rabh and Samuel speak for the exile].

R. Joseph, however, said even after the ordinance of Johanan b. Zakkai the prohibition of the egg remains in force, because the prohibition has been ordained by the vote of a majority of sages, and everything that has been ordained by a majority some time ago, must again be voted by a majority. Said Abayi to him: Did the sages in Johanan b. Zakkai's time discuss about an egg? They discussed only about the witnesses of the new moon. When it was ordained that the witnesses should not be received on the 30th day (consequently two days were kept festival), the egg was prohibited, but after that, when it was again allowed to receive the witnesses the entire 30th day, in consequence holiday was kept only one day, and the egg could not be any longer prohibited.

R. Ada and R. Shalman [both from the city of Khaluchith] said: The reason why the egg is prohibited even after the ordi-

* For this ordinance of R. Johanan ben Zakkai see Tract Rosh Hashana, pp. 55–56.

nance of R. Johanan b. Zakkai, is because the Temple will soon be rebuilt, and then one may say the last year, have we not eaten the second day of the festival the egg that was laid on the first day? We will do the same now, and they will not know that the last year had two separate sanctitudes; and now, when the Temple is built, the two days are as one long day of one and the same sacredness.

If it is so, let the witnesses who come to testify about the new moon, also not be received? because soon will the Temple be rebuilt, and they will say: Did we not receive the last year the whole 30th day? The same will we do now? What comparison is there? Only the court (Beth Din) can receive the testimony of the witnesses, but eating an egg appertains to the common people. Rabha, however, said: That even after the ordinances of R. Johanan b. Zakkai the egg is prohibited for this reason: Would not R. Johanan b. Zakkai himself agree that if the witnesses were coming after the Min'ha prayer (in the afternoon), both the 30th day and the morrow would be kept sacred? (Therefore we who are at a great distance from Palestine, and do not know when the witnesses appeared, must keep both days holy, and as of one kind of sacredness; in consequence an egg laid cannot be eaten on what is considered as the same day.)

Rabha said again: The Halakha prevails according to Rabh in these three ordinances, both when he is lenient and rigorous (namely: 1. An egg laid on a Sabbath preceding festival day or on a festival day preceding a Sabbath may be eaten on the morrow. 2. The same is the case with the two festival days in exile. 3. But if it was laid on the first day of the two New Year's days, it must not be eaten).

Rabha said: The preparing for the burial of a dead body on the first day of the exile festival must be done by Gentiles; but on the second day Israelites may do it, even if it is New Year. With a new-born thing, however, in the two days of New Year it is different (because *these* two days are considered as of one sacredness). The sages of Nehardai, however, said the case is the same with a new-born thing also. Said Mar Zutra: The law concerning burial on holidays refers to a case when the corpse had been lying some time and there is fear of corruption; but if it had just died it may lie until after the holidays and then be interred. R. Ashi, however, said: Even if it has just died it can be buried on the same day, as the sages considered the second day of a festival a week-day in relation to a dead body, and it is

allowed even to cut myrtle for it and prepare (a nice cloak for him besides) the shrouds.

Rabbina was sitting in the presence of R. Ashi on the first day of New Year, and noticed that he was downcast. He asked him: Why is the Master downcast? R. Ashi answered: Because I have not made a combining of cookery (Erub Tabshilin; *i.e.*, the third day of the new year was a Sabbath, and it was necessary to prepare on the second day of New Year for the Sabbath by making a "combining of cookery"). Said Rabbina to him: Let Master make it to-day. Did not Rabha say that whoever forgot to make a combining on the eve of a festival, is permitted to make it on the first day? And R. Ashi rejoined: Rabha allowed it only on the exile festival day, but not on the two days of New Year. Said Rabbina again: Did not the sages of Neherdai decide that the same is the case with New Year's day? R. Mordecai answered to Rabbina: I have heard Master plainly declare that he did not agree with the sages of Neherdai (Master means R. Ashi). Therefore do not molest him with this question.

The rabbis taught: A pullet which was born on a festival must not be eaten on the same day. R. Eliezer ben Jacob said even on a week-day it is not allowed to eat it on the same day, because its eyes are not yet open. We also learn in the following Boraitha: It is written [Lev. xi. 22]: "All flying insects that walk upon four legs shall be an abomination to you." By "all" it is meant to add the pullet whose eyes are not as yet open.

R. Huna said in the name of Rabh: An egg becomes ripe as soon as it is laid. What does Rabh mean to teach us by this statement? Shall we assume that he meant to say that it becomes ripe enough to be eaten with milk, which would not be the case if the egg were found in the entrails of a hen? Did not a Boraitha say: He who kills a hen and finds in it ripe eggs may eat them with milk? Shall we assume that Rabh means to teach us that when it is laid on a festival it may be eaten on that same day; but how if it were found in the entrails of a hen, would it not be allowed to eat it on a festival? Did not a Boraitha say that if ripe eggs are found in the hen on a festival day, they may be eaten? If it be said that Rabh means to teach us what the Boraitha has added to the Mishna (this cannot be said either, because) we have learned in the Mishna, an egg laid on a festival the school of Shammai permit to be eaten, etc. We see therefore that the above schools differed only about an egg laid already, but not about an egg found in the entrails of a hen; and

it cannot be said of the school of Hillel that they prohibited this, for then the above Boraitha which allows this would not be in accordance with any of the schools.

Rabh comes to teach us that only an egg which is laid is ripe to be put under a hen for hatching; but an egg which is found in the entrails of a hen, even if it were ripe, cannot be used for hatching, as it cannot breed pullets.

And the difference is in matters of buying and selling (*i.e.*, if one buy eggs for hatching and he was given eggs which were found in the entrails of a hen, the seller must return the money to him). As it happened once, one came to the market and asked for new-laid eggs and he was given eggs which were found in a killed hen. When the case was brought before R. Amai he decided that the sale was null and void and the seller must return the money. Is that not self-evident? One may say that when the buyer asked for new-laid eggs he meant eggs for eating, and he who sold him the eggs which were found in the killed hen has only to return to the buyer the difference between the value of a new-laid egg and one found in a killed hen. Therefore he comes to teach us that it is not so, but that the whole sale is null and void and the seller must return the money.

It happened, also, that one came to the market and asked for eggs of a hen which had paired with a cock, and he was given eggs of a hen which laid them by warming herself by scratching the earth; and when this case was also brought before R. Amai, he made the sale null and void for the same reason.

And if you wish, we will explain (the above saying of R. Huna in the name of Rabh), that an egg is ripe as soon as it is laid, means, that as soon as the greater part of it is out of the body of the hen, it is considered ripe; and this will be in accordance with R. Johanan, who said that an egg, of which the greater part was out on the eve of a festival, and it slipped back, and came out on the festival, it might be eaten the same day. And still others say, that Rabh means to teach that when the egg is wholly out then it is ripe, but not otherwise, the reverse of the opinion of R. Johanan.

The text says: When one has killed a hen and found ripe eggs in it, they may be eaten with milk. R. Jacob, however, said: When the egg is as yet covered with veins, it must not be eaten with milk.

The rabbis taught: All the females which have communication with their males in the day-time only, give also birth in the

day-time only; and those which have communication in the night-time only, give also birth in the night-time only. Those, however, which have communication at all times, give birth also at all times. Those that have communication in the day-time only: *e.g.*, a hen; and in the night only, *e.g.*, a bat; and at all times, *e.g.*, man and all animals similar to him.

To what purpose did the Master say all this? This is necessary to the following Halakha: R. Mari the son of R. Cahana says: One who has searched a chicken-coop on the eve of a festival at twilight, and does not find any eggs, and on the morrow before sunrise does find one, it may be eaten the same day (as it could not have been laid during the night). But did he not search the day before? Say, then, he did not search thoroughly; and even if he did search thoroughly, it is possible that at that time the greater part of the egg came out and slipped back again; and this is in accordance with what is stated above in the name of R. Johanan.

This is not so? For did not R. Jose b. Saul say in the name of Rabh: If one has searched a chicken-coop on the eve of a festival at twilight, and does not find any eggs in it, and on the morrow he finds one, it must not be used? He has reference to a hen which bears by scratching the earth (and such a hen may lay even at night). If it is so, say in the case of R. Mari also that the egg which was found in the morning was laid by such a hen.

There is the case where a male was in the coop. Even then, can it not happen that a hen may scratch the earth? Said Rabina: It is certain that when there is a male, no hen scratches the earth for the purpose of bearing. And at what distance in the neighborhood must the cock be? Said R. Gamda in the name of Rabh: As far as she can hear his voice in the day-time.

R. Mari, according to his decision, has decided a case (in which it was searched on the eve of a festival and nothing found in it, but an egg was found on the morrow, and there was no cock at) a distance of sixty houses.

When there is a stream between, the hen does not cross it, but she crosses a bridge; neither does she cross over a plank. It happened once that a hen crossed over a plank.

"*The school of Shammai say that leaven the size of an olive*," etc. What is the reason of their teaching? They maintain if the same size would be for leaven and leavened bread, why did the Torah need mention leaven at all? Let it have been written

" leavened bread," and it would be known from an *a fortiori* conclusion that leaven the size of an olive is prohibited (*i.e.*, as leavened bread, which is not as sour as leaven itself, one is culpable if he eats the size of an olive, so much the more, leaven itself the same size). Now, when the law mentioned leaven and leavened bread separately it is only to teach us that their sizes are different (leaven the size of an olive and leavened bread the size of a date). The school of Hillel, however, maintain that both are needed, because if *leaven* only were mentioned, one might say that because leaven is very sour, it must not be used, but leavened bread, which is not so sour, one may eat; if *leavened bread* only were mentioned, one could say that leavened bread which is fit to be eaten is prohibited, but leaven itself which is not fit for eating one is not culpable if he eats; therefore leaven is also mentioned.

We have learned also in a Boraitha: It is written [Ex. xiii. 7]: " And there shall not be seen with thee any unleavened bread, neither shall there be seen with thee any leaven in all thy boundaries." This is the point of difference between the school of Shammai and the school of Hillel: The first says, leaven the size of an olive and leavened bread the size of a date, and according to the latter, both are of the size of an olive.

" *When a person has killed,*" etc. If one has killed already; but may he not commence it? Said Rabha: The Mishna meant to say that if a person wishes to slaughter an animal at a festival and comes to ask how he shall do it, the school of Shammai say he must be told that he may slaughter first, dig to get loose earth, and then cover; but the school of Hillel say he must be forbidden to slaughter unless he has loose earth prepared from the preceding day. R. Joseph, however, said, that according to the school of Shammai he must be told to dig first, slaughter, and then cover. Said Abayi to R. Joseph: Shall we assume that the Master and Rabha differ about what R. Zera said in the name of Rabh, as follows: Whoever slaughters a wild animal or fowl, must have loose earth beneath, to soak the blood, and some on the top, to cover with, as it is written [Lev. xvii. 13]: " Then shall he pour out the blood thereof, and cover it up with (or *in*) earth "? * It is not said " to place earth *on* it," but to " cover it *in* earth." From this we infer that there must be earth underneath and earth on the top. Now, the Master agrees with R. Zera (and therefore he must be told to dig first), but Rabha

* The Hebrew term is בעפר, which signifies both *in* and *with*.

does not agree with R. Zera (therefore in his opinion he must be told to slaughter first and dig after). Rejoined R. Joseph: We both agree with the dictum of R. Zera, and we differ on another point, namely, Rabha holds if there is already earth underneath, he may slaughter, but he must not dig first, for it may happen that he should afterwards reconsider the matter and not slaughter at all (then he will have dug for nothing), but I hold it is better to permit him to dig first, else it may be that he would not slaughter at all, and not enjoy the festival as becomes it.

"*Both colleges agree*," etc. R. Zriqa said in the name of R. Jehudah: The case is when one had a spade sticking in the ground from the preceding day. But he pounds the earth? (reduces the earth to powder). Said R. Hyya bar Ashi in the name of Rabh: It is meant that the spade was already in powdered earth.

"*As the ashes from the hearth*," etc. Where are the ashes mentioned? Said Rabha: The Mishna means to say, that the ashes from the hearth may be considered as always prepared. Said R. Jehudah in the name of Rabh: The case is when the hearth had been heated on the preceding day, but when the fire was made on the festival, it is not so. When the ashes, however, are hot enough for roasting an egg, they are considered as prepared. We have learned the same in a Boraitha, with the addition, that if one has brought loose earth for his garden or for a ruin, he may cover the blood with it.

R. Jehudah said again: One may bring a basketful of earth, and do with it all that he needs. Lectured Mar Zutra in the name of Mar Zutra the great: The case is when he has separated a corner for it.

An objection was raised: We have learned elsewhere: A kui* must not be slaughtered on a festival, and when it is, its blood must not be covered. Now, if it be so, let him cover it as R. Jehudah said above? What question is it—he could also cover it with the ashes of the hearth, or with a spade in powdered earth? We must say, then, that they were not available; and it is the same with the basketful of earth mentioned above, that he has not any. If such is the case, why a kui, of which it is doubtful whether his blood must be covered or not? Even an animal of which it is certain that his blood must be covered, the same is the case? The Mishna means to say, that not only an

* Cross between a he-goat and a hind.

animal of which it is certain that his blood must be covered must not be slaughtered, unless he has prepared a covering; but even an animal which is doubtful, lest one say that because of the enjoyment of the festival it shall be slaughtered without covering, it comes to teach us that he must not. But did not the latter part of the Mishna state, that if it *was* slaughtered the blood must not be covered, from which we must infer that the first part of the Mishna means, even when he has a prepared covering for it?

Therefore said Rabha: The ashes of the hearth are only considered to be prepared when the animal is of a species whose blood must be certainly covered; but when the animal is of a kind about the covering of whose blood there is a doubt, it is not so (*i.e.*, the ashes must not be handled for this purpose, as they are Muktzah). And this is in accordance with his theory elsewhere, that if one has brought earth to cover with it dung, he may cover with it the blood of a fowl, but not *vice versa*. The sages of Neharbelai, however, said that even if he has brought the earth for the purpose of covering with it the blood of a fowl, he may cover with it dung also. In the West R. Joseph bar Hama, and according to others Rabha the son of R. Joseph bar Hama, and R. Zera differed on this point. According to one a kui (about which it is doubted whether it is a wild or domestic animal) is regarded as dung, and according to the other it is not so (but who entertained either of these two opinions it was not known). Now, from the above teaching of Rabha, who said that earth prepared for a fowl must not be used for dung, we infer that Rabha is the one in whose opinion a kui is regarded as dung.

Rami the son of R. Jebha, however, said that the reason that we do not cover a kui on a festival is as a precautionary measure, lest one think the use of its tallow permissible. If so, let it not be covered even on a week-day? Nay, on a week-day one (who sees the blood covered) may think it is done for the purpose of cleaning the yard. But what shall be the reply to him who comes to ask (whether he should cover the blood)? Therefore we must say, that the reason is this: On a week-day, when it is doubtful, the sages decree that nevertheless he should trouble himself to cover it, but on a festival day the sages do not wish to put him to perhaps unnecessary work.

R. Zera taught: Not the blood of a kui only is it prohibited to cover on a festival day, but even when a slaughtered domestic animal's and fowl's blood were mixed together, it must not be

covered either. Said R. Jose bar Jasiniah: The case is when one cannot cover the whole blood with one (shovelful) stroke of the spade, but if he can, he must cover it. Is this not self-evident? One might say that we should prohibit this as a precautionary measure to prevent him from making two strokes. Therefore he comes to teach us that such precautionary measures are not necessary. Rabha said: If one has slaughtered a fowl on the eve of a festival, the blood must not be covered on the festival; but if he kneaded dough on the eve of a festival, he must separate the "first dough" on the festival. The father of Samuel, however, said that even this is prohibited.

MISHNA: Beth Shammai say: It is prohibited to remove a ladder from one dove-cote to another; it may, however, be inclined from one opening to another (of the same dove-cote). But Beth Hillel allow both.

GEMARA: R. Hanan bar Ammi said: Both schools differ only when it is done in public ground: According to Beth Shammai one who will see him carrying a ladder may think he is going to repair his roof; but Beth Hillel do not care for that, for they say the dove-cote will show the man's purpose of carrying the ladder. But if this is done in private ground (where there is no person to see his act), all agree that this is permissible. But is it so? Did not R. Jehudah say in the name of Rabh, that all which is prohibited on account of its liability to be seen (and misjudged) remains so even in the greatest privacy? In this the Tanaim differ (Sabbath, pp. 336, 337).

Our Mishna does not accord with the Tana of the following Boraitha: R. Simeon b. Elazar said both schools agree that the ladder may be carried from one dove-cote to another; the point on which they differ is whether the ladder may be carried back. The school of Shammai prohibit it, and the school of Hillel allow even this. Said R. Jehudah: The Mishna refers only to a ladder used for a dove-cote, but a ladder to an attic all agree is prohibited. R. Dosa said he may incline it from one window to another. Anonymous teachers say in the name of R. Dosa, that he may also trail the ladder (making it change its position by turning it about).

The children of R. Hyya were going out into the villages. When they came back their father asked them, was no question asked of you, which you have decided? and they answered that they were asked whether a ladder of an attic may be inclined on a festival, and they allowed it. And he said to them: Go, pro-

hibit what you have permitted. (Said the Gemara): "The children of R. Hyya thought that R. Dosa had allowed what R. Jehudah prohibited, and it was not so; he only allowed what the first Tana did not prohibit; *i.e.*, a ladder to a dove-cote, allowed by the first Tana even to be carried, R. Dosa permits only to incline.

"*It may, however, be inclined from one opening,*" etc. We learn also in another Mishna farther on: The shutters (of shops) must not be removed on a festival, so is the decree of Beth Shammai; but according to Beth Hillel they may be even returned to their places. From this we see that concerning the enjoyment of the festival, the school of Shammai are rigorous, and the school of Hillel are lenient. Is not this in contradiction to the first Mishna of this chapter, where we see the opposite? It would be (intelligible) if we explain the first Mishna's meaning that it speaks of a spade stuck in the ground before (then Beth Shammai would not be more rigorous). But what can be said of the self-contradiction of Beth Hillel? Said R. Johanan: Change the names of the authorities (assume the prohibitions to be made by Beth Shammai and the permissions by Beth Hillel). Says the Gemara: Perhaps it is not so, because we can explain the lenience of Beth Hillel in the case of the shutters by the fact that the law of building cannot be applied to vessels (according to their theory); but in the first Mishna, where such a reason cannot be found, they did not permit.

MISHNA: Beth Shammai say: It is unlawful to remove the birds from their places, unless they have been handled *before* the festival; but Beth Hillel say: It is unnecessary to do more than stand on the eve of the festival before the dove-cote and say: "This and this bird will I take for the festival."

GEMARA: Said R. Hanan bar Ammi: They differ only about the first brood of pigeons. Beth Shammai hold that if one will not handle it before the festival, he may change his mind (and spare it when he comes to take it on the festival, and will take others instead of them, but if he has handled it on the previous day, we are sure that he will not change his mind). Beth Hillel, however, do not entertain this fear. But as for the second brood, all agree that it is enough if he says before the festival: "I will take this and this."

According to Beth Hillel, why is it needed one should mention the individual bird? Would it not suffice to refer to the whole dove-cote (and say, "from this dove-cote I will take

more")? Should we assume that the school of Hillel do not hold the theory of premeditated choice (see Vol. III., p. 80)? But this would not be right, as from the Mishna (Oholath, VII., 3), we know that the school of Hillel hold this theory. Said Rabha: It is needed for the reason that if he will not point out the individual, he may handle the next day all birds of the dove-cote except the one he chooses (if any) unnecessarily. But did not Beth Hillel say it is enough if he says: "I will take this and this bird," and yet he may reject it when he comes to take it for slaughtering? Nay, this is on the eve of a festival, if he has chosen some of them, be they lean or fat, he will not exchange them for others; but if he did not so on the eve, and he comes to choose them on the festival itself, it may be that he will be compelled to handle many until he finds one that is fit, or it may happen he finds none fit, and he will handle them for no purpose, and he will be deprived of the enjoyment of the festival.

MISHNA: If a person who had prepared for a festival black pigeons finds white ones, or having prepared white pigeons, should find black ones; or two birds, and he find three, they must not be used. If three birds had been prepared and two only are found, they may be used; but if they had been prepared within the nest, and are found before the nest, they must not be used unless there were no other birds but these in the dove-cote.

GEMARA: Is not this self-evident? Said Rabba: The Mishna refers to a case when one had prepared both white and black, and on the morrow, when he comes to take them, he finds they have changed places. One might say that the pigeons are all the same, but they have changed places, hence the Mishna comes to teach us that it is not customary for the birds to change places, and therefore we must say that all the old ones are gone, and those which are found are other pigeons. Shall we suppose that this Mishna is in support of the decree of R. Hanina, who said that when one has to decide according to the majority of cases similar to one at hand, or according to the intrinsic probability, one should decide according to the former? (As our Mishna decided that they are other pigeons, and that is because in the majority of cases pigeons do not change places, we see that the Mishna decides according to majority and not probability.) Nay, the case of the Mishna can be explained as Abayi says farther on, that it means not in the nest itself, but on the board before the

nest, where strange pigeons also come and roost (and so decides not according to majority, but probability).

"*Or two birds, and he finds three*," etc. Why is it so? For all reasons: Either all are strange pigeons, or at least one.

"*If three birds*," etc. Why so? Because two are the same, though one is gone. Shall we assume our Mishna is only according to Rabbi, and not the sages of the following Boraitha? If one had left at a certain place one hundred zuz of second tithe, and he found afterwards two hundred zuz, the ordinary and the second tithe money are mixed together. Such is the decree of Rabbi. But the sages said that the whole is considered as ordinary money (considering the first hundred as having been stolen, and this to be other money). But if he left two hundred zuz, and found only one hundred, it is considered that one hundred has been stolen, and the other hundred remains. So is the decree of Rabbi. But the sages said that the remainder becomes ordinary. Hence we see that the case of the doves in our Mishna is according to Rabbi? Nay, the Mishna can be explained even in accordance with the sages, for it was taught in addition to this Boraitha, that R. Johanan and R. Elazar both said that in the case of pigeons the law is different because pigeons have the habit of leaving their nest for short whiles.

"*But if they had been prepared in the nest*," etc. Shall we say *this* part of the Mishna is in support of the above decree of R. Hanina? Here it can also be explained as the former according to Abayi (that the board before the nest is meant where strange pigeons come to roost). Rabha, however, said: The Mishna refers to a case where there were two nests, one on the top of the other; and not only is one prohibited to use pigeons found before the lower nest, when he had prepared same in the lower, and found both nests empty, because it is considered that from only the lower nest they are gone, and those from the upper nest have come down; but if he had prepared them in the upper one, and found them in front of it, while both nests are empty, the case is the same; though usually pigeons do not go up, it is considered that the upper pigeons are gone, and those of the lower nest came up in front of the upper nest.

"*Unless there were no other birds*," etc. How was the case? Shall we say flying pigeons are meant? Then it may be assumed that those that had been in the nest had flown away, and these are strangers. And if pigeons too young for flying are meant, then if there is a nest within fifty ells, we may say that those

that were here bounded away, and these are strangers; but if no strange nest is near, is it not self-evident that they are the same and may be used, as Mar Uqba bar Hamma said: A pigeon that cannot fly yet is not able to bound away more than fifty ells? Nay, it can be explained thus: There is a nest within fifty ells, but it is situated in a corner so that the pigeons could not see it. They are in their own nest, and the Mishna comes to teach us, that the fear of their bounding away is only when there is another nest within fifty ells, which is visible to them when they are in their own nest; but if not visible, they do not bound away at all.

MISHNA: Beth Shammai say: The (large wooden) pestle may not be moved for the purpose of using it as a block to cut meat upon; but Beth Hillel allow it. Beth Shammai teach: It is unlawful to lay down a skin to be trodden on (as a preparation for its being tanned) or to raise it from the ground unless the (*minimum*) quantity of meat of the size of an olive be thereon; Beth Hillel, however, allow it.

GEMARA: We have learned in a Boraitha (an addition to this Mishna) that all agree that if one has already cut meat on this pestle, it may not be handled more (because the occasion on which it was necessary for the festival is over).

Said Abayi: Even if the pestle mentioned in the Mishna was a new one, made only for breaking bones, the case is the same; (and Abayi found this necessary to explain) lest one say, that because it is a new one, it shall be feared that he will change his mind and will not use it for this purpose, and so it will be handled unnecessarily, and therefore the Mishna comes to teach us that this fear is not entertained. From this we see that Beth Shammai have not such fear. But did we not learn in a Boraitha: Beth Shammai said the slaughterer and the knife must not be brought to the animal, nor, *vice versa*, it to them (for fear of his changing his mind, and not slaughtering at all, and being troubled for nothing)? And the same is the case with spices and the pestle, which must not be carried to the mortar, nor *vice versa*. But Beth Hillel allow both (hence we see that the school of Shammai fear his changing his mind). What comparison is it? He can reject on second consideration an animal because he wants a fatter one, or spices because he resolves to have a dish without spices, but in this case the animal is already slaughtered and the meat is for cooking; hence he must cut it and prepare it for eating.

"*Beth Shammai teach it is unlawful to lay down a skin*," etc. We have learned in a Boraitha: Both schools agree that meat for roasting may be salted on the skin. Said Abayi: Only for roasting is it permitted to salt meat on it, but not for boiling (because for roasting much salt is not necessary, but for boiling more is needed). Is not this self-evident? It is plainly stated, "for roasting." Abayi comes to teach us that even for roasting, if more salt is needed than ordinarily, it is not permitted.

The rabbis taught: Tallow must not be salted and must not be turned over. In the name of R. Joshuah, however, it was said that one may spread it out upon nails for being aired. Said R. Mathna: The Halakha does not prevail according to R. Joshuah; but wherein differs this case from the case of the skin in our Mishna? (The cases are not identical.) When one sees him spreading out the skin, he may think because it is fit for sitting on, it is spread out for such purposes; but when one will be allowed to salt the tallow, he may say: For what purpose have the sages allowed it? Only that it shall not become spoiled. Then what is the difference between spreading and salting, and he will also salt it?

R. Jehudah in the name of Samuel said: One may salt several pieces of meat at one time, though only one of them is needed. R. Adda bar A'hbah had recourse to ingenuity, and used to salt meat for a festival meal (salting one piece with the pretext that he will use it, and then rejecting it, and choosing another, and so on).

MISHNA: The shutters of stalls must not be removed on a festival according to Beth Shammai; but Beth Hillel allow even to replace them.

GEMARA: What kind of shutters is meant? Said Ula: The shutters of movable stalls. He said again: There are three things of which the finishing was allowed (though not essential for the festival), for the reason of the beginning (which *was* necessary; *i.e.*, if it would not have been allowed to finish them, they would not have been begun). They are: The skin for the tanner, the shutters of the shops,* and the replacing of a plaster (on the priest's hand †) in the Temple. And Rhaba said in the

* It means that he would not slaughter the animal at all if he would not be sure that the skin would not be spoiled; and so he would not open the shop to take out what was necessary for the festival, if he would not be allowed to shut it again, and the festival would be without enjoyment.

† As the priest is not permitted to do his work of sacrificing when there is something between (Hatzitzah, *intervention*) his hand and the victim.

name of Rabh Jehudah the Babylonian Amora:* The same is the case when one opens a barrel or begins to knead dough on the festival (he may stop up the barrel, or finish the kneading, because he would not begin if he were not permitted to finish, and his enjoyment of the festival would not be complete), and this is according to Rabbi Jehudah the Tana, who said (in Hagigah, p. 52), he shall finish it.

Our Mishna is not in accordance with the Tana of the following Boraitha: R. Simeon b. Elazar said: The schools both of Shammai and Hillel agree that the shutters may be removed on the festival; they differ only about the replacing of them. Beth Shammai do not permit this, and Beth Hillel allow even this. But this is in case there are hinges, but if there is none all agree it is permitted. But have we not learned in another Boraitha the contrary of this? Said Abayi: It can be explained so: If the hinges are at the sides of the shutters, all agree it is prohibited;† if there are no hinges at all, all agree it is permissible. They differ only on this point when the hinges are in the middle: Beth Shammai prohibit it as a precautionary measure, lest one think it permissible also even when they are at the sides, and Beth Hillel think such a precautionary measure is not to be taken.

MISHNA: A child, a Lulab (a branch of a date-tree), holy scrolls, must not be carried in public ground according to Beth Shammai; but Beth Hillel allow it.

GEMARA: In the presence of R. Itz'hak bar Abdimi one Tana taught as follows: If one slaughters a voluntary offering on a festival, he is liable to the penalty of stripes. Said R. Itz'hak to him: According to whom is your teaching? That is only according to Beth Shammai, who do not hold the theory that because it is permitted to carry things for the purposes of the festival, it is permissible to carry other things, even when they are not necessary for the purposes of the festival; but according to Beth Hillel, who hold this theory, we can say, because slaughtering for the festival is permitted, slaughtering for other

* Rashi says: To some people it is doubtful if it was in the name of R. Jehudah the second, or R. Jehudah the disciple of Samuel; but I say, he added, that Rhaba, who was from Pumbeditha, had never seen R. Jehudah the second, as we do not find that he, sometime in his life, ever went to Palestine. Moreover, it is said elsewhere that no one was so particular in his study as Rhaba of Pumbeditha, and we must assume that Rhaba was so particular that he would not leave in his words any doubt about the man in whose name he said it; and if it was Jehudah the second, he would have certainly mentioned it.

† As when the hinges are at the sides, it is very difficult to remove and replace.

purposes is also permitted, consequently he is not liable to stripes. R. Johanan's opinion is also that Beth Shammai and Beth Hillel differ about the acceptation of the above theory.

Because a disciple has taught in the presence of R. Johanan thus: If one cooks the sinew which shrank [Gen. xxxii. 33] in milk on a festival, and eats it, he is liable to five times stripes: once for cooking the sinew, once for eating it, once for cooking meat in milk, once for eating meat with milk, and once for kindling a fire on the festival. And R. Johanan said to him: Go with thy teaching out of the college, because for kindling a fire and cooking on the festival he is not liable for stripes, according to the teaching of the Mishna; and even if you would find a Mishna which is in accordance with your teaching, it could be only according to the school of Shammai, who deny the theory that, because it is permitted to kindle a fire and to cook for the purposes of the festival, it is permissible also for other purposes; then, according to the school of Hillel, who agree with this theory, no Mishna could teach so. Now then, when kindling and cooking are permitted on the festival, you must remove the stripes for cooking and kindling out of the whole case.

MISHNA: It is unlawful, according to Beth Shammai, to carry to the priest on a festival the first dough (Halah) or other gifts, whether they had been set apart for that purpose on that day or on the preceding day. Beth Hillel, however, allow this. Said Beth Shammai: Let us say to them: Is there not an analogy of expression in both? First dough and other priestly dues are called gifts to the priest (Matanoth); and heave-offering (Terumah) is also called gifts to the priest. Now, as the last is prohibited, the same must be the case with the first? Rejoined Beth Hillel: Nay, how can the gifts be compared to heave-offering? The last one is not allowed to be set apart on the festival, whereas other gifts may.

GEMARA: At the first glance, the teaching of the Mishna, "whether it had been set apart on the same day," would seem to mean that it was slaughtered and set apart on the same day, and the expression, "the preceding day," would seem to mean that it was slaughtered also on that day. If it is so, however, according to whose opinion would the Mishna be? Not according to R. Jose, not according to R. Jehudah, but according to the anonymous teachers. As we have learned in the following Boraitha: R. Jehudah said: Beth Shammai and Beth Hillel do not differ about the gifts that were set apart on the eve of a festival,

whether they might be brought together with the gifts set apart and slaughtered on the festival. What they differ in is only whether those set apart on the eve of the festival might be brought to the priest separately. Beth Shammai do not allow this, and Beth Hillel permit it. R. Jose, however, said that the above schools do not differ about gifts at all, but only about the heave-offering; but an anonymous teacher said that they never differ about the heave-offering, which is prohibited according to all, but only about other gifts. Hence our Mishna is in accordance with the anonymous teachers. Said Rabha: Did the Mishna teach that they were set apart and *slaughtered* on the same day? They were set apart on that day, but may have been slaughtered on the previous day. Then the Mishna will be according to R. Jehudah only, but not according to the anonymous teachers? Nay, we may say it is in accordance with the anonymous teachers also, but the point on which they differ would be the gift that had been slaughtered on a preceding day. If it is so, the anonymous teachers would say the same as R. Jehudah? Nay, there is a difference about the adding of the gifts set apart on the preceding day to those set apart on the festival itself (according to R. Jehudah it may be done, and according to the anonymous teachers it may not). Said R. Jehudah in the name of Samuel: The Halakha prevails according to R. Jose.

R. Tubbi the son of R. Nehemiah possessed one pitcher of wine of heave-offering on a festival, and he came to R. Joseph and asked him: Can I give it away to the priest to-day? And the answer was, that R. Jehudah in the name of Samuel declared the Halakha prevails according to R. Jose (who permits).

The host of an inn where Rabha bar R. Hanan was staying, possessed bundles of mustard stalks, and he asked his guest: May I thrash it and eat it on a festival? And he did not know the law. And he came before Rabha, who told him: We have learned in a Tosephta, one may pluck ears or crush pea-pods to get out the grains or peas on a festival. Abayi objects: We have learned in a Boraitha: Whoso has plucked ears on the eve of Sabbath, he may blow away chaff on the Sabbath from one hand into another, and eat, but not sieve. If he has done it on the eve of a festival, he may sieve it on the next day in a small but not a large sieve (that it may not be thought he does it for the next day). Hence it seems from this that to do it on the festival itself is not allowed. Rabha answered: The same would be the case on the festival itself. But as in the first part it is said: On

the eve of Sabbath, so in the last part he speaks of the eve of the festival. (Said Abayi again:) If it is so, then we find a case in which it is allowed to set apart heave-offering on a festival (as it is usually taken from a quantity of grains, not ears); and here, when he thrashes the ears for the purpose of eating the grain, you allow him to separate the heave-offering of it, for otherwise he is not allowed to eat, and in our Mishna it is plainly stated that the heave-offering is not allowed to be set apart on the festival. Rabha answered: It presents no difficulty. Elsewhere it is said, according to Rabbi's opinion heave-offering may be separated on the festival, and only R. Jose bar Jehudah opposed him, and our Mishna is in accordance with the latter.

How shall one pluck (a change from the ordinary week-day manner there must be)? Abayi in the name of R. Jose said: He shall pluck it with the thumb and the index-finger. But R. Ivya upon the same authority said: The thumb and the two fingers next to it. Rabha, however, said: As soon as he does it in a peculiar manner, the number of fingers he employs is a matter of no great consequence.

How shall one blow? R. Adda bar A'hba said in the name of Rabh: He shall blow only off his fingers (but not the palms). But in Palestine they ridiculed this, saying that, provided he does it in a peculiar manner, he may employ his palms also. Therefore R. Elazar said: He may blow it off one hand with his whole might (but must not use the other).

MISHNA: Spices may be pounded on a festival with a wooden pestle only, and salt with an earthenware jug, or with a large wooden spoon, according to Beth Shammai. But Beth Hillel say: Spices may be, as usual, pounded with a stone pestle, and salt with a wooden spoon.

GEMARA: From this we see that all agree that salt must be pounded in a different manner. Why? R. Huna and R. Hisda: One said, because all the dishes must have salt, but not all the dishes must have spices; and the other said, all the spices lose their fragrance, but not salt. What is the difference between the two? If one knows on the eve of a festival what dish he will prepare on the morrow? According to the former it needs a peculiarity (because he could have prepared it on the eve); and according to the latter it needs not, because had he prepared it on the eve the spices would lose their fragrance.

R. Jehudah in the name of Samuel, however, said: All that is pounded may be pounded on a festival as on week-days, even salt.

Did we not say above, that salt must be pounded differently? He holds with the Tana of the following Boraitha: R. Meir said: Both schools of Shammai and Hillel never differ about the point that all things may be pounded on a festival as on week-days, and salt when it is among them: what they differ about is, whether it may be done so when it is separate. According to Beth Shammai it must be pounded with an earthenware jug or a large wooden spoon; and only in a quantity needed for roasting, but not for stewing into a pot; but Beth Hillel allow any quantity.

R. A'ha Bardla said to his son: If it shall happen that you will have to pound something on a festival, you should incline your mortar, and then pound (*i.e.*, he shall make some change in the manner of pounding). R. Shesheth heard on a festival the sound of pounding in a mortar, and he said: It is surely not in my house. Why was he sure? Perhaps the mortar was inclined? Because he could infer from the sound that this was not so. Perhaps they were pounding spices? Then the sound would have been different.

The rabbis taught: *Ptisana* * must not be made on a festival, for nothing may be pounded. But a small quantity may be pounded in a small mortar.

It once happened that R. Papa was the guest of Mar Samuel, and *Ptisana* was offered him, but he did not partake of it. Why? Perhaps it had been done in a small mortar? He did not choose to trust his host's servants, because they were disobedient.

MISHNA: When one picks pulse on a festival, he may, according to Beth Shammai, only pick out the eatable part and eat it; but according to Beth Hillel he may pick it as usual in his lap, in a basket with holes, or in a large dish, but not on a large table, or through a small or large sieve. Rabban Gamaliel says: It is also lawful to pour water thereon, and remove the part not fit to eat, by hand.

GEMARA: We learn in a Boraitha: Said R. Gamaliel: The Mishna refers to a case when there was more of the eatable part than of the part unfit for eating; but if the opposite was the case, then all agree that he may take out only the eatable part and leave the rest. Is there any one who is allowed to do as usually even when the unfit part was larger than the rest? R. Gamaliel meant to say, that even when the quantity of the unfit part was

* Latin for a dish of pounded barley.

small, but to pick it out would be more trouble than to pick out the eatable part, all agree that he shall do what gives less trouble.

"*Rabban Gamaliel said*," etc. We have learned in a Boraitha: R. Elazar bar Zadok said: Such was the custom in the house of Rabban Gamaliel: They usually brought a pail full of lentils and poured water on it, and the eatable part settled down, while the unfit part remained floating; but another Boraitha states the contrary (that the unfit part settles down, etc.)? It presents no difficulty: the straw floats above, but if there is any dust or other such matter, it sinks.

MISHNA: It is unlawful for one to send to another as a present on the festival anything but eatables, according to Beth Shammai. Beth Hillel, however, permit to send even cattle, game, and poultry, either slaughtered or alive; also presents of wine, oil, fine flour, and pulse, but not grain. R. Simeon allows also to send grain.

GEMARA: R. Je'hiel taught: This is permissible only when he sends it by a few persons, but not by a whole line of men. A Boraitha taught that a line is not constituted by less than three men.

"*R. Simeon*," etc. A Boraitha taught: R. Simeon permits to send grain; *e.g.*, wheat, to make of it a dish which the inhabitants of Lydia used to make (by grinding the grains of wheat); barley, to give it to cattle; and lentils, to make of them a dish.

MISHNA: It is also permitted to send clothes, sewed or not, even of "Kelayim," in case they can be used on the festival, but not sandals with iron nails or unfinished shoes. R. Jehudah says: White shoes may not be sent either, because an artificer is required to make them fit for use. This is the general rule: Whatever can be used on the festival, may be sent as a present thereon.

GEMARA: It is right that sewed clothes should be permitted on a festival, because they can be used, and clothes not sewed may also be used for covering; but how can Kelayim be used? The Mishna meant to say rough clothes which can be used for sitting upon, and this is according to R. Huna the son of R. Joshuah, who said that felt of the city of Narash (which was rough) might be worn even if in it is Kelayim (linen and wool mixed together).

"*But not sandals*," etc. What is the reason? Because once

an accident occurred.* Said Abayi: Sandals with iron nails must not be worn, because an accident happened on account of them, but they may be handled; and this we infer from our Mishna, which says that they shall not be sent, and if it were disallowed to handle them, it would be self-evident that they could not be sent.

"*Or unfinished shoes.*" Is it not self-evident? The Mishna means to say that even if there were nails in them already (so that they could be put on), yet being unfinished, they might not be sent.

"*R. Jehudah says,*" etc. We have learned in a Boraitha: R. Jehudah permits to send black shoes, but not white, because lime is needed to make them white; and R. Jose prohibits black shoes, because they must be polished. They do not disagree, however. Both speak of the customs in their respective places. In the place of one Master the skin of the shoes had the inner side turned out, and therefore it had to be made white; while in the other the opposite was the case, and polishing was needed.

"*This is the general rule,*" etc. R. Shesheth permitted to his disciples to send phylacteries on a festival. Said Abayi to him: Did not we learn in our Mishna, only a thing which can be used on the festival may be sent (and phylacteries are not used then)? And he answered: The Mishna meant to say things fit to be used on a week-day may be sent on a festival. Said Abayi: When the phylacteries are spoken of we would like to say something: If one was on the road on the eve of Sabbath or of a festival, and the Tefilin were on his head and the sun set, he may lay his hand on the Tefilin and thus come to his home. The same is the case when he was sitting in the house of learning and the Tefilin were on his head, he may lay his hand on them until he comes home.

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*See Tract Sabbath, p. 116.

CHAPTER II.

REGULATIONS CONCERNING THE COMBINING OF COOKERY ON A FESTIVAL PRECEDING A SABBATH.

MISHNA: When the festival falls on Friday, it is unlawful to prepare thereon, on purpose, any food for the Sabbath, but for the festival alone, and whatever remains may be used for the Sabbath; and one may prepare on the eve of the festival one dish for the Sabbath especially, and then he may continue cooking on the festival for the Sabbath. Beth Shammai, however, say: Two dishes are necessary; Beth Hillel say: One is sufficient. Both, however, agree that fish and egg upon it may be considered as two dishes. If the dish thus prepared has been eaten or lost, nothing more may be cooked in addition to it; but if any small portion whatever is left, it suffices.

GEMARA: Whence is this deduced? Said Samuel: It is written [Ex. xx. 8]: "Remember the Sabbath day to keep it holy"; from which we infer that we should remember it when we are liable to forget it (*i.e.*, when it is holiday already, one can forget it). Our Tana, however, infers this from the following passage [ibid. xvi. 23]: "What ye shall bake, bake to-day; and what ye shall seethe, seethe to-day." From this R. Elazar inferred that it shall not be baked unless same is baked already, and it shall not be cooked unless same is cooked already. And this is used by the sages as a biblical support to the law of the combining of cookery.

The rabbis taught: It once happened that R. Eliezer was sitting and lectured a whole day (of the festival) about the laws relating to festivals. The first part of his audience arose and went out, and R. Eliezer said: These people must have great barrels of wine, and they are in a hurry to drink them. The second portion of the audience went away, and he said: These people must have smaller barrels. Of the third part he remarked: They must have cans. Of the fourth he said: They must have *lugs*. When the fifth part left him, he said: They must have only goblets. When the sixth part began to

depart, he said: They are worthy to be scolded (because the college began to be empty). At the same time he looked upon his disciples and saw the color of their faces was changed, and he said to them: My children, I did not mean you. I spoke only about those people who leave eternal life for temporary affairs. When his disciples were going away, he said to them [Nehem. viii. 10]: "Go your way, eat fat things, drink sweet drinks, and send portions unto him for whom nothing is prepared; for this day is holy unto our Lord: and do not grieve yourselves; but let the joy of the Lord be your stronghold."

The Master says: "Because they leave eternal life for temporary affairs." Is not the enjoying of the festival a religious duty? R. Eliezer said this in accordance with his theory that the enjoying of a festival is not obligatory, as we learned in the following Boraitha: R. Eliezer said: A man has nothing to do on a festival but either to eat and drink the whole day, or to sit and study; but R. Joshuah said: He must divide the day—one-half of it for eating and drinking, and one-half of it for religious purposes. Said R. Johanan: The above both sages deduce from the following verse [Deut. xvi. 8]: "On the seventh day shall be a solemn assembly unto the Lord thy God"; another verse [Num. xxix. 35]: "An assembly shall be to you." How can the contradiction between these two verses be explained? R. Eliezer explains it thus: The whole day shall be either for you or for the Lord; but R. Joshuah explains it thus: Divide the day—one-half for the Lord and one-half for you. Said R. Elazar:* All agree that on Pentecost the day must be partly devoted to one's self also. Why so? Because on this day the law was given to Israel, and we must enjoy it. Said Rabha: All agree also that on a Sabbath the day must be devoted to one's self also. Why? Because it is written [Is. lviii. 13]: "Thou shalt call the Sabbath a delight." And R. Joseph said: All agree that on the festival of Purim the day must also be devoted to one's self, as it is written [Esther, ix. 22]: "To make them days of entertainment and joy." Mar the son of Rabina was fasting the whole year except on Pentecost, Purim, and the eve of the Day of Atonement: Pentecost, because the law was given; Purim, because they are days of joy and entertainment; and the eve of the Day of Atonement, for a reason that is explained in Tract Yomah, p. 129.

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* This is transferred from Pesachim, p. 68, b.

R. Joseph on the days of Pentecost used to say to his domestics: Prepare for me a calf which is the third-born (of the third birth), saying: If not this day be the reason, how many Josephs are there abroad! (and but for the law, he would not be distinguished among them).

R. Shesheth used to repeat his studies every thirty days, and, supporting himself against the wall of the college, said: Rejoice, my soul! Rejoice, my soul! For thy sake I have read, for thy sake I have studied.

What is meant, in the above verse of Nehemiah, by "send portions to those for whom nothing is prepared"? Said R. Hisda: It refers to those men who have not made an Erub Tabshilin (combining of cookery). What is meant by "let the joy of the Lord be your stronghold"? Said R. Johanan in the name of R. Elazar bar Simeon: The Holy One, blessed be He, said to Israel: My children, borrow money for my sake, and rejoice on the holy day, and trust to me, I shall pay it.

R. Tachlipha brother of Rabanai Huzaah taught: All the necessaries of a man are appointed for him in the Heavenly Court in the ten days between New Year and the Day of Atonement, except the expenses for Sabbath, the festivals, and the studies of his children: the amount for these purposes appointed for him in Heaven is the same as that which he spends (and varies with it).

We have learned in a Boraitha: It was said that Shammai the Elder used to eat all days for the honor of Sabbath. When he found a good animal, he used to say: This shall be for Sabbath. But when he found a better one, he ate the former, and left the better one for Sabbath; but Hillel the Elder had another habit: Because all his deeds were for the sake of Heaven, as it is written [Ps. lxviii. 20]: "Blessed be the Lord! *day by day* he loadeth us with benefits" (trusting in God to provide for Sabbath at the proper time).*

"*One may prepare on the eve of the festival one dish,*" etc. Said Abayi: Only a dish is good for the purpose, but bread alone is not. Why so? Shall we assume it is required to have an article of food which is not often eaten, and bread is always eaten, then a dish of *disa* (mush), which is rarely eaten, is nevertheless disallowed by R. Nehuma bar Zachariah in the name of Abayi? The reason is this: One must have a thing which can be eaten

* The saying of R. Johanan here is transferred in our edition from here to Tract Sabbath, p. 18, as it belongs there.

with bread, and *disa* cannot be eaten with bread. As it happened that R. Zera saw people eating *disa* with bread, he said: The Babylonians are fools, they eat bread with bread!

R. Hiya taught: Lentils which are on the bottom of a pot may be used as an Erub Tabshilin, if the quantity is of the size of an olive. R. Itz'hak the son of R. Jehudah said that the fat of a fowl, if it is of the size of an olive, may be similarly used. And R. Abha said in the name of Rabh: The prescribed quantity for an Erub is the size of an olive, and it is sufficient for one or for one hundred persons. Said R. Huna in the name of Rabh: The combining of cookery must be done intentionally. It is certain that the person who makes the Erub must have the intention, but how is it with the person for whom the Erub is made? Is his intention also needed, or is it not? Come and hear: The father of Samuel made an Erub for all the inhabitants of Nehardai, and R. Ammi and R. Assi made an Erub for the whole population of Tiberia (hence the intention of those for whom the Erub is made is not necessary).

R. Jacob bar Idi proclaimed: Everybody who has not made an Erub Tabshilin shall rely on my Erub Tabshilin (and shall do the preparing for Sabbath). And at what distance? Said R. Nehuma bar Zachariah in the name of Abayi: As far as the legal limit of Sabbath (2,000 ells).

There was a blind man who had classified Mishnaioth before Mar Samuel; and Mar Samuel saw he was downcast. And he asked him: Why are you downcast? And he answered: Because I have not made an Erub Tabshilin. Said Mar Samuel to him: Rely upon mine. The next year he saw him again sad, and got the same answer, and Mar Samuel rejoined: If it is so, you are a transgressor (you have not made one intentionally). All can rely upon my Erub Tabshilin, but not you.

The rabbis taught: On a festival which happens to be on Friday, the Erub of legal limit and the Erubin of courts are not to be made. Rabbi, however, said: The Erub of legal limit is not to be made, but the Erubin of courts may, because you can prohibit one to do a thing for to-morrow which he may not do to-day; but you cannot forbid a man to do a thing for to-morrow which he may do to-day (Erubin of courts are needed only for Sabbath, but not on festivals). It was taught: Rabh said the Halakha prevails according to the first Tana, but Samuel said the Halakha prevails according to Rabbi.

The rabbis taught: On a festival following on Sabbath one

shall say eight benedictions; that is to say, the Sabbath benediction separately. Beth Hillel, however, said: One shall pronounce seven benedictions, and he shall begin and close with Sabbath, and shall include the holiness of the day. Rabbi said: He shall close with the benediction: "Blessed be He who sanctifies the Sabbath, Israel, and the festivals." A disciple taught in the presence of Rabina: "Who sanctified Israel, the Sabbath, and the festivals," and Rabina rejoined: Does Israel then sanctify the Sabbath? The Sabbath is itself holy: Say then: "Who sanctified the Sabbath, Israel, and the festivals." Said R. Jose: The Halakha prevails according to Rabbi as interpreted by Rabina.

The rabbis taught: On a Sabbath following on the first day of the month, or any day of the intermitting days, one shall pronounce in the three prayers of evening, morning, and Min'ha seven benedictions; and concerning the festival he shall include the prayer about the return of the Temple-service, and if he has omitted it he must begin all again. But in the Additional Prayer he shall begin and close with the benediction of Sabbath, and the holiness of the day shall be included.

Rabban Simeon b. Gamaliel and R. Ishmael the son of R. Johanan b. Broka say that whenever there are seven benedictions, he shall begin and close with Sabbath, and the benediction of the day shall be included. Said R. Huna: The Halakha does not prevail in accordance with last pair.

R. Hyya bar Ashi in the name of Rabh said: One may lay an Erub of legal limit on the first day of a festival (in exile, where two days are kept) with a condition, if the right day of the festival is to-day, then the Erub is null and void, because one can go to-morrow without any Erub at all; and if the right day of the festival is the next day, this Erub shall be for that day. Said Rabha: The same is the case with the Erub for cookery.

The rabbis taught: It shall not be baked from one festival day for another. It was truly said that a woman may fill a whole pot with meat though she do not need more than one piece (for that day). The same is the case with a baker, who may fill a whole barrel with water, though he need only one can (for the day); but it is not allowed to bake except as much as is needed for the day. R. Simeon b. Elazar, however, said, that a woman (not a baker) may fill a whole oven with bread, because it is better baked when the whole oven is full. Said Rabha: The Halakha prevails according to the latter.

The schoolmen propound a question: If one has not made an Erub Tabshilin, is he only prohibited to do anything for Sabbath, but not his flour? Or is his flour also forbidden? What is the difference? To transfer his flour to others, if you say the flour is not prohibited, then another one can take his flour and prepare for him; but if you say his flour is prohibited, then he must transfer it. Come and hear: One who has not made an Erub Tabshilin must not bake nor cook nor save either for himself or for others, nor may others do it for him; but what shall he do (to eat something on Sabbath)? He shall transfer his flour to others, and then they may bake and cook for him. From this we infer that both he and his flour are prohibited.

The schoolmen propounded a question: How is it if one has transgressed and baked without an Erub? Come and hear: If one has not made an Erub Tabshilin, etc. (as mentioned above). Now, if it would be allowed to eat, why does not the Boraitha state that if one has transgressed and has baked, it is allowed to eat? Said R. Adda b. Mathna: From this nothing can be inferred. The Tana advises only how to dispose for a man, he shall be able to prepare something in accordance with the Law; but when one has acted against the Law, this Tana does not speak of it at all. Come and hear another Boraitha: If one has made an Erub Tabshilin, he may bake, cook, and save, and if he wants the Erub, it is allowed; but if he has eaten the Erub before he has baked or saved, then he is not allowed to bake, cook, or save either for himself or for others, neither are others allowed to do so for him. He may, however, cook for the festival and use what is left on the Sabbath, provided he does not do it cunningly (*i.e.*, he shall not add so much that he shall have sufficient for the whole Sabbath), and when he does it cunningly he must not use it for the Sabbath. (Hence we see, that if he acted against the Law, it is prohibited.) Said R. Ashi: The case of cunning is different, because the rabbis were very rigorous with such. R. Na'hman b. Itz'hak said: The Boraitha which said that cunning is prohibited is not at all in accordance with the decision of the rabbis, but of an individual, Hananiah, who taught it in accordance with the decision of Beth Shammai, as it is to be understood from the following: Hananiah said: Beth Shammai declare: One shall not bake unless he has made an Erub with bread; one shall not cook unless he has made it with something cooked; and one shall not save, unless he has already saved warm water for the Sabbath. Beth Hillel, however,

said: One may make an Erub with something cooked, and through it he may prepare everything.

"*Beth Shammai say two dishes,*" etc. Our Mishna is not in accordance with the Tana of the following Boraitha: R. Simeon b. Elazar said: Both schools agree that two dishes are needed. In what they differ is about a fish and egg which is upon it. According to Beth Shammai it is considered as two dishes, but according to the school of Hillel it is considered only as one dish. Both agree, however, that if one put in a cooked egg in the fish or χεφαλιδος in the cooked fish, it is considered as two dishes. Said Rabha: The Halakha prevails as our Tana and according to Beth Hillel.

"*If it has been eaten or lost,*" etc. Said Abayi: We have a tradition that he who has begun to knead dough and heard meanwhile that the Erub was lost, may finish his work nevertheless.

MISHNA: When the festival falls after a Sabbath, Beth Shammai say: Everything requiring purification must be immersed before the Sabbath. But Beth Hillel say: Vessels must be immersed before the Sabbath, and human beings on the Sabbath. Both schools agree that water which has become polluted may be purified by pouring it into an earthenware vessel, but not on earth itself. It is lawful, however, to dip vessels whose original appropriation has been altered, and men may bathe when they have changed from one company to another (to eat the Paschal lamb).*

GEMARA: We see from this Mishna that, according to all, a vessel must not be dipped on Sabbath. Why so? Said R. Bibbi: It is a precautionary measure, lest one leave the vessels unclean on the week-days for purification on Sabbath. We have learned in a Boraitha in support to R. Bibbi: A vessel which has become unclean on the eve of the festival must not be dipped on the festival; and this is a precautionary measure, as the one above mentioned. Rabha, however, said: The reason why one must not immerse on Sabbath is that it would seem as if one repaired the vessel. If it is so, why may a man bathe on Sabbath (and a man cannot eat Terumah, etc., when he has not bathed). A man is different, as it can be said that he is doing so to cool himself. That would be right, if he bathed in pure water; but if he immerses himself in turbid water? Said R. Na'hman bar Itz'hak: It happens that a man becomes heated, and then

* See Tract Pesachim, Chap. IX., Mishna 1.

he bathes even in water in which flax has been steeped, to cool himself. This would be right in summer-time, but what can be said if he does it in winter-time? Said R. Na'hman bar Itz'hak: It may happen a man becomes dirty and soiled, and then considers not the quality of the water. All this is right on a Sabbath, but what would be the law on a Day of Atonement? Said Rabha: Do you find something allowed to be done on Sabbath that is not allowed on the Day of Atonement? (Therefore, *because* it is permitted on Sabbath, it is permitted also on the Day of Atonement.)

"*But not on earth itself.*" What is meant by this? Said Samuel: He may bring it in contact with water of a legal bath, but not in an unclean vessel.

According to whom is our Mishna? As it is not according to Rabbi, nor according to the sages of the following Boraitha: One must not immerse the vessel with the water therein to purify it, nor bring it in contact with water in a stone vessel to purify the water therein: so is the decree of Rabbi. The sages, however, permitted both. (Hence according to whom is the Mishna?) We may say that it is according to the sages' opinion, and the Mishna refers not to purification on a week-day but on Sabbath.

"*Whose original appropriation has been altered,*" etc. The rabbis taught: If one wishes to immerse his vessels for the purpose of filling them with the oil of newly crushed olives, and afterwards changes his mind and resolves to crush the olives *in* them, or *vice versa*, he may do so. If one was engaged to eat the Paschal lamb with one company, and thereafter he changed his mind to eat with another company, he might do so.

MISHNA: One may bring peace-offerings on the festival, but not lay his hands on them;* and burnt-offerings may not be brought at all—according to Beth Shammai. Beth Hillel, however, allow all this.

GEMARA: Said Ula: The point on which both schools differ is the laying of the hands on the peace-offerings of the feast and whether burnt-offerings of the pilgrimage may be sacrificed at all. Beth Shammai hold: It is written [Ex. xii. 14]: "Ye shall celebrate *it* as a feast unto *the Lord*"; *it, i.e.*, the peace-offering, but not the burnt-offering. But Beth Hillel say: "unto the Lord": that signifies, all that is unto the

* See Lev. i. 4.

Lord is allowed. But vows and voluntary offerings, all agree, are not. Such also is the opinion of R. Adda bar A'hba. An objection was raised: We have learned elsewhere (in addition to this Mishna): R. Simeon b. Elazar said: Both schools do not differ concerning a burnt-offering which does not belong to the festival, that it must not be offered, and also that peace-offerings which belong to the festival may be offered. In what they differ is, when the burnt-offering *belongs* to this festival and concerning the peace-offerings which *do not* belong to this festival. According to Beth Shammai they must not be offered, and according to Beth Hillel they may. (Hence we see that according to both, vow and voluntary offerings are to be offered on the festival?) Answer this objection that the saying of R. Simeon b. Elazar must read thus: He said, Both schools do not differ when the burnt and peace-offerings do not belong to this festival, that they must not be offered, and the peace-offering which belongs to this festival, that it may; they differ only about a burnt-offering which belongs to this festival, that according to Beth Shammai it must not, and according to Beth Hillel it may. Said R. Joseph: Is it necessary to make out the Boraitha as erroneous because of the saying of Ula? Are there not other Tanaim who differ on this point, and Ula's saying can be according to them? As we have found in the following Boraitha: Peace-offerings which belong to this festival, when they are to be offered on it, Beth Shammai said: He may lay his hands upon it on the eve of the festival, and it shall be slaughtered on the festival; Beth Hillel, however, said: Both may be done on the festival; but vow and voluntary offerings must not be offered on the festival.

And the Tanaim of the following Boraitha differ on the same point: One must not bring thanksgiving-offerings on all days of Passover, because they contain unleavened bread; nor on Pentecost, because it is a festival; but he may bring them on the Feast of Tabernacles (on the intermitting days). R. Simeon, however, said: It is written [Deut. xvi. 16]: "On Passover, on Pentecost, and on the Feast of Booths." From this we may infer that all that may be brought on Passover and Pentecost, may be brought also during the Feast of Tabernacles; but what must not be brought on the first two, one may not on the third. R. Eliezer b. R. Simeon, however, said: One may bring thanksgiving-offerings during the Feast of Tabernacles, and by this will be fulfilled the duty of enjoying the holiday, but not the duty of bringing a feast-offering. Is not

this self-evident? Are not the feast-offerings a duty, and it is certain that a duty must be brought of a profane (ordinary) quality? He means to teach us, that even if one has explicitly said that he intends the thanksgiving-offering also for a feast-offering, nevertheless the duty of the feast-offering is not fulfilled. As R. Simeon b. Lakish asked of R. Johanan: If one say, "I will bring a thanksgiving-offering, and with this I will fulfil the duty of a feast-offering"; or, "I will be a Nazarite, but when I shall bring the offering after shaving,* I will take it from the second tithe money," what is the law? And R. Johanan answered him: He must bring a thanksgiving-offering, but the duty of the feast-offering is not fulfilled; he is a Nazarite, but cannot bring the shaving-offering from the second tithe money.

It once happened a man said: Give four hundred Zuz to a certain man, and he shall marry my daughter. Said R. Papa: The four hundred Zuz must be given to him, and the daughter, if he likes her, he can marry, but not otherwise. The reason is, because he has said first, "give him the money"; [but if he had mentioned the daughter first he would get the money only if he married]. If he had said: He shall marry and take the money, then he must marry her first. Meremar was sitting and declaring the Halakha in his own name. Said Rabbina to him: You teach this as if it were a Boraitha; we, however, learn it as the question of Resh Lakish from R. Johanan, mentioned above, and the decision is R. Johanan's.

The rabbis taught: It happened to Hillel the Elder that he brought his burnt-offering to the Temple-court for laying hands on it on the festival. The disciples of Shammai the Elder, however, surrounded him, and asked him: What is the matter with this animal? And he answered: It is a female, and I have brought it for a peace-offering. And he shook the animal's tail, and they went away. And on that day the school of Shammai took the upper hand over Beth Hillel, and the people wanted to decide the Halakha according to them; but one old man was there among the disciples of Shammai the Elder, Baba ben Butta by name, who was certain that the Halakha prevailed according to Beth Hillel. And he sent and brought of the best sheep of Jerusalem, and placed them in the Temple-court, and said: Everybody who wants to lay his hands upon them shall come and do so. And on that day Beth Hillel took the upper hand,

* See Num. vi. 9.

and the Halakha was decided according to them, and no objection was made by anybody.

Again, it happened once that a disciple of Beth Hillel brought his burnt-offering into the Temple-court for the purpose of laying his hands upon it, and a disciple of the school of Shammai met him and said: Why the handling? And he replied: Why are you not silent? So he silenced him with a rebuke, so that he went away. Said Abayi: From this we may infer that if a young scholar says to another a few words, the answer shall not be more lengthy than the remark which was addressed, as we have seen in the case of the two disciples, when he asked him: "Why the laying of the hands?" he answered him: "Why not be silent?"

We have learned in a Boraitha: The disciples of Hillel said to the disciples of Shammai: (Is not this an *a fortiori?*) If on Sabbath, when all things to be done for a human being are prohibited, nevertheless in honor of the Lord all is permitted; on a festival, when all things necessary for a human being may be done, so much the more everything may be done for the Lord (*i.e.*, and why, then, shall a burnt-offering of the pilgrimage not be sacrificed?). And they answered: You can infer this from voluntary and vow offerings, that are permissible for a human being, and nevertheless even you own that they must not be sacrificed on a festival. Said Beth Hillel again: There is no comparison here because voluntary and vow offerings have no appointed times. The burnt-offerings, however, have stated times. Rejoined Beth Shammai: Nay, even these have no appointed time, as we have learned in a Mishna: One who has not brought his feast-offering on the first day of a festival may do it during the whole festival and even on its last day. Rejoined Beth Hillel again: Is this not a fixed time? As we have learned in another Mishna, if one has not brought a feast-offering during the whole festival, he is no longer responsible to do it (consequently there is a stated time for it, and if we will prohibit him from bringing it on the first day of the festival, he may not bring it any more at all). Said Beth Shammai again: Has it not been said in the verse, "an assembly shall be unto you," which may signify for your sake and not for the Lord's sake? And they answered: Does not another verse say: "An assembly shall be unto the Lord"? Whence we may infer that all which is in honor of the Lord shall be done. And from the expression "unto you" we may infer "for your sake but not for the sake of strangers."

R. Iviah the Elder asked R. Huna: An animal which is half a Gentile's and half an Israelite's, how is the law of slaughtering it on a festival? And he answered: One may do it. And he asked him again: What is the difference between this and voluntary vow-offerings? And he replied: A raven flew away. When R. Iviah was gone, said Rabba, R. Huna's son, to his father: Was this not R. Iviah the Elder, whom you praised to me as a great man? And he answered: What could I have done with him? I am to-day weak, I have lectured, and need what is written in Song of Songs, ii. 5, to "strengthen me with flagons of wine, refresh me with apples"; and he asked me a thing of which the reason must be explained (at length). [And in reality, what is the reason? This: An animal which is half a Gentile's and half an Israelite's may be slaughtered on a festival, because if one wants to eat meat even the size of an olive, he cannot take it from the animal when it is still alive, but it must be slaughtered; and as this animal belonged half to an Israelite, he can certainly slaughter it. But vow and voluntary offerings, they are considered all for Heaven, and although the priests eat some of their meat, this is only because of their reward from Heaven, and not from the one who brings the offerings.]

Dough, however, which is half an Israelite's and half a Gentile's, is not to be baked on the festival, because it can be divided when it is yet dough. R. Hana bar Hanilai objects: We have learned of dough made for dogs, if the shepherd can eat of it, one is liable to take of it first dough, and may make an Erub with it, and may use it for the combining of the entrance; and the benediction of eating may be said over it, and if three or more men had eaten of it, they may pronounce the benediction of the meal, and it may be baked on the festival, and the man who eats it (when it is not leavened) on the first evening of Passover has done his duty of eating Matzah. Now, if it is possible to divide it when it is dough, why should it be baked on a festival (let him set apart the portion for the dogs, and bake for himself)? The dough for the dogs is different; because one can give a carcass to the dogs, instead of the dough. But does R. Hisda hold the supposition of *because?* Was it not taught (Vol. V., p. 74) that R. Hisda is against this supposition? Say, the case is when the shepherd has a carcass and intends to do so.

R. Huna was asked: May the inhabitants of Baga, who had the duty to give bread to the military, bake it on the festi-

val? And he answered: Let us see. If the soldiers are not particular when one takes a piece of the bread and gives it to a child, then of every loaf we can say: "This is fit for a child," and it may be baked. But if they are particular, it may not be so done. But have we not learned in a Boraitha as follows: It once happened to Simeon of Teman that he did not visit the house of learning on a festival day. On the morrow Jehudah b. Baba asked him: Why wast thou not yesterday in the house of learning? And he answered: Military were coming yesterday into the city, and wanted to rob the whole city; and we slaughtered for them calves, and made them eat, and they went away in peace. Rejoined R. Jehudah b. Baba: I wonder whether your loss was not greater than your benefit, for the Torah teaches "unto you," but not unto Gentiles. (They should not have done work for the soldiers.) Now, why? Were not the calves fit for Israelites also? Said R. Joseph: The calves were Terepha. *

But was it not fit for dogs when the owners are obliged to feed them? The Tanaim of the following Boraitha differ about this law: It is written [Ex. xii. 16]: "Save what is eaten by every soul, that only may be prepared for you." From the expression "every soul," we may infer, even a soul of an animal, as we find [in Leviticus xxiv.], "he that taketh the soul of an animal shall pay for it." Therefore the verse says plainly, "for you," and not for dogs. So said R. Jose the Galilean. R. Aqiba, however, said: For all souls, even souls of animals, are included. But for what purpose is it written "*for you*"? To indicate only animals for whose support you are responsible, but not for strangers, for whose support you are not responsible. Rabha accompanied Mar Samuel to the pulpit and the latter lectured: One may invite a Gentile on Sabbath, but not on a festival day, because on a festival day he may increase the Israelite's work in his behalf. When a Gentile guest came to Maremar or to Mar Zutra on a festival day, they said to him: If you are satisfied with what we have already done for ourselves, then you are welcome; and if not, you must excuse us, because we must not do any work for you.

MISHNA: It is prohibited to boil water on the festival for the purpose of washing the feet, unless the water is also fit to drink, according to Beth Shammai. But Beth Hillel allow it.

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* Legally prohibited to be eaten by Israelites, as will be explained in Tract Hulin.

(All agree, however,) that a fire is to be made for the sole purpose of warming himself by it.

In three things Rabban Gamaliel decides like the school of Shammai more rigorously, namely: They prohibit to commence to preserve the heat of pots for Sabbath on its eve, when it happens to be a festival; to put together the pieces of a candelabrum; and to bake large loaves, but only thin cakes. Rabban Gamaliel said: They never used to bake in my father's house large loaves on the festival, but only thin cakes. The sages, however, said to him: What does this usage of your father's family prove, who though strict in this respect nevertheless allowed all Israel to bake on the festival large loaves and thick cakes?

GEMARA: How is the case? If an Erub Tabshilin was made, why do Beth Shammai prohibit it? And if none was made, why do Beth Hillel permit it? Said R. Huna: It may be explained, when the case is that an Erub Tabshilin was not made, but nevertheless what is necessary for one's life, the sages permit. And this is according to his theory elsewhere, where he said: If one has not made an Erub Tabshilin, one loaf and one pot may be baked, and cooked for him, and also light may be kindled for him. In the name of R. Itz'hak it was said: They may roast for him also a small fish. The same we have learned in a Boraitha, with the addition that one pitcher of water may be heated for him. Rabha, however, said: The Mishna can be explained also thus: that an Erub Tabshilin *was* made, and nevertheless Beth Shammai prohibit it, because the preserving of the heat everybody can see is done only for Sabbath.

"*To put together pieces of a candelabrum.*" What labor is in it? Said R. Hin'na bar Bisna: This refers to a candelabrum whose parts have to be screwed together, and is regarded like an act of building (construction) (see Tract Sabbath, p. 266).

It happened once that Ula came to R. Jehudah; his servant inclined the lamp so that the wick should sooner be extinguished (by the oil being out of its reach). R. Jehudah objected: Did we not learn that whoso puts oil into the lamp is culpable of kindling fire? and whoso removes the oil therefrom is culpable of extinguishing? Answered Ula: The servant did it without my knowledge.

Rabh said: To snuff a lamp on a festival is permitted. Abayi asked Rabba: How is the law to extinguish a conflagration on a festival? When there is danger of loss of life

I do not ask, for it is allowed even on a Sabboth; what I ask is, when there is a pecuniary loss only? He answered: It is not permitted. Abayi objected to him: Did we not learn: A chip of wood must not be extinguished in order to save it. However, for preventing the house or the pot from being filled with smoke, it is permitted? He rejoined: This is in accordance with R. Jehudah, but my decision is in accordance with the majority of the rabbis.

R. Ashi asked Amemar: How is the law to paint the eyes (for a medical purpose) on a festival? When there is danger, *e.g.*, when they prick, or are bloodshot, or drip, or drop tears continually, or are in fever at the first stages, it is not doubtful to me, as this is allowed even on a Sabbath. Where I am uncertain is, when they are almost cured, and the painting is done only for improving the sight? He decided that it is not allowed. R. Ashi objected to him with the same Boraitha which Abayi objected to Rabba as stated above, and Amemar's answer was the same.

Amemar himself, however, used to dye his eyes through a Gentile on the Sabbath. Said R. Ashi to him: What is your opinion in doing it? Because Ula the son of R. Ilai said: All that is necessary for a sick man may be done through a Gentile on Sabbath. And also R. Hamnuna said: All things which are not dangerous, it may be said to a Gentile that he should do them. But when is this the case? When the Gentile does it himself without assistance from the Israelite. But you, Master, assist him in his dyeing by your opening and closing the eyes. And he answered: There is R. Zbid, who has also asked the same question, and I answered him that assistance is not considered a labor at all. The same Amemar allowed that one should dye his eyes on the second day of New Year. Said R. Ashi to him: Did not Rabha say that in the two days of New Year the case is different with an egg (see above, p. 8)? And he answered: My opinion is as that of the sages of Nehardai, who say there is no difference.

"*To bake large loaves*," etc. The rabbis taught: The school of Shammai said: Thick loaves must not be baked on the Passover. Beth Hillel permit it. What are called thick loaves? Said R. Huna: If it is a span in thickness, for the showbread was thus. R. Joseph opposed: What comparison is this? There it is related of the specialists, who knew their work and were careful; there a great deal of labor was necessary (as stated in Menahoth,

that the flour of the showbread required three hundred oscillations and five hundred beatings of the fist); there it was baked with dry wood (as stated in Taanith, that on the fifteenth of Ab they had ceased to cut wood for the Temple); there was a hot oven which was constantly fired, and it was of iron. Should it be compared to common people, to common bread, to wet wood, and a brick oven which may not be heated as required?

Said R. Jeremiah bar Abha in the name of Rabh: I have asked especially our Master, our holy rabbi, what is meant by thick loaves? And he said: A great quantity; *i.e.*, not the loaves are thick, but the quantity of the dough is great. But why does he call them thick loaves? Because it is thick when kneaded. If so, why is it prohibited only on Passover, why not on other festivals also? It means also other festivals, but the Tana was teaching them the laws of Passover, and therefore mentioned that festival. Another Boraitha says plainly: Much bread shall not be baked on a festival, according to Beth Shammai; but Beth Hillel allow it.

MISHNA: He (Rabban Gamaliel) decided the law leniently in respect to the following three things: He allowed to sweep on the festival between the couches (or sofas on which the ancients used to eat), to put spices on live coals (after meals), and to prepare a complete roasted kid on the nights of Passover (as a memorial to the Paschal lamb). But the sages prohibit all these.

GEMARA: Said R. Assi: They differ only about the enjoyment of the odor of the spices, when they are already there; but to put the spices on the live coals, all prohibit. The schoolmen propounded a question: How is the law to put fruit in the smoke of spices to flavor them on the festival (as the custom was to do)? R. Jeremiah bar Abha in the name of Rabh said: It is prohibited, but Samuel permitted it. R. Huna said: It is prohibited, because one extinguishes the live coals. Said to him R. Na'hman: Let the Master say, because one kindles the spices? And he answered: In the beginning, when he pours out the spices on the coals, he extinguishes the coals, and afterwards they kindle. R. Jehudah, however, said: That is prohibited only on live coals, but in a heated oven it is permitted. Rabba, however, said: This is also prohibited, because he produces a new odor in the oven. [Rabba and R. Joseph both said: It is unlawful to cover a silk garment with a goblet of spices on a festival in order to impart an odor to it. Why so? Because the garment produces a new odor. But why is this different from grinding

or cutting spices for smelling, which is allowed? There the odor is in it when grinding or cutting them, the odor is only increased, but here he produces a new odor altogether.]

Rabha, however, said: Even on live coals it is also permitted, because is it not allowed to put meat on live coals for eating on a festival? R. Gbiha of Be-Kthil at the door of the exilarch lectured: Fuming is allowed. Said Amemar to him: What is meant by fuming? Does it mean to perfume the sleeves of a woman's dress? This must be done by a specialist, and this is certainly prohibited. And if it means to fume to produce good odors, the producing of a new odor is not permitted also? Said R. Ashi: *I* have declared this law to him and in the name of a great man, that it may be even to produce a new odor, and it is nevertheless permissible, because it is equal to meat on live coals, which is permitted.

MISHNA: Rabbi Elazar ben Azariah permitted three things which the other sages prohibit: His cow was going out on a Sabbath with a strap attached to her horns; he permitted also to curry cattle on the festival, and to grind pepper in a pepper-mill. R. Jehudah says: It is not permitted with an iron currycomb, because a wound may be inflicted; but with a wooden comb it is. The sages, however, prohibit both.

GEMARA: Did R. Elazar ben Azariah possess but one cow? Did not Rabh, or according to others R. Jehudah in the name of Rabh, say that thirteen thousand calves used R. Elazar ben Azariah to give as tithes from his cattle yearly? We have learned in a Boraitha that the cow mentioned in our Mishna was not his, but his neighbor's, and because he did not protest, it was considered as if it was his own.

"*He also permitted to curry cattle,*" etc. The rabbis taught: What is called קרוד? An iron comb with small teeth, which produces a wound. What is called קרצוף? A wooden comb with large teeth, which produces no wound. And three Tanaim differ about this law. R. Jehudah holds that if a thing was done even unintentionally, it is prohibited; but we do not take a precautionary measure to a wooden comb, lest one do it with one iron one. The sages are of the same opinion as R. Jehudah, but they say that such a precautionary measure may be taken. R. Elazar b. Azariah, however, holds with R. Simeon, who said that a thing done unintentionally is not prohibited at all, and therefore he permits both. Said R. Na'hman: The Halakha prevails according to R. Simeon, because R. Elazar ben Azariah

agrees with him. Said Rabha to R. Na'hman: Why does not the Master say that the Halakha prevails according to R. Jehudah because the sages agree with him? And he answered: I hold with R. Simeon, and confirm my opinion because R. Elazar ben Azariah agrees with him.

MISHNA: A pepper hand-mill is subject to defilement in all the three separate vessels whereof it is composed: the upper, because it is of metal; the middle one, because it is a kind of a sieve (which allows only the finely ground particles to pass through); and the lower one, because it is a vessel of capacity (where the ground pepper is collected).

A child's cart is subject to defilement through pressure (as will be explained in Tract Taharoth), and may be moved on Sabbath from one place to another, provided it is dragged over cloths or carpets. R. Jehudah said: It is not allowed to drag any piece of furniture except such a cart, because it makes but a slight impression on the ground (and does not remove the soil so as to make a furrow).

GEMARA: The cart is subject to defilement through pressure, because the child is in the habit of sitting on it. It may be handled on Sabbath, because it is a vessel; and may be dragged only on pieces of cloth, but not over the ground itself, because it would make a furrow, and the whole Mishna is in accordance with R. Jehudah, who holds that a thing which is made unintentionally, is also prohibited; but according to R. Simeon, who holds that it is not, it may be dragged on the ground also, no matter if it makes a furrow.

APPENDIX TO PAGE 42.

R. Zutra bar Tubiah said in the name of Rabh: If an eye has rebelled (bulges out), it may be painted even on Sabbath. The hearers thought, that is if the paint was already prepared; but to prepare and bring it through public ground on the Sabbath, it may not. Said one of the scholars, whose name was Jacob, to them: It was explained to me by R. Jehudah that even all this may be done. R. Jehudah permitted to paint an eye on Sabbath. Said R. Samuel bar Jehudah: Who will follow Jehudah, who permits to violate the Sabbath? Finally himself had sore eyes, and he sent to R. Jehudah to inquire whether it was permitted (to paint the eyes) or not, and the answer was: It is permitted to all, but not to you (because you have rejected my decision). And in reality, was it then my decision? It was Mar Samuel's. When his servant had fever in her eyes on a Sabbath, she cried, but none attended her (because of Sabbath). Finally the eye burst. On the morrow Mar Samuel lectured in public that if an eye has bulged out it may be painted on Sabbath, because the veins of the eye are connected with the cells of the heart.

R. Joshua b. Levi said: Unkli may be cured on Sabbath. What is "Unkli"? Said R. Abba: *Asthma.*—From Abodah Zarah, pp. 28*a*-29*b*.

CHAPTER III.

REGULATIONS CONCERNING FISHING AND HUNTING ON FESTIVALS.

MISHNA: It is not allowed to catch fish from aquaria on festivals, nor to give them food; but one may hunt beasts or birds in parks, and feed them. Rabban Simeon b. Gamaliel says: Not all aquaria and parks are regarded in the same light. This is the general rule. In case the animals have to be hunted it is prohibited; but when no hunting is required, it is not.

GEMARA: There is a contradiction. We have learned in a Tosephta that in parks beasts and fowls must not be caught on the festival, and must not be fed. The contradiction between the Tosephta and Mishna concerning the beasts could be explained that the Tosephta is in accordance with R. Jehudah, who prohibits this (Sabbath, p. 216); but the contradiction about fowls, how can it be explained? And if it be said, that here also there is no difficulty, because the Tosephta meant an unroofed park, while the Mishna spoke of a roofed park, did not the Mishna in Tract Sabbath state that according to all a fowl must not be caught in a house, and a house is certainly meant a roofed one? Said Rabha bar R. Huna: The Tosephta meant a bird called Durur in Arabic, which it is very difficult to catch, and which never becomes domesticated. As the disciples of R. Ishmael taught: Why is this fowl named Durur? Because to it the house and the field are the same. Now, when we know this, the contradiction about beasts can also be explained, that the Mishna speaks of a small park, and the Tosephta of a great one, where it is difficult to catch. What is called a small park, or a great park? Said R. Ashi: If the shadows of the two walls on the ground touch, then it is small, but otherwise it is great.

"*R. Simeon b. Gamaliel says*," etc. Said R. Joseph in the name of R. Jehudah quoting Samuel: The Halakha prevails according to R. Simeon b. Gamaliel. Said Abayi to him: Is there any one that differs from him, that it is necessary for you to declare that the Halakha prevails according to R. Simeon b.

Gamaliel? Said the former: And what difference is it to you? Rejoined Abayi: Shall the Gemara be like a song, to learn it without knowing any reason for each decision?

"*This is the general rule*," etc. What is meant by "have to be hunted"? The same authority says in the name of the same authority: If one must say, bring a net to catch it. Said Abayi to R. Joseph: Of geese and chickens it is usually said, bring a net, we will catch them. Nevertheless we have learned in a Boraitha that whoso catches geese and chickens is not culpable? Said Rabba bar R. Huna in the name of Samuel: The latter come to their places in the evening, and the owner is responsible for their feeding (therefore whoso catches them is not culpable), but animals of a park do not do so, and the owner is not obliged to feed them.

MISHNA: If nets have been spread for fish or wild game on the eve of a festival, it is not allowed to take from them, on the festival, unless it is known that they have been caught before its commencement. It once happened that a Gentile brought on the festival a present of fish to Rabban Gamaliel, when he said: It is allowed to use them, but I do not wish to accept presents from that man.

GEMARA: Is the deed of R. Gamaliel not in contradiction with the teaching of the Mishna? The Mishna is not completed. It must be read thus: If it is doubtful whether a thing was prepared from the day before, it is prohibited; but R. Gamaliel permits it; and it once happened also that a Gentile brought fish on a festival, in the morning, as a present to R. Gamaliel, and he said: They are permitted, etc. R. Jehudah in the name of Samuel said: The Halakha does not prevail according to R. Gamaliel. According to others, R. Jehudah declared his decision about the following Boraitha: Beasts from parks may be slaughtered, but not from nets (because it is not known on what day they were found there, on the festival or before it). R. Simeon b. Elazar said: If one found the nets disturbed on the eve of a festival, it is certain that they had been caught before the festival, and they are permitted; but if he came on the festival, and saw them disturbed, it is certain they were caught during the festival, and they are not allowed. Is this saying not contradictory in itself? It says: If he found it disturbed on the eve of a festival, it is certain that they were caught before the festival, and they are allowed, from which it is to be understood, that if it was doubtful, it is not allowed; and in the latter part it says:

If he found it disturbed on the festival, etc., it is certain that they were caught during the festival, and they are not allowed, from which it is to be inferred that when there is a doubt it is permissible? It means to say thus: If he found it disturbed on the eve, it is certain that they were already caught, and are permissible; but if it was doubtful, it is to be considered that they were caught on the festival, and are not permissible. Said R. Jehudah in the name of Samuel: The Halakha prevails according to R. Simeon b. Elazar.

"*When he said, it is allowed,*" etc. Allowed what? Rabh said: They are permitted to be received, but Levi said, they are permitted to be eaten.

Said Rabh: A man should never absent himself from the house of learning, even for one hour, because I and Levi both were in the college when Rabbi declared this Halakha. In the evening he said: They are permitted to be eaten; but in the morning he said: They are permitted to be received. I, who was in the college in the morning and heard his second decision, gave up the first; but Levi, who was not, did not.

R. Papa said: The Halakha is as follows: If a Gentile brought a present to an Israelite on a festival, if the same kind of productions are found yet on the trees or ground, it is prohibited; and even in the evening, one must wait till the time when such a thing may be gathered and brought. But if that kind of production is no longer found on trees or on the field, then, if the present has been carried from within the legal limit, it may be accepted, but if from beyond the legal limit it may not. And if it has been brought for one Israelite, another may use it.

Rabba bar R. Huna said in the name of Rabh: When one has choked a pond, on the eve of a festival, and on the morrow he found there fish, they are permitted. Said R. Hisda: From the teaching of our Master we can infer that a beast which was overnight in the garden need not have been prepared on the preceding day (may be used). Said R. Na'hman: My colleague has attempted to decide the quarrel of great men. In the case of the fish, the man does nothing; but in this case, he must catch it. But how could R. Hisda decide that it has not to be prepared, did we not learn in a Boraitha, that a beast that was overnight in a garden must have been prepared, and a bird must have had its wings bound that it should not be exchanged for another? And this law is one of those which it has been testified, that they were said by Shemaia and Abtalian? This objection remains.

MISHNA: It is not allowed to kill on a festival an animal suffering from a mortal disease, unless there is time to eat thereof, on that day, at least the size of an olive, roasted. Rabbi Aqiba allows it, if there be only time to eat thereof the size of an olive, raw, even in the very place where it is slaughtered. If it has been killed in the field, the entire carcass may not be carried home on poles or sticks, but only piecemeal, by hand.

GEMARA: Said Rami bar Abba: The taking off the skin, and the cutting of a burnt-offering (which could be burnt without this) is only to teach the latter generations, that one shall not eat meat of a slaughtered animal before the skin is taken off, and was not cut in the usual pieces. Is this also a necessary teaching? Yea, as we have learned in a Boraitha, a man shall not commence eating garlic or onions from the roots, but from the leaves; otherwise his taste is coarse. Likewise, a man should not empty his goblet at a draught, otherwise he resembles a drunkard.*

A Boraitha states in the name of R. Meir: Why was the Law given to Israel? Because they are bold (difficult to be vanquished). The disciples of R. Ishmael taught: It is written [Deut. xxxiii. 2]: "From his right hand he gave a fiery law unto them." The Holy One, blessed be He, said: The Israelites are so bold that a fiery law must be given to them. According to others, the law of this people is like fire, because if such a law had not been given to them, no nation and tongue could stand before them. And this is as R. Simeon b. Lakish said: The boldest nation of all nations is Israel.†

"*The entire carcass may not be brought on poles.*" The rabbis taught: A blind man should not walk with his stick on a festival, nor a shepherd with his bag (pouch); also, a man must not be carried in a chair. It matters not whether it is a man or a woman. This is not so? Did not R. Jacob bar Iddi send a message that an old man was in his neighborhood and he was carried in a litter (*Lectica*), and they went to R. Joshuah b. Levi and asked him whether it was lawful, and his answer was, that if he was needed by many people, he could do so. And our Masters use as a support to this opinion words of Ahi Shakia, who said: I have carried R. Huna in a chair on the festival from Hini to Shilli, and back. And R. Na'hman bar Itz'hak told: I have carried Mar Samuel

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* See Tract Pesachim, p. 171.

† This is explained in our periodical "Hakol," also in our "Lebaker Mishpat," and we will touch upon it in our present translation.

from the shadow into sunshine, and back. The reason is stated, because if many people needed him it was allowed.

Says R. Na'hman to Hama bar Adda, the messenger of Zion: When you go to Palestine, turn down from your road and ascend the "Ladder of Tzur" and visit R. Jacob bar Iddi and ask him: How is their custom with a litter? When he arrived there, R. Jacob bar Iddi was dead, and he found R. Zrika, and asked him: How is your custom in regard to litters? And he answered: So said R. Ammi: One may be carried in them, provided he shall not put his hands on the shoulders of the bearers. What is meant by this? Said R. Joseph the son of Rabha: He shall not be carried in a palanquin (a kind of litter which required that he who is carried should hold by the shoulders of the bearers). Is that so? Did not R. Na'hman allow his wife Yalta to be carried in a palanquin? The case with Yalta was different; she was timid.

Amemar and Mar Zutra were carried on the Sabbath before the festivals on a palanquin, because there was a great crowd and it was feared they would be injured. According to others: Because it was so crowded by the people who came to hear, that they could not pass through.

MISHNA: If a first-born animal fall into a pit on the festival (and it is not known whether it was injured), R. Jehudah says: An expert may descend and see whether it had already an incurable and permanent blemish, in which case it may be drawn up and killed, but not otherwise. R. Simeon, however, said: If a blemish in a first-born animal was not recognized on the eve of the festival, this is not considered prepared, and must not be killed on the holiday.

GEMARA: On what point do they differ? Shall we assume that the point is, if it is allowed to examine blemishes on the festival, that according to R. Jehudah it is allowed, and according to R. Simeon it is not, then let him say so plainly. Why do they differ here when it fell in a pit? This case was necessary, lest one say that, because here is pity for the living thing which falls in the pit, it shall be allowed to be taken out for the purpose of slaughtering it, if it has a blemish, as R. Joshua said further on (Chap. V., p. 75). Therefore it comes to teach us that even in this case there is yet a difference of opinion.

If it is so, then the Mishna should say, he shall *bring* it up and slaughter it? And the difference on this point is only whether it should be slaughtered or not? The case is, when he has already brought it up, lest one say that when it is brought up

it may be slaughtered. Slaughtered! is it not a first-born without a blemish? That means, if it got a blemish. But if it has the blemish now, is it not yet Muktzah? The case is when it has a blemish which has to be examined on the eve of the festival, and now through its fall it has got a permanent blemish, and it can be slaughtered without any examination, lest one say that because a blemish was from yesterday, the owner had it in his mind, and might be slaughtered to-day, the Mishna comes to teach us that it is not so.

The rabbis taught: Of a first-born animal which was without blemish (if it fall into a pit on a festival), R. Jehudah the Nassi said: An expert shall descend and see whether it had a blemish, and then it may be drawn up and slaughtered; and if not, it shall not be slaughtered. Said R. Simeon b. Menasia to him: Did not the sages say that blemishes must not be examined on a festival? How so? If it got a blemish on the preceding day it must not be examined on the festival; but if it got the blemish on the festival, R. Simeon said that it could not be killed, because it was not prepared from the day before. They all agree, however, that if it was born on a festival with a blemish, it is considered as prepared. Rabba bar R. Huna lectured: If the animal was born with a blemish, the examination may be commenced on the festival. Said R. Na'hman to him: Abba,* we have learned if he has transgressed and had already examined, the examination can be useful, and thou sayest that they may *commence* the examination? Said Abayi: It seems to me that Rabba bar Huna is right, because the Boraitha teaches three cases. If it got a blemish on the eve it must not be examined on the festival. From this we may infer that it must not be examined, but that if it has already been examined, it may be used. (The second case is) if the blemish was got on the festival, R. Simeon said that it is not prepared. From this we see that, even if it has been examined and a real blemish found, it must also not be used. (And the third case is) all agree that if it was born with a blemish on a festival, it is considered prepared. Consequently, the examination may be commenced.

(Is that so?) We know that when R. Oshija came from Palestine he brought a Boraitha. Either when he got a blemish on the eve of the festival, or on the festival, according to the

* Rabba's name was *Abba*, and Rabba means Rab Abba. R. Na'hman as a colleague addresses him by name.

sages it is not to be considered prepared (and the Boraitha must be in accordance with R. Simeon, who says that it must not be examined on the festival; and nevertheless the Boraitha teaches that even if the blemish was from the eve of the festival, it is also not to be considered as prepared, we can say, then, that if it was born with a blemish, it is permissible only when it *was* examined, but it is not allowed to commence the examination, as R. Na'hman said above?) Yea, it can be said so, but the following Boraitha is yet a contradiction to him (why, then, should you prefer the Boraitha which R. Oshiya brought to *the former?*) Because the former Boraitha came from the sources of Adda bar Ukhmi,* who was known to be erratic in the Boraithas which he taught. Said R. Na'hman bar Itz'hak: It seems from our Mishna also that it is in accordance with the Boraitha of R. Oshiya, because it states: R. Simeon said: If the blemish was not recognized on the eve, etc., it is not considered prepared. Now let us see what is meant by "recognized"? Shall we assume that it was not visible at all? This would be self-evident. We must then say that it was not examined whether it was a permanent blemish or a temporary one; nevertheless it states that it is not considered prepared, even when one slaughtered it. (Consequently the latter part of the Mishna, which states that "all agree," etc., "it is prepared," must be explained as R. Na'hman corrected.)

Hillel asked of Rabha: Does the law of Muktzah exist for a half of Sabbath (*i.e.*, whether a thing is fit for one half of Sabbath, but not for the other half)? How can such a case be? If it was fit in twilight, then it was fit for the whole Sabbath; and if it was not fit at twilight, then it was not fit for the whole Sab-

* This name is mentioned only once in the whole Babylonian Talmud. In the Palestinian Talmud, however (Chap. I., Halakha 3) is mentioned R. Adda bar Uikhuma. The different pronunciation of the two Talmuds is usual, and so this Amora is the only one who was erratic. We are surprised why Zacuto and Heilprin, in "Seder-Hadoroth," ascribed this to Adda bar Abhimi, who is also mentioned only once in the whole Talmud. (In our edition, Vol. III., p. 24, and in the old edition the same saying is repeated, 9 *b* and 12 *a*), and there is not to be found even a hint that he was erratic. Also in the Palestinian Talmud the same is mentioned twice (Berakhoth, Chap. I., Halakha 3), with whom two great men of the Amoraim, R. Tanhum and R. Hezekiah, communicated. There it is also said that he was a disciple of R. Zera (Zeera—according to the pronunciation of the Palestinian Talmud). Why, then, should it be ascribed to such a man that he was erratic? Moreover, Heilprin does not mention Adda bar Ukhmi among the Amoraim at all, although he mentions his name in the paragraph of Adda bar Abhimi, and gives also all our citation mentioned above. We also do not know the sources from which Heilprin states that according to others it is Abba bar Abhimi.

bath? He meant to say it was fit at twilight, but afterwards it got wet from rain, and dried again, as it was in the beginning, and not fit during one part of Sabbath, and then fit again. How is it? The answer was: There is no law of Muktzah for a half of Sabbath. Shall we assume that the above Boraitha, which declares that if it was born with a blemish it shall be considered as prepared, is a support to Rabha's decree? Because the first-born, when it was yet in the womb of its mother, was fit along with its mother (because it was not reckoned a firstling before its birth); and as soon as it is born, it is not fit; and after its being examined by an expert and found blemished it becomes again fit (from this we see that the law of Muktzah does not exist for a half of Sabbath, as it was fit before its birth, became unfit at birth, and became fit again after examination).

Nay, said Abayi in the name of R. Saphra: It may be that the case was, the expert was by when it was born, and saw it was fit from its birth.

R. Jehudah the second possessed a firstling, and sent it to R. Ammi on a festival for examination. At first he thought he would not examine it. Said R. Zrika, or according to others R. Jeremiah, to him: If R. Simeon and R. Jehudah differ, the Halakha prevails according to R. Jehudah.

At another time he sent it to R. Itz'hak of Naph'ha, and the same happened again. Said R. Abba to R. Zrika: Why did not you let people do a thing in accordance with R. Simeon? And he answered him: Have you heard any decision that the Halakha is according to R. Simeon? And he said: Yea, so I have heard from R. Zera. Said some one of the disciples present: If I will be worthy to go to Palestine, I would like to learn the Halakha from the mouth of R. Zera. Later when he came to Palestine, he asked R. Zera: Did the Master say that the Halakha prevails according to R. Simeon? And he answered: I did not say it is so, but I said: It seems so to me, because the Mishna relates, R. Simeon said: If the blemish was not recognized while it was yet day, it is not prepared, and the Boraitha teaches the same in the name of the sages (in plural). And I thought the Boraitha did so because the Halakha prevails accordingly. How is it in reality? Said R. Joseph: Come and hear. I will base my decision on the words of great men, that R. Simeon ben Pazzi in the name of R. Joshuah b. Levi, quoting R. Jose b. Saul in the name of Rabbi, upon the authority of the Holy Assembly of Jerusalem, said that R. Simeon (b. Menasseh) and his colleagues

decide the above Halakha according to R. Meir. How can they have decided it according to R. Meir? They lived (the Holy Assembly of Jerusalem) in an earlier age than he. Say, they decided it in accordance with the *system* of R. Meir (this will be explained in Tract B'choroth).

Ammi of Vardinaa was the examiner of the firstlings of the Nasi; and he did not examine on festivals. When this was told to R. Ammi, he said, he does right. Is it so? Did not R. Ammi himself examine the blemishes of the firstlings? Nay, he used to see them the preceding day, but he kept his decision until the morrow, when he asked the owner how the animal had come by the blemish. As it happened when a man brought a firstling before Rabha on the eve of a festival, after noon, and at that time Rabha was washing his head. He raised his eyes, and looked on the blemish, and told the man: Go away to-day, and come to-morrow. The next day he asked him what was the cause of the blemish, and he answered: I have given it barley on one side of thorns, and it was on the other side; when it wanted to eat, it put forth its head between the thorns and thus tore its lip. And Rabha asked him: Perhaps you did it intentionally? And he said: No.

MISHNA: An animal which dies on the festival may not be removed thereon. It happened once, when Rabbi Tarphon was questioned on the subject, and also concerning a separate piece of dough, which had become polluted, he went to the college and inquired. They told him: They may not be removed from the spot.

GEMARA: Shall we say that this anonymous Mishna is not in accordance with R. Simeon (see Sabbath, p. 375)? Nay, the Mishna can be explained in accordance with him, but he owns that animals that died on Sabbath are prohibited. This would be right according to Mar bar Amemar, who said in the name of Rabh that R. Simeon owns it; but according to Mar b. R. Joseph, who declares in the name of Rabha that R. Simeon differs, even when the animals died on Sabbath, and said that they *may* be used? (What can be said to that?) Zera explained this Mishna, that it refers to an animal that was consecrated for sacrifice. And it seems Zera is right in his explanation, because the Mishna speaks further on about Hala that became unclean; and as the Hala was a consecrated thing, so must be also the animal in question.

MISHNA: An association for the purpose of jointly pur-

chasing an animal may not be formed on the festival; but if this was arranged before the festival, the animal so purchased may be slaughtered and shared on the festival.

GEMARA: What is meant by "may not be formed"? Said R. Jehudah in the name of Samuel: The price of the animal must not be fixed on the festival; but how shall it be done? Said Rabh: Two animals shall be brought, and placed side by side, and it shall be said: The value of this animal shall be as the value of that. We have learned also in a Boraitha: One shall not say to his neighbor: I will be a partner with you in this animal for one Sela or more; but he may say: I would be a partner with you for one half, third, or quarter of it.

MISHNA: R. Jehudah said: (A butcher who sells meat on a festival) may weigh it against a vessel or hatchet; but according to the sages he may not even look on the scales at all.

GEMARA: What is meant by "at all"? Said R. Jehudah in the name of Samuel: Even to preserve the meat from mice, he must not put it on the scales. Said R. Iddi bar Abbin: That is, when the scales hang on the lever. R. Jehudah in the name of Samuel says again: A butcher who is a specialist must not weigh the meat on his hand. He says again: The same must not weigh the meat in water. R. Hyya bar Ashi said: It is not permitted to make a hole in the meat, to use it as a handle. Said Rabina: But if he made it with his hand, not with a tool, it is allowed. R. Huna said: One may make a sign upon the meat, as Rabba bar R. Huna would cut the meat in the shape of a triangle for a sign. R. Hyya and R. Simeon the Great used to weigh one piece against the other, and they did it according to R. Joshua, as we learn in the following Boraitha: R. Joshua said: One may weigh one piece against the other. And R. Joseph said: The Halakha prevails according to R. Joshua, because there is a Mishna in Tract B'choroth in accordance with his decision.

MISHNA: Knives may not be ground or set on the festival; but it is permitted to sharpen one knife with the other.

GEMARA: Said R. Huna: It is only on a whetstone, but on wood one may. Said R. Jehudah in the name of Samuel: Even on a whetstone it is only prohibited to sharpen, but to remove the fat from it one may. We may infer from this, that on wood it is allowed even to sharpen.

Who is the Tana who holds that on a whetstone it is not permitted? Said R. Hisda: It is at any rate not according to R.

Jehudah, as we have learned in a Boraitha: R. Jehudah allows to make on a festival even the arrangements for the preparation of food (Sabbath, p. 309).

Said Rabha to R. Hisda: Shall we lecture in thy name that the Halakha prevails according to R. Jehudah? And R. Hisda answered: It may be the will of the Lord that all good things like this shall ye lecture in my name.

R. Nehemiah b. R. Joseph said: Once I was standing before Rabha, and saw that he took the knife and made passes with it over a basket. And I said to him: Does Master intend to sharpen it, or to remove the fat? And he said: To remove the fat. But I saw that he intended to sharpen it. From this it is understood that the Halakha prevails thus, but is not to be proclaimed to the people. Abayi told that the same thing happened to him and his Master, Rabba.

The schoolmen propound a question: May one give the slaughtering-knife to the wise for examination on the festival? R. Mari the son of R. Bizna allowed this, but the rabbis prohibited. R. Joseph, however, said: A scholar (Talmud Hakham) may examine the knife for his own use, and then lend it to others. R. Joseph said again: A knife that becomes blunt may be sharpened by pressure, provided that the knife becomes only blunt, but not injured.

R. Jehudah in the name of Samuel said: A spit that became crooked must not be repaired on a festival. Is not this self-evident? He meant to say, that even with the hand, without the aid of tools, it is not allowed. The same says again: After the meat has been roasted on the spit, it may not be handled more (because the blood defiling it makes it unfit for use until cleaned). Said R. Adda bar Ah'bah in the name of R. Malkiya: He may, nevertheless, take it to put into a corner, the same as it is permitted to do with a thorn that is seen in public ground. (Sabbath, p. 75.)

MISHNA: One must not say to a butcher: Give me meat for a Denar; but the butcher may slaughter the animal, and divide it among the customers.

One may say to another (on the festival), fill me this vessel, but it must not be a vessel appropriated to measure with. R. Jehudah says: If a measure is used it must not be quite filled. Abba Saul b. Batnit used to fill his measures on the day before the festival, and delivered them to the customers on the festival. The same Saul said: One may do so even on the inter-

mediate days, on account of the froth in the measure. The sages, however, say: One may do so also on week-days in order to let out the entire contents of his measure into the vessels of his customers.

GEMARA: What is meant by "vessel appropriated to measure with"? Said Rabha: That is, he shall not mention the kind of measure, but if the vessel is a measure he may do so. And R. Jehudah comes to teach that even this must not be done. From this we see that, about the enjoyment of the festival, R. Jehudah is more rigorous, and the sages are more lenient; but did we not learn in the Mishna about the scales (p. 55), that R. Jehudah is more lenient and the sages are more rigorous? And this would be a contradiction to that teaching? It presents no difficulty. The above Mishna referred to a thing which was not a weight, but this speaks of a vessel that is a measure. This reconciles the contradiction between one teaching of R. Jehudah and the other. And as regards what sages teach about the scales? They merely say that a man shall not do as is usually done on week-days, but here he does not do as on week-days, because it is not usual that a man should give wine to his guest to drink from a measure.

"*Abba Saul b. Batnit*," etc. A Boraitha taught: One may do it in the intermediate days to prevent interruption in the house of learning (if he will busy himself with the measuring, he will fail to go to the college).

The rabbis taught: Abba Saul collected three hundred pitchers of wine barely from the froth of the measures;* and his colleagues collected the same amount from what remained in the measures after emptying them for the customers. Both brought this wine to the treasurers of charity at Jerusalem. The treasurers said to them: It is not necessary for you to do so (because it is your own). But they replied: We do not wish to use (because we do not consider it ours). And the treasurers rejoined: If you are so rigorous towards yourselves, go and dispose of it for the benefit of the people.

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* Rashi explains thus: It was known to him how many lugs there had been in his barrel, and also how many he sold out to his customers, and the remainder which was in the barrel he considered was left because of the froth of the measures, and during the year it amounted to three hundred pitchers. And his colleagues who sold oil, which makes no froth, collected the same number from the remainder of the measures, as there is always some oil left in them, and during many years they collected from this the same amount.

R. Hisda accompanied Rabbana Uqba, and the latter lectured: One must not measure barley to give it to cattle; but one may nevertheless take a Kab full, or two Kabs, and give it to the cattle without fear. But the baker (cook) may measure the quantity of spices for putting into the pots, lest he spoil the flavors.

R. Jeremiah bar Abba in the name of Rabh said: A woman may measure the flour on a festival for her dough, for the purpose of separating a due share of the first dough. Samuel, however, prohibited to do so. But did not the disciples of Samuel teach in his name that it is allowed? Said Abayi: Now, when the disciples declared in his name that it is permitted, and from himself it was heard that it is not, we may assume that he retracted his decision in order to teach us how to act.

The rabbis taught: One must not resieve flour on the festival; but R. Papias and R. Jehudah b. Bthera both permit it. All agree, however, that if some dust or a chip fell into the flour, that may be done. One disciple taught in the presence of Rabina that if a chip has fallen into it, he shall remove it with the hand. And Rabina rejoined that this is by an *a fortiori* argument, not allowed, because it looks as though he sifts it.

Rabha bar R. Huna the Minor lectured at the gate of Nehardai: One may resieve flour on the festival. Said R. Na'hman to the people of Nehardai: Go and tell Abba, Take thy favor and put it on the thorns (*i.e.*, he did not any good with his lecture). Go and see how many sieves are used in Nehardai on the festival (even before his lecture).

The wife of R. Joseph has sifted flour on the back of a sieve, and he said to her: See, I want to have good bread (it means, you should not make any change). The wife of R. Ashi sifted the flour on the back of the table (to show a change from the week-days). Said R. Ashi: My wife is the daughter of Rami bar Hama, who was very particular in his deeds, and if she had not seen it done in the house of her father, she would not do it.

MISHNA: One may go to a shopkeeper with whom one is used to deal, and say to him: "Give me so many eggs or nuts," because the master of a house is used to count similar articles by numbers.

GEMARA: The rabbis taught: One may go to his shepherd who is an acquaintance, and ask him for one goat or one sheep; to his butcher, to ask him for a shoulder or leg; to the bird-seller, and ask him for one old or young pigeon, to his baker, and

ask him for a loaf or roll; and to his grocer, and ask him for twenty eggs or fifty nuts or ten peaches or five pomegranates or one lemon—provided one does not mention any numbers of measures. R. Simeon b. Elazar said: Provided one does not mention the prices.

CHAPTER IV.

REGULATIONS CONCERNING THE CARRYING AND HANDLING OF THINGS ON THE FESTIVAL.

MISHNA: If one has to transport jars of wine from one place to another (on a festival) he must not carry them in a basket or a case, but on the shoulder, or in his hand in front of his person. The same is the case when he has to carry straw; he must not put the bundle on the shoulder behind, but must carry it in his hand. One may commence to take a heap of straw (for fuel), but not of stacks of wood in an unused yard behind the house.

GEMARA: A Boraitha taught: If it is impossible to change the manner usual on week-days, it may be done as ordinarily.

Rabha has ordered in Mehuzah as follows: "A heavy burden which a man carries on a week-day with great trouble, if he has to bear it on a festival, he may carry it with the help of a *Rigla* (a long, crooked pole for bearing burdens), and though it is also heavy and a trouble, it is a change of the manner, on week-days. And what one man carries on week-days with the help of a *Rigla*, two men shall carry. The burden which two men carry on a pole on their shoulders, they shall carry on a festival with the hand, and what is carried with the hand, shall on the festival be carried with a cloth." All this shall be done, if possible; but if it is impossible, it shall be carried as usually, because the Master said: If it is impossible to change the manner it is allowed.

Rabha bar R. Hanin said to Abayi: A Mishna teaches: It is prohibited to clap with the hands, strike on the hips, and to dance on a festival. And in our time we see people do so, and we do not say to them anything. And he answered: And according to your theory, come and see the women who take their cans and go and stand at the gates of the entry, which is also prohibited, and we say nothing to them (would you also blame us for this?). This is not so (because it is a rule). Let

Israel do things unintentionally rather than intentionally (*i.e.*, they were sure that if it was told to them, they would not listen, and to preserve them from conscious transgression, they keep silence). And there is no difference in such a case between a biblical and a rabbinical prohibition. Because the adding from the eve of the Day of Atonement to the Day of Atonement (about half an hour) is biblical, nevertheless we see women eating and drinking till dark, and we say nothing.

"*But not of stacks of wood*," etc. R. Kahana said: From this it may be inferred that we must not commence to take of a whole store (stock storehouse), because it is "designated." Then it would be according to R. Jehudah, who holds the theory of Muktzah. How then would be explained the beginning of the Mishna, that one may begin to take of a heap of straw, that would be according to R. Simeon, who does not hold the theory of Muktzah? The Mishna refers to spoiled straw (which is no longer fit for food of animals). But it may yet be used for bricks? It refers to a case when there were thistles (or thorns) in the straw.

MISHNA: Wood may not be taken from a booth, but the pieces lying by may be used.

GEMARA: R. Hyya bar Joseph taught before R. Johanan the following Boraitha: Wood must not be taken from a booth, but only the pieces lying near it. R. Simeon, however, permits it. But all agree that from a booth made for the Festival of Tabernacles it must not be taken *then*. If the booth was made conditionally, all must be done according to the condition.

It has been said: R. Simeon permits it. But did he not demolish a tent? Said R. Na'hman bar Itz'hak: The case is when the tent is already demolished, or so weak as to *fall down* soon, so that even on the preceding day he had the intention to take wood of it.

The Boraitha states: If the booth was made conditionally, etc. Can then a condition affect it? Did we not learn in Succah (p. 10), that R. Shesheth said in the name of R. Aqiba: that the wood of the Succah is prohibited in all the seven days at all events? This part of the Boraitha means an ordinary booth, not a tabernacle.

MISHNA: One may bring wood from the field when it is a stack, and from a wood-shed, even of the dispersed pieces of wood. What is called a wood-shed? If it is near the city. So is the decree of R. Jehudah. R. Jose, however, said: If there is a door which can be locked, even if it is within the legal limit.

GEMARA: R. Jehudah said in the name of Samuel: Wood may be brought only from the stacks that are in the wood-shed, but not dispersed pieces. Did not our Mishna teach that from a wood-shed may be taken even dispersed pieces? The Mishna is only according to an individual Tana, but the other sages differ from it. Rabha said: Leaves of a vineyard or of branches, although they are gathered and lie together, because by a wind they may be dispersed, are to be considered as dispersed already, and may not be used. But if one had put a heavy thing on them the preceding day, they may be used.

"*What is called a wood-shed*," etc. The schoolmen propound a question: Did the Mishna mean both? Did it mean that it is near the city and has a door, and R. Jose comes to teach if it has a door it is enough, if it is not near the city, but within the legal limit, or when it has no door, even near to a city, also not? Come and hear: Because R. Jose teaches that if it can be entered through a door, and the door can be locked, it is allowed even within the legal limit, we may infer that R. Jose decides in both cases leniently. Said R. Sala in the name of R. Jeremiah: The Halakha prevails according to R. Jose, leniently.

MISHNA: It is not permitted to cut wood from new beams, even from an old beam that was broken on the festival; neither may wood be cleft with an axe, or saw, or bite-hook, but with a chopping-knife only.

GEMARA: Has not the first part of the Mishna said that we must not cut wood at all? Said R. Jehudah in the name of Samuel: The Mishna is not completed, and must be read thus: It is not allowed to cut from a pile of logs, neither from a beam that was broken on the festival; but from a beam that was broken the preceding day. And when they cut it, they shall not do it with an axe, etc. The same we have learned in the following Boraitha: One may not cut wood from a pile of beams, nor from a beam broken on the festival, because they are not considered prepared while it is yet day.

"*But with a chopping-knife only.*" Said R. Hinna bar Salmia in the name of Rabh: It is only with the side of the blade used for chopping wood, but with the broad side wherewith one can cleave beams, it is not allowed.*

* It is difficult to understand the argument, as it is not known to us how the chopping-knife was made. Even Tospheth remarks because we do not know what kind of a chopping-knife it was, therefore it is not allowed to cut wood with any knife, only with the hand.

MISHNA: A house filled with fruits, if a hole was made, it is allowed to take fruit through this hole. R. Meir, however, said one may make a hole in the house, to commence with, for the purpose of taking the fruit.

GEMARA: Why so? Is he not demolishing a tent? Said R. Nehuma bar Adda in the name of Samuel: The Mishna refers to a house of bricks without mortar. R. Zera said: R. Meir allowed this only on a festival, but not on Sabbath. The same we have learned plainly in a Boraitha. Samuel said: If the doors of the cellars are tied with ropes, one may untie; but he may not untwist the ropes themselves, nor cut them off. When, however, with such ropes vessels were tied, he may untwist them and cut them off, and there is no difference between Sabbath and a festival in this case.

An objection was raised from the following Boraitha: If the doors of the cellars are tied with ropes, on Sabbath, one may untie, but he may not untwist the ropes themselves, nor cut them off. On a festival, however, all this is allowed? The Boraitha is according to R. Meir, who allows this on a festival to commence with, but I say according to the rabbis. But did the rabbis differ with R. Meir that if the doors of the cellars, etc.? Have we not learned in another Boraitha, that the sages agree with R. Meir concerning this case? Samuel holds with another Boraitha which stated differently.

MISHNA: It is not permitted to make a cavity in a lump of potter's clay for the purpose of using it as a lamp, because a utensil is thereby formed; neither may charcoal be made on a festival, nor the wick of a lamp be cut in two. R. Jehudah says: With fire it may be done.

GEMARA: Who is the Tana who holds that when a hole is made in such a lump it is called a utensil? Said R. Joseph: That is R. Meir (who states so in Tract Kelim).

The rabbis taught: One must not make a hole in a lump of clay to use it as a lamp, nor plates used by rustics (who are not particular about fine china, but use them as soon as made, before they have been hollowed out and *baked* in fire).* R. Simeon b. Gamaliel, however, allows it.

"*Neither may charcoal be made,*" etc. Is this not self-evident? What use can one make on that day of charcoal? Taught R.

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* The commentators, Rashi and Tospheth, also the dictionaries, try to explain this term, but it remains obscure.

Hyya: The Mishna refers to those who need the charcoal for an *olearius* on this day (*i.e.*, a machine to heat oil to be fit for the body and clothes). Is it allowed then to take a bath on this day? As Rabha had explained in another place that it was allowed to go to sweat before it was prohibited, so also can this Mishna be explained to mean sweating, before the prohibition was made (see Sabbath, pp. 71, 72).

"*Nor the wick of a lamp*," etc. Why is it not allowed to do it with a knife? Because he makes of it a utensil (*i.e.*, he makes two out of one). Is not the same with fire? Taught R. Hyya: R. Jehudah meant to say that the ends shall be placed in two lamps, and shall be separated by burning the middle part, (and he only kindles the lamps).

R. Nathan bar Abba said in the name of Rabh: One may snuff a wick on the festival. Bar Qappara taught: Six things were said about a wick: three rigorously and three leniently. Rigorously: One must not commence to braid the wick, nor singe, nor cut it in two; and leniently: One may *twist* it with the hand, soak in oil, and make two wicks by burning the middle part. R. Nathan bar Abba in the name of Rabh said again: The rich men of the Babylonians are among those who descend to Gehenna; as it once happened Sabathai bar Merenus came to Babylon and asked them to support him in some business, and they did not; and he asked that they should feed him at least, and they also refused. Then he said: They are descendants of the "mixed multitude," as it is written [Deut. xiii. 18]: "And grant thee mercy, and have mercy upon thee." From this we infer that whosoever has mercy for creatures, he is surely of the children of Abraham our father, but whosoever has not mercy for creatures, it is certain he is not. The same says again in the name of the same authority: Whosoever is dependent upon the table of his neighbor, the whole world is dark for him. As it is written [Job xv. 23]: "He wandereth abroad for bread, (saying), Where is it? he knoweth that there is ready at his hand the day of darkness." R. Hisda said: His life is no life at all.

The rabbis taught: There are three men whose lives are not counted as lives at all: He who is dependent on the table of his neighbor; he whose wife dominates over him; and he who has bodily suffering. According to others, he who has no more than one shirt.

MISHNA: One may not break pieces of earthenware, nor cut paper for the purpose of roasting salted fish on it. Ashes

from the oven or hearth may not be removed, but they may be moved to one side. Two barrels must not be brought near each other, to place a pot on them over the fire, nor may a piece of wood be used to support a pot, nor a door. Cattle may not be driven on the festival with a stick; but R. Eliezer b. Simeon permits it.

GEMARA: Why so? Because he produces thereby utensils.

"*Ashes of the oven,*" etc. R. Hyya b. Joseph taught in the presence of R. Na'hman that if it is not possible to bake in the oven unless one removes the ashes, one may do so. It happened to the wife of R. Hyya that half a brick from the wall of the oven fell down into the oven on a festival. Said R. Hyya to her: See to its removal, because I like to have good bread. Rabha said to his servant: Roast for me a duck, and see that it shall not be singed. Said Rabina to R. Ashi: We were told by R. Aha of Hutzl that the Master's servants, when the oven is closed, smear it with clay on the festival. And he answered: We live near the River Euphrates, where clay is ready at hand. The case is, when he makes a sign on the clay on the previous day. Said Rabina: To knead ashes, it is permitted (because they cannot keep for a long period).

"*Nor may a piece of wood,*" etc. The rabbis taught: A pot must not be supported with a piece of wood nor a door, because wood is prepared only for fuel. R. Simeon, however, allows this. Cattle must not be driven with a stick, but R. Eliezer the son of R. Simeon permits it. Shall we assume that R. Eliezer holds with his father, that no theory of Muktzah exists? Nay, he is more lenient than his father; for his father would assent that they must not be driven with a stick, because it seems as if they are taken to the market.

Hizra (Abhazar in Arabic), R. Na'hman prohibited to use for the purpose of roasting on it meat; but R. Shesheth permits it. If it was dry, all agree it is permitted; they differ only when it is wet yet. Whosoever prohibits it, does it because it is not fit for fuel, and whosoever permits it, does it because in a great fire this also can be used. The Halakha, however, prevails thus: That a dry one is allowed, but not a wet one.

Rabha lectured: A woman shall not enter a wood-shed to take a crooked piece of wood for a poker; and if a poker was broken on the festival, it must not be burned, because fire may be made with vessels, but not broken vessels (Sabbath, p. 270). Shall

we assume that Rabha holds with R. Jehudah regarding the theory of Muktzah? Did not Rabha say to his servant: Roast me a duck, and throw the entrails to the cat? With the entrails it is different; because, as they become putrified he made up his mind the day before that they must be given to the cat.

MISHNA: Rabbi Eliezer says: One may take a splinter from the wood lying near him to clean his teeth with, and gather in the yard small pieces of wood, and burn them, because whatever is in the yard may be considered as prepared for the festival. But the sages allow one to pick up only those pieces that lie near him, and only to burn them. Fire may not be produced on the festival from wood, stones, dust or earth, or from water; nor may one heat tiles to broil food on them.

GEMARA: R. Jehudah said: To food fit for cattle the law of making a utensil does not apply (*e.g.*, to take straw or other fodder of cattle, and break it for cleaning the teeth, or so, is permitted; because, being fit for cattle, it may be handled, etc.).

R. Kahana objected him: We have learned that branches of spice-trees may be handled to enjoy the odor, and to fan with them a sick man. One may *grind*, also, to produce an agreeable odor; but one must not break them for the purpose of enhancing the odor. If he did so, he is not liable to a sin-offering; but if he broke them for the purpose of cleaning the teeth with them, he is liable. And he answered: If the Boraitha had said that one may not break them for the purpose of cleaning the teeth, it would be a great difficulty to me; much more, when it says he is liable to a sin-offering for it. The Boraitha must be incomplete and must be stated thus: He may grind with his hand for the purpose of odor; he may break them for this purpose, but the case is only when they are yet soft. But when they are already hard, he shall not break them. If he did so, however, he is not culpable, although it is prohibited; but if he broke for the purpose of cleaning the teeth, he is liable to a sin-offering.

In one Boraitha we have learned, he may break it in order to smell it, and in another one—that he must not break it for this purpose? Said R. Zera in the name of R. Hisda: It presents no difficulty. The Boraitha which allows it means when they are soft, and the other one, when they are dry. R. A'ha bar Jacob opposed: Why shall dry ones not be allowed? Did not a Mishna (Sabbath, p. 332) state: One may break open a cask to cut dry figs therefrom, etc.? Furthermore: Rabha and Rabbin, the sons of R. Adda, both say: When we were at the house of R. Jehudah,

he used to break twigs off a spice-tree, and give us sticks of the same, although the sticks were so large that they could be used for an axe or a spade handle. Therefore we must say that of the two Boraithas (mentioned above) one is according to R. Eliezer and one according to the rabbis of the following Boraitha: "R. Eliezer said: One may take a splinter from the wood lying near him to clean his teeth with; but the sages say: He can take it only from a manger. All agree that he shall not break it off, and if he did so, to clean the teeth or to open the door with it, if unintentionally on a Sabbath, he is liable to a sin-offering, and if intentionally on a festival, he is liable to the punishment of stripes. So is the decree of R. Eliezer. The sages, however, say: In both cases he is free, because this is only a *Shbuth* (Sabbath-rest, rabbinically)." Now, the Boraitha which states that he must not break it off is in accordance with R. Eliezer, who says there that he is liable to a sin-offering; and the Boraitha which states that he may do so is in accordance with the rabbis, who say there that he is free, even if he broke it off for the purpose of cleaning his teeth. Here, however, when it is for the purpose of smelling, it is allowed to commence with. But does not R. Eliezer hold what is stated in the above Mishna, that one may break open a cask, etc.? Said R. Ashi: According to R. Eliezer, the Mishna must be explained that the cask was cemented with resin, and it is impossible to use it afterwards as a vessel.

"*And gather in the yard.*" The rabbis taught: He may gather in the yard and burn, because all things that are in the yard are considered as prepared, provided he does not make of them heaps. R. Simeon, however, permits even this. On what point do they differ? One holds that if he makes heaps, it seems as if he prepared them for the day subsequent to the festival; but the other holds that his pot proves that it is for to-day.

"*Fire may not be produced,*" etc. Why so? Because to produce a new thing is not lawful.

"*One may not heat tiles,*" etc. What labor is that? Said Rabba bar bar Hana in the name of Rabbi Johanan: The Mishna refers to new tiles, that must be examined as to whether they can stand fire. According to others, it is a labor because they must be heated long, until they become hard.

The rabbis taught: New ovens or hearths are considered as ordinary vessels that may be handled in the yard; but they must not be anointed with oil, nor cleaned with a wet cloth, nor cooled

in cold water to harden it. But if all this should be done only for the purpose of baking on that day, it is allowed.

The rabbis taught: The head and the feet of an animal may be scalded, also singed. The hair may be removed by fire, but not with lime, clay, or earth; nor must it be cut off with scissors. Herbs must not be cut out with the same scissors with which they are usually detached from the ground. But one may prepare χινάρα (artichoke) and thistle and bake in a large oven, and water may be formed in an "antikhi" (a kind of kettle: see Sabbath, p. 74). A new large oven, however, must not be heated on the festival, because it may burst.

The rabbis taught: One must not blow bellows, but one may blow through a pipe. A spit must not be sharpened and fixed (for the purpose of roasting).

The rabbis taught: A cane must not be splintered for the purpose of roasting salted fish. A nut, however, may be cracked through a piece of cloth, without fear lest that the latter be torn.

MISHNA: R. Eliezer said again: In a Sabbatical year a man may place himself on the eve of Sabbath at the place where figs or raisins are kept, and say: From there I will take to-morrow. But, according to the sages, he must point out the exact spot, and say: I will take from this point to that point.

GEMARA: In a Mishna (Maasroth, Chap. IV., 2) it is stated: If children had saved dates from the eve of Sabbath and forgot to separate the tithe, when the Sabbath is over they must not eat them until the tithe is separated. Also in another Mishna (ibid. III., 1): If one passed dates through his yard to dry them, his household may eat of them moderately. Now, Rabba asked R. Na'hman: Does the Sabbath fix the time for separating tithe even from things the labors belonging to which are not finished yet? Shall we assume that because it is written [in Is. lviii.]: "Thou shalt call the Sabbath a delight," it fixes the time of tithing even for things the labors belonging to which are not finished yet, or it fixes the time only for things the labors on which are finished and not otherwise? And he answered: Sabbath fixes the time in any event. The former said again: Why shall not Sabbath be equal to a yard which does not fix the time for things on which the labor is not finished yet? Let the law of Sabbath be the same? And he answered: We have an explicit teaching that the Sabbath fixes the time for the thing in any event. Said Mar Sutra the son of R. Na'hman: Our Mishna which states that only on Sabbatical years it may be done so, and not

in an ordinary year, must also be explained, that because the Sabbatical year is exempt from tithe, he may do so; but in an ordinary year it must not be done so, because the Sabbath fixes it for tithe. When Rabbin came from Palestine he said, however, in the name of R. Johanan, that Sabbath, Heave-offering, a Yard, and Price all do not fix for tithe, only in things on which all the labor belonging to them is already done.*

Sabbath—to state that the law is not after Hillel in the following Boraitha: If one transferred fruit from one place to another to cut it, and Sabbath overtook him, R. Jehudah said that only Hillel prohibited to eat it before separating tithe, but all his colleagues differ from him.

A Yard—to state that the law is not after R. Jacob in the following Mishna, which says that whoso passes dates through the yard, his household may eat of them moderately, and they are free from tithe. And a Boraitha, in addition to this Mishna, states that R. Jacob says tithe must be separated, and R. Jose b. Jehudah frees it from tithe.

Heave-offering—to state that the law is not after R. Eliezer in the following Mishna: Fruit of which the heave-offering was separated before all the labors belonging to it were finished, R. Eliezer prohibits to eat from moderately, but the sages allow this.

And Price—as we learned in the following Boraitha: Whoso bought dates from a man of the common people in a place where the majority of gardeners press the dates, he may eat of them moderately; and when he comes to give tithe of them, he may separate tithe from it (but it is not necessary to separate heave-offering). And from this Boraitha we have learned three things: Firstly, that the price which is made does not fix for tithe until all the labor is done; secondly, that the majority of the common people do separate tithes; and thirdly, that if one comes to separate tithes from fruits bought from one of the common people, from a doubt lest the seller had not yet separated the tithe, he may separate it even from things the labors belonging to which are not yet finished.

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* The law of the tithe of all these will be explained in Tract Maasroth. The meaning of "Price" is, that if the grain was sold before it became ripe, it does not fix it for tithe.

CHAPTER V.

REGULATIONS CONCERNING LABORS PERMITTED AND NOT PERMITTED ON BIBLICAL FESTIVALS.

MISHNA: It is allowed to throw down fruit (kept on the roof for drying) by a trap-door (into the yard) on the festival, but not on Sabbath. It is also allowed to cover fruit, or jars of wine or oil, with vessels to protect them from rain. One may also place a vessel to receive rain on Sabbath.

GEMARA: Of which quantity does the Mishna speak? Said R. Zera in the name of R. Assi, according to others R. Assi in the name of R. Johanan: The same quantity which we have learned in the Mishna (in Sabbath, p. 276). One may even clear off four or five chests of straw or grain in order to remove obstacles to instruction, etc. But perhaps there it is different, because there are obstacles to instruction; but here, where it is not the case, it may be a less quanity? Or, on the contrary, there the Mishna speaks of Sabbath, which is rigorous, therefore a slight quantity is allowed. But here it is a festival, perhaps a greater quantity is allowed? It can be interpreted even in another way: There, where there are no damages of *money*, a quantity from four to five is allowed; but here, where there can be damages of money, even more is also allowed? And another question: There the Mishna teaches that one must not clear out a whole barn, and Samuel explained this that the Mishna meant he shall not clear out the whole barn for fear he will notice pits and would like to fill them up (ibid. 276). How is the law in our case? Shall we assume that because Sabbath is rigorous, the precautionary measure must be taken; but in the case of the festival, which is lenient, it need not be taken? Or, on the contrary, there, where although the reason is the fear of interruption in the house of learning, yet it is not allowed to clear the whole barn, how much the more here, where such a reason does not exist? And another question: Here the Mishna teaches that fruit must be thrown through a trap-door, and R. Na'hman said in addition

to this, that it is allowed only from *that* roof; but to throw it from this roof to another, it is not allowed. And so it was also taught in a Boraitha, that the fruit must not be carried from one roof to another, although the roofs are of equal altitude. Shall we assume that only in the case of the festival which is lenient this is prohibited as a precautionary measure, lest one shall come to hold cheap the holiday, and will do other things, but on Sabbath which is rigorous and no such fear exists, perhaps this is allowed? Or, on the contrary, as here, where the fruit can be damaged, we do not allow this; there, where no such a fear exists, so much the more it is not allowed. And another question: A Boraitha in addition to this Mishna teaches he shall not let it down by ropes and also not by ladders. Shall we say that only here, where the fear of the interruption in the house of learning does not exist, it is prohibited; but there, where such a fear does exist, it is allowed? Or, on the contrary, here, although there is fear of damages, it is not allowed, so much the more there? All these questions are not decided.

"*And fruits may be covered.*" Said Ula: Even piled-up bricks not mortared may be covered. R. Itz'hak, however, said only fruit fit for consumption may be covered with vessels, but no other things.

"*One may place vessels to receive rain.*" A Boraitha taught: When the vessel was full, he might empty it, and put it in its former place again; and so repeatedly. The handmill of Abayi was exposed to the rain (and he had not enough vessels to protect it). He came to Rabba his Master, and asked; and he answered: Go and place your bed in that room (where the handmill was), and then the handmill will be considered as a night chamber, which may be removed from a bedroom (and then he can remove the bed again). Abayi himself considered the law and said to himself: May one turn a clean thing into an objectionable thing intentionally? While he sat and thought thus, the handmill cracked. Said he: I deserve this punishment because I was disobeying my Master.

Samuel said: A chamber-pot and similar vessels may be removed, and voided on the garbage; and then washed, and returned. The schoolmen who heard this thought that the dirt may be removed only together with another vessel, but not without another vessel? Come and hear: Once a dead mouse was found in the place where R. Ashi's spices were kept, and he said: Take it by its tail, and throw it out.

MISHNA: All transgressions of the precept of Shbuth,* whether by any optional actions, or actions for religious purposes, are also such on the festival. The following actions are forbidden on account of Shbuth: To climb trees, mount an animal, swim in water, clap with the hands, strike on the hips, or dance. The following are prohibited as optional actions: To administer justice, to acquire a woman as a wife (by giving a ring, money, etc.), to take off the shoes of one refusing to marry the deceased brother's widow (Halitzah), or to marry such a brother's widow. The following actions are prohibited as though they are actions for religious purposes: To consecrate anything, to value sacred things, to pronounce anything as devoted (to the service of the Temple), to separate heave-offerings and tithes. All these have been decided to be prohibited on the festival, and *a fortiori* on Sabbath. (This is the rule): There is no difference between the Sabbath and the festival, except that the preparation of food is permitted on the latter.

GEMARA: To climb trees—lest one tear off something; mount an animal—lest one should cut off a twig (to drive it therewith); to swim—lest one make a *swimming bladder;* to clap the hands, strike on the hips, dance—all lest one fix musical instruments.

"*The following are prohibited as optional.*" *To administer justice:* is this not a religious act? The case is, when there is a better man than he who can perform it. *To acquire a wife:* is this not a religious act? The case is, when he has already a wife and children. *The ceremony of Halitzah and Jibum:* are these not religious duties? The case is, when there is an elder brother than he, and the duty falls on the elder brother. And the reason why all these are prohibited is as a precautionary measure, lest he come to write. *And these are prohibited, though religious acts:* as a precautionary measure, lest he will come to buy and sell. *To separate heave-offerings*, etc.: is not this self-evident? Taught R. Joseph: The case is, when he wants to give it to the priest on the same day. But the law applies only to things wherefrom it is fit to separate the day before; but if he kneads dough on the festival, the first dough may be separated and given to the priest. *All these on the festival*, etc.: there is a contradiction to this (in the first Mishna of the chapter): "One may throw fruit on the festival, but not on Sabbath"? Said R. Joseph: There is no

* See above, p. 67.

difficulty: Our Mishna is in accordance with Eliezer: that the precautionary measures taken for Sabbath are to be taken also for festivals; and the other Mishna is according to Joshua, who says: When mother and son fall in a pit, the first may be taken out for slaughtering, and then by connivance the other. R. Papa, however, said that the above Mishna is in accordance with Beth Shammai, and the first Mishna is in accordance with Beth Hillel. But perhaps it is not so? The statement of Beth Shammai refers only to carrying out, but not to handling it? Nay, is then handling not necessary in carrying out?

MISHNA: Cattle and utensils may be brought as far only as their owners may go, and when a person commits his cattle to his son or shepherd, they may not be brought or driven farther than the owner may go. Utensils that are appropriated to the exclusive use of one among brothers living together in the same house may be brought as far as that brother may go; but if they are not thus exclusively appropriated to one only, they may be brought to the places where all may go.

A utensil that had been borrowed since the eve of the festival may be carried as far as the borrower may go; but if on the festival, as far as the lender may go. And when one woman has borrowed of another spice, water, or salt, to make dough, they may be carried as far as both may go. R. Jehudah excepts water, because its substance does not remain visible.

GEMARA: Our Mishna seems to be not in accordance with R. Dosa of the following Boraitha: R. Dosa, according to others Abba Saul, said: Whoso had bought an animal from his neighbor on the eve of a festival, although he did not receive it until the festival, the animal may be driven as far as the buyer may go. The same is the case with him who gives an animal to the shepherd. If the arrangement was made before the festival, but he delivered it on it, it must be considered as the shepherd's? Nay, the Mishna can be explained also in accordance with R. Dosa, and it presents no difficulty. Our Mishna refers to a case where there are two shepherds in the town (when it was not known to which of them he would give); therefore it is considered as the owner's. But R. Dosa speaks of a case where there is but one shepherd. This explanation seems to be right, because our Mishna teaches, "to his son or shepherd." And as there may be more than one son, so is it about shepherds.

Said Rabba bar bar Hana in the name of R. Johanan: The Halakha prevails according to R. Dosa.

The rabbis taught: If two men had borrowed one garment, one should go in it to the House of Prayer in the morning, the other to the Dancing-house in the evening. Thus one will make an Erub to the north and the other to the south. Whoso has made an Erub to the north may go in this garment only as far as he who has made an Erub to the south may go in it to the north; and *vice versa*. But if either has made an Erub *at his* legal limit, so that by giving the right to move two thousand ells *more* in one direction, he loses the right to walk in the opposite direction even one step, then the garment belonging to both may not be moved from the town by either.

It was taught: If two men bought a barrel and an animal in partnership on the eve of a festival, the barrel may be moved by either to places where he goes; but the animal is not allowed to be driven except to places where both are allowed to go. So is the decree of Rabh. But according to Samuel, the case is the same with the barrel as with the animal. (Let us see:) What is the reason of Rabh's theory? If Rabh holds the theory of premeditated choice, then why shall the animal not be allowed? And if he does not, why shall the barrel be allowed? We may say that in reality he holds this theory (and therefore the barrel is allowed); but the animal is different, because it was alive at the twilight before the festival, and the blood changing its place from one member to the other on the festival, neither half can be chosen by either man (and as the partners have to go in different directions, neither may move the animal). Said R. Kahana and R. Ashi to Rabh: Even according to your theory, if the animal would be slaughtered, both partners would be allowed to eat of it, although the blood was circulating from one half designated for one man to the other half of the other man. Consequently the circulation of the blood is not feared in case of the law of Muktzah. Why, then, shall it affect the law of legal limit? Rabh was silent. What is in reality the law? R. Hoshia said: There is the theory of choice, and R. Johanan says: There is not. Mar Zutra lectured that the Halakha prevails according to R. Hoshia.

Samuel said: An ox from the dealer may be moved by every buyer to the places where he goes; but an ox belonging to the herdsman may be driven only where the people of the town have a right to go.

"*A utensil borrowed since the eve of*," etc. Is not this self-evident? The case is, when one actually received it on the festival, we would assume that as at twilight it was yet in the lender's

house, it should not yet be considered as the borrower's, he comes to teach us that the arrangement suffices to make it considered as the borrower's. And this is in support of R. Johanan's decree, who said: One who had arranged to borrow a utensil from his neighbor on the eve, and took it on the festival, is considered as the borrower's.

"*But if on the festival,*" etc. Is this not self-evident? The case is, when it was the custom of this man to borrow of that man often, and we would assume that the lender had the intention to give it to him from the eve, and therefore it should be regarded as the borrower's, he comes to teach us this is not the case; because it may happen that meanwhile another man may come and borrow it.

"*And when a woman borrowed,*" etc. When R. Abba intended to go to Palestine, he prayed that it should be the will of the Lord he should say a thing which should be accepted (by those sages). When he arrived there, he found R. Johanan, R. Hanina bar Papi, and R. Zera; according to others, R. Abahu, R. Simeon b. Pazzi, and R. Itz'hak of Naphha, who were sitting interpreting our Mishna, saying: Why, let the water and the salt be ignored in the dough? Said R. Abba to them: Would it be right, when one threw in one Kab of wheat into ten Kabs of his neighbor's, shall the owner of the nine Kabs take the one Kab as his own and enjoy it? (The same shall be the case here. Because water and salt are of little value, shall they be ignored?) They were laughing at him. Said R. Abahu to them: Why do you laugh? Have I taken your garments? They laughed again. In reality, what is the reason of the Mishna's teaching? Said Abayi: That is a precautionary measure, lest they will make the whole dough in partnership. Rabha said: The reason is because spices give a flavor, and everything that gives a flavor cannot be ignored. R. Ashi said: The reason is, this prohibition is only temporary, and anything temporarily prohibited cannot be ignored, even when it is among a thousand.

"*R. Jehudah excepts water.*" Did R. Jehudah except water, and not salt? Have we not learned in a Boraitha: R. Jehudah said that water and salt both are ignored, either in dough or in a pot? It presents no difficulty: Our Mishna speaks of Astrakhan salt, which is coarse, and must not be ignored, while the Boraitha means salt of Sodom, which is fine and is ignored. But we found another Boraitha, which says that according to R. Jehudah water and salt are ignored only in dough, but not in a pot, because of

its wetness (and it imparts a taste to every part). It presents no difficulty: One Boraitha applies to a pot where something thick is cooked, while the other means a pot of soup.

MISHNA: Burning coals may be carried as far as the owners may go, but a flame may be carried everywhere. If a coal of consecrated fire has been applied to profane use, the sin of desecration has been committed; but though no profane use must be made of a flame of sacred fire, yet a person who applies it thus has not incurred the penalty, and thus, if anybody carries (on Sabbath) a burning coal into a public place, he is guilty, but does not incur the penalty for a flame. The water of a well belonging to an individual may be carried as far as that man may go; but if it belongs to a town, as far as the inhabitants thereof may go. The water of a well made for the use of travellers (such as those) who come from Babylon, may be carried as far as he who draws it may go.

GEMARA: The rabbis taught: Five things have been taught about the burning coals: They may be carried as far as the owners may go; but a flame, everywhere. The sin of desecration applies only to a coal, but not to a flame; it must not, however, be used. A coal of idolatry is prohibited to be used, but the flame is permitted. Whoso carries a coal into public ground on Sabbath is culpable, and a flame is innocent; and whoso has made a vow not to receive any benefit from his neighbor must not use his coal, but may use his flame. Why may a consecrated flame not be used, but a flame of idolatry may be? In regard to idolatry, which is repulsive, and men avoid it in any event, no precautionary measure was taken; but to a consecrated thing which is not so, it was taken.

"*A well belonging to an individual,*" etc. Rabha suggested the following contradiction before R. Na'hman: Our Mishna teaches that the water of an individual may be carried only as far as he may go, and in another Boraitha we have learned: Running rivers and springing wells are to be considered as the feet of every man (Sabbath, p. 261). Said Rabba: The Mishna refers to a well where water is not springing, but collected, and the same was taught in the name of Samuel by R. Hyya bar Abbin.

"*Babylonian travellers*": as the feet of him who draws it. It was taught: If one draw it and give it to another man, R. Na'hman said it may be considered as the feet of him for whom it is drawn; but R. Shesheth says, as his who draws. In what point do they differ? One holds that the well may be considered

as ownerless (and if the water was drawn for any one he becomes the owner), and the other holds that they are partners.

MISHNA: If one has fruit in another town of which the inhabitants only made an Erub (but not the owner), they must not bring his fruit to him; but if he has made the Erub, the fruit may be carried to any place he is allowed to go.

When one has invited guests, they must not carry home with them anything from the table, unless he had granted it to them the day before the festival.

GEMARA: It was taught: If one has deposited fruit at his neighbor's house, Rabh said the fruit is to be considered the property of the keeper; but Samuel said it is still regarded as the property of the depositor. An objection was made, based upon our Mishna: If he made also an Erub, the fruit may be brought to him. Now if, according to Rabh, it is considered the property of the keeper, what is the use of his making an Erub? Said R. Huna: The disciples of Rabh explain our Mishna that it refers to a case when they assigned a corner for his fruit (so that it is as if under his supervision). Come and hear (another objection): "They must not carry home," etc., "unless he had granted it," etc. Now, if it is considered the keeper's, what is the use of granting on the day before? The answer is, that granting is equal to assigning a separate place, as explained above, and if you wish it can be said that the case when granting is different.

R. Hana bar Hanilai suspended meat on the bar of the door, and went away. After when he wished to use it he came before R. Huna and asked him whether he can use it or not (because the meat was brought to him by a butcher out of town, and he feared perhaps he brought it from over the legal limit), and R. Huna answered: If yourself have suspended it, you may use it, but if the butcher suspended it, you may not.

MISHNA: One must not give drink to, or slaughter, animals living wild, but one may do it to domestic animals. And what are called domestic animals? When they are at night in the town or the suburbs; and those which are in the open field are called wild.

GEMARA: To what purpose are both drinking and slaughtering stated? It is a thing by the way: it comes to teach us that before slaughtering it is good the animal shall drink, because it is then easier to take off the skin.

The rabbis taught: Wild beasts are called those which depart

about the time of Passover, and feed in the marshes in the summer, and return in the fall; and domestic are called those which go out every day beyond the legal limit, but return every night. Rabbi, however, said: Both kinds mentioned are called domestic; but which are called wild beasts? Those that never come to inhabited places. Does, then, Rabbi hold the theory of Muktzah (prohibiting to slaughter even a wild beast)? Did not his son, R. Simeon, ask him: Dates which become not ripe on the tree, but are put in boxes of palm-branches and remain there till they ripen, what is the law about eating them on Sabbath according to R. Simeon? And he answered: The theory of Muktzah, according to R. Simeon, does not exist at all? (And as we know that Rabbi's opinion was according to R. Simeon, consequently he does not hold the theory of Muktzah at all?) Rabbi said to the sages as follows: According to my opinion, no theory of Muktzah exists. But even in your opinion, would you not own to me that the animals which return in the fall must be called domestic? And the sages answered: No; in our opinion they are still called wild beasts.

END OF TRACT BETZAH (YOM TOB).

TRACT SUCCAH (BOOTHS)

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To the President of "Temple Israel," New York,

DANIEL P. HAYS, Esq.

In consideration that through his influence, this Congregation is the first and unique among the reformed to establish a Succah in connection with their Temple, the Editor takes much pleasure in dedicating the tract which treats about the Succah, to him, to the Rabbi, and all the associates who took part in introducing same.

Very respectfully,

MICHAEL L. RODKINSON.

New York, Tuesday חול המועד פסח שני, April 25th, 1899.

SYNOPSIS OF SUBJECTS

OF

VOLUME VII.—TRACT SUCCAH.*

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* See Introduction to Synopsis in Tract Sabbath, Vol. I., p. xxix.; also note at end of Synopsis in Vol. V.

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twenty-four orders of priests were alike entitled to share the pieces of offerings of the festival, and in the shewbread, for what purpose? Whence do we deduce that all the orders of priests had equal shares in the offerings that were said to be sacrificed on the festivals? If a festival falls before or after a Sabbath, all the twenty-four orders share alike in the shewbread. What is meant by before or after? About the order of Bilgah, when Miriam his daughter becomes an apostate, and what she said when the enemy entered the sanctuary, and what was done to the whole order, . 85–92

TRACT SUCCAH.

CHAPTER I.

REGULATIONS CONCERNING THE BUILDING OF A LEGAL BOOTH FOR THE FEAST OF TABERNACLES, ITS WALLS, AND ROOFING.

MISHNA: A booth which is higher than twenty ells is not valid. R. Jehudah, however, says it is. One which is not ten spans high, one which has not three walls, or which has more sun than shade, is not valid.*

GEMARA: Whence do we deduce this? Said Rabha: It is written [Lev. xxiii. 43]: "In order that your generations may know that I caused the children of Israel to dwell in booths." Up to twenty ells a man knows that he is living in a booth, but higher than twenty ells he does not know, because his eyes do not frequently perceive the roof. R. Zera said: From the following passage [Isa. iv. 6]: "And a tabernacle shall it be for a shade in the daytime from the heat." Up to twenty ells a man sits in the shade of the roof, but if it is higher than twenty ells a man sits in the shade of the walls (but not of the roof). Said Abayi to him: According to your theory, if one has made a booth between two hills, it is also not legal (because there is no shadow from the roof at all)? And he answered: What comparison is this? if the hills were removed, he would sit in the shadow of the roof; but here, if the walls would be taken away, there would be no shade at all. Rabha said: From the following passage [Lev. xxiii. 42]: "In booths shall ye dwell seven days." The Law commands that for seven days one shall remove from his permanent dwelling into a temporary dwelling. Up to twenty ells, ordinarily a man makes a temporary dwelling; but higher than this it is not usual to make a temporary dwelling. Said Abayi to him: According to you, if one has

* See Vol. III., p. 1, Gemara, which also belongs to our Mishna.

made iron walls, and covered them with a legal roof, would it also be unlawful for a booth? Rabha answered: I mean to say this: Up to twenty ells, which is an ordinary height for a temporary dwelling, even if one makes it a permanent dwelling, he can fulfil his duty; but over twenty ells, which is the ordinary height only of a permanent dwelling, even if one has made it a temporary dwelling, it is also unlawful? According to whom is the following saying of R. Joshia in the name of Rabh: The sages and R. Jehudah differ only when the walls do not reach the roof; but if the walls do reach the roof, all agree that the booth is valid though the walls be higher than twenty ells? It is in accordance with Rabha, who says that the sages make it invalid because the eye cannot reach the roof; but when the walls are attached to the roof, the eye is able to do so.

According to whom would the following saying of R. Hannan in the name of Rabh be: that they differ only about a booth less than four ells square, but when it is four ells square all agree that it is valid? This is in accordance with R. Zera, who says: The rabbis make it unlawful because of the lack of shadow, and in a booth four ells square there is a shadow. And according to whom is the following saying of R. Hannan b. Rabha in the name of Rabha: They (the sages and R. Jehudah) differ when the booth is only of a size to accommodate a man's head and greater part of body, and his table; but if it is of a larger size, then if it is higher than twenty ells, is it also valid? It is not, according to any one. An objection was raised: We have learned in a Boraitha: A booth which is higher than twenty ells is not valid. R. Jehudah, however, makes it valid, even if its height is forty or fifty ells; and he said: It happened that the Queen Helen, in the city of Lud, was sitting in a booth which was higher than twenty ells, and the older sages were entering and going out of it, and they did not object. And the sages answered him: This is not proof. She was a woman, and it is not obligatory for a woman to sit in a booth at all. And he rejoined: Everybody knows that she had seven male children; and besides this, all her acts were only in accordance with the will of the sages.

Now, it is right according to him who said that they differ in a case where the walls of the booth do not reach the roof, because usually a queen is sitting in a booth whereof the walls reach not the roof, that air may come in; but according to him who said that even in case of a small booth they differ, is it customary that a queen should sit in a small booth? Said Rabba bar R. Adda:

The case was of a booth separated into chambers. But is it customary that a queen should sit in a booth separated into chambers? Said R. Ashi: Yea, the case was that of a large booth with chambers, and the sages differ about the chambers. They hold that she sat in a separate chamber, but her children were sitting in a lawful booth, and therefore the elders did not object; but R. Jehudah said, her children sat with her, and nevertheless they did not object.

R. Samuel bar Itz'hak said: The Halakha prevails that the booth must be large enough to accommodate the head, the greater part of the body, and a table. Said R. Abha to him: According to whose opinion is this? And he answered: It is according to Beth Shammai, and nevertheless one shall not deviate from this law. R. Na'hman bar Itz'hak opposed this: Where do you find that Beth Shammai and Beth Hillel differ about a small booth? Perhaps they differ about a large booth, and the case was that the man was sitting at the entrance of the booth, and the table was in the house. Beth Shammai prohibit this as a precautionary measure, lest he incline himself toward the table, and then he will not be sitting in the Succah at all, and Beth Hillel does not call for such a precautionary measure. And a support to this I can bring from the following Boraitha: If one whose head and greater part of body was in the booth, and his table was in the house, Beth Shammai say it is not lawful, and according to Beth Hillel it is. Now, if they differed about the size of the booth, it should be said: if one sat in a booth which cannot contain more than the head and greater part of the body. And another Boraitha stated that Rabbi says if a booth does not contain four ells square it is invalid; but the sages say, if it contains the space for the head and the greater part of the body it is valid? Nay, they differ in both cases, and the Boraitha is not complete, and must be read thus: if one was sitting with his head and greater part of his body in the booth, and the table was in the house, he did not fulfil his duty, according to Beth Shammai; but Beth Hillel say he did, and a booth which cannot contain more than the greater part of the body and the head is unlawful, according to Beth Shammai; but Beth Hillel say it is.

Who is the Tana of the following teaching of the rabbis: In a house which is not four ells square, it is not obligatory to have a Mezuzah (a battlement),* and it is not subject to being defiled

* Deut. xxii. 8.

by plagues, and it is retained at the jubilee year in a fortified town [Lev. xxv. 29], and a man possessing such a new house must not be kept from going to war, and an Erub must not be made in it, and it is not counted as a house to combine with the houses of the alley, and an Erub (from the courts) must not be deposited in it, and it must not be regarded as a house on the border between two towns, and brothers and partners do not divide it? Shall we assume it is according to Rabbi, not the sages? Nay, we can say that it is in accordance even with the sages. Do the sages allow a dwelling of less than this size? Only when it is a Succah which is temporary; but a house which is a permanent dwelling even the sages agree must be at least four ells square. Then men can live in it; but if less, it is not called a house at all.

If the booth was higher than twenty ells, and one put in pillows and feather-beds, it is not considered as made lower thereby; even when he renounces their use for any other purposes, because we ignore his resolve, as people in general do not do it. But if one puts there straw, and renounces it, it is considered as made lower; and so much the more, loose earth. But if one puts there straw which he does not renounce, although he does not purpose to remove it, and also sand, which he does not renounce—in that case Jose and the sages differ (Tract Ahaloth, Chap. XV. 6). If the booth was higher than twenty ells, and from the roofing hung down small twigs, then if they are so numerous that there is more shadow than sunshine, they are considered to make it lower; but if less than that, they do not make it lower. If it was high only ten spans, and small twigs hung down from the roof, Abayi thought that if there was more sun than shadow between the twigs, it was valid. Said Rabha to him: It is an unendurable dwelling, and nobody would live in it. (Therefore it is not valid.)

If it was higher than twenty ells, and one constructed in it a bench along the whole middle wall, if the bench is as large as the legal size of a booth (seven spans and a trifle), then the booth is valid (the whole booth because of a crooked wall); but if he constructed a bench along a side-wall, if from the edge of the bench to the opposite wall it is four ells, it is not valid; but if less than this, it is valid (because the bench legalizes two walls, the third being without the legal limit). If he constructed a bench in the midst of the booth, if from the edge of the bench to each of the walls it is four ells, it is not valid; but if less, it is valid, because of a crooked wall on all sides. If, however, he put the bench on

one side, then if it is less than four ells of the wall, it is valid (because of a crooked wall on one side); but if it is four ells, it is not. If the booth was less than ten spans in height, and he dug in it a pit to make it ten spans high, if from the edge of this pit to the wall is three spans, it is invalid; but less than that, it is valid. Why, then, in the case when it is twenty ells high, are less than four ells needed to make it valid, while here, when it is ten spans high, less than three spans are needed? Because there a wall is in existence, and to make it invalid one must have four ells; but in the case of ten spans, the wall is not considered a wall at all, and to make it a wall less than three spans are wanted (because then it is Lavud, *i.e.*, considered as attached to the ground of the pit when it would be ten spans high). (See Sabbath, p. 12, note §.)

The rabbis taught: If one has placed four poles and roofed them, according to R. Jacob, it is valid in cases when the poles admit of partition, as will be explained further, for a booth, but according to the sages it is invalid. Said R. Huna: They differ only about the edge of the roof. R. Jacob holds the theory of Gud Assik (see Erubin, note, p. 6) applies here, and the sages hold that it does not. But about the middle of the roof they all agree it is invalid. R. Na'hman, however, said: They differ even about the middle of the roof. The schoolmen propounded a question: Does R. Na'hman mean to say they differ about the middle, but about the sides all agree that it is valid? Or does he mean to say, they differ even about the middle? This question is not decided.

The rabbis taught: If one drove into the ground four poles and roofed them, R. Jacob said, it should be seen whether each of the poles is so thick that if it would be divided it would reach a span on each side (see illustration of enclosures, Erubin, p. 18), then they must be considered as enclosures and the booth is valid; but if they have not such a thickness, it is not valid. And this is according to his theory elsewhere, that the enclosures of a booth must be not less than a span at each side. But the sages said, the booth is not valid unless there are two walls as usually; and the third wall is sufficient, even if it is one span.

"*If less than ten spans.*" Whence is this deduced? It was taught: Rabh and Mar Hanina, R. Johanan and R. Habiba, taught [in the whole section of Moed, whenever these names are mentioned, they put R. Jonathan in the place of R. Johanan], the ark was nine spans, and the cover to it one span, together it is

ten. As it is written [Ex. xxv. 22]: "And I will meet with thee there, and I will speak with thee from above the cover." And we have learned in another Boraitha: R. Jose said that the Shekhina never descended, and Moses and Elijah never ascended the heaven. As it is written [Psalms, cxv. 16]: "The heavens are the heavens of the Lord, but the earth hath he given to the children of man"; but is it not written [Ex. xix. 20]: "And the Lord came down upon Mount Sinai"? And the answer is, that He did not come down lower than ten spans* from the ground. (Now, when He says, "I will speak to thee from above the cover," that means ten spans higher. From this we see that ten spans are counted as separate premises; hence ten spans is the minimum height of a dwelling.)

It is true, the ark is nine spans, because it is written [Ex. xxv. 10]: "And they shall make an ark of shittim wood: two ells and a half shall be its length, and one ell and a half its breadth, and an ell and a half its height" (and as an ell is six spans, the height of one and a half is nine spans). But where do we find that the cover is one span? From the teaching of R. Hanina as follows: Of all the utensils that Moses made, the Law had prescribed before the length, the breadth, and the height. In case of the cover, however, the length and the breadth are written, but not the height; and we must go and draw this lesson from the meanest of the utensils, as it is written [ibid., ibid. 25]: "And thou shalt make unto it a rim of a hand's breadth round about." As the height of the rim is a span, we infer that the height of the cover is also a span. But why from the meanest of the utensils—why not from the utensils themselves? Because there is a rule, when much is grasped at, nothing is grasped; but when little is grasped, it is retained. R. Huna said: We infer it from this passage [Lev. xvi. 14]: "On the face of the cover, eastward"; if less than a span, it would not be called face. But where do we find that the distance between the roof and ground should be ten spans? Perhaps the roof itself should be included? Therefore we say this theory they draw from the Temple; as it is written [in I Kings, vi. 2]: "And the house which King Solomon built unto the Lord was sixty ells in length, and twenty in breadth, and thirty ells in height"; and [ibid., ibid. 26]: "The height of the one cherub was ten cubits, and so was the other"; and a Boraitha states, as

* See the article, "What is the Talmud?" in our pamphlet, "The Pentateuch, its Languages and Characters," for an explanation of this saying.

we have found in the Temple, that the cherubim were a third of the height of the house, so also in the tabernacle in the desert they were one-third. Now, the height of the tabernacle was ten ells, as it is written [Ex. xxvi. 16]: "Ten ells shall be the length of each board." How many spans are in ten ells? Sixty. A third thereof is twenty: take off ten, which was the height of the ark with the cover, ten is left. And it is written [ibid. xxv. 20]: "And the cherubim shall spread forth their wings on high, overshadowing the cover." Hence we see that the Torah calls "overshadowing" when above ten spans. Therefore we infer that the roofing overshadowing the booth must be above the ten spans.

This would be right according to R. Meir, who said that all the ells mentioned in the Torah measure six spans; but according to R. Jehudah, who says that the ells of a building measured six spans, but other ells only five spans, what can be said? If so, the ark with its cover would be only eight and a half: then remain for the cherubim eleven and a half. Shall we say that the booth must be high at least eleven and a half? According to R. Jehudah the size of a booth is (Sinaic). (As it is said in Tract Erubin, p. 5.)

"*One which has not three walls.*" The rabbis taught: Two walls must be as usually, but the third one may be even one span. R. Simeon, however, said: Three must be as usually, and the fourth one may be a span. In what point do they differ? The rabbis hold, the bases are the Massorah (*i.e.*, if we came to draw something from Scripture the basis must be the Massorah) and as [in Lev. xxiii.] "in booths" is mentioned three times, and the Hebrew term for this is בסכת, בסכת, בסוכות;* that is, two of them are written in the singular and one in plural, and from each term in the singular we infer the necessity of one wall, and from the term in the plural two, which make four: take off one expression intended as a commandment to make booths in general, we infer from the two which are superfluous the necessity of three walls; that is, two as usually, and the third one the tradition reduces to a span in case it is valid. But according to R. Simeon the basis must be the biblical words as they *read;* and as all three *read* in the plural, we infer the necessity of six walls: take off one term as a general commandment, we have left four; hence three must be as usually, and the fourth tradition reduces to one span. And if you wish, we will say: that all

*In our Scripture we do not find so, but see the Massorah.

agree that the basis must be the Massorah, but the point whereon they differ is, one holds that the first verse, where the commandment is written, we also take into consideration to infer the necessity of a wall—consequently it is four walls; and one holds that the first must not be taken into consideration, and it is only three. R. Mathua said: R. Simeon infers his theory from the following passage [Isa. iv. 6]: "And a tabernacle shall it be for a shadow in the daytime from the heat, and for a refuge, for a covert from tempest and from rain" (*i.e.*, if it is not three walls, it cannot be a protection from wind, etc.).

Where shall be placed the wall which is one span wide? Said Rabh: One may place it where one wall ends, no matter which; it was taught that the same was said by Samuel in the name of Levi, and so also it was decided in the college. R. Simon, and according to others R. Joshuah b. Levi, said: The wall which is a span shall be wide as a span made by the palm when extended, and one shall place it at a distance of less than three spans from another wall, so that the theory of Lavud should apply.

R. Jehudah said: A booth that was made as an entry is valid (the two walls need not be adjacent, but may be opposite, while the wall of one span can be placed at any side one likes). R. Simeon, and according to others R. Joshuah b. Levi, said: Such a booth is lawful only when one places an enclosure four spans and a trifle wide, and at a distance of less than three spans from the wall, so that the theory of Lavud can apply: then it will be counted together seven spans and a trifle, which is the lawful width for a booth. Why is it said there that it is sufficient when it is wide as an extended span, and here that an enclosure of four spans is needed? There, where there were two walls, as usually, a span is enough; but here, in which case they are opposite, an enclosure of at least four spans is required. Said Rabha: And to it must be added an appearance of a door (on the other side). R. Ashi found R. Kahna, who made a third wall extended a span wide, and on the other side an appearance of a door; and he said to him: Does not the Master hold with Rabha, who said that an appearance of a door is sufficient for a third wall? And he answered: I hold with the saying of Rabha, as it is interpreted above, that an appearance of a door must be added too.

Again: "*Two walls as usually*," etc. Said Rabha: This booth is considered private ground in reference to a Sabbath falling in the Feast of Tabernacles, so that things may be carried

from another private ground into this booth, and *vice versa* (although for a legal private ground three walls are needed), because as the two walls are considered a Succah, it is considered also private ground for this Sabbath. Rabha said again: If one has made a roof above an entry which has a side-beam, it is valid for a booth.* And the same said again: If one has roofed the enclosure of a well (see illustration in Erubin, p. 18), it may be used as a booth.

"*If there is more sun than shadow, it is not valid.*" The rabbis taught: If there is more sunshine than shadow from the roof, but not from the walls. R. Joshiah, however, said: Even if it is more sunshine from the walls, it is also invalid. Said R. Yemar bar Shlomiah in the name of Abayi: What is the reason of R. Joshiah's decree? Because it is written [Ex. xl. 3]: "Thou shalt cover the ark with a vail"; now the vail was a partition, and the Torah says: "Thou shalt cover with it"; we may infer from this, the partition shall be equal in law to the cover (or roof). And what will the rabbis say to the query of R. Joshiah? The rabbis explained the expression, "Thou shalt cover it," that it means he shall fold the vail a little towards the ark, so that it shall seem as a cover.

Abayi said: Rabbi, R. Joshiah, R. Jehudah, R. Simeon, and Rabban Gamaliel, the school of Shammai, R. Eliezer, and the anonymous teachers all hold that a booth must be considered not as a temporary but as a permanent dwelling. (Rashi explains that it means that it should be possible to turn it into a permanent dwelling.) Rabbi, as we have learned above, that a Succah that was not four ells square is invalid; R. Joshiah, from the statement just mentioned; R. Jehudah, as he declares valid a booth which is higher than twenty ells; R. Simeon, as he requires four walls (three as usually, and one, one span wide); Rabban Gamaliel, as he declares invalid (farther on) a booth constructed on board a vessel or on a wagon; Beth Shammai, as they declare in a Mishna, farther on, that it is invalid if it can contain a man's head and greater part of body, while his table is in a house; R. Eliezer, as he declared a Succah constructed in the shape of a pyramid is invalid; and the anonymous teachers, who declare invalid a circular Succah.

R. Johanan said: A booth which is made like a lime-kiln (*i.e.*, round), if its circumference is large enough that twenty-four

* The law of an entry with a side-beam is explained in Tract Erubin, Chap. I.

persons may sit at the walls, it is valid; but if not, it is invalid.* And this teaching is according to Rabbi, who said that a booth which is not four ells square is not considered a booth at all.

R. Levi in the name of R. Meir said: Of two booths of potters which are one within the other, the innermost is not valid for a legal booth, and is liable to have a Mezuzah, but the outermost may be used as a legal booth, and needs not a Mezuzah. Why so? Let the outer one be considered as a passage to the innermost, and a passage is not exempt from a Mezuzah? Because of both booths the outer one is only temporary, and it is exempt from a Mezuzah.

The rabbis taught: The booths of strangers, made only for the summer, booths for women (to make the toilet), booths made for animals, or booths made by Samaritans for the feast, and everything whatever called a booth is valid as a religious tabernacle, provided that it is roofed according to the Law. What is meant, "according to the Law"? Said R. Hisda: If it was roofed for this end, what is meant by the saying: "Anything whatever that is called a booth is valid"? To include the booths of shepherds, of those who watch dried figs, watchmen outside of the towns, and of those who watch fruit (all these are booths if they are roofed according to the Law, and are valid for religious purposes).

MISHNA: An old Succah, Beth Shammai hold, is not valid, but Beth Hillel hold it is valid. What is called an old Succah? One which was constructed thirty days before the festival; but if it has been constructed on purpose for the festival, even though it be one year old, it is valid.

GEMARA: What is the reason of Beth Shammai's opinion? It is written [Lev. xxiii. 34]: "The feast of the booths shall be seven days unto the Lord." From this we infer that the booths must be made for the purpose of the feast. And what would Beth Hillel say to this passage? They infer from it another theory in accordance with R. Shesheth, who says in the name of R. Aqiba: Whence do we know that the wood that was used for the booths, must not be used for another purpose all the seven days? Because it is written: "The feast of the booths shall be seven days unto the Lord." And we have learned in a Boraitha:

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* The Gemara interprets this law by a geometric calculation how much space a person needs, and the relation of a circle and a square, with illustrations, which do not belong here, and therefore we omit.

R. Jehudah b. Bethyra said: In the same manner that the name of the Lord rests on the feast-offering (and this prohibits the eating of the feast-offering till the pieces are offered on the altar), so does the name of the Lord rest on the booth, to prohibit the use of the material of which it is constructed during the seven days. But did not Beth Shammai also infer this prohibition from the same passage? Yea, we must therefore say that the reason of Beth Shammai is another passage [Deut. xvi. 13]: "A feast of tabernacle . . . seven days." Infer from this that the booth must be made for this purpose. And what do Beth Hillel infer from the above passage? They infer from it that a Succah may be made during the intermediate days also, while Beth Shammai do not allow it.

MISHNA: If one constructs his Succah under a tree, it is the same as if he made it in his house (under the roof). Should he construct one Succah above another, the upper one is valid, but the lower one is not. R. Jehudah says: Should the upper one not be inhabited, the lower one is valid.

GEMARA: Rabha said: The Mishna refers only to a tree under which there is more shadow than sunshine; but if the sunshine is more than the shadow, it is valid. And I infer this, because the Mishna teaches that a booth which was made under a tree is as if made in a house, why does it express it thus? Let it say, it is invalid? We must therefore assume that it means: As in a roofed house there is more shadow than sunshine, so is it also under a tree, under which the same is the case. But if there is more sunshine than shadow, what is the use, since the branches of the tree, which are invalid, will combine with the roofing of the booth to shut out the sunshine, and thus make the Succah invalid? Said R. Papa: The case is when one has cut off the branches. If they have been cut off, is it not self-evident that the booth is valid? One might say, we shall take a precautionary measure (lest any make it under a tree which has its branches) and he comes to teach us that such precautionary measures are not to be taken.

"*One Succah above another*," etc. The rabbis taught: It is written [Lev. xxiii. 22]: "Ye shall sit in booths." We may infer, in booths, but not in a booth which is under a booth, or under a tree, or in a house. On the contrary, it is written in the "booths" in the plural (that can mean, in this and in that)? Said R. Na'hman bar Itz'hak: It reads plural, but it is written in the singular.

What distance must be between the upper and the lower Succah, that the second should be invalid? Said R. Huna: One span, as we find this measure in the law of defilement (Ahaloth, Chap. III. 7): R. Hisda and Rabba bar R. Huna both said: Four spans. The reason is, that we do not find any distance considered to be of any significance if it is less than four spans. Samuel, however, said: Ten; and his reason is, that as to make it valid it must be no less than ten spans, so as make it invalid there must be ten spans. When R. Dimi came from Palestine, he said that in the west they so interpret: If the roof of the lower one could not bear the pillows and feather-beds of the upper one, then the lower is valid. From this we may infer that the first Tana holds that, although the lower one cannot bear the pillows in the upper one, it is nevertheless invalid? We may say that the difference between the first Tana and the sages is in a case in which the roof of the lower one could bear it, but not easily (according to him it is invalid, according to them it is valid).

MISHNA: If a cloth be spread over the (roof of the Succah as a screen) against the sun, or below (the roof, inside) to catch the falling leaves, or if one spread a cloth over a (four-post) bed-tester, the Succah is not valid, but one may spread a cloth over two bed-posts.

GEMARA: Said R. Hisda: The case is if one spread a cloth to catch leaves; but if he did it only for ornament, it is allowed. Is not this self-evident? Did not the Mishna say plainly "to catch leaves"? One might say the same is the case when it is an ornament also, but the Mishna mentioned a thing, it is usually so done; he comes to teach it is not so. It was taught: That such ornaments do not make it lower (if it was more than twenty ells high, it is not lowered thereby, or if it was ten spans they do not make it invalid). Said R. Ashi: But if the cloth was hung before a side-wall, it makes it smaller. It happened once that the shirt of Menymin, the servant of R. Ashi, was soaked in water, and he spread it on the roof of the booth to dry. Said R. Ashi to him: Take it off, for one might say, we cover the roof with a thing which is subject to defilement. But everybody will see that it is wet? I mean to say, that when it will be dry, you shall take it off.

It was taught: If the ornaments of the Succah are four spans under the roof, R. Na'hman said the Succah is valid, but R. Hisda and Rabba bar R. Huna both say it is invalid. But sages were once the guests of the exilarch, and R. Na'hman made them

sleep in a booth where the ornaments were four spans beneath the roof; and they kept silent, and said nothing. Then he asked them: Did the Masters retract their decision? And they answered: We are delegates for a religious purpose, and therefore we are free from the duty of a Succah.

R. Jehudah in the name of Samuel said: One may sleep in a nuptial bed, because its canopy is not considered as a roof (being slanting) even when it is ten spans high. An objection was raised: We have learned, who sleeps under a canopy in a booth does not fulfil his duty? There is the case when the canopy is not of a nuptial bed, but different, like a roof. Rabha bar R. Huna lectured: One may sleep under a canopy, although it is like the roof, and high ten spans; and it is according to R. Jehudah, who said that a temporary tent cannot make a permanent one be ignored, as we have learned in a Mishna. R. Jehudah said: Our custom was to sleep in the booth under the bed in the presence of the elders. But let him say: The Halakha prevails according to R. Jehudah? If he would say so, one might say it is only the case with a bed because it is made to be slept on, but not underneath it (and therefore cannot make the permanent tent ignored); but in the case of a bed with a canopy, which was made for sleeping in, it may be thought different. Therefore he teaches us there is no difference.

MISHNA: If one has trained a vine, or gourd, or ivy over the booth, and covered it, it is not valid; but should the covering be the greater part of the roof (and they the smaller part), or if they had been cut off, it is valid. This is the rule: Everything subject to defilement, and not growing from the ground, must not be used as a roof to the booth; but everything not subject to defilement, and growing from the ground, may be used.

GEMARA: R. Joseph was sitting in the presence of R. Huna, and said: To the Mishna which says, if they are cut off, the Succah is valid. Said Rabh: They (the remainder of the roof) must nevertheless be shaken (after having been cut off). Said R. Huna to him: This said Samuel. R. Joseph turned away his face from him and said: Did I say to you Samuel did not say it? I told you Rabh said, and Samuel may have said it also. Rejoined R. Huna: But I tell you that only Samuel said it, and not Rabh, because, according to the latter, it is valid without shaking, as it happened once that R. Amram the Pious made fringes [Num. xv. 38] on the garment of his wife, but he did not cut asunder the heads of the thread; and later, when he came to ask about

it, R. Hiya b. Ashi said to him: So said Rabh: The cutting asunder of the thread, this makes the fringes lawful. From this we see that according to Rabh the cutting off makes it valid, though nothing but this was done. And the same is the case here also. Cutting off makes valid. Shall we assume that the point of difference between the Tanaim of the following Boraitha is the same as that of Rabh and Samuel? Namely, we have learned in an addition to the Mishna: If a myrtle bough has more berries than leaves, it is invalid till the latter are made fewer; but it is not allowed to do so on a festival (Succah, Chap. III.). If, however, one transgressed, and cut off the berries on a festival, the myrtle bough is invalid according to R. Simeon b. R. Jehozodok, but is valid according to the sages. Now, the schoolmen thought the point on which R. Simeon and the sages differ is whether the cutting is a final preparation, for they thought all agree that the Lulab should be tied together in the beginning with the other branches, drawing a lesson from the Succah, about which it is said: "Ye shall *make*," *i.e.*, you shall commence to make, but not use what is made already. And R. Simeon says it is invalid, because he does not regard the cutting as a final preparation, and the Lulab, being tied with an invalid myrtle, is invalid; but the sages hold the cutting is a final preparation, and therefore the Lulab is valid. Hence the point whereon they differ is the same as that whereon Rabh and Samuel differ: whether the cutting off is a final preparation (and then shaking is not needed) or not. Nay, all agree that the cutting off is *not* considered a final preparation, but R. Simeon and the sages differ whether the Lulab has to be tied together at all, or not; R. Simeon maintains that it must, and the sages say, it must not; as we find in a Boraitha that the sages make no difference whether it was tied or not, and only R. Jehudah maintained that if untied it is invalid. But according to whom would be the following teaching: There is a merit in tying the Lulab; it is, however, valid if it is untied? This is in accordance with the rabbis, and the merit is because it is nicer when tied, as it is explained elsewhere that the word [Ex. xv. 2] ואנוהו means, "beautify your religious performances for the Lord's sake."

"*This is the rule: everything subject to defilement,*" etc. Whence is all this deduced? Said Resh Lakish: It is written [Gen. ii. 6]: "But there went up a mist from the earth." As a mist is not subject to defilement, and ascends from the earth, so also must the Succah be a thing not subject to defilement,

and growing from the earth. This would be right according to those who said that the booths in the desert were of clouds of glory; but according to those who say that they were ordinary booths, what can be said? Namely, as we learn in the following Boraitha: It is written [Lev. xxxiii. 43]: "I caused the children of Israel to dwell in booths": these were clouds of glory, R. Eliezer said. But R. Aqiba said: They were ordinary booths. Said R. Ashi: It is written [Deut. xxi. 13]: "Of thy threshing-floor and wine-press." *Of* thy threshing-floor, but not the threshing-floor itself; *from* thy wine-press, but not the wine-press itself. R. Hisda said: From the following passage [Nehem. viii. 15]: "Go forth unto the mountain and fetch olive leaves, and oleaster leaves, and myrtle leaves, and palm leaves, and leaves of the three-leaved myrtle, to make booths, as it is written." Are not the leaves of the myrtle and those of the three-leaved myrtle the same? Said R. Hisda: The myrtle leaves for the Succah, and the three-leaved myrtle for a Lulab.

MISHNA: Bundles of straw, of wood, and of twigs must not be used to cover the Succah; all of these are become valid, however, if the bundles are loosed. As side-walls, however, all of these may be used.

GEMARA: R. Jacob said: I have heard from R. Johanan two things which he explained to me, namely: the above Mishna, and the Mishna farther on, "Should one hollow out a space in a stack (of sheaves) to use it as a Succah, it is not considered such." Of one of them he says the reason is that it is only a precautionary measure, lest one make his storehouse for a Succah, which biblically is allowed; and of the other he said the reason is, because it is written: "Ye shall make," from which we infer, it must not be ready-made (and this is biblical). But I don't know for which Mishna the reasons are respectively given. Said R. Jeremiah: Let us see. R. Hiya bar Abba said in the name of R. Johanan: Why is it prohibited to cover with bundles of straw, wood, or twigs? Because it may happen a man comes from the field in the evening with his bundle on the shoulder and puts it on the roof for the purpose of drying, and later he resolves to leave it there as a roof to the booth, and it is said, "Ye shall make it," but not have ready-made. Now, as we see that the reason for this is biblical, that for our Mishna must be a precautionary measure. Then why was R. Jacob doubtful? Because he had not heard the saying of R. Hiya in R. Johanan's name. Said R. Ashi: What is the difference? Does,

then, the law, "shall make," apply only to our Mishna, and not to the other Mishna farther on, or does the precautionary measure apply only to the other Mishna, and not to ours? Both are alike (and why, then, does he make a difference between them?). R. Johanan can say that his teaching is correct, because our Mishna states, they must not cover it; that means, to commence it, and it is a precautionary measure, but if he has covered, it is valid. But there it is said, It is not a Succah, even after it has been covered; it is even biblically not a Succah.

Said Rabha bar bar Hana: I have heard in the name of R. Johanan three things: If he has roofed it with bundles of flax it is invalid, but if with unsoaked flax, it is valid; and as for Hushne [meaning uncertain] flax, I am in doubt about it. Rabha bar bar Hana added to this: What he meant by *Hushne* flax, I don't understand. Does he mean, flax soaked and dried, but not brushed; or brushed already, but not made into bundles?

R. Hanan bar Abba said: With thorns and weeds a Succah may be covered. Abayi, however, said, if they have no leaves, one may; but if they have leaves, one must not. Why so? Because, when the leaves fall down, this will trouble him, and he will leave the booth and go out. R. Gidl said in the name of Rabh: The roots of a tree may be used to cover with, although they are intertwined, because a bundle made by nature is not called a bundle. And even if he tied together the extremities, he may nevertheless use them, because as at the base they intertwine naturally, the bundle at the top is not considered such.

R. Hisda in the name of Rabbina b. Shila said: Branches (stalks) of διχρα may be used for covering, though they are intertwined, because a bundle made by nature is not considered as a bundle. And although one ties them together himself, he may nevertheless use them, because as at the base they intertwine naturally, the bundle at the top is not considered such. So also we have learned in a Boraitha: The stalks of διχρα may be used as covering.

Maremar lectured: The bundles they sell out in the market in Syria may be used to cover, although they are tied together, because they tied them only to know the number. Huts of reeds, used by fowlers, if they are untied at the top, may be used as a covering for a booth although they are yet tied together below? Said R. Papa: One loosens them at the bottom also. R. Huna the son of R. Joshuah, however, said: Even if they

were not untied at the base, they also may be used, because a bundle that cannot hold together is not called a bundle.

R. Abba said in the name of Samuel: If of herbs by which the sages said a man can fulfil his duty to eat bitter herbs on Passover was made a tent, they bring defilement, when a corpse or part of a corpse was in it, to all vessels that are in the tent; but if a partition was made of them they do not prevent the defilement to spread further, and if they are used to cover a Succah, they make it invalid, because when they become dry they crumble and fall. Therefore, even if they are wet, they are considered not to exist at all, and in place of a roof an empty piece of space.

MISHNA: One may cover with thin boards, according to R. Jehudah, but R. Meir prohibits it. If one has put a deal board four spans wide over the booth, it is valid, provided that one sleep not under it (the board).

GEMARA: Said Rabh: They differ only about boards that are four spans wide. R. Meir prohibits it as a precautionary measure, lest he come to make a ceiling, and R. Jehudah does not take this measure; but if they were less than four spans, all agree that it may be used. Samuel, however, says, on the contrary: They differ only if it is less than four spans; but if more, all agree it is prohibited. If it is less than four spans and even less than three (they differ), how can it be? Is it not considered a stick? Said R. Papa: Samuel meant to say thus: If it is four spans, all agree it is not valid; less than three, all agree it is valid. They differ only from three to four; one holds because it is not of the prescribed size (four spans), it is valid, because they are considered as sticks; and another holds, as it is more than three, to which the theory of Lavud cannot apply, we take the precautionary measure. Come and hear: Two sheets, if put in the middle of the roof, each of which is less than four, but whose combined width is four spans or more, make the booth invalid; but two boards of the same sizes do not combine to make it invalid. R. Meir, however, said: The same is the case with both. It would be right according to Samuel, who said that they differ when it is less than four spans; but if it is four spans, all agree it is invalid, because then it would be explained that the combined width makes the Succah invalid if it is on the side of the roof (attached to a wall), and their combined width is four ells, not four spans (for otherwise, if the roof is by the wall, it is valid up to four ells because it is considered as a crooked wall continued). But

according to Rabh's opinion, this can be only according to R. Meir; but according to R. Jehudah, what can be meant by the expression "combined width," since according to him, if they are less than four spans, they are considered sticks? R. Jehudah does not mean combined width, but only uses the same expression as R. Meir (without a particular meaning).

We have learned in a Boraitha according to Rabh, and in another Boraitha according to Samuel: according to Rabh, if one has covered the Succah with boards of cedar that are less than four spans wide, all agree they are valid; but if they are four spans, R. Meir makes it invalid, and R. Jehudah makes it valid. Said R. Jehudah: It happened once, in a time of danger, we brought boards four spans wide, and roofed a balcony and used it as a Succah, and the sages answered him: A dangerous time does not prove. According to Samuel: If one has roofed the booth with cedar boards four spans wide, all agree it is invalid; if less, according to R. Meir, it is invalid; according to R. Jehudah, valid. R. Meir agrees, however, that if there was between one board and the other the width of a board, one may lay between anything fit, and the Succah is valid. And R. Jehudah agrees, that if one board was wide four spans, it is valid, but one must not sleep under it, and who does so does not fulfil the duty of a Succah.

It was taught: If one placed the boards on their edges on the Succah, R. Huna said the booth is invalid, but R. Hisda and Rabba bar R. Huna both said it is valid. It happened once R. Na'hman came to Sura: R. Hisda and Rabba bar R. Huna visited him and asked him the law about the boards in question, and he said: They are considered as iron spits, and certainly invalid. Said R. Huna to them: Did I not tell you that R. Na'hman agrees with me? And they answered him: Did the Master explain to us the reason of this, and we did not accept it? Rejoined R. Huna: Did you ask me for the reason, and I did not tell it to you?

MISHNA: If small rafters, over which is no ceiling, are to be used for a booth, R. Jehudah says: Beth Shammai hold, the rafters must be loosened, and the middle one out of every three removed. But Beth Hillel hold: One must either loosen them, or else remove one of every three. R. Meir says: One must remove one out of three, but one need not loosen.

GEMARA: It is right according to Beth Hillel, as their reason is because it is written: "Ye shall *make*," and not have

ready-made. Hence either of the two is sufficient. But what is the reason of Beth Shammai? If the reason is the same, why must he do both? Is not one sufficient? It is as a precautionary measure, and Beth Shammai meant to say thus: Although one has loosened, it is not valid until he removes one of every three. If it is so, then Beth Shammai said the same as R. Meir. R. Meir meant to say, Beth Shammai and Beth Hillel did not differ, if one has removed same, though they were not loosened.

MISHNA: If one roofs his booth with iron spits, or with boards of a bedstead, if there is as wide a space between them (covered with anything fit) as one of them, it is valid. If one should hollow out a space in a stack (of sheaves) to use it as a Succah (although of the prescribed size), it is not considered as a Succah at all.

GEMARA: Shall we assume that the decision of R. Huna the son of R. Joshuah, who says, that if the open spaces of a fence equal the fence proper it is not valid (Erubin, p. 35), contradicts this Mishna? R. Huna can explain the Mishna, that it means an interspace a trifle wider than the spit or board itself, so as to allow it to be taken out and replaced without difficulty. But can it not be made precisely to fit? (Rashi explains this question thus: At the first glance the answer of R. Huna is that, whenever the thing is mentioned to be of the same width, it is meant to be a trifle less wide, so as to be removed without difficulty: and to this comes the question, why should it be so made? can it not be made to fit precisely? And to this question the answer of R. Ammi will be farther on. But Tospheth oppose to this another explanation, which is still more complicated, and we have therefore translated the text literally.) Said R. Ammi: Yea, but this Mishna means, it is only valid then, when it is a trifle more. Rabba, however, said: The Mishna can be explained even if it was precisely; but if it was laid lengthwise, it should be placed crosswise, and *vice versa* (and above them the lawful roofing, so that the fit must be more than the unfit roofing, and thus the fit portion above neutralizes the unfit portion below).

"*With boards of a bedstead.*" Shall we assume that this is a support to R. Ammi bar Tibiumi, who said that if one covered the Succah with broken utensils it is invalid? Nay, the Mishna can be explained as R. Hanan said in the name of Rabbi. If the side-board of the bedstead was laid with two short boards, or two short boards with the side-board, which is subject to defilement (as will be explained, Kelim, Chap. XIX. 9). What is meant

by broken utensils? Said Abayi: Remnants of silken togas, that measure less than three fingers square, and are of no value to either rich or poor (Sabbath, p. 272). We have learned in a Boraitha in accordance with R. Ammi bar Tibiumi: The remainders of a mat of bark or reeds, although they are less than of the prescribed size to be subject to defilement, must not be used to cover a Succah. A mat of sticks, if it is large, may be used to cover it (because a large one is only made for a covering, and is not a utensil subject to defilement); but if small, it may not. R. Eliezer, however, said, that even a large one is subject to defilement, and may not be used.

"*If one should hollow*," etc. R. Huna said: The case is, when there is no hole of the size of one span in length by seven in width; but if there was, it is a Succah.* We have learned so also in a Boraitha: If one hollows out a space in a stack to use it as a Succah, it is a Succah. And this Boraitha must be explained as the decree of R. Huna to prevent the contradiction to our Mishna.

MISHNA: If one suspends textile walls from the roof downwards, if they do not reach the ground within three spans, it is invalid. If they stand on the ground and are high ten spans, it is valid. R. Jose, however, said: Even when the walls do not reach the ground by more than three spans the law of ten spans applies to both cases (and in either case it is valid).

GEMARA: On what point do they differ? One holds that a hanging partition makes the Succah valid, and the other that it does not. We have learned in the Mishna in Erubin, Chap. VIII. p. 206, concerning a wall that was between two courts and a partition was made, and R. Jehudah said there: The partition is not more effectual than the wall which is between them. Said Rabba bar bar Hana, in the name of R. Johanan: R. Jehudah's decree there is of the same system as R. Jose's in our Mishna, who says that a hanging partition makes valid. In reality, however, it is not so. R. Jehudah does not agree with R. Jose, and *vice versa*. Because R. Jehudah, who allows it there, does so because Erubin of the courts are rabbinical; but here, in the case of the Succah, which is biblical, he would not allow it. And, on the contrary, R. Jose,

* The reason is because a hole of a span constitutes a legal tent in the law of defilement, and the covering above it is called roofing. Now, if one enlarged this hole to the size prescribed for a Succah, from the base upwards, so that he diminished the covering, he is considered to have made a new roofing and thus a new tent for this purpose, and it is a valid Succah. (Rashi.)

who allows it here, does it because the Succah is only a positive commandment; but concerning Sabbath, where there is a capital punishment, he would not allow it. And if it be asked, What happened in Ziporeth (which will be related farther on), according to whose opinion was it? Not according to R. Jose, nor in accordance with R. Jehudah, but according to R. Ishmael bar Jose. Namely: When R. Dimi came from Palestine, he told that it happened once (in Ziporeth) that they had forgotten to bring the holy scrolls on the eve of Sabbath, and on the morrow they put sheets on the pillars and brought the holy scrolls, and read them (and these hanging partitions were made at the command of R. Ishmael).

R. Hisda in the name of Abimi said: A mat which is large four spans and a trifle can be used as a side-wall to the Succah. How shall it be placed? It shall be hung in the middle, less than three spans from the ground, and less than three spans from the roof, because we apply the law of Lavud to both places. Is not this self-evident? One may say that two Lavuds in one case do not apply, he comes to teach us that we may.

MISHNA: If the roof is three spans distant from the walls, the Succah is invalid. If the roof of a house was broken, and it was covered, then if there are four ells between the wall and the covering, it is invalid; but if less it is valid. The same is the case with a court surrounded by balconies. If the top of a large Succah was covered with something unfit, if it is distant four ells it is not valid.

GEMARA: Rabha said: I once found the rabbis of the college sitting and declaring: Air makes the Succah invalid with three spans, but unfit covering makes it invalid only with no less than four ells; and I said to them: Where do you find that air makes invalid with three spans? In our Mishna, which teaches if the roof was at a distance of three spans it is invalid? Then, learn also from it that unfit covering should not make the Succah invalid if it is less than four *ells?* as it teaches farther on, that a house whose roof was broken, and it was covered in the middle, if there is from the covering to the wall four ells, then it is invalid? And they answered: Leave alone this teaching, because Rabh and Samuel both said that this teaching is only because we consider it as a crooked wall. And I rejoined: If it is so, what would be according to your opinion? If there would be air less than three spans, and unfit covering less than four ells, in the same place, it certainly would be valid; but if one covered the

vacant space with iron spits, it would make it invalid. Now, the air, which is so rigorous that it makes invalid by three spans, will not be equal to an invalid covering which is so lenient that it makes invalid only by four ells? And they said to me: And according to your theory, that unfit covering makes invalid only when it is four ells, how would the case be if empty air less than three spans were added to it? Would it not be valid? But if one puts iron spits over the empty place, would it not make it invalid? Now, then, does not the same question apply to your theory also? And I rejoined again: What comparison is this? In my opinion, unfit covering makes invalid with four ells, because that is the prescribed quantity, and the same is with air; and as both quantities are not equal, they do not combine together to make the Succah invalid. But according to your opinion, that the reason is not because it is a prescribed quantity, but because the roof is separated from the wall, then the question is, what is the difference whether it be separated from the wall by air less than three spans and unfit covering, or by iron spits and unfit covering? Said Abayi to him: And even according to the Master's opinion, that because the quantities are not equal they do not combine, this can be said only of a large Succah, where unfit covering makes not invalid unless it is four ells; but in a small Succah, where unfit covering makes it invalid with three spans, are not the quantities then equal? Consequently they must combine, even in a large Succah. Answered Rabha: In a small Succah it is not because the prescribed quantities are equal, but because the prescribed size for a Succah does not remain.

Abayi said: If there was air three spans wide in a large Succah, and one diminished it by sticks or iron spits, it is considered as diminished; but if it was a small Succah, if with sticks it is lawful, but with iron spits it is not. But this is the case only when it is near the wall. If in the middle of the roof, however, R. A'ha and Rabina differed: According to one, the law of Lavud applies also in the middle, and according to the other it can only be applied when they are at the side.

R. Jehudah bar Ilai lectured: If the roof of a house was broken, and one covered it with fit covering, it is valid for a Succah. Said R. Ishmael bar Jose to him: Rabbi, explain your decision, because my father had explained thus: If it is less than four ells from the wall, then it is valid; but if four or more, it is invalid. Again lectured the same: An *abruma* (a small fish not distinguishable from prohibited reptiles) is permitted. Said R. Ish-

mael to him: Rabbi, explain the decision, for so said my father: From one place it is permitted, from another it is not. Accordingly, Abayi said: The small fish called Tza'hntha (smelt), of the river Bab, are permitted (and from another not).

It was taught: If one has covered a balcony which has small pillars (less than three spans one from the other), it is valid for a Succah: but if it has no pillars, Abayi said it is valid, because the edge of the roof downward may be considered as making (forming) a wall; but Rabha said it is invalid, because he does not hold this theory. Said Rabha to Abayi: According to thee, who holdest this theory, even if the middle wall of the Succah was broken, let it also be valid, as the edge of the roof is considered to descend and make a wall. Said Abayi: I yield to thee in this point, because it looks like an open entry. An objection was raised from our Mishna: If a court is surrounded by balconies, etc., why? Let it also be considered that the edge of the roof makes it a wall? Rabha explained, in accordance with Abayi's opinion, that the case is that the edge projected not over the wall, but was even with it.

R. Ashi found R. Kahna, who had roofed a balcony that had no small pillars, and he asked him: Does not the Master hold what Rabha said, that when there are no pillars the Succah is invalid? And he took him outside and showed him that there were pillars not visible inside, but only outside; and it was taught in Erubin (p. 17), if it was seen from outside, and not from inside, it is regarded as a side-beam, and a side-beam is the same as a small pillar.

A Boraitha taught: A vestibule, outside of the booth, is considered as the booth itself. What is meant by this? Said Ullah: A vestibule formed by sticks projecting beyond the Succah. Are not three walls needed? When there are. But is it not needed that there be more shadow than sunshine? If there was. But is not a prescribed size needed? If it was. If so, what comes he to teach us? Lest one say, that because the Succah was made for sitting inside, shall the outside not be considered a Succah at all, he comes to teach us it is not.

MISHNA: If one makes a Succah in the form of a cone, or leans the roof against a wall, R. Eliezer says it is not valid, because it has no roof; but the sages declare it is valid.

GEMARA: A Boraitha taught: R. Eliezer admits, if one placed it one span over the ground, or separated it one span from the wall, the Succah is valid. What is the reason of the sages?

for the theory of Lavud applies to them, and they are regarded as upright. They hold that the slanting parts of a tent are considered as the tent itself. Abayi found R. Joseph sleeping in a nuptial bed in a Succah. Said Abayi to him: According to whom do you do so? According to R. Eliezer? Then you left the majority of rabbis, and followed an individual. Answered he: The Boraitha teaches the contrary: That R. Eliezer makes it valid, but the sages say it is invalid. Rejoined Abayi: Then you leave a Mishna, and act according to a Boraitha. And he answered: The Mishna is written according to an individual's opinion, as we have learned in a Boraitha: if one makes a booth in the form of a cave, or leans the roof on a wall, R. Nathan said that R. Eliezer makes it invalid, because it has no roof, but the sages permit this.

MISHNA: A large reed mat made for sleeping on is subject to defilement, and a Succah must not be covered with it; but if it was made to cover a booth, it may be used, and is not subject to defilement. R. Eleazar said: There is no difference whether it is large or small, but only the use for which it was made is considered; if for sleeping, then it is subject to defilement, and must not be used; but in the other case, if for covering, it is not subject to defilement, and may be used.

GEMARA: Did not the Mishna contradict itself? In the first part it says, if it was made for sleeping, then it is subject to defilement, etc., but if the purpose for which it was made was not expressed, it must be considered as for a covering. And the second part says, "If it was *made* for a cover"; from this we may infer, if the purpose was not expressed we consider it for sleeping? Said R. Papa: In case of a small one, if the purpose was not expressed, all agree it may be considered as for sleeping; but in case of a large one, the first Tana holds that where no purpose was expressed it is considered to have been made for covering. But R. Eliezer holds, that even a large one is also usually made for sleeping, and the expression in the Mishna, "if it was made for sleeping," is to be explained so: if it was made, say it is for the purpose of sleeping, unless he expressed another purpose.

The rabbis taught: A mat made of bark or papyrus, if large, may be used for a cover; but if small, it may not. If it is of reeds, or *hilath*, a large one may be used for covering; but if they are woven together, it may not. R. Ishmael bar Jose said in the name of his father: Both may be used to cover, and the same said R. Dosa.

We have learned (Edioth, III. 4): "All hutzlahs * are liable to become unclean from a corpse, so is the decree of R. Dosa; but the sages said: They are liable to become unclean only by pressing." What are *hutzlahs?* Said R. Simeon bar Lakish: It means ordinary mats, and the same is according to his theory elsewhere, where he said: I would sacrifice myself to bring back to life R. Hiya and his children, because in the ancient time, when the Torah was forgotten by Israel, Ezra came from Babylon, and reëstablished it again; when afterwards it was again forgotten, Hillel the Babylonian came up from Babylon and restored it again; and when it was again forgotten, came R. Hiya and his children and restored it again. And they said to this: That R. Dosa and the sages did not differ about the mats of the city of Usha, that they are subject to defilement, and that the mats of Tiberia are not; what they do differ about is the mats of other places: one holds that because nobody sits on them, they are equal to those of Tiberia; and the others hold that because it can happen that somebody should sit upon them, they are equal to the mats of Usha.

We learned in a Boraitha: R. Hananiah said: When I came into the exile, I found an old man who said to me that to cover a Succah with a mat is lawful; afterwards, when I came to R. Joshuah my father's brother, he admitted this theory. Said R. Hisda: This is only when it is not seamed. Said Ullah: The mats from the city of Mehuzah, but for their seams, would be lawful to be used for covering. So also we have learned in a Boraitha: Mats may be used for covering, provided they have no seams.

* See Levi's Dictionary.

CHAPTER II.

REGULATIONS CONCERNING THE SITUATIONS IN WHICH A BOOTH MAY BE PLACED, WHAT MUST BE DONE IN IT, ETC.

MISHNA: He who sleeps under a bed in the booth has not fulfilled his duty (of sleeping there). Said R. Jehudah: We were in the habit of sleeping under a bed in the presence of the elders, and they never said anything to us. Said R. Simeon: It happened that Tabbi, the slave of R. Gamaliel, used to sleep under a bed. But R. Gamaliel said to the elders: Do you see my slave Tabbi? He is a scholar (Talmud Hakham), and knows that slaves are exempt from the duty of Succah. Therefore he sleeps under a bedstead. From this we infer that he who sleeps under a bed has not fulfilled his duty.

GEMARA: Why? The bed is usually not ten spans high? Samuel explained this, that the case is when the bed is high ten spans. (But if so,) what is the reason of R. Jehudah's decree? This is according to his theory elsewhere, that the Succah must be a permanent dwelling, and the bed is only a temporary dwelling, and a temporary dwelling cannot make ignored a permanent one. But did not R. Simeon hold the same theory, that a Succah must be a permanent dwelling (because his decree is that it must have four walls), and nevertheless he does not allow to sleep under the bed? This is the point of their difference: according to R. Simeon a temporary dwelling makes ignored, and according to R. Jehudah it does not.

"*It happened once that Tabbi the slave*," etc. We have learned in a Boraitha: R. Simeon said: From R. Gamaliel's remarks we have learned two things: That slaves are free from the duty of a Succah, and that one who sleeps under a bed has not fulfilled the duty of Succah. Let him say, "from R. Gamaliel's decree," he comes to teach us by the way that R. A'ha bar Adda, according to others the same in the name of R. Hamnuna, quoting Rabh, said: Whence do we know that even a remark of a scholar must be studied? Because it is written [Ps. i.] "And the leaf does not wither," even a slight thing as a leaf is not valueless.

MISHNA: If one supports his Succah with a bedstead, it is valid. R. Jehudah said: A Succah that cannot stand by itself is invalid.

GEMARA: What is the reason of R. Jehudah's decree? R. Zera and R. Abba bar Mamel differed: One says: Because so it is not made a permanent dwelling; and one says: Because he supports it with a thing subject to defilement. What is the difference? If one put iron spits and covered it, according to them who say because it is not permanent, the iron spits are permanent; but according to those who say because he supports with a thing subject to defilement, the iron spits are subject to defilement, and are invalid. Said Abayi: They differ only if he supports the booth with the bedstead; but if he has roofed the bed itself, all agree it is valid. Why so? Because to them who say, because it is not permanent, it can be said the bed is permanent; and to them who say because he supports with a thing subject to defilement, it can be said the roof is not subject to defilement.

MISHNA: A Succah covered thinly, if there is more shadow than sun, is valid; if the covering is close, like the roof of a house, though the stars are not visible through it, it is nevertheless valid.

GEMARA: What is meant by thin covering? Said Rabh: Scanty covering (too much empty space between one stick and the other). And Samuel said: Irregular covering—one twig down, one twig up, that is. Rabh interpreted that the Mishna teaches only one case, a poor Succah, in which there is more shadow than sun, is valid; and according to Samuel, the Mishna teaches two things: first, that a Succah with an irregular covering is valid; and secondly, that all Succahs where the shadow is more than the sunshine are valid. Said Abayi: The Mishna refers to a case where there is not three spans distance from one twig to the other; but if there is, it is invalid. Rabha, however, said: Even if there were three spans between, provided the twig was not wide at the top a span, it is invalid; but if it was, it is valid, because we say: *Havit rami*,* and it is valid.

"*If there is more shadow than sun.*" From this we may infer, that if they were equal, it is not valid; but in the first chapter

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* This expression has the same meaning as *gud achith*, explained in Erubin, p. 6, and means, if the twig was a span at the top, it is considered whether the top lies over the empty place. And Rashi explains this, that the twigs were not lying but standing upright, and therefore the top when wide a span is considered to be lying.

the Mishna teaches, if the sunshine was more than the shadow it is invalid, from which we may infer that if they were equal it *is* valid? It presents no difficulty. If on the top the empty place was equal to the covering, because on the ground the sunshine would appear larger; but if on the ground the sunshine and the shadow are equal, it is valid, because then on the top there must be more covering than empty space. Said R. Papa: This is according to what people say: If on the top it is of the size of a Zuz, it appears on the ground the size of a Sela.*

"*If close like the roof of a house.*" The rabbis taught: If it was close as a roof of a house, although the stars cannot be seen through it, it is valid; but if the rays of the sun do not penetrate, Beth Shammai hold it is not valid, and Beth Hillel hold it is.

MISHNA: If one constructs a Succah on the top of a wagon, or on board a vessel, it is valid, and he may ascend thereto on the festival. If he has constructed the Succah on the top of a tree, or on the back of a camel, it is valid; but he must not ascend thereto on the festival days. If two walls are formed by a tree, and one by human hands, or two by human hands and one by a tree, the Succah is valid, but one must not ascend thereto on the festival. This is the rule: Whenever the Succah can stand by itself, even should the tree be removed, the Succah is valid, and it is lawful to ascend thereto on the festival.

GEMARA: This Mishna is in accordance with R. Aqiba only, as we have learned in a Boraitha: If a Succah was made on a ship, Rabban Gamaliel makes it invalid, and R. Aqiba makes it valid. It happened once that Rabban Gamaliel and R. Aqiba were on a ship, and R. Aqiba constructed a Succah on the ship. On the morrow a wind blew it off, and Rabban Gamaliel said to him: Aqiba, where is thy Succah? Said Abayi: If the Succah cannot withstand an ordinary wind from land, all agree that it is not a Succah at all; if it can hold out a storm on land, all agree it must be regarded as a Succah; but if it can hold out an ordinary wind from land, but not an ordinary wind from the sea, there is the point of their difference: R. Gamaliel holds it must be a permanent dwelling, and as it cannot withstand an ordinary wind from the sea, it is not considered as anything; but R. Aqiba holds that only a temporary dwelling is needed, and so soon as it is proof against an ordinary wind from land, it is called a temporary dwelling.

* Two coins, the first a small one, the second very large.

"*Or on the back of a camel.*" The Mishna is in accordance with R. Meir, as we learn in the following Boraitha: If one has made his Succah on the back of an animal, it is valid, according to R. Meir; but not according to R. Jehudah. What is the reason of R. Jehudah? Because it is written [Deut. xvi. 13]: "The feast of tabernacles shalt thou hold seven days." From this we infer that a booth fit for all seven days may be called a Succah, but not otherwise (and as the sages prohibited to mount an animal on the festival, it is not fit for the first day of the festival). But what would R. Meir answer to this? Biblically it is fit, but only the rabbis prohibited as a precautionary measure to mount an animal (and if biblically fit, it is called a Succah).

If the animal was used as a wall to the Succah? R. Meir makes it invalid, and R. Jehudah makes it valid. Because R. Meir used to say: All things which have life must not be made a wall to the Succah, nor a side-beam to an entry, nor an enclosure to a well, nor a covering of a grave; and in the name of R. Jose the Galilean it was said: Also, a letter of divorce must not be written on it. What is the reason of R. Meir? Abayi said: Because it may die. R. Zera said: Because it can run away. If an elephant were tied to a wall and used as a wall, all agree it is valid, because, even if it should die, its carcass measures more than ten spans. In what they differ is, when the elephant is not tied: according to them who fear its death, it is valid; but according to those who fear its flight, it is not valid. But did Abayi say that R. Meir feared its death, and R. Jehudah did not? Have we not heard the contrary from him in Gittin, that R. Meir feared it, and R. Jehudah did not? Read these conversely: Abayi said R. Meir feared its death, and R. Jehudah did not. But did we not learn in Tract Yomah, R. Jehudah declares: To the high-priest another wife must be prepared for the Day of Atonement, lest his wife die? (So he apprehends death.) Is it not taught, in addition to the same Mishna: R. Huna the son of R. Joshua said, that for forgiving the sins an exceptional rule was made?

Let us see: According to both sages—who apprehend death or flight—biblically it is valid as a wall; and only as a rabbinical precautionary measure is it forbidden. Why is it not subject to defilement when it covers a grave, according to R. Meir? Said R. A'ha bar Jacob: R. Meir holds that all partitions not made by human hands are not called partitions at all.

MISHNA: If one makes a booth between trees which form side-walls, it is valid.

GEMARA: A'ha bar Jacob said: All partitions that are not proof against an ordinary wind are not partitions at all. An objection was raised from our Mishna, which teaches that if the trees were used as walls, it is valid; but did not the trees shake by an ordinary wind? The case is, when they are old trees. But even if old trees, are there not branches? If one *weaves* the branches into the walls. If it is so, what does he come to teach us? Is it not self-evident? One might say that perhaps it shall be prohibited as a precautionary measure, lest on the festival he climb the tree, he comes to teach us that such a measure is not taken.

MISHNA: Delegates for a religious purpose are free from the duty of Succah; also sick persons, and those who nurse them. One may occasionally eat or drink something outside of the booth.

GEMARA: Whence do we deduce this? From what the rabbis taught: It is written [Deut. vi. 7]: "When thou sittest in *thy* house": that means, except when thou art occupied by a religious observance; [ibid.] "When thou walkest by the way" means, except when thou goest to marry. From this is said, that he who marries a virgin is exempt, but he who marries a widow is not. But how can this be inferred? Said R. Huna: From the expression "on the way," as one goes on the way, means as a voluntary act, and this is to exclude one occupied by a religious duty. R. Abba bar Zabda said in the name of Rabh: A mourner is not exempt from the duty of the Succah. Is not this self-evident? One might say, because the same authority says elsewhere that one who is afflicted by something is exempt from the duty of Succah, and a mourner is certainly afflicted, one might say that he is exempt, he comes to teach us that it is when the affliction is caused by the Succah; but here, when he afflicts himself, he must divert his attention, and fulfil the duty of Succah. The same says again in the name of Rabh: A bridegroom and his *attendants* and all who belong to the wedding-party are exempt from the Succah all the seven days. Why so? Because they must enjoy themselves. But let them enjoy themselves in the Succah? No enjoyment can be had outside of the house where the wedding is. But let them eat in the Succah and enjoy themselves in the house. There is no enjoyment except where the banquet is. But let the house where the wedding takes place

be made in the Succah? Abayi said, it cannot be made, because the bride must not be left with strangers; and Rabha said, because the bridegroom will find it inconvenient. What is the difference? when even in the house, where men come in and go out, they are not in privacy, but it is inconvenient. According to Abayi, it may be made in the Succah, and according to Rabha it may not. R. Zera said: When I was a bridegroom, I ate in the Succah, and enjoyed myself in the bride's house, and I enjoyed myself the more because I fulfilled two religious duties.

The rabbis taught: A bridegroom and his attendants and all the wedding-party are exempt from prayers, from phylacteries, but they must read Shema. In the name of R. Shila it was said: Only the bridegroom is exempt, but all the others are not. A Boraitha states, R. Hanania b. Akabia said: Writers of the holy scrolls, or tefilin, or mezuzoth, they and the wholesale sellers and the retail sellers, and all men engaged in work for Heaven, including also the sellers of blue threads for tzitzith, are exempt from the reading of Shema, from praying, from tefilin, and all the religious duties commanded in the Torah. He said so to confirm the words of R. Jose the Galilean, who said: Who is engaged in one religious work, is free from another one.

The rabbis taught: Those who are on the road in the day are exempt from the duty of Succah during the day, but not during the night; and if they travel by night, it is conversely. If they travel during both, they are exempt wholly. But who goes on a religious mission, is exempt from the duty of Succah both by day and by night. As it happened, R. Hisda and Rabha bar R. Huna coming on a Sabbath falling on one of the intermediate days, to the exilarch to hear his lecture, they slept on the bank of a river of Sura. They said, we are delegates for a religious purpose, and exempt from the duty of Succah.

The rabbis taught: The watchmen of a tower who watch by day are exempt from the Succah by day, but not by night; and those who watch by night are exempt for the night, and those who watch during both are entirely exempt. Those who watch gardens and vineyards are exempt from the Succah by day and by night. But let them make the booths there, and sit in them? Said Abayi: It is written: "Ye shall dwell in booths." It must be where the dwellings are. And Rabha said: The hole brings the thief (*i.e.*, he will not be able to watch carefully). What is the difference? When the whole of the fruit would be visible from his position in the Succah (he should sit in one).

"*Sick persons and their nurses.*" The rabbis taught: Not only those who are dangerously sick, but if there is no danger, if one has sore eyes or a headache, he is also exempt. R. Simeon b. Gamaliel told: It once happened I had sore eyes when I was in Cæsarea (Kisrin), and R. Jose the Great allowed me and my servants to sleep outside of the Succah. Rabh, however, allowed R. A'ha of Bardla to sleep under a canopy in a booth (though ten spans high), to prevent mosquitoes. Rabha allowed R. A'ha bar Ada to sleep outside of the Succah, because it was freshly whitewashed. And Rabha acted according to his theory elsewhere, that whoever suffers is exempt. But have we not learned in our Mishna that only sick persons are exempt, and we may infer, not those who are in sorrow? Nay, in case of a sick person, he and his nurses are exempt, but he who is in sorrow may only himself stay out, not his servants.

"*Men may occasionally eat,*" etc. What is meant by something? Said R. Joseph: Two or three eggs. Said Abayi to him: But many times a man finds three eggs sufficient for a meal? Therefore said Abayi: As much as a young scholar partakes before he goes to hear the lecture.

The rabbis taught: One may eat a hasty meal outside of the Succah, but one must not take a nap outside. Why so? Said R. Ashi: As a precautionary measure, lest he fall profoundly asleep for the whole night. Said Abayi to him: If it is so, why does a Boraitha allow a man to take a nap with his tefilin on, but not to sleep long? Let it be apprehended lest he fall asleep? Said R. Joseph bar Ilai: This is the case when he has engaged a man to wake him up. Rabha, however, said: There is no appointed time for sleeping; concerning the tefilin, it is for a different reason (as will be explained in Tract Benedictions). Rabh said: One must not sleep by day longer than a horse sleeps. How long is it? So as to be able to make sixty respirations. Said Abayi: My Master used to sleep by day as long as Rabh, and Rabh as Rabbi, and Rabbi as King David, and David slept as long as a horse. And how long is the sleep of a horse? Sixty respirations. Abayi himself sleeps as long as it would take to walk from Pompeditha to Be Kubi. Exclaimed R. Joseph about him the verse in Proverbs [vi. 9]: "How long, O sluggard, wilt thou lie down? When wilt thou arise out of thy sleep?"

MISHNA: It happened that a dish was brought to R. Johanan b. Zakai to taste, and two dates and a jar of water to Rabban Gamaliel. Each of them said: Bring it to the booth.

But when food less than an egg was brought to R. Zadok, he took it in the napkin, and ate it outside of the booth, but did not pronounce the benediction after meals for it.

GEMARA: Is it customary to adduce an act as a contradiction to the former teaching of the Mishna above (which says a hasty meal may be eaten outside of the Succah)? The above Mishna is not completed, and must read so: If one wants to make it more rigorous for himself, he may do so, without it being said he is vain; and it also happened with R. Johanan b. Zakai and Rabban Gamaliel that a dish and dates were brought to them, and they said they should be carried to the Succah.

"*And when food less than the size of an egg*," etc. But if the size of a whole egg? Then the Succah is needed? Shall we assume that this will be an objection to the teaching of R. Joseph and Abayi (which states above, three eggs, or as much as a young scholar, which is at any rate not less than an egg)? Nay, it may be explained that if it would be of the size of an egg, the legal washing of hands before and benediction after the meal would be needed (but Succah would not be needed).

MISHNA: Fourteen meals must be eaten in the Succah, one in the morning and one at night (of each day of the festival), according to R. Eleazar; but the sages say it is not fixed by law, except that one must eat in the Succah on the first night. R. Eleazar said again: He who has not eaten on the first night can make amends for it by eating in the booth on the last night of the festival; but according to the sages no amends can be made, and they apply it to the verse [Eccl. i. 15]: "What is crooked cannot be made straight, and that which is defective cannot be numbered."

GEMARA: What is the reason of R. Eleazar? Because it is written: "Ye shall dwell." And as in a dwelling it is usually eaten in the morning and in the evening, so must it be done also in the Succah; but according to the sages, it is as a dwelling, where one eats or not, at his pleasure. If it is so, why is he bound to eat the first evening of the festival? Said R. Johanan in the name of R. Simeon b. Jehozodok: It is written here in the fifteenth, and about the Passover the word fifteen is written: there is an analogy of expression, as on Passover the first night must Matzah be eaten, and later it is optional, so on the first night of the Feast of Tabernacles it must be eaten in the Succah, and henceforth it is optional. But whence is it known that on Passover it is obligatory? Because it is written [Ex. xii. 18]: "At evening shall ye eat unleavened bread." This verse makes it obligatory.

"*R. Eliezer said again*," etc. But did not R. Eliezer say that it is obligatory to eat fourteen meals in the Succah: every day one meal in the morning and in the evening? Said Bira in the name of R. Ami: R. Eliezer retracted what he had said. But with what shall he make amends? Shall he eat another meal? A man cannot eat more than he needs. With extra dishes for dessert. We have also learned in a Boraitha, if one makes amends with extra dishes, he has done his duty. The manager of the house of Agrippa the king (*επιτροπος*) asked R. Eliezer: I, for instance, who eat only one meal in twenty-four hours, may I do so in the Succah—eat one meal and fulfil my duty? And he answered him: Did you not make every day many dishes of delicacies for the sake of yourself, and can you not add one dish for the sake of your Creator? He asked him again: I, for example, who have two wives, one in Tiberia and one in Ziporeth, and have also two booths, one in Tiberia and one in Ziporeth, may I go from one Succah to the other, and my duty shall be fulfilled? And he answered: Nay, because I say who goes from one booth to another abolishes the religious duty he has done in the first.

We have learned in a Boraitha: R. Eliezer said: One must not go out from one Succah to another (to eat in one and sleep in another), and a Succah must not be made in the intermediate days. The sages, however, say: Both may be done. All agree that if the Succah has fallen, he may rebuild it on the intermediate days. What is the reason of R. Eliezer? Because it is written [Deut. xvi. 13]: "Seven days shall ye hold the feast of tabernacles." From this we infer the Succah shall be made to be fit for seven days. The rabbis, however, explained this passage so: On the Feast of the Tabernacles ye shall make a booth (during the whole feast). They all agree that if the Succah falls, it may be rebuilt. Is not this self-evident? We might assume that the second Succah cannot be made for seven days, and therefore shall not be made at all. He comes to teach us that it is not so.

We have learned in a Boraitha: R. Eliezer said: As a man cannot fulful his duty with a Lulab belonging to his neighbor on the first day, as it is written [Lev. xxiii. 40]: "And ye shall take unto yourselves on the first day the fruit of the tree hadar, branches of palm trees," etc.—"unto yourselves," that means, your own, but not those belonging to your neighbor; so also a man cannot fulfil his duty in a Succah belonging to his neighbor,

because it is written: "Seven days shalt thou make unto thee the feast of the tabernacles," and we infer from "for thee" it shall be thy own. The sages, however, said: Although it was said that a man cannot fulfil his duty with the Lulab of his neighbor, he may nevertheless do his duty of Succah in the neighbor's Succah, because it is written [ibid.]: "All that are Israelites born shall dwell in booths." From this we learn that all Israelites may sit in one Succah. But how will the sages account for the expression "unto thee"? They say it is to exclude a robbed Succah, but a borrowed Succah may be used.

The rabbis taught: It happened once to R. Ilai that he came to see R. Eliezer his Master in the city of Lud on the festival; and the latter said to him: Ilai, thou art not of those who rest on the festival, because R. Eliezer used to say: I praise the sluggards, who do not go out on the festival from the house, because it is written [Deut. xiv. 26]: "Thou shalt rejoice, thou and thy household." This is not so: did not R. Itz'hak say: Whence do we know that a man must visit his teacher on the festival? Because it is written [II Kings, iv. 23]: "Wherefore art thou going to him to-day? It is neither new moon nor Sabbath?" From this we may infer that on a new moon and a Sabbath it is obligatory to visit one's Master? It presents no difficulty: If one's Master is in the same city, where one can go and return the same day, he must; but not otherwise.

The rabbis taught: It happened once that R. Eliezer took his rest in the booth of Johanan bar Ilai in the city of Kisri, of Upper Galilea, according to others in Kisrion, and the sun reached the Succah. And the host asked R. Eliezer: Shall I spread a sheet on it? And he answered: There was not one tribe of Israel from which a judge did not descend.* The sun reached the middle of the Succah, and he asked again: How if I should spread a sheet on it? And he answered: There was not one tribe of Israel from which prophets have not descended, and

* Rashi explains this as follows: The Judges of the Book of Judges, *i.e.*, the Rulers of Israel since Joshua's death to the prophet Samuel: From the tribe Ephraim was Joshua; from Benjamin, Ehud; Manasseh, Gideon—that is, from the children of Rachel. Samson was of Dan, Barak of Kaddesh was of Naphtali—Bilha's children. Ibzan, or Boaz, from Judah; Eli of Levi, Tola from Issachar, Elun from Zebulun; Othniel, Jephthah, Shamgar, Abdan—it is not known of what tribes they were descended. From the tribes of Reuben, Simeon, Gad, and Asher, I have not found, says Rashi, explicitly that Judges were descended from them. But it may be the Judges whose tribes were not named were traditionally said to be of those.

the tribes of Judah and Benjamin chose kings at the command of the prophets. Finally the sun reached R. Eliezer's feet, and Johanan took a sheet and spread it over the Succah; and R. Eliezer took his garments and shouldered them, and left the booth. This was not because he did not want to teach him the law, but because R. Eliezer never decided a thing which he had not heard from his Master. But how could R. Eliezer do this? Did he not himself declare that a man must not go out from one Succah to another? They answered: That was not on the Feast of Tabernacles at all; it was another festival, and they sat in the Succah only for fresh air. But did not R. Eliezer declare: I praise the sluggards who do not leave on a festival their houses? It was not on a festival; it was an ordinary Sabbath.

The rabbis taught: It happened with R. Eliezer that he took rest in Upper Galilea, and he was asked thirty Halakhoth about the law of Succah. To twelve he answered: So I have heard; and to eighteen he answered: I did not hear them. R. Jose b. R. Jehudah says: On the contrary, to eighteen he answered: I have heard; and to twelve: I have not heard. And they asked him: Are all your decisions only from what you have heard? He answered: You compelled me to tell you one thing which I had not heard from my Masters. That is, never in my life came a man to the house of learning before me and I never slept in the house of learning a long or a short time; I never left a man in the house of learning when I went away, and I never talk about worldly affairs, and I never decided a thing which I had not heard from my Masters.

It was said of R. Johanan b. Zakai: Never in his life did he talk of worldly affairs; he never walked four ells without studying the Law and without tefilin; he was never anticipated by another in turning to the house of learning, and did not sleep in the house of learning even a short time; he did not teach about the Law in dirty alleys; he did not leave a man in the house of learning when he went away; he was never to be found silent, but always studying aloud, and never anybody opened the door for his disciples but himself; he never decided a thing he had not heard from his Master, and he never said it was time to go out of the house of learning except on the eves of Passover and on the eves of the Days of Atonement. And R. Eliezer his disciple conducted himself similarly.

The rabbis taught: Hillel the Elder had eighty disciples: thirty of them were worthy that the Shekhina should rest on

them as on Moses our Master; thirty of them were worthy the sun should be stopped for their sake, as it did before Joshua the son of Nun, and twenty were mediocre. The greatest of all the disciples was Jonathan b. Uziel, the least of all was R. Johanan b. Zakai. It was said of the latter, that he did not leave out the Bible, the Mishna, the Gemara, Halakhoth, and Agadoth (legends), the observations of the Bible, observations of the Scribes, lenient ones and vigorous ones, the analogies of expression, equinoxes, *geometries*, the language of the angels and the language of the evil spirits and the language of the trees, the fables, the great things, the heavenly chariots and small things, the discussions of Abayi and Rabha, to confirm what is written [Prov. viii. 21]: "That I may cause those that love me to inherit a lasting possession and their treasures will I fill." And when the least of all was so, how much the more was the greatest of all. It was said of Jonathan b. Uziel, that when he studied the Law every bird that flew over him was burned.

MISHNA: If the head and greater part of a man's body is in the booth, and his table in the house, Beth Shammai say he has not fulfilled the duty of Succah, but Beth Hillel say he has. Said Beth Hillel to Beth Shammai: Did it not happen that the elders of Beth Shammai and those of Beth Hillel visited R. Johanan b. Hahoronith, and found him sitting with his head and greater part of his body in the booth, and his table was in the house? and they said to him nothing. Beth Shammai replied: Do you adduce this as a proof? They said to him: If such has always been your custom; you have never in your life properly fulfilled the duty of Succah.

Women, slaves, and minors are exempt from the Succah. A boy that needs no longer the nursing of his mother must obey the command of Succah. It happened that the daughter-in-law of Shammai the Elder gave birth to a son on the festival, so he caused the roof to be taken off, and covered it as a Succah for the sake of the infant.

GEMARA: Whence is all this deduced? From what the rabbis taught: The verse could say *Ezrah* ("an Israelite born"). That would include the women. But it is written *Ha'ezrah*, "*the* Israelites born," which means the certain Israelites, and to exclude women. And by the word "all" it is meant to include minors. Shall we assume that the expression "Israelites born" includes women also? Did not we learn in a Boraitha (concerning the Day of Atonement), where it is written, "the Israelite

born," which means to include women, for whom it is as obligatory to fast as for males? From this we see that when it is written, "Israelites born," only males are meant? Said Rabha: That is not deduced from the passages, but it is all Sinaic, and the passages were taken as a support. But which passage, and which Sinaic law? And, again, to what purpose was a verse or a Sinaic law needed at all? Is not the Succah a commandment dependent on a certain season, and from all commands depending on certain seasons women are free? This is concerning Succah; and concerning the Day of Atonement this is deduced from what R. Jehudah says in the name of Rabh; and so also taught the disciples of R. Ishmael. It is written [Num. v. 6]: "If any man or woman commit a sin." From this we see that the verse made the man and the woman equal in all penalties of the Torah. Said Abayi: That a woman is exempt from the Succah is a Sinaic law, and nevertheless this support of a verse was needed, because one might say it is written, "Ye shall dwell"; and as in a dwelling are usually a man and wife, we might think that in the Succah there should also be a man and wife, it comes to teach us that it is not so. Rabha said: It is needed lest one say, by an analogy of expression, it is written about Passover on the fifteenth, and here, as on Passover, it is obligatory for women, so it is also on the Feast of Tabernacles, it comes to teach us that it is not so. Now, when you say there is a Sinaic law, why is the passage needed? It comes to include the proselytes; one might say the Israelites born, but not a proselyte, we are taught that they also are included. But the Day of Atonement, that is inferred from the above saying of R. Jehudah in the name of Rabh. Why is the Sinaic law here needed? This is needed for the addition to the Day of Atonement from the preceding day, which is biblical, but has no capital punishment. One might say that because the addition has no punishment, the women are exempt; the Sinaic law comes to say it is not so.

The Master says: *All*, to include the minors. But have we not learned in our Mishna, that women, slaves, *minors*, are free from Succah? This presents no difficulty: The Mishna means a case in which the minor is not yet old enough to be trained in a religious duty, and the Boraitha means a case of a minor old enough for that. But in case of a minor who has reached such an age, the duty is only rabbinical? Yea, the passage is taken only as a support.

"*A minor that needs not the nursing of his mother.*" What is

meant by this? A minor whe can obey the call of nature without the aid of his mother. So said the disciples of R. Yanai. But Resh Lakish said: A child that on awakening does not cry: Mother! mother!

"*It happened that the daughter-in-law of Shammai*," etc. Is not this act a contradiction to the former teaching? The Mishna is not completed. It must be read so: "And Shammai the Elder is more rigorous, and it happened also that his daughter-in-law gave birth to a son, so he caused the roof to be removed, and covered it as a Succah for the sake of the infant."

MISHNA: During the seven days of the festival one must use the booth as the regular domicile, and the house only as an occasional abode. If it rains, when is he permitted to remove from the Succah? When a mess of porridge has been spoiled. The elders illustrate this by a comparison: What does such a circumstance resemble? As if a servant presented a goblet to his master, who throws a bowl full in his face.

GEMARA: The rabbis taught: All the seven days one must use the booth as one's regular domicile. How so? If he has fine utensils, he shall place them in the Succah; if he has fine bedding, he should transfer it to the Succah; and he should eat, and drink, and walk only in the Succah. Whence is this deduced? From what the rabbis taught: It is written: "Ye shall dwell"; it means, it shall be as a regular dwelling, and from this was deduced that all the seven days one shall make the Succah his regular dwelling, and his house a temporary one. He shall eat, drink, and study in the Succah. Is it so? Did not Rabha say that only to read the Bible and to learn a Mishna one may in the Succah, but study one may not? This presents no difficulty. The Boraitha means to repeat what he had studied already, and Rabha—to study something new, as Rabha and Rami, while studying under R. Hisda, used to repeat his lecture among themselves first, and afterwards tried to find out the reasons of it. Rabha said: The vessels for drinking shall be kept in the Succah; but the vessels for eating, outside. A pitcher of clay, outside of the Succah, a candlestick of clay in the Succah, and according to others, outside, and they do not differ; it means, in a large Succah it may; in a small one, it may not, because it is dangerous.

"*If it rains.*" We have learned in a Boraitha: When a mess of *gris* is spoiled (which is spoiled easily).

Abayi was sitting in the presence of R. Joseph in the Succah,

Succah, and a wind blew the chips from the covering into the dish, and R. Joseph said: Take off the dishes, and we will go out. Said Abayi to him: Have we not learned in the Mishna: Till the porridge is spoiled? And he answered: As I am delicate, the chips do me as great harm.

The rabbis taught: If one ate in the Succah and rain fell, and he went away and took his meal in the house, when it clears again we do not trouble him to interrupt his meal, and to go back to the Succah. If he was sleeping in the Succah and it rained, and he went away to sleep in the house, he is not aroused when it clears again, till the next morning.

"*What does such a circumstance resemble?*" The schoolmen asked: What is meant by this? Come and hear. We have learned in a Boraitha: As if the master threw the pitcher into the servant's face, and said to him: I do not want your service more.

The rabbis taught: An eclipse of the sun is an ill omen to the whole world. What does this resemble? A human king making a banquet for his servants, and placing a great lantern before them, when he gets angry he says to his servant: Take away the light, let them sit in the dark.

We have learned in a Boraitha: R. Meir said: When the sun and the moon are eclipsed, it is a bad sign to the enemies of the Israelites (meaning, the Israelites themselves), because they are used to troubles: it is equal to the teacher's coming to the school with his whip in his hand. Who is more afraid? The child used to being beaten. This is the case when Israel do not do the will of the Creator; but when they do, they need not fear anything, as it is written [Jeremiah, x. 82]: "Thus hath said the Lord: Do not habituate yourselves in the way of the nations, and at the signs of the heavens be ye not dismayed; although the nations should be dismayed at them."

The rabbis taught: On account of the following four things the sun becomes eclipsed: When a chief judge dies, and is not lamented becomingly; when a betrothed virgin calls for help in the town, and is not aided; unnatural vice; when two brothers are killed on the same day; and on account of the following four things both the sun and the moon are eclipsed: Forgery, false witness, when fruit-bearing trees are cut out, and when sheep and goats are kept in Palestine. On account of four things the property of householders is transferred (confiscated) to the government: When paid notes are kept; usury; and when men had the

power to prevent, but would not; and when charity was promised to the people, and was not given. Rabh said: For four things the property of householders becomes annihilated: When they keep workers, and do not pay them in time; for robbing them; when the strangers free themselves from the yokes on their necks and put them on their neighbors' necks; and for arrogance. And arrogance is the worst of all. But of those who are modest is written [Ps. xxxvii. 11]: "But the meek shall inherit the land, and shall delight themselves because of the abundance of peace."

CHAPTER III.

REGULATIONS CONCERNING PALM BRANCHES, MYRTLES, WILLOWS, AND CITRONS USED ON THE FIRST DAY OF THE FEAST OF TABERNACLES.

MISHNA: A palm branch* which has been acquired by theft, or which is dried, is not valid. One which comes from a grove (devoted to idolatry) or from a rejected town † is not valid; if the point has been broken off, or the leaves torn off, it is not valid; if they are only dissevered, it is valid. R. Jehudah says: It must be tied together at the top. A palm branch from the Iron Mount † is valid. A palm branch that is three spans long, sufficient to shake it by, is valid.

GEMARA: The Mishna does not mention on which day it is valid, and on which not; and from this we can infer that it is invalid even for the second day. This would be right only in case of a dried one, because it is written *hadar*, which means "beauty," which a dried one has not; but a robbed one—that is prohibited only because it must be his own, as stated above (p. 34)—but on the second day, which is wholly rabbinical, why should it be invalid? Said R. Johanan in the name of R. Simeon b. Jochi: Because it is a religious duty that is performed by a sin. R. Johanan said again in the name of the same authority: It is written [Is. lxi. 8]: "For I, the Lord, love justice: I hate robbery with burnt-offering." It resembles a human king who passed the custom-house and said to his servants: "Pay the duty to the officers"; and the servants said to him: "Why shall we give duties? All the duties are thine"; and he said: "All passengers shall learn it from me, and shall not shirk to pay their duty." So the Holy One, blessed be He, said: "I, the Lord, hate robbery with a burnt-offering": of me shall my children learn, and avoid robbery.

It was taught also in the name of R. Ami: A withered one

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* Lev. xxiii. 40. † Deut. xiii. 12.

‡ A mountain near Jerusalem, southward, the palm branches of which were very short.

is invalid, because it has no beauty; and a robbed one is invalid, because it is a religious duty done by a sin.

R. Huna said to the sellers of the myrtles: If you buy myrtles from the heathen, do not cut them off yourselves, but let themselves cut off, and give them to you. Why so? Because most heathen have robbed the ground from the Israelites, and the robber is not considered the owner of the ground, even when the original owner has despaired of it (but the law is different about movable property). And therefore, if you will cut off yourselves, that will be as taking a robbed thing; but when they cut off, and as the original owners have despaired, the cut-off myrtle boughs become theirs, and you may buy them.

The rabbis taught: A robbed Succah or a roof made in a public street, R. Eliezer makes invalid, but the sages make it valid. Said R. Na'hman: They differ only when the ground on which the Succah is built belongs to his neighbor, and he put out the neighbor and took the Succah to himself. This is according to R. Eliezer's theory, who said that one cannot fulfil his duty in his neighbor's Succah. It is invalid in any case. According to those who say that the robber of ground is considered the owner of it, after the original owner has despaired, it is a robbed Succah; and even according to those who say that he can never become the owner of the ground, it is nevertheless a borrowed Succah (because it is not a robbed one). But the sages hold to their theory that one can fulfil his duty in a borrowed Succah, and also that ground cannot be robbed; therefore it is valid, because it is considered as a borrowed Succah. But if one has robbed wood, and made a roof, according to all, the owner of the wood has only to claim his money, but the wood becomes the property of the robber, and the Succah is valid. And he infers this from the expression of the Mishna, "a robbed Succah or a roof made in public ground," as in the latter case the ground was certainly not his, so also the robbed Succah means, that the ground was also not his and he has robbed it.

It happened once that an old woman came to R. Na'hman and said: The exilarch, and all the sages of the house of the exilarch, are sitting in a robbed Succah. She complained, but he did not answer her. Said she again: A woman whose father had three hundred and eighteen slaves complains before you, and you do not pay attention. R. Na'hman said to the sages: The woman is only a prattler: she has to claim only the money for the wood that has been taken for the use of the Succah.

Rabhina said: If a beam of the roof of a Succah has been robbed, the sages have arranged that only money for it should be returned to the owner, and not the beam itself. Is this not self-evident? What is the difference between a beam and wood, as just mentioned above? One might say wood can be found in any place, and one can buy it for the money; but a beam, which is not so common, should be returned. They come to teach us that during the seven days of the festival, one can lay claim only to money, but after the festival it must be returned, provided one has not attached it with clay; but if one has, even after the seven days only the money shall be given.

We have learned in a Boraitha: A withered palm branch is invalid, but R. Jehudah makes it valid. Said Rabha: They differ only about a Lulab that is rabbinical. The sages hold that we compare a Lulab to a citron: as the citron must be beautiful, because it is written *hadar* (beauty), so the Lulab must be beautiful; and R. Jehudah does not hold this theory, and says that a Lulab need not be beautiful, but a withered citron, according to all, is invalid. Does R. Jehudah require that a citron shall be beautiful? Did we not learn in a Boraitha: The four kinds that are with the Lulab, as there must not be less, so nothing shall be added to them? If one did not find a citron, he cannot replace it with a lemon or a pomegranate, or anything else; and if they are withered they are valid, but if dried, then invalid. R. Jehudah, however, said: Even when dry, they are valid. And he says again: The inhabitants of great cities used to transmit their Lulabs to their grandchildren. And they answered him: This cannot prove, because the places where such things are rarities do not prove. Hence we see that R. Jehudah said that even dry ones are valid, and this includes also citrons? Nay, R. Jehudah meant only the Lulab when he said dry ones are valid.

The text says: "If he cannot find a citron, he shall not replace it with a lemon," etc. Is not this self-evident? One might say, he shall replace it with something, lest the command of a citron should be forgotten: it comes to teach us that if it would be done so, the later generations might use such things forever. Come and hear: An old citron is invalid, but R. Jehudah says it is valid. Is this not a contradiction to the saying of Rabha* above, that R. Jehudah meant only the Lulab, and not a citron? Yea, it is

* The name of Rabha is not mentioned above, but it must have been known to him that Rabha said so.

a contradiction. But how can R. Jehudah say that an old one is valid? Is it not written *hadar* (beautiful)? R. Jehudah explains the word *hadar** not to mean "beauty," but "dwelling"; that means, a fruit which dwells on its tree the whole year.

"*If the point was broken off.*" Said R. Huna: If it is broken off; but if it is only split, it is valid. But have we not learned in a Boraitha: A bristly Lulab or one crooked like a scythe, a split one, a hardened one, is invalid. But if it seems hardened, and in reality is not, it is valid. Hence we see that a split one is also invalid? Said R. Papa: By "split" is here meant one growing as a fork, into two different directions. "Crooked like a scythe," said Rabha, "that is only if it is bent forward, but if backward it is natural, and it is valid." Said R. Na'hman: If bent sideways, it is as if forward. According to others, R. Na'hman says it is as if bent backward. Rabha said again: A Lulab that has all the leaves on one side, and on the other side none at all, is blemished and is invalid.

"*If the leaves were torn off.*" Said R. Papa: By torn off is meant that it is made like a broom. What is meant by dissevered? When the leaves grow as branches of a tree, in different directions.

R. Papa put a question: If the "twins" of the Lulab are divided, how is the law (the double leaves on a palm branch are called "twins")? Come and hear: R. Mathun in the name of R. Joshuah b. Levi said: If the "twins" are divided, it is as if the leaves were torn off, and it is invalid.

"*R. Jehudah says,*" etc. We have learned in a Boraitha: R. Jehudah said in the name of R. Tarphon: The expression "branches of palm trees" is *Kapoth Tmarim.* As the word *kapoth* signifies in Aramaic "bound," "tied," if the Lulab was separated, it must be tied together. Said Rabhina to R. Ashi: How is it known that by Kapoth Tmarim is meant a young Lulab that has been the first year on the tree? Perhaps the branches are meant when they are two or three years old, when the leaves spread on all sides? We require that they shall be tied together, and in that case they cannot be tied at all.

"*A Lulab from the Iron Mount.*" Said Abayi: The case is only when the top of one reaches the lower part of the one that grows over it; but if not, they are invalid.

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* The word *hadar* in Hebrew has two meanings: "Beauty"; and *dar* means "dwelling" (see Ps. lxxxiv. 11). Hence R. Jehudah explains this in the latter sense.

"*A Lulab three spans long.*" Said R. Jehudah in the name of Samuel: The prescribed size for a myrtle bough and willow is three spans, and of the Lulab four, so that the Lulab shall be one span higher than the myrtle bough and willow when they are tied. R. Parnach in the name of R. Johanan said: (Not the leaves, but) the back of the Lulab, should be one span higher. Come and hear: The prescribed size of a myrtle bough and willow is three spans, of a Lulab four spans: is it not meant with the leaves? Nay, it is meant, besides the leaves. The Boraitha says farther on: R. Tarphon says: It shall be measured with an ell of five spans. Said Rabha: May the Lord forgive R. Tarphon for such teaching: A myrtle bough of three spans is not to be found, and he calls for a myrtle bough of the length of five spans. When Rabbin came from Palestine, he said that R. Tarphon meant to say so: An ell which was five spans, consider it as if it was six spans, and three spans of this take off for the myrtle bough, and the remainder, which is about two and a half, for the Lulab. If it is so, then it is a contradiction to Samuel, for according to R. Tarphon the myrtle bough would be only two and a half spans, and Samuel said it must be three spans? Samuel was not particular in his decision, and said more rigorously, three. But, nevertheless, R. Huna says in his name that the Halakha prevails according to R. Tarphon.

MISHNA: A myrtle bough which has been acquired by theft, or which is dry, is not valid. One which comes from a grove or from a rejected town is invalid. If the tip has been broken off, or the leaves torn off, or if one has on it more berries than leaves, it is invalid; if the berries are diminished in number it becomes valid, but this must not be done on the festival. A willow of the brook, which has been acquired by theft, or which is dry, is invalid. One which comes from a grove, or a rejected town, is not valid. If the point has been broken off, or the leaves torn off, or if it be a *Tzaphtzapha*,* it is invalid. One which is faded, or from which some leaves have dropped off, or which has grown on dry ground (not near a bank), is valid.

GEMARA: The rabbis taught: It is written: "Boughs of the myrtle tree"; that is, a tree whose branches cover the whole tree, and this is only a myrtle tree. Rabha said: We take a myrtle bough because it is written [Zechariah, viii. 19]: "Only

* The Gemara will explain the term.

love ye the truth and peace" (as a myrtle is an emblem of peace and love, therefore we take it on the festival).*

The rabbis taught: A branch that is twined like a chain, that is the myrtle. R. Eliezer b. Jacob says: It is written: "The branch of a twined tree." That means, a tree whose trunk and fruit have the same taste, and that is a myrtle. In a Boraitha we have learned: A branch that is twined, is valid; if not, it is invalid. What is meant by twined? Said R. Jehudah: On each stem are three leaves. R. Kahna however, says: Even if on one stem are two, and on the other one, it is also reckoned three. R. A'ha the son of Rabha was looking for a myrtle bough which had two and one and two and one because this has been announced by R. Kahna. Said Mar bar Amemar to R. Ashi: My father calls such a myrtle a wild myrtle.

The rabbis taught: If the greater number of leaves have dropped, and on three stems they remained, it is valid. The rabbis taught: If the greater part of the leaves on the bough have dried up and only three twigs, each containing three leaves, remained, it is valid. Said R. Hisda, provided that the remainder are on the top of each.

"*If the tip has been broken off.*" Ulla bar Hinna taught: If the tip has been broken off, and in its place is a green fruit like a date (Rashi explains this, that on the top of a myrtle there happen to be green fruits, with which women paint their nails), it is valid. R. Jeremiah put a question: If the tip had been broken off on the eve of the festival, and this green fruit grew up on the festival, how is the law? Shall it be said that, because it was not fit on the eve, it has been rejected, and cannot be used any more; or, the law of rejecting does not apply to religious duties? This question is not decided. Shall we assume that this is a point of difference between the following Tanaim: We have learned: If one has transgressed, and cut off the berries on the festival, it is invalid, according to R. Elazer b. R. Zodok; but according to the sages it is valid? Must we not assume that he who says it is invalid does it because he holds the law of rejecting applies to religious duties, and as this branch with the berries was rejected on the eve of the festival, it was rejected for the whole festival, and he who says it is valid does so because he holds that the law of rejecting does not apply to religious duties? Nay, all agree that

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* Rashi explains it in another manner, which is complicated. We, however, think that our explanation is right.

the law of rejecting applies to the positive commandments of religious duties, but in this case they differ whether a Lulab must be tied or not, as on this point differ the Tanaim of the following Boraitha: A Lulab, whether tied or not, is valid. R. Jehudah, however, said: A tied one is valid; if not, it is invalid. What is the reason of R. Jehudah? He infers it from an analogy of expression. It is written here [Lev. xxiii. 40]: "Ye shall take unto yourselves on the first day," and [in Ex. xii. 22] "and ye shall take a bunch of hyssop"; as there it is plainly written a bunch, so also here it must be tied as a bunch, and the sages do not take into consideration this analogy of expression.*

"*If one has more berries on it than leaves.*" R. Hisda said: The following thing said our great rabbi (*i.e.*, Rabh), and the Lord come to his help: The case is only if it was in one place, but if the berries were in two or three places, then it is valid. Said Rabha to him: If it was in two or three places, it seems spotted, and it is invalid? Therefore if such a thing was taught, it was taught thus, said R. Hisda: The following thing our great rabbi said, and may God come to his help: The case is only when the berries were black; but if they were green, they are the same as the myrtle bough, and it is valid.

"*If they have been diminished in number*," etc. They have been diminished in number when? If before it was tied, it is self-evident, and if after it was tied, then it was rejected for the festival, and how made good? Infer from this that the law of rejecting does not apply to religious duties! Nay, we can say that the case is even after it had been tied, but the Tana of the Mishna holds that the tying is not considered a construction, but only a preparation, and does not therefore count it.

The rabbis taught: They must not be diminished in number on the festival. In the name of R. Eliezer bar Simeon, however, it was said: It may be done. But is not this like repairing a utensil on the festival? Said R. Ashi: R. Eliezer means to say, that if he took off the berries for the purpose of eating, and he holds as his father, that a thing which was done unintentionally is allowed.

The rabbis taught: If the *binding* of the Lulab was loosened on the festival, one shall tie it as he usually ties a bundle of herbs. Why? Let him tie it into a loop (not a knot). That is according to R. Jehudah, who said in Sabbath (p. 233), that tying into a loop

* See page 14, lines 32-37, beginning "But according," etc., which also belong here.

is like a knot, for either is culpable. But according to R. Jehudah the Lulab must be tied not as a bundle of herbs, but in a good knot? This Tana holds as R. Jehudah in one thing, and differs from him in the other.

"*A willow of the brook*," etc. The rabbis taught: It is written: "A willow of the brook." That means, they usually grow near every brook. According to others, the willow of the brook means that it has leaves smooth as a brook. In another Boraitha we have learned: The willows of the brook! Whence do we deduce that willows from dry ground and mountains are valid? It is written "willows," in the plural: all are included. Abba Shaul, however, said: The plural signifies that two are needed: one for the Lulab and one for the Temple. And whence do the rabbis deduce that one for the Temple? They hold it is Sinaic (as will be explained farther on).

The rabbis taught: Willows of the brook, that grow only at brooks; but the *Tzaphtzapha*, which grows only between mountains, is excepted.

The rabbis taught: How can we recognize what is a willow and what is a *Tzaphtzapha?* The willow's stem is red, with the leaves elongated and their edges smooth. But a *Tzaphtzapha* has the stem white, and the leaves round, and their edges like a scythe. But have we not learned, if it is like a scythe, it is valid, and when like a saw it is invalid? Said Abayi: This we learned of the willows of Hilpha Gila: they are valid. Abayi said again: We may infer from this that the same willows may be used for the seventh day when *Hosha'noth* are used. Is not this self-evident? One would say that because the willows of Hilpha Gila have an additional name, they are not valid, he comes to teach that it is not so. But perhaps it is so? Because it is written in the plural, all are included.

MISHNA: R. Ishmael says: Three myrtle boughs, two willows, one palm branch, and one citron are needed. If two out of the three myrtle boughs had the tips broken off, they may be used. R. Tarphon says: Even if all three should have the tips broken off. R. Aqiba says: As one Lulab and one citron are needed, so are only one myrtle bough and one willow needed.

GEMARA: We have learned in a Boraitha: It is written: "The fruit of the tree *hadar*," in the singular, one fruit; "a branch of a palm tree," in the singular,* one branch; "boughs

* The word *Kapath* is written in the singular, but is read *Kapoth*, in the plural.

of the myrtle tree," in the plural, three; and "willows of the brook," also in the plural, two. And even if two had the tips broken off, it is valid. R. Tarphon, however, said: Three are needed; and if all the tips are broken off, it does not matter. R. Aqiba said: As the Lulab and the citron are only one, so of the myrtle boughs and the willows is needed only one. Said R. Eliezer to him: According to thee, the citron must be tied together with the Lulab? And he answered: Did the verse say: "The fruit of the tree *hadar and* a branch of a palm tree"? It mentions them separately. If so, whence do we know that one depends upon the other? Because it is written: "Ye shall take." That means, you shall take all things that are enumerated, and not one without the other. How shall we imagine the case, according to R. Ishmael? If all kinds have to be entire, why are the myrtle boughs allowed if they are broken? And if it is not required that they should be entire, let even the other kinds, if broken, be used? Said Birah in the name of R. Ammi: R. Ishmael retracted this decision. Said R. Jehudah in the name of Samuel: The Halakha prevails according to R. Tarphon, and Samuel said this according to his theory, because he said to the sellers of the myrtles: Make the price lower, and if you will not do so, I will lecture that the Halakha prevails according to R. Tarphon. Let him then lecture according to R. Aqiba, who is more lenient, and says only one is needed? Three with the tips broken are more easily procurable than one uninjured.

MISHNA: A citron which has been robbed, or is withered, is invalid. One coming from a grove or a rejected town is invalid. One taken off a tree less than three years old* is not valid. Nor one taken from heave-offering that is unclean. From clean heave-offering a man is not to take a citron; but if he has taken, he has fulfilled his duty. One taken from *Demai* (fruit from which it is doubtful whether the legal dues have been paid) Beth Shammai hold invalid, but Beth Hillel hold it valid. A man is not to take a citron from second tithe in Jerusalem; but if he has taken one, he has done his duty. If a stain spread over the greater portion of the citron, if it has lost its crown, or the fine rind has been peeled off, or if it is split, or perforated, if ever so little thereof is wanting, it is not valid. If, however, the stain is spread over the smaller portion of the citron, if it has lost its stalk, or if that be perforated (but the citron itself is entire) so

* Lev. xix. 23.

that no part, however small, be wanting, it is valid. A dark-colored one is invalid, a leek-green one R. Meir pronounces valid, but R. Jehudah invalid.

The minimum size of a small citron, R. Meir says, is like a nut; R. Jehudah says, like an egg; and of a large citron, that one can hold two in one hand. So is the decree of R. Jehudah; but R. Jose says, even one must be taken with both hands.

GEMARA: The rabbis taught: The fruit of the tree *hadar;* that is, a tree whose wood and fruit have the same taste, and that is a citron. Perhaps it is pepper, as we learn in the following Boraitha: R. Meir used to say: Because it is written [Lev. xix. 23]: "Plant any kind of tree, bearing edible fruit." Why was it needed to say, a tree bearing edible fruit? Is it not self-evident that if it is bearing fruit it is edible? From this we infer that to pepper, whose wood and fruit have the same taste, the law of *Arlah* applies. And in the land of Israel nothing is lacking (even pepper), as it is written [Deut. viii. 9]: "A land . . . wherein thou shalt not lack anything"? Because it is impossible: how shall we do? Shall we take one pepper-grain, that will not be noticed at all, many of them; the law says one, not two or three; and therefore it cannot be. R. Abahu says: Do not read *hadar*, but ha-dar; that is, a thing that *dwells* on its tree the whole year. Ben Azzai said: Do not read hadar, but *adur*, because in Greek they call water ὕδωρ, and that means a tree which can grow in all waters, and that is only a citron.

"*One that comes from a grove*," etc. Because it must be burned, and therefore it is considered to have no size.

"*From a tree less than three years*," etc. Why so? R. Hiya bar Abbin and R. Assi differed: one says, because it is not allowed to eat it, it must not be used either; and one says, because at that time it is worth nothing (because it must not be used for any purpose).

R. Assi said: With a citron of second tithe, according to R. Meir, a man cannot fulfil his duty; but according to the sages, he can. The same is the case with Matzah of second tithe. And dough of second tithe, according to R. Meir, is exempt from *Halah*, and according to the sages, is not.

"*From unclean heave-offering.*" Because it is not allowed to eat it. And from clean heave-offering? "*One shall not take*," etc. R. Ami and R. Assi differ: one says, because he makes it subject to defilement, and one says, because he spoils it (because, when he holds it in the hand, it gets black, and is spoiled).

"*But if he has taken, it is valid.*" According to those who say that it must not be taken, because it is not allowed to be eaten, this law is according to all; and according to those who say because it has no value, this Mishna is only in accordance with the rabbis.

"*From Demai.*" What is the reason of Beth Hillel? Because if one wishes, he can relinquish his estates, and then he would be poor, and he would be allowed to eat it; therefore now also we consider it proper.

"*If a stain,*" etc. Said R. Hisda: The following thing our great rabbi said, may the Lord come to his help: The case is only when it is in one place (of the citron), but if it is in two or more places, it is like a spotted one, and is invalid. Said Rabha: On its top, even if it is but trifling, it is invalid.

"*Its crown,*" etc. R. Itz'hak b. Elazar taught: The crown, but not the stalk at the bottom.

"*Peeled off,*" etc. Said Rabha: If a citron has been peeled, and gets the color of a red date, it is valid. But did we not learn in our Mishna that if peeled, it is invalid? It presents no difficulty. If it was in part peeled off, it is like a spotted one, and invalid; but if entirely peeled, it is valid.

"*Split or perforated,*" etc. Ulla bar Hanina taught: When it is perforated through and through, even if it is trifling, it is invalid; but otherwise, then if the hole is of the size of an *Isar* (a coin), it is also invalid, but if less it is valid.

A citron that is swollen, ill-smelling, soaked, boiled, black or white, or spotted, is invalid. A citron round as a sphere (not elliptical) is invalid. According to some, twins (two growing together) are also invalid. An unripe citron R. Aqiba makes invalid, and the sages do not. If it was made to grow in a mould, and it came out of an irregular shape, it is invalid.

It was taught: "A citron that mice have perforated," said Rabh, "cannot be called beautiful."

"*And of a large citron,*" etc. We have learned in a Boraitha: R. Jose said it once happened to R. Aqiba that he came to a prayer-house with his citron, and it was so large that he brought it on his shoulder. Said R. Jehudah to him: It proves nothing, because the sages told him then: This cannot be considered beautiful.

MISHNA: The Lulab must only be tied with its own kind (threads of palm branches). So says R. Jehudah. But R. Meir says: It may be tied even with twine. R. Meir also said: It

happened that the inhabitants of Jerusalem tied a Lulab with gold lace. But the sages answered: Yes, they did so, but beneath the gold lace they tied it with its own kind.

GEMARA: Said Rabha: With the bark or the root of the same tree it may be tied. And he says again: What is the reason of R. Jehudah's decree? Because according to him the Lulab must not be used unless it is tied, and if it be tied with another kind, it should be five kinds, and not four. He says again: Whence do I deduce that the bark and the root of the palm tree are considered of the same kind as the Lulab itself? From the following Boraitha: It is written: "Ye shall dwell in booths." That signifies, a booth of any materials: so is the decree of R. Meir. R. Jehudah, however, said: A booth must be made only of the four kinds used for the Lulab. And it seems to me that such is right, because if a Lulab which is used only in the day, and not in the night, must have the four kinds only, for a Succah which is used both by day and by night, so much the more are the four kinds needed. Replied the sages to him: Every law which is at the beginning more rigorous, and is finally more lenient, is no law at all. And our case, according to your opinion, if one did not find the four kinds, he should sit in his house, doing nothing; and the Torah says: "Seven days ye shall dwell in booths." Therefore we say a Succah should be made of any materials. And so it is written in Nehemiah, viii. 15: "Go forth unto the mountain and fetch olive leaves, and oleaster leaves, and myrtle leaves, and palm leaves, and leaves of the three-leaved myrtle to make booths." R. Jehudah, however, explains this verse thus: That olive leaves and oleaster leaves are for the walls of the Succah, and myrtle leaves, etc., are for the covering. And we have learned in a previous Mishna: It may be roofed with boards, so is the decree of R. Jehudah. Hence we see that, although R. Jehudah requires only the four kinds for the covering, nevertheless, if one has covered it with boards, it is valid, because the boards of the bark and of the roots of the same tree are considered by him of the same kind. But have we not learned in a Boraitha that if one has covered it with boards of cedar, it is valid according to R. Jehudah? By cedar is also meant myrtle, as Rabha bar R. Huna says elsewhere: There are ten kinds of cedar, and the myrtle is among them, as it is written [Is. xli. 19]: "I will place in the wilderness the cedar, the acacia, the myrtle."

Said Rabba to the men who tied the Hosha'noth for the

exilarch: When you tie them, leave the breadth of a hand at the bottom; there shall be no intervention between the hand and the Hosha'na.* Said Rabha: All that was made to beautify it, does not intervene. Rabba says again: A man shall not hold the Hosha'na through a cloth, because it is written: "Ye shall take," with your own hands. Rabha, however, said: Even if one takes it through another thing, it is still called *taking*. Rabba says again: After the Hosha'na and the myrtle bough have been tied, one shall not insert the Lulab, lest some leaves be torn off from them, and they will be an intervention between the Lulab and them. Rabba, however, said: A thing of the same kind makes no intervention.

Rabba says again: A myrtle bough used for the religious purpose may not be smelled, but a citron may. Why so? Because the myrtle is only used because of its odor, and as it has been designated for a religious purpose, it must not be smelled; but a citron, which is made for eating, has been designated only for eating, and may be smelled. The same authority says again: A myrtle attached to the ground may be smelled on the festival, but a citron must not. Why so? Because a myrtle, which is used only for smelling, if one will be allowed to smell it, when yet attached to the ground, he will not cut off; but a citron, which is for eating, if he will be allowed to smell, he will cut off, and eat. He says again: The Lulab must be held in the right hand, and the citron in the left hand. Why so? Because by the Lulab three duties are performed, and by the citron only one.

Said R. Jeremiah to R. Zrika: Why do we pronounce the benediction over the Lulab only? Because it is higher than the other kinds. But let one raise the citron, and pronounce the benediction over it? And he answered: Because by *nature* it grows higher than the other kinds.

MISHNA: When must the Lulab be shaken? At the verse: "Praise ye the Lord" (in the prayer), at the beginning and ending (of that part of the prayer), and at the verse: "O Lord, we beseech thee, save us": so is the decree of Beth Hillel. But Beth Shammai hold, also at the verse: "O Lord, we beseech thee, prosper us." R. Aqiba said: I watched Rabban Gamaliel and R. Joshuah (in the time of prayer), and I saw while all men shook the Lulabs at both the above-mentioned verses, they shook theirs only at: "O Lord," etc., "save us."

* The Gemara calls Hosha'na the Lulab, and the myrtle bough and willow tied together.

GEMARA: Where is it mentioned that it should be shaken? In the first Mishna of this chapter: it teaches, a Lulab which is three spans long "sufficient to shake it by"; and now it is asked, When shall it be shaken? Said R. Johanan: The shaking shall be towards all four sides—to the Creator, that all the sides are His; and it shall be raised and lowered to Him to whom the heaven and the earth belong. In the West they taught so: R. Hama bar Uqba in the name of R. Jose bar Hanina said: He shall shake towards all sides, to prevent bad winds; and up and down, to prevent bad dews.

MISHNA: If one is on the road, and has no Lulab, he must, when he gets home, shake it before his meal. If he has not done it in the morning, he must do it toward evening, as the duty may be done during the whole day.

If a slave, woman, or minor reads *hallel* (see Pesachim, Chap. X., pp. 242–46) to a man, he should repeat after them word for word, but it is a disgrace to him (not to have learned to read). If a grown man reads to him, he only responds "Hallelujah." At the places where certain verses are said twice, he is to do so. Where they are recited once, he must do so. Where a benediction is said after the Lulab, he must say it. In every case he must do as is the custom of the country.

GEMARA: Rabha said: Great Halakhoth can be inferred from the custom of saying Hallel: From the custom of our time, when almost all men can read the Hallel themselves, nevertheless they repeat the beginnings of the chapters after the reader, we may infer what are the essential portions of Hallel, and how it was done in the ancient times, when the people could not read themselves, and a man was wanted to read it, for them to repeat after him. The Mishna says: He responds "Hallelujah." From this we see that Hallelujah is of the essential portions which must be responded. We see also in our time, when the reader begins: "Praise, O ye servants of the Lord," and the people respond, "Hallelujah," we may infer that if a grown man is the reader of the Hallel, it is sufficient for the hearer to respond "Hallelujah," and not to repeat the whole chapter (part of the prayer). From what we see, that when the reader says, "Praise ye the Lord," they also repeat, "Praise ye the Lord," we infer that it is a merit to repeat the first verses of the chapter.

[It was also taught: R. Hanan bar Rabha said: It is a merit to repeat the first verses of the chapter.] When the reader says: "O Lord, save us," they should repeat it. If the reader is a

minor, however, one must repeat after him word for word. When he says: "O Lord, prosper us," they repeat it, and from this we see that if one wishes to say it twice, he may do so. When he says, "Blessed be he that cometh," they respond, "in the name of the Lord." From this we see that he who listens to the prayer is equal to him who himself repeats it.

R. Hiya bar Abba was asked: If one has listened to the prayer, and not responded, how is the law? And he answered: The sages, the scribes, the heads of the people, the preachers, all have decided that he who has listened, and not answered, has fulfilled his duty.

"*At the places where verses are said twice*," etc. We have learned in a Boraitha: Rabbi used to say twice in the Hallel same parts. R. Elazar b. Parta has added parts to the same prayer. What is meant by "added"? Said Abayi: He added the manner of saying twice every verse from the 21st verse of Psalm cxviii. to the end of that psalm.

"*When it is the custom to say a benediction*," etc. Said Abayi, that is only at the end of the Hallel; but before, it is not a custom, but obligatory. Aṣ R. Jehudah said in the name of Samuel: All the religious duties must have a benediction pronounced before they are performed.

MISHNA: If one buys a Lulab from a man of the common people in a Sabbatical year, he shall ask of him that the citron shall be given to him as a gift, because it is not allowed to buy a citron in the Sabbatical year.

GEMARA: But how is the law if the seller does not want to give him this as a gift? Said R. Huna: He shall include the price of the citron in the price for the Lulab. Why? Let him give it to him publicly? Because one must not give money for fruits forbidden to be sold on the Sabbatical year to a man of the common people. As we have learned in a Boraitha: One must not give money for fruit on the Sabbatical year to a man of the common people more than is sufficient for three meals; and if one has done it, he shall say: This money that I give to this man shall be exchanged for the fruit which I have in my house, and after that he uses the fruit which he has had in the house only for purposes for which fruit of the Sabbatical year may be used. When is that the case? When he saw that the man sold to him fruit from a field left to the public, which had no owner; but if he sold it from his own field, one must not buy even for half an *isar*. If it is so, why only the citron? What is the

case with the palm branch? The Lulab cannot be of the Sabbatical year, because it had been ripe on the sixth year. But the same is the case with the citron? In case of a citron, it is not counted from the time of its ripeness, but its removal from the tree (as is explained in Tract Rosh Hashana, p. 19). But we know that according to both R. Gamaliel and R. Eliezer, in reference to the Sabbatical year, in case of the citron it is counted from the time of its budding. As we have learned in the following Mishna: The citron is equal to a tree in three respects, and to herbs in one respect—to a tree in three respects, to wit: Of *arla* (the first three years), *rebai* (the fourth year) [Lev. xix. 22–24], and of the Sabbatical year, in reference to which it is counted from the time of its budding; and to a herb in one respect, that it must be tithed when it is gathered (*i.e.*, the tithe must be used for the purpose of that year). So is the decree of Rabban Gamaliel. R. Eliezer, however, said: A citron is equal to a tree in all respects (hence we see that all agree that in reference to the Sabbatical year it is counted in case of the citron from the time of its ripeness, not of its budding). The Tana of our Mishna holds as the Tana of the following Boraitha: R. Jose said: Abtulmus testified in the name of five elders, thus: The citron must be counted from the time when it is gathered for tithe. Our Masters, however, have voted and decided in the city of Usha that in reference both to tithe and Sabbatical year it is to be counted from the time of its gathering. But where is here mentioned the Sabbatical year? The Boraitha is not completed, and must read thus: The citron is counted when gathered in reference to tithe, and from budding in reference to the Sabbatical year. Our Masters in Usha, however, have decided that in both cases it is counted from the time of the gathering.

R. Elazar said: The fruit of the Sabbatical year does not become exchanged, unless it is done in the manner of buying and selling. R. Johanan, however, said: It becomes exchanged even through exchanging. What is the reason of R. Elazar? Because it is written [Lev. xxv. 13]: "In this year of the jubilee," and the next verse says, "shall he sell," from this we infer, only through buying and selling. What is the reason of R. Johanan? Because it is written [ibid., ibid. 12]: "For it is the jubilee, holy shall it be unto you"; and as in case of all holiness there is no difference between selling and exchanging, the same is the case with the fruit of the Sabbatical year. We have learned in one

Boraitha in accordance with R. Elazar, and in another Boraitha we have learned in accordance with R. Johanan.

A Boraitha according to R. Elazar: The Sabbatical year holds the money exchanged for its fruit, because it is written: "It is a jubilee year and shall be holy." As the holy things hold the money exchanged for it, and makes it holy, so also do the fruit of the Sabbatical year. But should we assume, as the holy things become ordinary, when exchanged, the same shall be with the Sabbatical year, therefore it is written: "*It shall be*"—which means, so shall it stay. How so? *I.e.*, if one bought for its fruit meat, both must be destroyed; if, however, he bought fish for the meat, the fish becomes its substitute, and the meat is free; the fish, again, exchanged for wine, the latter becomes the substitute. The same is the case when the latter is exchanged for wine: the very last always becomes the substitute of the preceding one, except the original fruit, which remains as it was. Now, then, when the Boraitha mentions at every exchange the word "*lokah*," which means bought, we may infer from it that it was done only by purchase, but not by exchange (hence R. Elazar's opinion).

A Boraitha according to R. Johanan: Both the fruit of the Sabbatical year and of the second tithe may be exchanged for wild game, cattle, and fowl when they are either alive or slaughtered. So is the decree of R. Meir. But the sages say that only for slaughtered ones, but when alive they must not be taken in exchange, lest he shall raise a herd from them. Said Rabha: They differ only as to males, but females, all agree that only slaughtered ones may be exchanged, but not living ones, for the precautionary measure stated above.

Said R. Ashi: They differ only about the fruit exchanged already for the Sabbatical fruit, but about the Sabbatical fruit itself all agree, only through selling and not through exchanging. But have we not learned in a Boraitha: The fruit of the Sabbatical year and second tithe may be exchanged for animals, wild beasts, and fowls? By this is meant, not the fruit but the money obtained for it. And this must be so, because it is mentioned together with second tithe, and by second tithe could not be meant the fruit itself, because it is written [Deut. xiv. 25]: "Bind up the money in thy hand."

MISHNA: Formerly the Lulab was used in the Temple all the seven days of the festival; in the country, however, only one day. When the Temple was destroyed, R. Johanan b. Zakkai

ordained: In the country it shall also be used all the seven days, in memory of the Temple. He ordained also at the same time that on the sixteenth day of Nissan, called the day of Noph (the day of waving the omer: Lev. xxiii. 11), it should not be allowed to eat new grain.

GEMARA: Whence do we infer that it must be done in memory of the Temple? Said R. Johanan: Because it is written [Jeremiah, xxx. 17]: "This is Zion, whom no one seeketh after." From this we infer that it must be sought after.

"*The day of Noph*," etc. What is the reason? Said R. Na'hman bar Itz'hak: R. Johanan b. Zakkai said this in accordance with the system of R. Jehudah, who said that it is biblically prohibited to eat the whole day, because it is written [Lev. xxiii. 14], "until the self-same day"; and the self-same day means this day shall be included. Does R. Johanan b. Zakkai indeed hold with R. Jehudah, did he not differ from him? As we learn in the following Mishna: When the Temple was destroyed, R. Johanan b. Zakkai ordained that the whole day of Noph it shall be prohibited. And R. Jehudah said to him: Why such an ordinance? Is it not biblically prohibited, as it is written, "on the self-same day," which means to include the whole day? R. Jehudah erred, because he thought R. Johanan b. Zakkai intended to make his ordinance rabbinical, and it was not so; R. Johanan b. Zakkai ordained this biblically. If biblically, what is meant by the expression "ordained"? Read: He lectured that this is biblical and so ordained.

MISHNA: If the first day of the festival falls on a Sabbath, the people bring their Lulabs to the synagogue on the eve of Sabbath and leave them there, and on the next morning they come early to synagogue, and each seeks out his own Lulab, and performs with it his duty, because the sages hold that the duty cannot be fulfilled on the first day by means of a Lulab belonging to his neighbor; but it can be fulfilled on the subsequent days of the festival.

R. Jose says: If the first day of the festival falls on the Sabbath, and one carries out the Lulab into public ground through forgetfulness, he is not culpable, because he carried it out with the intention to do a religious duty.

GEMARA: Whence is this deduced? From what the rabbis taught: It is written [Lev. xxiii. 40]: "Ye shall take," that means, it shall be taken with the hand; "unto yourselves," it shall be your own, but not a borrowed one or robbed one; and

from this the sages said that one cannot fulfil his duty with the Lulab of his neighbor on the first day, unless he has made of it a present to him. And it happened to Rabban Gamaliel, R. Joshuah, R. Elazar b. Azariah, and R. Aqiba, when they were on board a ship, that they had but one Lulab, which was the property of Rabban Gamaliel, who had bought it for a thousand Zuz; and R. Gamaliel performed with it his duty, and then made of it a present to R. Joshuah; R. Joshuah did the same, and gave it away to R. Elazar, who did the same, and gave it as a present to R. Aqiba; and R. Aqiba, after having fulfilled his duty, returned it to Rabban Gamaliel. To what purpose do they tell us that R. Aqiba returned it to Rabban Gamaliel? It is to teach us by the way, that a present with the condition that it shall be returned after, is called a present. As Rabha said elsewhere: "If one say: I present to you this citron to fulfil your duty with it, and afterwards you shall return it to me," if the man returned it afterwards, he had fulfilled his duty, but if he failed to return it, it is not counted as anything. And to what purpose do they tell us that he bought it for a thousand Zuz? To let us know how dear to them were religious duties. Said Mar bar Amemar to R. Ashi: My father used to pray, holding the Lulab in his hand. We have learned in a Boraitha: R. Elazar* bar Zadok says: So was the custom of the men of Jerusalem: when one was going out of his house, the Lulab was in his hand; when he went to the house of prayer, the Lulab was in his hand; when he read the Shema and prayed, the Lulab was in his hand; when he read in the Torah and raised his hands (when a priest) to bless Israel, he laid it away on the floor, and afterwards took it up. If he went to visit the sick, or console mourners, the Lulab was in his hand. When he went, however, to the house of learning, he sent it away through his son, or servant, or messenger. To what purpose is all this told? To let us know how mindful they were of religious duties.

"*R. Jose said*," etc. Said Abayi: He is not culpable so long as he has not fulfilled his duty with it; but if he has, he is. But has not the duty been performed as soon as he has taken it into his hand and raised it? Said Abayi: It means, if he carried it out inverted (because the duty is not fulfilled so long as he does not hold it as it grows). Rabha said: Even if he has not inverted it, but carried it out in a vessel. But did not Rabha him-

* See foot-note in Tract Pesachim, p. 78.

self say that taking through any other thing is called taking? That is, if he took it thus to honor it; but if in a vessel not appropriate to a Lulab, it is not called taking.

MISHNA: A woman may receive a Lulab out of the hand of her son or of her husband, and put it back into water on the Sabbath. R. Jehudah says: On the Sabbath it may be put back, on the festival they may add fresh water, and on the intermediate days they may change the water. A minor who understands how to shake the Lulab is bound to perform that duty.

GEMARA: Is this not self-evident? Lest one say, that because the Lulab is not obligatory for a woman, she must not handle it, it comes to teach us that she may.

"*A minor*," etc. The rabbis taught: A minor who knows how to shake the Lulab is bound to perform this duty. If he knows how to wrap himself in a cloth, he is bound to perform the duty of Tzitzith; if he is able to take care of Tefilin, his father may buy for him Tefilin. As soon as he can talk, his father shall teach him the Torah, and to read Shema. [What is meant by Torah? Said R. Hamnuna: The verse of Deuteronomy, xxxiii. 4: "The law which Moses commanded us is the inheritance of the congregation of Jacob." What is meant by Shema? The first verse.] (The Boraitha says farther on): If he knows how to slaughter animals, it may be eaten of his slaughtering. Said R. Huna: Only if an adult was standing by. If he is capable to eat bread the size of an olive, one must remove from him to the distance of four ells (if one has to pray or to study), on certain occasions. Says R. Hisda: This is only if he can eat the piece of bread in the same length of time that a grown person can eat bread of the size of three eggs, or more. Said R. Hiya the son of R. Yeba: In the case of a grown man who is sick and unable to eat as much, in the above-mentioned length of time, one must nevertheless remove four ells. Because it is written [Eccl. i. 18]: "Where there is much wisdom, there is much vexation." If the minor is able to eat roasted meat of the size of an olive, the Paschal offering may be slaughtered for him, as it is written [Ex. xii. 4]: "Every man according to what he eateth." R. Jehudah, however, said: It must not be given to him until he is able to distinguish. How? If he is given a chip, he drops it; but a nut, he accepts it.

CHAPTER IV.

REGULATIONS CONCERNING THE FOUR KINDS TIED WITH THE LULAB, CONCERNING HALLEL, POURING THE WATER ON THE ALTAR.

MISHNA: The Lulab and willow to surround the altar were sometimes used on six days, and sometimes on seven days of the festival. The Hallel and the eating of peace-offerings took place on eight days. The dwelling in the Succah and the pouring out of water lasted seven days, and the pipes were played on sometimes five, sometimes six days. In which case was the Lulab used seven days? When the first holy day of the festival fell on a Sabbath, the Lulab was used on seven days; but when the first day of the festival fell on any other day of the week, the Lulab was only used six days. In which case was the willow used on seven days? When the seventh day of the willow happened to fall on a Sabbath, the willow was used seven days; but when the seventh day fell on any other day of the week, the willow was only used six days. How was the command to take the Lulab fulfilled when the first holy day of the festival fell on a Sabbath? It was the custom that every man brought his Lulab to the Temple mount, where it was received by inspectors, who deposited it in a gallery. The elders placed theirs in a separate chamber, and the people were taught to say: Whoever gets hold of my Lulab, be it his as a gift. On the next morning the people came early; the inspectors threw all the Lulabs down before them; every man seized on one, and it often happened that they hurt each other. When the Beth Din saw that the people were thus exposed to danger, they ordained that every man was to use his Lulab in his own house.

GEMARA: Why? It is only handling it, and as the commandment of this is biblical, that it shall be taken in the Temple all the seven days, why shall it not be preferred to Sabbath? Said Rabba: As a precautionary measure, lest one take it into his hand to go with it to an expert to learn the performance, and at the same time one will carry it four ells in public ground. And the same reason is with the cornet, and the same reason is

with the Book of Esther, when Purim falls on Sabbath. If it is so, let it be forbidden even on the first day of the festival? On the first day of the festival, was it not ordained that it shall be used in the house, as mentioned above? Yea, that was after it was ordained; but what was the case before it was ordained? Therefore we must say, that the reason is because for the first day, which is biblical even in the country, the rabbis did not take the precautionary measure; but the other days, which for the country is only rabbinical, the rabbis took it. If it is so, why shall we not take it now on the first day, when it falls on Sabbath? If one may say, because we do not know exactly the calendar, why do the Palestinians, who know exactly the calendar, not carry it on Sabbath? Yea, they did so, even after the Temple was destroyed, as we have learned in the Mishna above that the people brought their Lulabs to the Temple mount; and another Mishna said, they brought it to the prayer-house, from which we may infer that in the time of the Temple they took it to the Temple mount, and after its destruction they took it into the house of prayer. But whence do we deduce that in the country it is biblically obligatory on the first day? From the following Boraitha: It is written: "Ye shall take." That signifies, it shall be taken with the hand. "Unto yourselves," it shall be your own, excluding a borrowed or a robbed one; "on the day," even on Sabbath; "the first," even in the country. "The first," from this we infer that only when the first day falls on Sabbath it must be taken, but not on the other days. The text says, "the day," to include Sabbath. Let us see. This is only handling. Do we need a biblical verse to allow handling? Said Rabba: It is meant to allow the preparing of the Lulab, and this is in accordance with the Tana of the following Boraitha: The Lulab and all its preparations violate the Sabbath. So is the decree of R. Eliezer. And the reason of R. Eliezer is, because it is written, "the day," it is meant the Sabbath.

The rabbis taught: It is written: "In booths shall ye dwell seven days." "Days" signifies the nights also; but perhaps only the days are meant, and not the nights? And it would be an analogy of expression: it is written here "the days," and about the Lulab "the days"; as of the Lulab only days are meant, and not the nights, so also it may be with the Succah? Or take another way, the analogy of expression of "the seven days of Aaron's consecration" [Lev. ix.]; as there the nights are included, so shall here also the nights be included. Now let us

see what it resembles more: We may draw a lesson about a thing the duty of which is the whole day, from another thing of which the duty is also the whole day, and not draw the same from a thing the duty of which is only one hour. Or in another way: We shall draw a lesson about a thing of which the duty is forever from a thing of which the duty is also forever, and not about a thing of which the duty is forever from Aaron's consecration of which the duty was only for that time. Therefore another analogy of expression is found: It is written here: "Ye shall dwell," and about the seven days of Aaron's consecration it is also written [Lev. viii. 35]: "Ye shall dwell"; as there it is plainly written days and nights, so is here also meant days and nights.

"*In which case is the willow used seven days?*" Why shall the willow violate the Sabbath? Said R. Johanan: To let the public know that the willow is biblical. If it is so, let the Lulab also violate the Sabbath, to make it public that the Lulab is biblical? The precautionary measure, which Rabbi mentioned above, is taken in reference to the Lulab. But why not in reference to the willow? Because usually the messengers of the Beth Din were sent to take the willow for the performance, but the Lulab was taken by private persons. Said Rabha to R. Itz'hak the son of Rabba bar bar Hana: Son of a scholar, come and I will tell you a good thing that your father said: What we learn in a Mishna farther on, that every day they went round the altar once, and on that day seven times, said your father in the name of R. Elazar: That is meant with the Lulab (not with the willow). R. Itz'hak objected: We have learned in a Tosephta: The Lulab violates the Sabbath in the beginning of its duty, and the willow in the end of its duty. It happened once that the seventh day of the willow fell on Sabbath and the branches of the willow were brought on the eve, and were laid in the court of the Temple; and when the Baithusees got wind of it, they took the branches of the willows, and hid them under the stones of the court. On the morrow the common people pulled them out from beneath the stones, and the priests erected them around the altar, because the Baithusees do not agree that the performance of the duty of willows violates the Sabbath. Hence we see that they performed the religious ceremony with the willows, and not with the Lulab? The question remains: But why did they bring them on the eve of Sabbath, why not on Sabbath (let the bringing of the willows violate the Sabbath as the handling while the duty is per-

formed)? Because as we, who are in exile and are not certain of the calendar, do not violate the Sabbath for the willow, they in Palestine also do not violate the Sabbath for the bringing. But we see that on the first day we do not violate the Sabbath for the Lulab, and they do? It was told, that now they also do not violate even with the Lulab.

Abayi said to Rabha: Why do we use the Lulab all the seven days in memory of the Temple, and not the willow? Rabha answered: We use the willow tied with the Lulab together all the seven days. Rejoined Abayi: But we use it not for the sake of the willow, but for the sake of the Lulab; and if you would say that we raise it again for the sake of the willow, we see proofs every day that we do not do so. Said R. Zbhid in the name of Rabha: The Lulab, which is biblical, we use in memory of the Temple all the seven days, but the willow, which is rabbinical, we do not use so.

It was taught: R. Johanan and R. Joshuah b. Levi differ: One says that the basis of the willow is a tradition from the prophets, and one says that the willow is only a custom of the prophets. From the following saying of R. Abahu we may assume that R. Johanan is the one who said that the basis is a tradition of the prophets, because he said in his name that so said R. Johanan. Said R. Zera to R. Abahu: Did R. Johanan say so? Did he not say in the name of R. Nehumia, the man of the valley of Beth Hursa, that the ten plants concerning Kilaim, the willow, and the pouring of water are Sinaic laws? He was astounded for a little while, and said: They were forgotten once, and then reëstablished. But how could R. Johanan say so? Did he not say to the sages of Palestine: Do not say that the ordinances derived from the Torah are yours: they are the Babylonians', because we have received all our learning from them. (R. Johanan said this when he saw R. Kahna, one of the disciples of Rabh, come to Palestine and explain many questions which R. Johanan could not decide.) Hence we see that R. Johanan did not think that in Babylon the Torah was forgotten, and how can it be said it was forgotten? It presents no difficulty: In the Temple it was Sinaic, but in the country it had for a basis the tradition of the prophets.

R. Ami said: The willow has to be of the prescribed size, and must be taken separately, and a man does not fulfil his duty with the willow which is tied with the Lulab. R. Hisda in the name of R. Itz'hak, however, said that a man can fulfil his duty with

the willow which is tied with the Lulab. What is the prescribed size? Said R. Na'hman: Three moist twigs with leaves. R. Shesheth, however, said: Even if there was one leaf on one twig. Said Aibu: I was standing in the presence of R. Elazar bar Zadok, and a man brought a willow before him; and he took the willow into his hand, and knocked off the leaves, but without any benediction, because he held that the willow was only a custom of the prophets. Aibu and Hezekiah, the grandsons of Rabh by his daughter, brought a willow to Rabh, and he also took it and knocked it, without benediction, because he also held it was only a custom of the prophets.

Aibu said again: I was standing before R. Elazar bar R. Zadok, and a man came to him and said: I possess some villages, and the inhabitants of the villages weeded the orchards in the Sabbatical year, and for their labor they ate the olives: did they right, or not? R. Elazar answered: It is not right. And the man went away. Said R. Elazar: I am living in this country forty years, and I have not seen a man walk in the right path as this man. Afterwards the man came again, and asked R. Elazar what he should do in this matter, and R. Elazar told him he should abandon the olives to the poor, and the laborers he should pay from his purse.

Aibu says again in the name of R. Elazar: A man must not walk on the eve of Sabbath more than three *Parsaoth*. Said R. Kahna: The case is when he goes home, and his family does not know that he will come, and do not prepare anything for him for Sabbath; but if he is going to an inn, he may walk more, because he has prepared everything that is necessary for Sabbath. According to others, R. Kahna said that even to his house he shall not go, so much the less to an inn. And he added to this: It once happened to me that I was coming home late on the eve of Sabbath, and my family did not expect me: I did not find even small fish prepared for Sabbath.

"*How was the commandment to take the Lulab fulfilled?*" One Tana taught in the presence of R. Na'hman: He deposited it on the roof of the gallery. And R. Na'hman said to him: Why on the roof, did he intend to dry it? Read, "on the galleries."

MISHNA: How was the command to take the willow fulfilled? There was a place below Jerusalem called Motza. Thither the people descended, and gathered drooping willow branches. These they brought and erected at the side of the

altar, the tips inclining over it. While this was doing, a blast, a long note, and again a blast were blown. Every day they made one circuit round the altar, and recited the verse: "O Lord, help us; O Lord, prosper us." R. Jehudah said the words: "I and he, help us," were also said. On the particular day for using the willows (the seventh of the festival) they made seven circuits round the altar. When they withdrew, what did they say? "Beauty is thine, O altar! Beauty is thine, O altar!" R. Elazar said, they also said: "To God and to thee, O altar! To God and to thee, O altar!" As they did on week-days, so did they likewise on the Sabbath; excepting only that they gathered the willow branches on the Sabbath-eve and put them into golden casks (filled with water), that they might not fade. R. Johanan b. Beroka said: They fetched branches of palms and threshed them to pieces on the sides of the altar. Thence the day was called "the branch-threshing day." Directly afterwards the children threw down their Lulabs and ate the citrons.

GEMARA: In a Boraitha it was taught: that the place where they were taken was free from taxes, and one Tana of the Mishna calls it Motza, because this word signifies *exempt* from taxes.

"*They brought and erected at the side of the altar.*" In a Boraitha was taught: They were soft and eleven ells high, so that they could cover the altar one ell. Said R. Abahu: From what biblical passage is this inferred? From Psalm cxviii. 27: "Bind the festive sacrifice with cords," etc. He said again in the name of R. Elazar: One who takes the Lulab with its binding, and the myrtle bough with its braiding, the verse makes him equal to one who would build an altar and offer a sacrifice on it, and he infers it from the end of the passage just quoted. Hezekiah said in the name of R. Jeremiah, quoting R. Simeon b. Jochai, and R. Johanan in the name of R. Simeon the Mehuzi, quoting R. Johanan the Mekuthi: One who added a day to the festival for eating and drinking, the verse makes him equal to one who built an altar and offered a sacrifice on it, as it is written: "Bind the festive sacrifice with cords (leading it) up to the horns of the altar."

Hezekiah said again in the name of R. Jeremiah, quoting R. Simeon b. Jochai: All the prescribed plants for religious duties must be taken as they grow, as it is written [Ex. xxvi. 15]: "Shittim wood, standing up." Hezekiah said again in the name of the same authority: I could exempt the whole world from the

Day of Judgment since I was born till now; and if Eliezer my son would be with me, I could do it for all men since the world was created till now. And if King Jotham ben Uzziah would be with us, we could do it for all men from the creation of the world till its end. The same says again in the name of the same: I see the greatest men in the world are very few. If they are a thousand, I and my son are included; if they are a hundred, I and my son are included, and if they are only two, they are I and my son. Said Abayi: There are no less than thirty-six upright men in the world who receive appearance of the Shekhina every day, as it is written [Is. xxx. 18]: "Happy are all those that wait for him," and *him* is expressed by לוֹ, which counts thirty-six.

"*To God and to thee.*" How did they do so? Did they not combine the name of the Lord with another thing, and we have learned in a Boraitha: Who combines the name of the Lord with another thing, will be destroyed from the world? As it is written [Ex. xxii. 19]: "Save unto the Lord only." The Mishna meant it was said so: "To God we bow, and Thee we praise."

R. Jehudah in the name of Samuel said: The benediction over the Lulab must be pronounced all the seven days, but in the Succah the benediction must be made only the first day. Why so? Because the nights intervene between the days, and every day it is a separate commandment; but in case of the Succah, which is a duty during the nights also, all the seven days are considered as one long day, and one benediction is enough. Rabba bar bar Hana in the name of R. Johanan, however, said: The benediction over the Succah must be pronounced all the seven days, but over the Lulab only the first day. Why so? Because the Succah is biblical, the benediction is to be made every time; but the Lulab being rabbinical, it is sufficient on the first day. When Rabbin came from Palestine, he said in the name of R. Johanan, that over both it is to be pronounced every day all the seven days. Said R. Joseph: Keep what Rabba bar bar Hana said in your mind, because all the Amoraim hold with him concerning Succah. Other Tanaim, however, differ also on the same point. As we have learned in the following Boraitha: Over the Tefilin, every time one lays them, one must pronounce a benediction. So is the decree of Rabbi. The sages, however, said: In the morning only. And it was taught Abayi said the Halakha prevails according to Rabbi, and Rabba said the Halakha prevails according to the sages. Said R. Mari the son of the daughter of Samuel: I have seen Rabba did not follow his

own decision, and we also all are doing according to Rabbi, and pronounce the benediction on every one of the seven days.

R. Jehudah in the name of Samuel said: The commandment of the Lulab is all the seven days; but R. Joshuah b. Levi said: The biblical commandment is only for the first day, and from this day further on it is the commandment of the Elders; and so said also R. Itz'hak. Rabh, however, holds that the commandment is for all seven days, and R. Na'hman bar Itz'hak taught plainly that Rabh said so.

The rabbis taught: If one made a Succah for himself, he must pronounce the benediction of the time. When he comes to dwell in it, he must pronounce the benediction: "Blessed be He, etc., who has commanded us to dwell in a Succah"; but if the Succah had been prepared, if he is able to fix there something new, he may pronounce the benediction of the time; if not, when he comes to dwell in it, he should pronounce both benedictions. Said R. Ashi: I have seen R. Kahna, who used to pronounce all the benedictions over the goblet, together with the benediction of the day.

The rabbis taught: If one have before himself many religious duties, he can say: "Blessed be He who has sanctified us with His commandments, and commanded to us many duties." R. Jehudah, however, said: He must pronounce the benediction before each one separately. Said R. Zera, according to others R. Hanina bar Papa: The Halakha prevails according to R. Jehudah. And he (either of the two mentioned) says again: What is the reason of R. Jehudah? Because it is written [Ps. lxviii. 20]: "Blessed be the Lord, day by day." Do we only bless Him by day, and not by night? We may learn from this that every day we should bless Him for the duties of that day (if Sabbath, we must bless Him for the Sabbath; if a festival, for the duties belonging to each festival). The same authority says again: Come and see. The usages of the Holy One, blessed be He, are not as the usages of human beings: A human being can put only something into an empty vessel, but if the vessel is full, he can put in nothing; but the Holy One, blessed be He, can add to a full vessel, but can put nothing into an empty one, as it is written [Deut. xxviii. 1]: "If thou wilt hearken diligently"; * *i.e.*, if you have heard diligently, you can receive

* The Hebrew term for this is שמע תשמע, which is literally, "by hearing you will hear more."

more knowledge, but if not diligently, you can hear nothing. Another interpretation for this verse is this: If you have given your attention to what you have learned before, you can learn from it new things; but if you have turned away your heart from the old teaching, you cannot learn anything new.

"*The children threw down*," etc. Said R. Johanan: The citron on the seventh day is prohibited to be eaten, but on the eighth day it is allowed; but the wood of the Succah, even on the eighth day, is not allowed to be used. Resh Lakish, however, said: Even on the seventh day the citron is allowed. R. Johanan made an objection to Resh Lakish from our Mishna: The children throw down their Lulabs and eat their citrons. From this we may infer that only the children may do so, but not adults. Answered Resh Lakish: Nay, adults may also do so, but the Mishna mentions children because it was usually done so. R. Papa asked Abayi: What is the reason that R. Johanan makes a difference between the Succah and the citron? And he answered: The Succah is fit for twilight, so that if one had to eat at twilight, he must sit in the Succah and eat there; and because it was designated for twilight, it is designated for the whole eighth day; but the citron, which is not to be used at twilight, and was not designated for the twilight, is not designated for the whole eighth day. Levi, however, said: The citron is prohibited even on the eighth day. And the father of Samuel said: On the seventh day it is not allowed, but on the eighth day it is allowed. The father of Samuel afterwards retracted his teaching, and remained in accordance with the system of Levi. R. Zera, however, remains in accordance with the old teaching of the father of Samuel, and taught in the house of learning that a citron which becomes invalid must not be eaten all the seven days. R. Zera said again: One must not give as a present to a child a Lulab on the first day of the festival. Why so? Because a child may receive a present, but cannot make a present to another; and afterwards if the man uses the Lulab for the religious purpose, he has used a thing which is not his (by which he cannot fulfil his duty). He says again: A man shall not promise a child something, and afterwards not keep his word, for the child can learn from it to tell a lie.

We in exile, who keep two days of the festival, how shall we do? Said Abayi: On the eighth day, which it is doubtful perhaps it is the seventh, it is prohibited; but the ninth day, which it is doubtful perhaps it is the eighth, it is allowed. Meremar,

however, said: Even on the eighth day, which it is doubtful perhaps it is the seventh, it is also allowed. In Sura they acted according to Meremar; but R. Shesheth the son of R. Iddi acted according to Abayi, and the Halakha prevails according to Abayi.

R. Jehudah the son of Samuel bar Shilath said in the name of Rabh: The eighth day, which it is doubtful whether it is not the seventh, may be considered as the seventh day in reference to the Succah, but is considered the eighth day in reference to the benediction. R. Johanan, however, said: It may be considered the eighth day for both purposes. (The Gemara explains it so): In reference to the benediction, all agree that the benediction may not be said. What they differ about is only the citron. According to Rabh, on the eighth day one must sit in the Succah, and according to R. Johanan, even sitting is not necessary either. Said R. Joseph: Keep in your mind what R. Johanan said, because the Master of this Halakha, R. Jehudah bar Samuel, who declared it in the name of Rabh, did not act according to his teaching, and we have seen him on the eighth day sitting outside of the Succah. The Halakha prevails: That we do sit in the Succah, but do not pronounce the benediction over it.

R. Johanan said: The benediction of the time must be pronounced on the eighth day of the Feast of Tabernacles, but not on the seventh day of Passover. Said R. Levi bar Hama, according to others R. Hama bar Hanina: This may be approved, because the eighth day of the Feast of Tabernacles is different in three things from the preceding days: It needs not Succah, it needs not Lulab, nor the pouring of water. If it is so, the seventh day of Passover is also different, because it is not a duty to eat Matzah thereon, as the Master said (p. 33) that only the first night it is a duty to eat Matzah? What comparison is this? There it is different only from the first night, but not from the first day; but here it is different from the day also. Rabhina said: The eighth day of the Feast of Tabernacles is different from the preceding day; but the seventh day of Passover differs only from the first day, but not from the one preceding it. How shall we act? Said R. Na'hman: The benediction of the time may be said on the eighth day, and R. Shesheth said it must not, and the Halakha prevails that it may be said. We have learned in a Boraitha in support to R. Na'hman: The eighth day is a holy day by itself, has lots cast for itself (which priest should perform

the service of the sacrifice, as is explained in Shekalim), the benediction of time for itself, offerings for itself, a separate song for itself (all seven days one song was sung by the Levites at the sacrifice), and also a blessing for itself ("the eighth day of assembly" was pronounced in the benediction).

MISHNA: The Hallel and the enjoying of peace-offerings were eight days. How so? We infer from this, that a man is bound to recite the Hallel and enjoy the peace-offerings the last day of the festival the same as the preceding days.

GEMARA: Where is this deduced from? The rabbis taught: It is written [Deut. xvi. 15]: "Thou shalt only rejoice"; it comes to add the night of the last day of the festival, and to exclude the night of the first day. But perhaps it is meant only for the first day? The word (*ach*) "only" separates it. But why do you include the last day, and exclude the first day? I include the last night, before which there was enjoyment; but I exclude the first night, before which was no enjoyment.

MISHNA: The Succah is dwelt in seven days. How so? When a man has taken his last meal therein, he is not directly to pull down his Succah; but, after noon, he may move the furniture back into the house, in honor of the last day of the festival.

How was the pouring out of the water? A golden pitcher that held three lugs was filled with water from the brook Siloah. When they came with it to the water-gate, they blew a blast, a long note, and again a blast. The priest then ascended the stair of the altar, and turned to the left. Two silver basins stood there. R. Jehudah says: They were of gypsum, but had a dark appearance from the wine. Each was perforated with a small hole, like a nostril (at the bottom), the one for the wine somewhat wider, the other for the water narrower, that both might get empty at once. The one, to the west, was used for water; the other, to the east, for the wine. But if the water was poured into the wine basin, or the wine into the water basin, one's duty was reckoned to be fulfilled. R. Jehudah says: They poured out one lug on each of the eight days. To him who poured out the water the people called: "Raise thy hand"; for once it happened that one priest charged with this duty poured the water over his feet, and all the people pelted him with their citrons. As they did on the week-days, so they did likewise on the Sabbath, except that they fetched the water from the Siloah on the Sabbath eve in a golden cask that had not been consecrated, and placed it in a chamber; if it was upset or uncovered, they filled again from the

laver. For it was not lawful to bring on the altar water or wine which had been uncovered.

GEMARA: Whence is it deduced? Said R. Eina: It is written [Is. xii. 3]: "Ye shall draw water with gladness."

"*Ascended the stair*," etc. The rabbis taught: All who ascended the altar ascended on the right, went round, and descended on the left; except that those who ascended for the following three purposes (duties) ascended on the left, and went back on the same side: to pour water, to pour wine, and to offer a burnt-offering of a fowl when it was too much on the east side of the altar.*

"*Each was perforated*," etc. Shall we assume that the Mishna is according to R. Jehudah and not according to the sages, as it teaches farther on: "R. Jehudah said with a lug," etc.; because if the Mishna would be according to the sages, the quantity of the wine and water was equal? (And why was one wider, and the other narrower?) Nay, we may say the Mishna is according to the sages; but wine is thick, and water is thinner, and this is the reason for the unequal sizes of the holes. It seems to us it is so, for according to R. Jehudah one must be wide and the other narrow, as we learn in the following Boraitha: R. Jehudah said: Two urns were there, one for water and one for wine: that for wine had its mouth wide, and that for water narrow, that they should be emptied at the same time.

Rabha lectured: It is written [Song of Songs, vii. 2]: "How beautiful are thy steps in sandals, O prince's daughter!" How beautiful were the steps of Israel, when they pilgrimaged for the festival! "Prince's daughter" means, daughter of Abraham our father, who was called prince; as it is written [Ps. xlvii. 10]: "The nobles of the people are gathered together, the people of the God of Abraham." The God of Abraham, and not the God of Isaac and Jacob? It means, the God of Abraham, who was the first of the proselytes.

The disciples of R. Anan taught: It is written [Song of Songs, ibid.]: "The roundings of thy thighs." As the thighs are in a hidden place, so the words of the Law must all be hidden, and this is similar to what R. Elazar said, as follows: It is written [Micah, vi. 8]: "He hath told thee, O man, what is good, and what the Lord doth require of thee: nothing but to do justice, and

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*The burnt-offerings and east side of the altar will be explained in Tract Tamid, Chap. I.

to love kindness, and to walk humbly with thy God." To do justice, *i.e.*, judgment; to love kindness, *i.e.*, the bestowing of favors; and to walk humbly with thy God, that means, to bear a dead body, and to conduct a bride under the canopy. Is this not an *a fortiori* conclusion? If things usually done publicly are to be done surreptitiously, so much the more things usually done privately?

R. Elazar said: The doing of charity is greater than all the sacrifices; as it is written [Prov. xxi. 3]: "To exercise righteousness and justice is more acceptable to the Lord than sacrifice." The same says again: The bestowing of favors is greater than charity; as it is written [Hosea, x. 12]: "Sow then for yourselves righteousness, that you may reap the fruit of kindness." If a man sows, it is doubtful whether he will eat from his sowing, or not; but if a man reaps, he is sure to eat of it (and so it is with charity, sometimes it is useful, sometimes not, but kindness is always so).

R. Elazar says again: Charity is rewarded only according to the kindness with which it is done; as it is written: "Sow for yourselves righteousness, that you may reap kindness."

The rabbis taught: In three things is the bestowing of favors greater than charity: Charity is only with money, but the bestowing of favors is either with one's money or with one's person; charity is only to poor men, but the bestowing of favors is to poor and rich; charity is only for the living, but the bestowing of favors is both for the living and the dead. The same says again: One who does charity and judgment is as if he filled the whole world with kindness; as it is written [Ps. xxxiii. 5]: "He loveth righteousness and justice; the earth is full of the kindness of the Lord." But if you mean that every one who wants to do charity is given the opportunity to do real charity, it is therefore written [ibid. xxxvi. 8]: "How precious is thy kindness!" It is different, however, with a man fearing Heaven; as it is written [ibid. ciii. 17]: "But the kindness of the Lord is from everlasting to everlasting over those that *fear him.*" R. Hama bar Papa said: A man who finds favor everywhere, it is certain that he fears God; as it is written: "The kindness of the Lord is from everlasting to everlasting over those that fear him."

He says again: It is written [Prov. xxxi. 26]: "She openeth her mouth with wisdom, and the law of kindness is on her tongue." Are there two laws, one of kindness, and one not of kindness? That means, if one studies the law in honor of the

Lord, it is a law of kindness; but if one studies the law for his own interest, it is a law not of kindness. According to others, if he studies the law to teach it, it is a law of kindness; but if he studies it for himself, it is not.

"*If it was upset or uncovered,*" etc. Why so? He can strain the water? Shall we assume that our Mishna is not according to R. Nehemiah from the following Boraitha: Even if the water was strained, the law of uncovered water does still apply to it. R. Nehemiah, however, said: This is only when the lower vessel was uncovered, but when the lower vessel was covered, though the upper one was uncovered, the law of uncovered water does not apply to it, because the venom of a snake, like a sponge, rises to the top. The Mishna can apply also to R. Nehemiah, but he spoke of preparing for an ordinary man, but in honor of the Lord could he say so? Did not R. Nehemiah consider the verse in Malachi [i. 8]: "Do but present it unto thy governor, will he be pleased with thee, or receive thee with favor? says the Lord of hosts."

CHAPTER V.

REGULATIONS CONCERNING THE ENJOYMENTS AND THE SONGS IN THE TEMPLE DURING THE TIME OF THE SACRIFICES, AND THEIR ORDER.

MISHNA: The pipes were played sometimes on five days, and sometimes six. This means, the pipes played on during the time of water-drawing, which does not supersede either the Sabbath or the festival.

GEMARA: The rabbis taught: The playing of pipes supersedes the Sabbath, so is the decree of R. Jose bar Jehudah; but the sages said, even the festival it does not supersede. Said R. Joseph: They differ only about the music of the sacrifices. R. Jose holds that the music of the sacrifices is instrumental, consequently it is a service, and supersedes the Sabbath; but the sages hold it is vocal, and therefore not a service, and does not supersede the Sabbath; but the music of the drawing of the water all agree is only an enjoyment, and does not supersede the Sabbath. But R. Jeremiah bar Abba said: They differ only about the music of the drawing of water. R. Jose bar R. Jehudah holds that this enjoyment also supersedes the Sabbath, and the sages hold it does not; but about the music of the sacrifice all agree it is a service, and does supersede the Sabbath.

What is the reason of those who say that the main music must be instrumental? Because it is written [II Chron. xxix. 27]: "And Hezekiah ordered to offer the burnt-offering on the altar. And when the burnt-offering began, the song of the Lord began with the trumpets, and with the instruments of David the King of Israel." And what is the reason of those who said the main music is vocal? Because it is written [ibid. v. 13]: "And it came thus to pass, as the trumpeters and singers were as one, to make one sound." But what will they do with the former passage? Hezekiah meant, the voices accompanied the instruments. And those who hold it was only instrumental, what will they say to the last-quoted passage? They explain it thus: The singers were as the trumpeters, *i.e.*, used instruments also.

MISHNA: He who has not witnessed the rejoicings at the water-drawing has, throughout the whole of his life, witnessed no real rejoicing. At the expiration of the first holiday of the festival they descended into the women's court, where a great transformation was made. Golden candelabra were placed there, with four golden basins at the top of each; and four ladders were put to each candelabrum, on which stood four lads from the rising youth of the priesthood, holding jars of oil containing 120 lugs, with which they replenished each basin.

The cast-off breeches and belts of the priests were torn into shreds for wicks, which they lighted. There was not a court in Jerusalem that was not illuminated by the lights of the water-drawing. Pious and distinguished men danced before the people with lighted flambeaux in their hands, and sang hymns and lauds before them; and the Levites accompanied them with harps, psalteries, cymbals, and numberless musical instruments. On the fifteen steps which led into the women's court, corresponding with the fifteen songs of degrees, stood the Levites, with their musical instruments, and sang. At the upper gate which leads down from the court of the Israelites to the court of the women stood two priests, with trumpets in their hands. When the cock first crowed they blew a blast, a long note, and a blast. This they repeated when they reached the tenth step, and again (the third time) when they got into the court. They went on, blowing their trumpets as they went, until they reached the gate that leads out to the east. When they reached that gate they turned westward, with their faces towards the Temple, and said: Our ancestors, who were in this place, turned their backs on the Temple of the Lord, and their faces towards the east; for they worshipped the sun towards the east; but we lift our eyes to God. R. Jehudah says: They repeated again and again: "We belong to God, and raise our eyes to God."

GEMARA: The rabbis taught: Who has not seen the rejoicing at the drawing of water, has not seen a real rejoicing in his life. He who has not seen Jerusalem in its beauty, has not seen a beautiful great city in his whole life; and who has not seen the building of the Second Temple, has not seen a handsome building in his life. What is meant by this? Said Abayi, according to others R. Hisda: It means the building of Herod. Of what materials was it built? Said Rabba: Of black and white marble; and according to others, of other colors also. He made one tier of stones projecting outward, and one tier of stones

remaining inside. He wished to overlay it with gold, but the sages said to him: Leave it so, because it is more beautiful, having the appearance of waves of the sea.

We have learned in a Boraitha: R. Jehudah said: Who has not seen the διπλο στοα (diuplustin, double portico) of Alexandria in Egypt, has not seen the glory of Israel. It was said it was a great βασιλιχη (a palace with colonnades), and the palace could contain twice the number of men who went out from Egypt (the Israelites), and there were seventy-one golden *cathedras* (armchairs with footstools) for the seventy-one sages of the Great Sanhedrin, and each *cathedra* was no less than twenty-one myriads of talents of gold; and a wooden βημα (pulpit) was in the middle of the palace, where the sexton of the congregation stood, with a flag in his hand, and when the time came in the prayer to respond "Amen," he raised the flag, and the whole people said "Amen." And they did not sit promiscuously, but separately; the golden chairs were separate, the silver chairs were separate, smiths sat separately, carpenters separately, and all of the different trades sat separately, and when a poor man went in, he recognized who his fellow-tradesmen were, and went to them, and thus got there work for the support of himself and his family. Said Abayi: And all these were killed by Alexander of Macedon. Why were they so punished? Because they had transgressed the passage [Deut. xvii. 16]: "The Lord had said unto you, Ye shall henceforth not return on that way any more." And they returned, and resided in Egypt. When Alexander came, he found them reading the passage [ibid. xxviii. 49]: "The Lord will bring up against thee a nation from afar," etc., and he said: "I had to go ten days on board the ship, and the winds blew and brought me here in five days (certainly I was meant by the quoted passage)"; and he killed them.

"*At the expiration of the first holy day*," etc. What was the transformation? Said R. Eleazar: Similar to what we have learned in the following Boraitha: The court of the women was formerly without a balcony, but they surrounded it with a balcony, and ordained that the women should sit above and the men below.

The rabbis taught: Formerly the women sat in inward chambers and the men in outer ones; but thereby was produced some levity, and therefore it was ordained the men should sit inwardly and the women outwardly; but still levity arose, and therefore it was ordained that the women sit above and the men

below. How could they do so? Does not the passage say [in I Chron. xxviii. 19]: "All was put in writing from the hand of the Lord, who gave me instruction respecting all the works of the pattern"? Said Rabh: They found another passage and lectured about it, namely [Zech., xii. 12]: "And the land will mourn, every family apart by itself, the family of the house of David apart, and their wives apart." And they said: Is this not an *a fortiori* conclusion? At the time of mourning, when the passions are powerless, it is said the women and the men should be separate; so much the more in the Temple, where they were occupied in rejoicing, and the passions can have power over them.

What was the mourning for? R. Dosa and the rabbis differ: One holds that it was for the Messiah the son of Joseph, who was killed;* and one holds that it was for the evil angel, who was killed.† It would be right according to one who holds that it was for the Messiah the son of Joseph, because he explains as supporting him the passage [Zech. xii. 10]: "And they will look up toward me (for every one) whom they have thrust through, and they will lament for him, as one lamenteth for an only son, and weep bitterly for him, as one weepeth bitterly for the first-born"; but according to one who says that it was for the death of the evil angel, why mourning? must it not be, on the contrary, an enjoyment? Why then weeping? This can be explained as R. Jehudah lectured: In the future the Holy One, blessed be He, will bring the evil angel and slaughter him in the presence of both the upright and the wicked. To the former he will look like a high mountain, and to the latter he will look like a thin hair. Both, however, will cry. The upright will cry, saying: How could we overpower such a high mountain? and the wicked will cry, saying: How could we *not* subdue such a thin hair? And also the Holy One, blessed be He, will join them in wondering, as it is written [Zech. viii. 6]: "Thus hath said the Lord of hosts: If it

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* There was a tradition among the ancient Hebrews that two Messiahs would appear before the redemption of Israel: one of the tribe of Joseph and one of the tribe of Jehudah, a descendant of David; and the expression "who was killed" means who will have been killed. The Jewish Christians at that time, who did not believe in the divinity of Christ, but in his Messiahship (*i.e.*, that the traditional Messiah ben Joseph meant the son of a man by the name of Joseph, but not of the tribe of Joseph, as Christ was, and that his fate was to be killed before the appearance of Messiah b. David), explain this passage to have reference to Christ.

† See Tract Yomah, p. 100.

should be marvellous in the eyes of the remnant of this people in those days, should it also be marvellous in my eyes.*

R. Assi said: In the beginning the evil angel appears as insignificant and thin as a cobweb, † and finally he becomes as thick as a wagon-rope, as it is written [Is. v. 18]: "Wo unto those that draw iniquity with the cords of falsehood, and as with a wagon-rope, sinfulness.

The rabbis taught: The Messiah b. David, who (as we hope) will appear in the near future, the Holy One, blessed be He, will say to him: Ask something of me and I will give it to thee, as it is written [Ps. ii. 7–8]: "I will announce the decree . . . Ask it of me, and I will give," etc. But as the Messiah b. David will have seen that the Messiah b. Joseph who preceded him was killed, he will say before the Lord: Lord of the Universe, I will ask nothing of Thee but life. And the Lord will answer: This was prophesied already for thee by thy father David [Ps. xxi. 5]: "Life hath he asked of thee, thou gavest it to him."

R. Awira, according to others R. Joshuah b. Levi, lectured: There are seven names for the evil angel (tempting man). The Holy One, blessed be He, names him "evil," as it is written [Gen. viii. 21]: "The imagination of man's heart is evil from his youth"; Moses calls him "obduracy," as it is written [Deut. x. 16]: "Remove the obduracy of your heart"; David calls him "unclean," as it is written [Ps. li. 12]: "Create unto me a clean heart"; and when he says "a clean heart," it must be an unclean one. Solomon calls him "enemy," as it is written [Prov. xxv. 21]: "If thy enemy be hungry, give him bread to eat, and if he be thirsty, give him water to drink; for though thou gatherest coals of fire upon his head, yet will the Lord repay it unto thee." Do not read שלם (repay it), but שלים (he will make him peaceful toward thee). Isaiah calls him "stumbling-block," as it is written [Is. lvii. 14]: "And he will say, Cast ye up, cast ye up, clear out of the way, lift up every stumbling-block out of the way of my people." Ezekiel names him "stone," as it is written [Ezek. xxxvi. 26]: "I will remove the heart of stone out of your body." Joel calls him "host of the north," as it is written [Joel, ii. 20]: "And the host of the north will I remove." (The expression in Hebrew is Tzephoni, which also signifies the "hidden

* Leeser in his translation has it in the form of an interrogation, but the Talmud takes it in simple form.

† According to Rashi; according to Scheinhack, however, it means the thread of the χροχη; and so it seems also from the Aruch.

one," and they interpret it as the evil spirit which is hidden in the heart of man.)

The rabbis taught: And I will drive it into a land barren and desolate: the evil angel hidden in a man's heart I will drive into the desert, *i.e.*, where men do not live, that he might tempt them; "with its advance towards the eastern sea," *i.e.*, he set his eyes on the First Temple, and destroyed it, and killed the scholars that were there; "and its rearward toward the western sea," *i.e.*, he set his eyes on the Second Temple, and destroyed it, and killed the scholars that were there; "and its stench shall ascend, and its ill savour shall come up, because he hath done great things," *i.e.*, he leaves out the other nation, and comes to tempt only the Israelites.

"*He hath done great things.*" Said Abayi: Scholars he tempts more than any one else. As it once happened, Abayi heard a man say to a woman: "Let us rise early, and we will go on the road"; and Abayi thought: "I will follow them, and prevent them from a sin." He went after them about three miles through reeds, and he heard them saying: "Our conversation has been very agreeable, and now we must take separate roads." Said Abayi: "My enemy (meaning himself) would not have contained himself thus." He leaned against the bolt of the door, and was very sorry that he would have been worse than a common man. And an old man came to him and taught him: "The greater a man is, the more is he tempted by the evil angel." R. Itz'hak said: The evil passions of man try to get the better of him all the day long, as it is written [Gen. vi. 5]: "Was only evil all day long." R. Simeon b. Lakish said: They try to get the better of him, and to slay him, as it is written [Ps. xxxvii. 32]: "The wicked looketh out for the righteous, and seeketh to slay him"; and were not the Holy One, blessed be He, to aid him, man could not resist, as it is written further: "The Lord will not leave him in his hand, and will not condemn him when he is judged."

The disciples of R. Ishmael taught: If this hideousness has attacked thee, take it to the house of learning; if it is a stone it will be ground to powder, and if it is iron it will be split to pieces. "If a stone, it will be ground," as it is written [Is. lv. 1]: "Ho, every one of ye that thirsteth, come ye to the water" (*i.e.*, the Law); and it is written [Job, xiv. 19]: "The water weareth out stones." "And of iron, it will be split into pieces," as it is written [Jeremiah, xxiii. 29]: "Is not thus my word like the fire?

saith the Lord, and like a hammer that shivereth the rock?" Said R. Samuel bar Na'hmani in the name of Jehonathan: The evil angel tempts man in this world, and bears testimony in the world to come, as it is written [Prov. xxix. 21]: "If one rear his slave delicately from his youth, then will he at length become *Manon*"; and in the *Alpha Betha* of R. Hiya, which was called Atbach, a witness was called *Manon*.*

Rabh Huna pointed out a contradiction: It is written [Hosea, iv. 12]: "For the spirit of lewdness *has caused them to err*," and [ibid. v. 4]: "The spirit of lewdness is in *their bosom*." At first it causes to err, and afterwards it remains in the bosom. Rabha said: In the beginning he is called "traveller," and then "guest," and then "man," as it is written [II Sam. xii. 4]: "And there came a traveller unto the rich man; and he felt compunction to take from his own flocks and from his own herds to dress for the guest that was come to him; but he took the ewe of the poor man, and dressed it for the man that was come to him" (Rabha assumes the whole verse to refer to the evil angel).

R. Johanan said: If it were not for the following three passages, the enemies of Israel (meaning Israel) could not withstand: First [Micah, iv. 6]: "And her to whom *I* have done evil"; and the second [Jeremiah, xviii. 6]: "As the clay is in the potter's hand, so are ye in my hand, O house of Israel"; and the third is [Ezek. xxxvi. 26]: "*I* will remove the heart of stone out of your body, and I will give you a heart of flesh." R. Papa says: Also from the following verse [ibid., ibid. 27]: "And *my* spirit I will put within you."

It is written [Zech. ii. 3]: "And the Lord showed me four carpenters." Who are the four carpenters? Said R. Hanah bar Bizna in the name of R. Simeon the Pious: Messiah b. David, and Messiah b. Joseph, Elijah, and Cohen Zedek.

It is written [Micah, v. 4]: "And in this (manner) shall there be peace: If Asshur should come into our land; and if he should tread in our palaces, then will we raise up against him seven shepherds, and eight anointed men. Who are the seven shepherds? David in the centre; Adam, Sheth, Methushelach, at his right; Abraham, Jacob, and Moses at his left. And who are the eight

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* In Leeser's version of the Bible he translates Manon "son," for which we do not know the authority; but the Mashbir translates Manon *μενοινάω*, *i.e.*, "violent," and quotes a Midrash where the evil angel is meant.

anointed men? Jesse, Saul, Samuel, Amos, Zephaniah, Zedekiah, Messiah, and Elijah.*

"*And four ladders,*" etc. It was taught in a Boraitha, that the height of every candelabrum was fifty ells.

"*And four lads,*" etc. The schoolmen propounded a question: Is it meant that each of them held a pitcher that contained 120 lugs, or the 120 lugs was the joint capacity of all the four? Come and hear: And in their hands were pitchers of oil containing each 30 lugs, which altogether amounted to 120. And a Boraitha states that they were praised more than the son of Martha the daughter of Baithus. It was said of the latter that he used to take two legs from the large ox which was bought for a thousand Zuz, in his hands, and went with them slowly, step by step. And his fellow-priests did not let him do so, because it is written [Prov. xiv. 28]: "In the multitude of the people is the king's glory" (*i.e.*, if more men carried, God's glory were greater). What is meant by, "They were praised more than the son of," etc.? Shall we assume the 30 lugs were heavy—the legs were heavier? Yea, but there was only one step, and it was square; but here was a ladder, and standing upright (and it was more difficult for children to carry the burden).

"*There was not a court in Jerusalem that was not illuminated.*" A Boraitha taught: A woman could pick wheat by this light.

"*Pious and distinguished men,*" etc. The rabbis taught: Among were such as said thus: "Well be to our youth which does not disgrace our age." They were pious and distinguished men, and there were among them people who said: "Well be to our age that has atoned for our youth." And these are the penitents. Both used to say: "Well be to those who have not sinned at all; but who has sinned shall repent, and he will be forgiven." We have learned in a Boraitha: It was said of Hillel the Elder (the Prince): When he rejoiced at the drawing of the water, he used to say thus: If I am here, all are here; but if I am not here, who is here? He used also to say: To the places which I am fond of, my feet bring me; if thou wilt visit my house, I will visit thy house; but if thou wilt not visit my house, I shall never visit thine. As it is written [Ex. xx. 21]: "In every place where I

* It is strange to Rashi why Isaac is not mentioned here among the patriarchs. He says it seems to him that it is stated elsewhere that it is because Isaac went to redeem his children from Gehenna. It is so. This can be found in Midrash II Chronicles and in Jalkut Shimoni Micah, v. The strangeness of this saying, however, remains.

shall permit my name to be mentioned, I will come unto thee, and I will bless thee."* R. Johanan said: The feet of the man are securities for him: where he is needed, they bring him thither. Two Ethiopians were in the service of King Solomon, named Elihoreph and Achiyah the son of Shisha, and were his scribes. One day Solomon saw the Angel of Death was sad, and he asked him for the reason, and he said: Because the two men are required from me. And Solomon took the two men and gave them away to devils, who should carry them away to the city of Luz, which the Angel of Death cannot enter. On the morrow he saw the Angel of Death was very cheerful, and when he asked him the reason, he told him: To the place where I was commanded to take the lives of these two men, thou hast sent them, for they died at the gate of Luz. Then said Solomon: The feet of a man are his securities; where he is needed, to that place they bring him.

We have learned in a Boraitha: It was said that Rabban Simeon b. Gamaliel, when he rejoiced at the drawing of water, would take eight flambeaux in his hands, and throw them into the air, and catch, and one would not touch another. When he used to prostrate himself, he fixed his thumbs on the ground, and bowed, and kissed the floor, and then raised himself, and no creature can do so. And this is what is called Qidah. Levi tried to make such a Qidah in the presence of Rabhi, and became lame on one leg. Levi also tried in the presence of Rabhi to throw and catch eight knives. Samuel tried to do so in the presence of Sha'bur the king with eight goblets full of wine; and Abayi in the presence of Rabha with eight eggs, according to others with four eggs. We have learned in a Boraitha: R. Joshua b. R. Hananiah said: When we were engaged in rejoicing at the drawing of water, our eyes saw no sleep. How so? The first hour for the morning daily sacrifice; afterwards for praying, and from that to the additional sacrifice; after that the additional prayer; afterwards we went to the house of learning; from there we went to eat and drink at home, and afterwards the Min'ha prayer; and from the Min'ha prayer to the daily evening sacrifices, and from that time we rejoiced at the drawing of the water till the morn-

* Rashi explains this that Hillel said so in the name of the Shekhina—that the Shekhina says: "As long as I am in the Temple, all are here; but if I am not here, who shall be here?" In the Palestinian Talmud, however, it is explained that he says it of himself; Tosphoth, however, said that the second part based on the verse shows that Rashi's explanation is correct.

ing. But this is not so? Did not R. Johanan say: If one says: I swear I will not sleep three days, he shall get stripes for a false oath, and shall go to sleep immediately? He meant to say: We have not tasted any sleep, for we slept each on the other's shoulders.

"*Fifteen songs of degrees*," etc. Said R. Hisda to one of the rabbis who read the Agada (legends) before him: Have you heard of the fifteen songs of the degrees, for what purpose David composed them? He answered: So said R. Johanan: When David was mining under the altar to get water, water burst out ready to overflow the world; there he composed the fifteen songs of degrees, and therewith checked it.

"*We belong to God and we raise our eyes to God.*" This is not so? Did not R. Zera say: One who said twice, "Shema, Shema," is the same as if he had said, "*Modim, Modim*," * of which a Mishna says, that he must be silenced? The Mishna meant thus: Our ancestors bowed toward the east to the sun, but only to God we bow, and our eyes we raise in hope to God.

MISHNA: In the Temple they never blew the trumpet less than twenty-one times a day, nor oftener than forty-eight times. They daily blew the trumpet twenty-one times: thrice at opening the gates, nine times at the daily morning offering, and nine times at the daily evening offering. When additional offerings were brought, they blew nine times more. On the eve of the Sabbath, they blew six times more: thrice to interdict the people from doing work, and thrice to separate the holy day from the work day. But on the eve of the Sabbath, during the festival (of Tabernacles) they blew forty-eight times: thrice at the opening of the gates, thrice at the upper gate, thrice at the lower gate, thrice at the drawing of water, thrice over the altar, nine times at the daily morning offering, nine times at the daily evening offering, nine times at the additional offerings, thrice to interdict the people from doing work, and thrice to separate the holy day from the work day.

GEMARA: Our Mishna is not in accordance with R. Jehudah of the following Boraitha: According to those who say they were few, they were not less than seven; and according to those who say that they were many, they were not more than sixteen.

What is the point on which they differ? R. Jehudah holds that blowing and alarming are one and the same thing, while

* This is explained in Tract Berachoth, Chap. V., Mishna 3.

the sages hold that they are two separate things. But what is the reason of R. Jehudah? Because it is written [Num. x. 5]: "And when ye blow an alarm." The rabbis, however, maintain that the passage means to say, that before and after the alarming a common blowing must be used. What is the reason of the rabbis' decree? Because it is written [ibid. 7]: "But at the assembling of the assembly, ye shall blow, but he shall not sound an alarm"; hence blowing and alarming are two separate things, for if they were not, how could the Merciful One command to do only half of the merit.

According to whom would be the saying of R. Kahana that there is no difference between a *Tekiah* (a blowing) and a *Teruah* (an alarming) whatever? This is certainly in accordance with R. Jehudah.

"*But on the eve of Sabbath, during the festival.*" The Mishna does not count the times that they blew when they ascended the tenth step, and therefore we must assume the Mishna is in accordance with R. Eliezer b. Jacob from the following Boraitha: Three times they blew, when they ascended the tenth step. R. Eliezer b. Jacob, however, said: These three times they blew over the altar. From this we see that those who said it was blown over the altar, do not hold it was blown on the tenth step; and he who says it was blown on the tenth step, does not mean to say it was blown over the altar. What is the reason of Eliezer b. Jacob? He meant, when it was blown at the opening of the gates, it was not necessary to blow again on the tenth step. And what is the reason of the rabbis? They hold that when it was blown at the drawing of the water, it was unnecessary to blow over the altar. And therefore they gave preference to the ascending of the tenth step. When R. A'ha bar Hanina came from the South, he brought a Boraitha with him, thus: It is written [Num. x. 8]: "And the sons of Aaron the priest shall blow with the trumpets." This verse is superfluous, because there it is already written [ibid. 10]: "Shall ye blow with the trumpets over your burnt-offerings, and over the sacrifices of your peace-offerings." And why is the first-cited verse needed? To signify that they have to blow when there are additional sacrifices. He taught the Boraitha, and he explained it that it meant to say, that it was a duty to blow at every additional sacrifice.

An objection was raised based upon our Mishna: But on the eve of Sabbath during the festival they blew forty-eight times. Now, if it was so (to blow at each additional sacrifice)

let the Mishna state that if the Sabbath falls during the festival there were fifty-one (because there was one additional sacrifice)? Said R. Zera: Because they did not blow at the opening of the gates on Sabbath. Said Rabha: Who is that who is not careful in his statements? The saying of R. Zera cannot hold good at all events. First, the Mishna states that there was blowing *every day*, which certainly includes Sabbath, and, secondly, even if the Sabbath, falling during the festival, were equal to the eve of Sabbath (in regard to blowing), the Mishna would not mention the eve of Sabbath, instead of the Sabbath itself, of which we could learn two things: that of R. Eliezer b. Jacob, that the blowing was not on the tenth step, but over the altar, and, secondly, what R. A'ha b. Hanina stated above, that they blew at each additional sacrifice.

Therefore said Rabha that the reason (for not mentioning Sabbath in our Mishna) is because they did not draw water on Sabbath, but on the eve of Sabbath, as stated *supra;* and then there were many blowings less (namely, the blowing when they reached the upper and the lower gate, the water-gate, and over the altar).

But let the Mishna state, when New Year falls on a Sabbath, when there are three additional sacrifices, namely, the New Year, the new moon, and the Sabbath sacrifice. The Mishna, in reality, left this out, as well as it left out the case when the eve of Passover falls on a Sabbath, when there were many additional blowings at the slaughtering of the Paschal lamb.

"*Nor oftener than forty-eight times.*" Is that so? Did they not blow, when the eve of Passover fell on Sabbath, according to R. Jehudah fifty-one, and according to the rabbis fifty-seven, times? When the Passover offering was brought, it is explained in Tract Pesachim (Chap. V., Mishna 5, p. 119) that it was blown many times during the time when the three divisions brought their offerings. This, which was done every year, is counted in the Mishna; but the eve of a Passover that fell on Sabbath, which is not every year, but only seldom, is not reckoned. But does the eve of Sabbath fall every year on the festival; it may happen that the first day of the festival falls on Friday, and then there is no eve of Sabbath during the whole festival? If this happens, then we prolong the festival for another day, because if the first day of the Feast of Tabernacles would be on Friday, the Day of Atonement would fall on Sunday, and no Day of Atonement must fall on Friday or on Sunday. An objection was raised:

We have learned that if the first day of the month falls on Sabbath, the song of the first of the month supersedes the song of the Sabbath. Now, if it would be as R. A'ha interpreted the Boraitha before, that they blew at every additional sacrifice, why does it supersede? Let the song of the first of the month be sung, and that of Sabbath also? Said R. Saphra: The Boraitha which says "supersedes the Sabbath" means, it is said before the song of the Sabbath. Why so? Is there not a rule as to that which is frequent and that which is rare, that the frequent has the preference? Said R. Johanan: This was an exception to the rule, that the people should know that this month is consecrated by Beth Din in its time.

Another objection was raised: Rabha bar Samuel taught: One may say, as we must blow every Sabbath separately, and every first month separately, so shall we blow at every additional sacrifice? Therefore it is written [Num. x. 10]: "On the beginnings of your months" (on the beginnings of the months only, but not at additional sacrifices). This objection to R. A'ha's teaching remains. How is it inferred from this passage? Said Abayi: Because it is written, "on the beginnings of the months," in the plural, all the months shall be equal (and if a first day of the month falls on Sabbath, and it would be blown for every additional sacrifice, the months would not be equal). R. Ashi says: We may infer it from the following: It is written "your months," and the "beginnings," in the plural. Which month can happen to have two beginnings? That is New Year, which is the beginning of the year and of the month, and it is nevertheless written, "your months." From this we infer, all the first days of the months must be equal. We have learned in another Boraitha: On the intermediate days the songs were as follows: On the first day they used to say from Psalm xxix.: "Ascribe unto the Lord, O ye sons of the mighty"; on the second, from Ps. l. 16; on the third, Ps. xciv. 16; on the fourth, ibid. 8; on the fifth day, Ps. lxxxi. 7. On the sixth day they used to say lxxxii. 5: "All the foundations of the earth are moved"; and if Sabbath fall on one of these days, "All the foundations of the earth are moved" should be superseded. (Now, from what is said, that when Sabbath falls it is superseded, we see that it was not blown for additional offerings.) The objection of R. A'ha remains. But did not R. A'ha bar Hanina cite both a verse and a Boraitha? Said Rabbina: The Boraitha which says it was blown at additional offerings, meant to say it was blown a little longer, but not a

greater number of times. The rabbis of Cæsarea in the name of R. A'ha said: It was added to the number of trumpets.

And we in exile, who keep two days of festival, how shall we say in the additional prayer the passages [Num. xxix. 17–32] about the sacrifices? Amemar ordained in Nehardai: The second day we should leave out verse 17, but on the third day we should say (17–20) "both on the second and third"; on the fourth day (20–23) "the third and the fourth," etc., because in exile it was doubtful when the first of the month was consecrated.

MISHNA: On the first holy day of the festival there were thirteen bullocks, two rams, and one goat to be offered. There then remained fourteen lambs for eight orders of priests. On the first day of the festival six of these orders offered two lambs each, and the other two orders one lamb each. On the second day five of the orders offered two lambs each, and the remaining four orders one lamb each. On the third day four orders offered two lambs each, and the remaining six orders one lamb each. On the fourth day three orders offered two lambs each, and the remaining eight orders one lamb each. On the fifth day two orders offered two lambs each, and the remaining ten orders one lamb each. On the sixth day one order offered two lambs, and the remaining twelve orders one lamb each. On the seventh day they were all equal. On the eighth day they cast lots, as on other festivals. It was so regulated that the order which offered bullocks one day were not permitted to offer bullocks the next day, but it went in rotation.

GEMARA: These seventy bullocks, for what purpose were they offered? Said R. Elazar: For the sake of the seventy nations which existed then. And to what purpose was offered the one bullock [Num. xxix. 36]? For the sake of the single nation (Israel). It can be compared to a human king who says to his slaves: Make for me a great meal for several days. On the last day he says to his friend: You make for me a little meal, that I should have a benefit from yourself only. Said R. Johanan: Woe be to the nations, they have lost, and they do not know even what they have lost! When the Temple was in existence, the altar atoned for their sins, but now who shall atone for their sins?

MISHNA: Three times in the year all the twenty-four orders of priests were alike entitled to share the pieces of offerings of the festival, and in the shewbread; and on the Feast of Pentecost the distributors say to each priest: "Here is leavened bread

for thee, and here is unleavened bread for thee." The order of priests whose regular time of service occurs in the festivals offer the continual daily offerings, vows, and voluntary offerings, and all congregational offerings, and every sacrifice.

GEMARA: The pieces of the offerings? They were brought to the altar? Said R. Hisda: Do not read "*pieces** of the offering," but "the offerings that were said to be sacrificed on the festivals." The rabbis taught: Whence do we deduce that all the orders of the priests had equal shares of the offerings of the festival? Because it is written [Deut. xviii. 6]: "And come with all the longing of his soul . . . he shall minister." Lest one say, on any day of the year it should be also so, therefore it is written, "from any one of thy gates," to signify, this is only when all Israel comes through one gate.

"*And in the shewbread.*" The rabbis taught: Whence do we deduce that all the orders of the priests have equal shares of the shewbread? From what is written [Deut. xviii. 8]: "They shall have like portions to eat." That means, according to his share in the service shall be his share in eating. But what is meant by eating? Shall we assume, that means to eat his share of the sacrifice? This is already deduced from Leviticus, vii. 9: "Shall belong to the priest that offereth it alone." Hence it means only the eating of the shewbread. But lest one say, they shall have a share also in the duty-offerings which are not dependent on the festival, therefore it is written [Deut. xviii. 8]: "Beside that which cometh of the sale of his patrimony." What is meant by selling the patrimony? That they have divided the weeks: I and my children shall take this week, and you shall have the other week.

"*And on Pentecost,*" etc. It was taught: (If one has to pronounce two benedictions, of the Succah and the time,) Rabh said, he shall pronounce first the benediction of the Succah, and after this that of the time; and Rabha bar bar Hana said, that of the time first. The reason of Rabh is because the duty of the day must be given preference; and Rabha bar bar Hana's, the frequent thing has the preference over the rarer thing (and the benediction of the time is said many times in the year, and that of the Succah only once a year). An objection was raised from our Mishna:

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* The expression in the Mishna for pieces is אימורי, and in Hebrew signifies also "saying"; and R. Hisda interprets it not *pieces*, but the *saying* what ought to be sacrificed.

On Pentecost it is said: "Here is leavened bread, and here is unleavened bread." Now, on the Pentecost, the duty of the day is with leavened bread, and nevertheless it mentions unleavened bread first, and this would be an objection to Rabh, who says that the duty of the day must be given preference? Rabh might say: On this differ the Tanaim, as we learn in the following Boraitha: Here is unleavened bread, here is leavened bread. R. Saul, however, said: Here is leavened bread, here is unleavened bread. R. Na'hman b. R. Hisda lectured: It shall be done not according to Rabh to pronounce the benediction of Succah before that of time, but that of time should be said before that of Succah. R. Shesheth the son of R. Idi says: The Succah before the time. And so the Halakha prevails.

"*The order of priests, whose regular time*," etc. What is meant by "all congregational sacrifices"? It means to add the bullock, which the congregation has to offer for ignorance [Lev. iv. 13, 14], and the goat for idolatry.

"*And every sacrifice*." What is meant by every sacrifice? It means, to supply the deficit on the altar. (See Tract Shekalim, Chap. IV., Mishna D.)

MISHNA: If a festival falls before or after a Sabbath, all the twenty-four orders share alike in the shewbread. But if a day intervenes between the Sabbath and the festival, the order whose regular turn it was, received ten of the shewbread, and the loiterers received two shewbread. At other times of the year the order which entered on their duty received six, and that which went off duty received also six. R. Jehudah says: That order which enters on duty received seven, and that which goes off receives five. Those who entered shared them on the north side, and those who went out, on the south side (of the Temple court). The order Bilgah always divided their share on the south side; their slaughter ring was fastened down, and the window of their chamber blocked up.

GEMARA: What is meant by "before or after"? Shall we assume that "before" means the first day of the festival, and after a Sabbath? The last day of the festival, is it not the same as a Sabbath during the festival? Therefore we must say that "before" means, the last day was before a Sabbath, and "after" means, the first day was after Sabbath. Why, then, shall the shares be equal? The Sabbath does not belong to the festival at all? Because those who have to work on the succeeding week must come before the Sabbath, and those whose duty was out

could not go away on the festival, and they all stayed in the Temple. Therefore the sages ordained they should have an equal share.

"*If a day intervene*," etc. And according to R. Jehudah, what is the reason that those who enter received two more? Said R. Itz'hak: That was the reward for opening the gates. But why did they not say, let it be equal for ever, for in the other week those who take seven this week will have five the next? Said Abayi: It is better to take a ripe small orange than to wait for an unripe large melon.

"*Those who entered shared them on the north*," etc. The rabbis taught: Those that entered took their shares on the north side, that it should be seen they were entering; and those who took them on the south side did it that everybody should see they were going out.

"*The order Bilgah*," etc. The rabbis taught: It happened to Miriam the daughter of Bilgah that she became an apostate, and was married to an officer of the Greek kingdom. When the Greeks entered the Temple, she took her sandal and knocked on the altar, and said: Lucus, Lucus, how long will you destroy the money of Israel, if you cannot help them in their trouble? When the sages heard this, they fastened down their ring and blocked up the window. But according to others, the order of Bilgah was always late to come, and the order of Jeshebab his brother substituted them; and although always the neighbors of the wicked are not benefited, the neighbors of Bilgah have benefited, because they took their share always in the south, and those of Jeshebab his brother always in the north. It is right according to those who say that the whole order was late, therefore it was punished; but according to those who say that only Miriam, Bilgah's daughter, became apostate, can it be that the Bilgah should be punished for his daughter? Said Abayi: Yea, because people say, what a child speaks in the street, it has heard either from its father or from its mother. But must the whole order be punished for the sin of her father and mother? Said Abayi: Woe be to the wicked, and woe be to his neighbor; well be to the righteous, and well be to his neighbor, as it is written [Is. iii. 10]: "Say ye to the righteous, that he hath done well; for the fruit of their doings shall they eat."

END OF TRACT SUCCAH.

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TRACT MOED KATAN (MINOR FESTIVALS).

CHAPTER I.

REGULATIONS CONCERNING LABOR AND MARRIAGE IN THE INTERMEDIATE DAYS.

MISHNA: Beth Hashal'hin (Dry Land) may be irrigated during the middle days, and also during the Sabbatical year, as well from a fountain that is newly sprung forth as from one that is not newly sprung forth; but one must not irrigate it with rain-water, nor with water (drawn) from a deep well; nor may one make trenches (to hold water) round vines.

R. Elazar ben Azariah said: "One must not make (dig) a fresh trench (conduit, or water course) during the middle days, or during the Sabbatical year." The sages, however, hold, that a fresh trench (water course) may be dug during the Sabbatical year, and that those (conduits) which are choked up may be repaired during the middle days. One may likewise repair water reservoirs (which are) on the public ground, and cleanse them. One may also repair the roads (streets), the market (public) places, and the spring-baths. In short, it is allowed to do whatever the exigencies of the public (service) require. Tombs may be marked, and messengers are to be sent out on account of possible Kilaim.*

GEMARA: As the Mishna permits irrigation from a newly sprung fountain, although its sides are likely to cave in, it is self-understood then that it is the more so allowed from a fountain not newly sprung, the sides of which are not likely to cave in? For what purpose then did the Mishna state expressly that irrigation is also allowed from a fountain not newly sprung? If not for this statement we might assume that from a newly sprung fountain whose sides are likely to cave in, dry land may and lowland

* *Vide* Shekalim, Chap. I., M. *a*.

may not be irrigated, but from a spring not newly sprung even Beth Habal (lowland not requiring frequent irrigation) may also be irrigated, it therefore comes to teach us that there is no difference.

But whence do we deduce that "Beth Hashal'hin" means dry land. From the passage [Deut. xxv. 18]: "When thou wast 'faint' and weary"; the translation of Onkeles of which is: "When thou wast 'Mshalhi' and weary." (The letter "h" is changeable for "'h"; and "mshalhi" is equivalent to "mshal'hi.") And whence do we deduce that "Beth Habal" means "husband fields"? From the passage [Isaiah, lxii. 5]: "For as a young man 'espouseth' a virgin," etc., the translation of Jonathan whereof being "as a young man 'husbands' a virgin," etc.

Who is the Tana who holds that irrigation is permitted only for the purpose of preventing loss but not for the purpose of deriving gain; and even in case of loss no troublesome work is permitted? Said R. Huna: "It is R. Eliezer ben Jacob, as we have learned in the following Mishna: R. Eliezer ben Jacob said: Water may be conveyed from one tree to another, provided the whole orchard be not irrigated." (This is in the case of lowland and because it is only for gain; R. Eliezer said it must not.) From this statement it may only be deduced that R. Eliezer holds so in case of gain, but no deduction can be made therefrom as to where loss is involved? Therefore said R. Papa: It is in accordance with R. Jehudah of the following Boraitha: From a newly sprung fountain even lowland may be irrigated, this is the dictum of R. Meir. R. Jehudah holds that only dry land which became ruined may be irrigated. R. Elazar b. Azariah, however, agrees with neither of them. R. Jehudah went further than that and said: "One may not direct a water channel to irrigate his garden and ruined land, during the middle days."

What is meant by "ruined"? Does it mean actual ruin? why then irrigating it? Said Abayi: "It means, land one spring of which was ruined but another one sprung forth." R. Elazar b. Azariah, however, does not allow even in this case. But why all this argument? Perhaps R. Jehudah did not allow the irrigation of lowland only from a new spring, for the reason stated above; but from an old spring, the sides of which are not likely to cave in, it *is* permitted? If this be so, then according to whom would be the statement in our Mishna? We, therefore, must say, that according to R. Jehudah from both newly sprung and not newly sprung fountains dry land may and lowland may not be irrigated;

and the statement in the Boraitha: "From a newly sprung fountain," etc., is for the purpose of indicating the extent of R. Meir's permission, viz., that dry land may be irrigated, and even from a newly sprung fountain. It was taught: "One who weeds or waters plants on Sabbath, against what principal labor must he be warned?" * Said Rabba: "Ploughing, as these are derivative from it." R. Joseph, however, said: "Sowing, as these are derivative from it."

This would be correct as for the intermitting days, during which work is permitted in case of loss; but as for the Sabbatical year, during which both ploughing and sowing are prohibited, how can it be allowed? Said Abayi: "The Mishna treats of the Sabbatical year subsequent to the destruction of the Temple, and Rabbi said elsewhere that this is only rabbinical." Rabha, however, said: "The Mishna may be explained even according to the rabbis, who hold that it is biblical, but the Scripture prohibits only principal labors but not derivative; as it is written [Lev. xxv. 4]: "But in the seventh year there shall be a sabbath of rest unto the land, a sabbath of the Lord; thy field shalt thou not sow, and thy vineyard shalt thou not prune," etc. Let us see: Is not sowing the principal of pruning, and is not reaping the principal of gathering? For what purpose then did the Scripture expressly state pruning and gathering? We must say that it is to point out the derivatives for which one *is* liable.

But is one not liable even for other derivatives? Did we not learn in a Boraitha: It is written [Lev. xxv. 4]: "Thy field shalt thou not sow, and thy vineyard shalt thou not prune"? Whence do we deduce that weeding, grubbing up vines, cutting, plucking, sawing (off branches, when they are too numerous), and supporting (trees), manuring, removing rubbish from the roots, or covering the roots with earth, or smoking (for the purpose of killing the insects on the tree) are also not permitted to be done during the Sabbatical year? From the arrangements of the words in the passage: It is not written: "Thou shalt not sow thy field, and thou shalt not prune thy vineyard," but, "Thy field shalt thou not sow," etc., which indicates that all work pertaining to the field and all work pertaining to the vineyard shall not be done. But this generalization does not include grubbing up olive-trees, or vines, or filling water conduits, or digging trenches

* No capital punishment, nor even that of stripes, is inflicted without a previous warning. *Vide* Introduction to Sabbath, p. xxvi.

round vines. Whence do we deduce these exceptions? From the statement, "Thy field thou shalt not sow." Was not sowing included in the general commandment, "A year of rest shall it be unto the land"? Why the repetition of sowing? For the purpose of comparison: As "sowing" includes both the field and the vineyard, so other labor similar to it is prohibited. (Hence we see that for other derivatives one is also liable?) Nay, all those enumerated in the Boraitha are only rabbinical prohibitions, and the biblical passage is only a slight reference.

Is grubbing up olive-trees permitted during the Sabbatical year? Is it not written [Exod. xxii. 11]: "But the seventh year shalt thou let it rest and lie still," etc., and it was construed to mean, "let it rest from being grubbed, and lie still from being cleaned from stones"? Said R. Uqba bar Hama: "Grubbing is done for two different purposes, viz., to promote the growth of, and to fill the cracks in the tree; the latter is permitted, the former is not.

We have learned in a Mishna (Shekalim I., 1): "Up to what time is it permitted to dig in an orchard during the year immediately preceding the Sabbatical year? The school of Shammai hold, during all the time the fruit may benefit thereby. The school of Hillel, however, decree, up to the feast of Pentecost." Both these limits are almost identical. And up to what time is it permitted to plough corn-fields during the year preceding the Sabbatical year? Until the ground ceases to be damp, and during all the time people till the soil to plant melons and cucumbers. Said R. Simeon: "If this be so, then the Law permitted every individual to fix his own time?" Therefore, the time is fixed as follows: Corn-fields may be tilled up to the Passover and orchards up to Pentecost. (The school of Hillel fix the time at the Passover.) And R. Simeon ben Pazzi in the name of R. Joshua ben Levi, quoting Bar Qappara, said: "Rabban Gamaliel and his tribunal have abolished those two limits." Said R. Zera to R. Abbahu (and according to others, Resh Lakish to R. Johanan): "How could Rabban Gamaliel and his court abolish a regulation established by the schools of Shammai and Hillel? Did we not learn in a Mishna: No one court is permitted to overrule the decision of another court, unless they exceed the other in number and wisdom? He was astound for one hour [Daniel, iv. 16], and then answered: Say, so was the condition of the first court, that those who differ with them may overrule them. R. Ashi, however, said: Rabban Gamaliel and his court are in

accordance with R. Ishmael, who holds that this was oral law, and as such it was binding only during the existence of the Temple, similar to that of "pouring water on the altar," but not after.

The rabbis taught: "It is not permitted to irrigate from the water basins, or trenches, which were filled with rain-water on the eve of the feast, unless there is a water-channel passing between them." Said R. Papa: "Even this is permitted only where the greater part of the land is irrigated therefrom." R. Ashi, however, said: "It is permitted even if this is not the case, for when water is likely to flow in (into the channel) one is not likely to do any troublesome work, and is rather likely to think to himself, 'if it cannot be irrigated in one day it will be so in two or three days.'"

The rabbis taught: "It is permitted to irrigate dry land from a water basin which receives its water supply from the dry land situated above it" (the upper land being irrigated from a well and some water is dripping down into the basin). But is it not likely to cease (and some troublesome work may be done in bringing water from another place)? Said R. Jeremiah: "The case is when it is still dripping." Abayi adds: "This case holds good only when the original spring has not ceased."

"*One must not make a fresh trench,*" etc. This would be correct in reference to the middle days, because it is considered work, but what is the reason for the Sabbatical year? R. Zera and R. Abba bar Mamel: One holds, the reason is because it resembles delving; and the other says, because it is considered a preparation of the adjacent ground for sowing.

"*And those conduits that are choked up may be cleansed.*" What is meant by "choked up"? Said R. Abba: "If it was only one span deep, it may be restored to its original depth of six spans."

Abayi allowed the inhabitants of Hamdoch to cut off the branches of the trees growing in the river (during the middle days). R. Jeremiah allowed the inhabitants of Sekutha to cleanse a choked well of the river. R. Ashi permitted the inhabitants of Matha M'hasiah to deepen the river Burniz; and the reason assigned by him for this permission was, that because many persons used its water it was to be considered as a public necessity, and our Mishna states that all work for public service is permitted.

"*One may repair water reservoirs located on public ground.*"

Is cleansing only, and no digging, permitted? Said R. Jacob in the name of R. Johanan: The Mishna refers to a case in which the public do not need it, but otherwise even digging is permitted. Is that so? Have we not learned in a Boraitha: "Basins, pits, and cavities may be cleansed, if they belong to private persons, and so much the more if they are public. But it is not allowed to dig even when they are public, and so much the more when they are private." Should we not assume, that it is not permitted even when needed by the public? Nay, the case is when the public do not need it. Then how would it be in case of the private ones? Shall we assume that it is even when one does not need it? Then why should cleansing be permitted? Explain thus: Private basins may be cleansed when needed by him, and so much the more public basins if required by the public; but it is not permitted to do so even when they are public in case they are not needed by the public, and so much the more private ones if not needed by the owners, for if not needed by the owners even cleansing is not permitted. Said R. Ashi: "The explanation of our Mishna seems to mean the same, as it states *all* that is necessary," etc., and this word "all" adds also digging. But the expression "all" may include the works enumerated in the following Boraitha: Messengers may be sent out (on the middle days) to remove prickles from the roads and to repair the markets and thoroughfares, and to ascertain the contents of the legal baths; and if they do not contain the prescribed measure they must be regulated. And whence do we deduce that if the messengers were not sent out and in consequence thereof an accident happened, that those guilty of such neglect are personally charged with having caused that accident? Therefore it is written [Deut. xix. 10]: "And bloodguiltiness be brought upon thee"? Are all these not expressly stated in our Mishna? "The roads," etc., "may be repaired?" why then repeat, "all" what is required by the public, etc.? We must then assume that it adds digging. Infer herefrom.

"*And tombs may be marked*," etc. R. Simeon b. Pazzi said: Where is it hinted at in the Scripture that tombs must be marked? It is written [Ezek. xxxix. 15]: "When any one seeth a man's bone, there shall be set up a sign by it." Said Rabina to R. Ashi: Were not tombs marked prior to Ezekiel? Therefore we must say, that it was traditional and the passage in Ezekiel only refers to it. Rabina, however, said: We may find a reference to this in the following passage [Psalms, l. 23]: "And

to him that ordered his course aright will I show the salvation of God." (From this passage it may be inferred that the tombs were marked in order not to pass over them.) As R. Joshua b. Levi said: One who weighs his ways will be rewarded in seeing the salvation of the Holy One, blessed be He. As the Hebrew term of the above passage is "Vessom derech," do not read "vessom," but "veshom." * A pupil of R. Janai who was wont to ask questions of the latter whenever he was lecturing, refrained from doing so on the Sabbath preceding a holiday, when a multitude of people used to gather (for fear that R. Janai might not be able to answer him and get confused), and R. Janai referred to him the passage just quoted (as explained by R. Joshua b. Levi).

The rabbis taught: Those things which cannot communicate uncleanliness when in a tent need not be marked; but the following parts of a dead person must be marked: the spinal cord; the head; the major part of the structure of the skeleton, and the major number of parts of the skeleton. Those places which are known to be unclean need not be marked, but those which are doubtful need be. The following are considered doubtful places: Those having trees with spread out branches, places near fences the stones of which are projecting forward, and Beth Haperes (Perch): and no signs should be put up on the *very spot* of the uncleanliness (but a short distance away), in order not to injure those who are clean (because if one inadvertently approaches the sign he becomes unclean); neither shall a sign be put too far away from the unclean spot, in order not to injure the land of Israel (*i.e.*, not to mark too much clean space as unclean). R. Jehudah said: "No marking should be done unless there is the Elder (of the congregation) or a scholar, for not every one is experienced in such things." Said Abayi: "From this we may infer, that if there is a young scholar in the city, all the business of the congregation must be attended to by him" (if there is no one else do do it).

"*And messengers are to be sent out on account of Kilaim.*" Were messengers sent out on the middle days? Have we not learned in a Mishna (Shekalim, I., *a*) that they were sent out on the first day of Adar? R. Elazar and R. Jose bar 'Hanina: One explains the contradiction thus: "Our Mishna relates to those

* The letter "Shin" in Hebrew when pointed rightward reads "sh"; when pointed left reads "ss." The word "shom" in question is pointed left and the rabbi reads it as if pointed right, and explains it to have the meaning of the Aramaic "Shomin"—to weigh, to estimate.

plants which are late in season and the other to those early in season." The other explains that our Mishna refers to vegetables and the other to herbs. Said R. Assi in the name of R. Johanan: This is the case only when the plants have not sprung up, but when they have (and Kilaim were noticed) messengers are sent out even before. Why are messengers sent out on the *middle days?* Said R. Jacob in the name of R. Johanan: Because on those days labor is cheap. How much of the mixed seeds must there be in order to constitute Kilaim? Said R. Samuel bar Itz'hak: As we have learned (in Kilaim, II., 1): "Every Sah that contains one-fourth of seed of another species must be lessened." But did we not learn in a Boraitha: "It was determined that the whole field be confiscated (made ownerless)"? This presents no difficulty. The former was said before and the latter after the determination was made, as we have learned in a Boraitha: Formerly the messengers used to pull out the Kilaim and throw them to the cattle, and the owners used to be doubly pleased, first because their fields were weeded, and secondly because their cattle were fed; so it was determined that it be pulled out and thrown on the roads, but the owners were still very pleased because of the weeding of their fields, and it was finally determined that the whole field should be given to the free use of the people.

MISHNA: R. Elazar ben Jacob said: "One may lead water from one tree to another, provided always the whole orchard be not irrigated; plants which have not imbibed (water) before the middle days, must not be irrigated during the middle days. The sages, however, permit both."

GEMARA: R. Jehudah said: "If it was damp land it may be done." So also we have learned in the following Boraitha: The prohibition to irrigate during the middle days applies only to plants that have not imbibed prior to the feast, but those that have may be irrigated during the middle days. And if it was damp land it may. Withered land, however, must not. But the sages permit both. Rabina said: From this it is to be inferred that a yard-garden may be besprinkled during the middle days, for what is the reason for withered land? because by irrigation it is changed from one late in season unto one early in season? The same is the case with a yard-garden.

MISHNA: One may catch Ishuth (moles) and field mice in orchards and fields in the usual manner, both during the middle days and the Sabbatical year. The sages, however, said, that in

an orchard (the vermin may be caught) in the usual manner, but that in a corn-field it must not be caught in the usual manner. During the middle days one may pile (loose stone) to stop a gap in a fence; on the Sabbatical year, however, it may be repaired in the ordinary way.

GEMARA: What is "Ishuth"? Said R. Jehudah: It is an eyeless insect. Said Rabha bar Ishmael, and according to others R. Yemar bar Shlamia: Where is it mentioned in the Scripture that Ishuth is an eyeless insect? It is written [Psalms, lviii. 9]: "As a snail which melted, let him pass away, like the untimely birth of a woman: (Ehsheth)* *which hath not seen the sun.*"

"*But that in a corn-field it must not be caught in the usual manner.*" We have learned in a Boraitha: "R. Simeon ben Elazar (or ben Jacob) said: This refers only to those corn-fields that are adjacent to a town, but in case of those adjacent to an orchard it may be done even in the usual manner, for the reason that they might overstep the boundary and injure the trees."

"*During the middle days one may pile loose stones to stop a gap in a fence.*" With what is it stopped? Said R. Joseph: With the twigs of shrubbery and the bay-tree. In a Boraitha we have learned: "The stones may be piled up but no mortar must be used." Said R. Hisda: "This applies only to garden fences, but in case of court walls it may be rebuilt in the usual manner." Said R. Ashi: This may be inferred from our own Mishna. It states: "And during the Sabbatical year it may be rebuilt in the usual manner." This statement cannot relate to a court wall, because there is no reason why it should not be permitted; it must then relate to garden fences, and although it looks as if done for the purpose of protecting the fruit, infer herefrom that it is permitted.

MISHNA: R. Meir said: Priests make the first inspection of the plague (of leprosy) in order to relieve (the patient) but not to restrict him. The sages, however, decide, neither to relieve nor to restrict.

GEMARA: We have learned in a Boraitha: "R. Jose holds, neither to relieve nor to restrict, for the reason that if an inspection is made, if you cannot relieve him you must restrict him." Said Rabbi: "R. Meir's decision seems to be more proper in the

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* "Ishuth" and Ehsheth are similar in pronunciation, and it states, "which hath not seen the sun."

case of one who is still subject to the examination; and R. Jose's decision seems to be the more proper one in the case of one who was decidedly afflicted with the disease." Said Rabha: They all agree that no examination is made (during the middle days) of a clean person; they also all agree that an inspection may be made during the first seclusion; * in what they differ is: in the case of the second seclusion. One holds that it is discretionary with the priest. If he finds him clean, he informs him; but if he finds him unclean, he keeps silent. And the other holds that, as it is written [Lev. xiii. 59]: "To *pronounce* him clean *or* unclean," he must in either case *pronounce* it. The Master said: "Said Rabbi: R. Jose's decision seems to be more proper," etc. But have we not learned in a Boraitha, *vice versa?* There is a difference of opinions between the Tanaim in regard to Rabbi's statement. One holds that one (who is afflicted with the plague) prefers association with the public; and the other holds, that he appreciates more the society of his wife.

MISHNA: R. Meir further said: One may gather the bones of his father or mother (during the middle days to inter them), because it is a joy to him (it relieves his mind). But R. Jose said: "It is a grief to him" (afflicts his mind). One must not grumble over his dead, nor hold a funeral oration for thirty days before the festival.

GEMARA: There is a contradiction: We have learned in a Boraitha (Ebel Rabbatti, XII.): † "One who gathers the bones of his dead father or mother shall mourn over them the whole day, but not in the evening. Said R. Hisda: This is applicable even if they are wrapped up in his mantle (and are not readily seen by him?) Said Abayi: Read in the Mishna: R. Meir said, etc., for the enjoyment of the festival will prevent him from mourning."

"*One must not grumble over his dead.*" What is meant by "grumble"? Said Rabh: The funeral orators in Palestine use the following expression in their funeral orations: "Let all the perturbed join him in mourning." (The Mishna means, then, that he should not excite others to mourn.)

"*Thirty days before the festival.*" Why thirty? Said R. Kahana, according to others Rabh: "It happened once that a funeral orator came around to the house of one who had saved up some money for the prescribed pilgrimage to Jerusalem,

* See Lev. xiii. 5.

† See our introduction to same tract.

and he so pleased the wife of the latter with his orations that she handed him all her savings, and her husband was prevented from going to Jerusalem. And therefore it was then determined that no exciting oration be held within thirty days preceding a festival." Samuel, however, said: The reason is, because no one departed is forgotten by his mourners during the first thirty days. In what respect does it make a difference, whether the one or the other is the reason? In case one volunteers to do it without compensation. (According to Rabh it may, and according to Samuel it may not take place.)

MISHNA: One must not dig graves or burial vaults on the middle days; but one may prepare graves (previously dug); and also make a washing pit, and a coffin in the same court where the corpse lies. This, however, R. Jehudah prohibits, unless the boards have been (previously) provided.

GEMARA. What part is called "grave," and what part "vault"? Said R. Jehudah: Grave is the excavation, and vault is that part which is built in the grave. So also we have learned in a Boraitha.

"*But one may prepare graves.*" What is meant by "preparation"? Said R. Jehudah: "If it was too long it may be shortened." In a Boraitha we have learned that it may be made both longer and wider.

"*And a coffin in the same court where the corpse lies.*" What we read in this Mishna has reference to what the rabbis taught: "All that is necessary to be done for the dead may be done: his hair may be cut, his wrapper washed; and his coffin may be prepared from boards cut before the festival." R. Simeon ben Gamaliel said: "Timber may be also brought and boards cut therefrom, privately in the house."

MISHNA: One must not espouse a wife on the middle days —neither virgins nor widows; nor must one marry the childless widow of his deceased brother,* as that (the espousal) is a cause of joy to him (individually), but one may receive back his own divorced wife. A woman may prepare her ornaments on the middle days. R. Jehudah said: "She must not apply lime (chalk as a cosmetic), because it may disfigure her. A layman may sew (make stitches) in the regular way; but the tailor must do it zigzag. One may twine (the ropes in the sacking) of bedsteads." R. Jose, however, said: "They may only be tightened."

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* See Deut. xxv. 5–11.

GEMARA: And if it is a cause of joy to him, why not? Said R. Jehudah in the name of Samuel, and so also said R. Elazar in the name of R. Oshiya or Hanina: "For the reason that two different joys must not be comingled." Rabba bar Huna said: "For the reason that the enjoyment of the festival is neglected on account of the enjoyment over his wife." Said Abayi to R. Joseph: The statement of Rabba bar Huna was originally made by Rabh, as R. Daniel bar Ktina said in the name of Rabh: Whence do we deduce that it is not permitted to espouse wives on the middle days? For it is written [Deut. xvi. 14]: "And thou shalt rejoice on thy feast." *Over thy feast* thou shalt *rejoice*, but *not* over thy *wife*. Ula said: "The reason is: Because there would be too much trouble." R. Itz'hak of Naf'ha said: "The reason is, in order not to restrict reproduction (for every one will postpone his marriage until the festival)."

An objection was made: We have learned elsewhere: "All those said to be prohibited from espousing wives on the middle days, may do so on the eve of the feast." This seems to contradict all those reasons assigned? This presents no difficulty: According to the one who said, because of the enjoyment—the main enjoyment over his bride is on the first day only; according to the one who said, it is the trouble—the main trouble is also on the first day only; and according to the one who said, in order not to restrict reproduction—for one single day no one will postpone it.

But whence do we deduce that two different joys may not be comingled? It is written [I Kings, viii. 65]: "And Solomon held at the time the feast," etc., "seven days and seven days, even fourteen days." Now then, if comingling of two different joys were permitted, why did Solomon not postpone it until the feast and the seven days of the feast would have served for both? R. Parnach in the name of R. Johanan said: On that year the Israelites had not observed the Day of Atonement and they were perturbed and thought they were sinful, and a Heavenly voice was heard announcing: "All of you are prepared for the world to come."

It is written [I Kings, viii. 66]: "On the eighth day he dismissed the people, and they blessed the king and they went unto their tents," etc.

"And they went unto their tents," meaning, they found their wives clean. "Joyful"—they were delighted with the brightness of the Shekhina. "Glad of heart"—the wife of every one be-

came pregnant with a male child. "Because of the good," etc. —for the announcement of the Heavenly voice, as stated above. "For David his servant and Israel his people"—this would be correct so far as Israel is concerned, for they were forgiven their neglect to observe the Day of Atonement; but what is hinted at by the statement, "For David his servant"? Said R. Jehudah in the name of Rabh: When Solomon desired to place the ark in the Temple, the gates became fastened to each other and they could not be opened. Solomon then pronounced twenty-four prayer-songs and was not answered. He then commenced to pray [Psalm, xxiv. 7]: "Raise your heads, O ye gates," etc., and still he was not answered; but when he finally said [II Chron. vi. 42]: "O Lord God, turn not away the face of thy anointed, remember the pious deeds of David thy servant," he was at once answered. At that moment the enemies of David became as black as the bottom of a pot, and then it was known to all that the Holy One, blessed be He, had forgiven David *that* sin (of Bath-Sheba).

R. Jonathan ben Esmai and R. Jehudah b. Gerim had been studying the chapter treating of Vows before R. Simeon b. Jo'hi. In the evening they took leave of him and departed. On the following morning they returned and asked leave again. R. Simeon b. Jo'hi questioned them: "Did you not take leave of me last night?" They answered him: "Did not our Master teach us, that a disciple who takes leave of his instructor and remains in the same place over night must take leave again?" As it is written [I Kings, vii. 66]: "On the *eighth* day he dismissed the people, and they blessed the king"; and it is again written [II Chron. vii. 10]: "And on the twenty-third day of the seventh month he dismissed the people." Infer from this, that a disciple who after taking leave of his Master remains over night in the same place must take leave again. Then he (R. Simeon b. Jo'hi) said to his son: "These men are of nice countenance (scholarly). Go and receive their blessing." He went, and found them discussing the contradiction of the following passages: It is written [Prov. iv. 26]: "*Balance* well the track of thy foot, and let all thy ways be firmly right"; and ibid. v. 6 reads: "So that (she) *cannot balance* the path of life"? This presents no difficulty. The first passage refers to a commandment that can be performed by others, and the other passage has reference to such as cannot be performed by others. They again propounded a question: It is written [Prov. iii. 15]: "She is more precious than pearls, and all the things *thou valuest* are not equal unto her." From

this it seems that Heavenly things are equal. And it is written [ibid. viii. 2]: "And *all* the things that men wish for are *not equal* to her"; from which it seems that Heavenly things are also included? And the above answer was applied also to answer this contradiction.

They then turned to him and asked him what his wishes were, and he answered: "Father sent me here to receive your blessing." They then pronounced: "Let it be the Will that thou shalt sow but not reap, thou shalt bring in but not give forth, thou shalt give forth but not bring in; thy house shall be ruined and thy temporary dwelling shall remain; thy table shall be confused; and thou shalt not see a new year." When he returned to his father he said: "Not only did they not bless me, but, on the contrary, they cursed me!" and he recited the above. His father replied: All those are blessings; viz.: "Thou shalt sow and not reap" means, allegorically, "Thou shalt bear children and they shall not die." "Thou shalt bring in and not give forth"—"Thou shalt bring in thy house wives for thy sons, and thy male children shall not die, so their wives will not need to leave thy house." "Thou shalt give forth and not bring in"—"Thou shalt have daughters and their husbands shall not die, so that they shall not be compelled to return to thy house." "Thy house shall be ruined and thy temporary dwelling shall remain"—for this world is only a temporary dwelling and the world to come is the real house, as it is written [Psalms, xlix. 12]: "Their inward thought (Kirbom) is, that their houses are to be forever." Do not read "kirbom," but "kivrom" (their graves). "Thy table shall be confused"—by thy many children. "And thou shalt not see a new year"—"Thy wife shall not die, so that thou shalt not be compelled to marry another."

R. Simeon b. Halafta took leave of Rabh, and the latter said to his son: "Go to him and receive his blessing." R. Simeon pronounced the following: "Let it be the Will that thou shalt not shame others and others shall not shame thee." When he returned to his father he said: "He did not bless me, but only advised me." And his father rejoined: "Nay, it is a blessing; and it is the same, the Holy One, blessed be He, pronounced over Israel, as it is written [Joel, ii. 26]: "And ye shall eat in plenty," etc., "and my people shall not be ashamed unto eternity"; and repeated in the next passage: "And ye shall know that I am in the midst of Israel," etc., "and my people shall not be made ashamed unto eternity." The repetition herein

means, both that they shall not shame others and others shall not shame them.

"*A woman may prepare her ornaments,*" etc. The wife of R. Hisda was once ornamenting herself in the presence of her daughter-in-law. R. Huna bar Dinna, who was present at the time, said: "It seems to me that only a young woman is allowed to prepare her ornaments, but not an old one?" And R. Hisda rejoined: "By the Lord! even your mother and your grandmother, and even the woman who is on the brink of her grave; as the proverb goes: 'A woman of sixty is as enthusiastic over the music of a cymbal as a girl of six.'"

"*R. Jehudah said: She must not apply lime,*" etc. R. Bibi's daughter applied gradually cosmetics to every part of her body, and she improved so much that she received a dowry of four hundred Zuz. The daughter of a stranger who resided in the neighborhood (of R. Bibi), learning of that, applied a cosmetic at once to all parts of her body, and in consequence thereof died. The stranger then said: "Bibi killed my daughter." R. Na'hman said: "In R. Bibi's house, where beer was used, his daughters had to use cosmetics, but in our houses, where beer is not used, our daughters need not apply cosmetics."

"*The layman may sew in the regular way,*" etc. Who is considered a layman? The school of R. Janai explained, one who is not experienced in gathering on the needle; R. Jose bar Hanina said: "One who cannot properly place the foundation in the border of a garment."

"*They may twine the ropes,*" etc. What is the difference between "twining" and "tightening"? When R. Dimi came from Palestine he said: "R. Hyya bar Abba and R. Assi, both in the name of Hezekiah and R. Johanan, differ: One says "twining" means both the shoot thread and the warp, and "tightening" means the shoot only; and the other holds that "twining" means the warp and not the shoot thread, and "tightening" means "if they were not tight they might be tightened." When Rabin, however, came from Palestine, he declared that as to "twining," all agree that it means the shoot thread and the warp; they differ only as to "tightening": one holds it means the shoot only, and the other holds that if they were not tight they might be tightened.

MISHNA: One may erect an oven or a hearth, or a mill, on the middle days. R. Jehudah says: "New millstones must not be chipped."

GEMARA: What is the meaning of "chipping"? Said R. Jehudah: It means notching. R. Je'hiel said: "It means the boring of the centre-hole in the millstone." R. Hama lectured: "Millstones may be cleaned during the middle days." In the name of R. Meir he said: Even the hoofs of the horse and ass may be pared, provided they are used for riding; but not the hoofs of an ass employed in a treadmill. R. Jehudah permitted to pare the hoofs of an ass employed in a treadmill, to place the millstones in proper position, and to build a new mill; to erect a foundation for the millstones, and also to erect a stall. Rabha permitted to comb a mare, to erect a stand and a colonnade. Rabha also permitted to let blood to a domestic animal during the middle days. Said Abayi to Rabha: "We found a Boraitha in your support: 'Blood may be let to a domestic animal; and no restriction is made to the administration of medicines to domestic animals during the middle days.'" Rabha permitted to press garments. Why so? For the reason that it can be done by any unskilled person. Rabha said again: "Trading even in the most moderate degree is not permitted." Said R. Jose bar Abin: "But in case of perishable articles it is." Rabina was to complete a transaction in which he would have earned six thousand Zuz, and by postponing it till after the middle days he earned twelve thousand. Rabina had to collect some money from the inhabitants of the fortress of Shnuatha, and he consulted R. Ashi whether to go there or not. R. Ashi told him: "If you think you can find them now and not on other days, it is as if it were perishable articles and you may do it." We have learned in a Boraitha similar to that just stated, in regard to dealings with idolaters: "It is permitted to attend markets of idolaters and to purchase domestic animals, male and female slaves, land and vineyards, and to write out the deeds and record the same, for it is considered as if rescued from their hands." Rabh permitted Hyya bar Ashi to construct a fisher's net on the middle days. R. Jehudah permitted Ami, the oven-builder, to erect an oven, and to Rabba bar Eshbi he permitted to mesh a sieve.

MISHNA: A railing (balustrade) may be made round a roof, or gallery, in the way a layman does it, but not in the way it is done by a mechanic. Rents (in the roofs) may also be closed, and (then) smoothed with a roller, or with hand and foot, but not with a trowel. Should the hinges of the door-frame, or the beam, or the lock (of the door), or the key (thereto) have been broken

they may be repaired on the middle days, provided always one does not intentionally put off the repairs till the middle days. All (kinds of) pickled food of which one can eat during the middle days may be pickled.

GEMARA: What is meant "*in the way of a layman*"? Said R. Joseph: "With twigs or wire." A Boraitha states: When the railing was not smeared with clay.

"*Rents may be closed*," etc. If they may be smoothed with a roller, it is self-understood then that it may be done so with the hand and foot? This should be understood thus: "Rents may be closed and smoothed with hand and foot as if done with a roller, but not with a trowel."

"*Should the hinges of the door*," etc., "*they may be repaired*," etc. Is there not a contradiction from what we have learned, that "up to his days (of R. Jo'hanan, the high-priest) the sound of the hammer (falling on the anvil) used to be heard in Jerusalem," etc., from which we see, only up to his days, but not afterwards? Nay, this presents no difficulty. The statement just quoted has reference to a blacksmith's hammer, and that mentioned in our Mishna relates to that of a carpenter.

"*All pickled food of which*," etc. The river Bditha of Libai had an abundance of fish, and any one who wanted to fish them could do so. Rabha permitted to go there, bring fish and salt them. Said Abayi to him: "Does not our Mishna state, only those foods that can be eaten on the middle days?" Rabha replied: These can also be eaten by washing them first, as it happened once with Samuel, who was served with (pickled) fish, and he ate them after washing them sixty times. Rabha happened once to be in the house of the Exilarch (on the middle days), and he was served with pickled fish which were washed sixty times, and he partook of them. Rabh was once the guest of R. Shapir and fish was served, one-third of which was cooked, another third pickled, and the rest fried. Rabh related: "Ada the fisher once told me that fish taste best some time after they are caught." Rabh further stated: "The same told me: 'Fish should be fried with their brother (salt—for both are found in water); after they are fried they should be placed with their father (water—which produces fish), and they should be eaten with their offspring (their juice); and after eating them, drink their father (water).'" Rabh said again: "Ada the fisher told me: 'One who eats fish, dates,

or milk should not go to sleep right after, unless he takes first a long walk.'" Rabh said again: "Ada the fisher told me: 'After eating fish, dates, or milk, water is to be preferred as a drink to beer, and beer should have preference over wine.'"

CHAPTER II.

REGULATIONS CONCERNING LABOR. MOURNING AND BUYING AND DOING BUSINESS IN THAT TIME, AND ALSO IN THE INTERMEDIATE DAYS.

MISHNA: One who has turned his olives, and a death occurred in his family; and one who is prevented from at once putting them to press, or has been disappointed by his laborers, may put the first press-block on, and leave it until after the feast. Such is the dictum of R. Jehudah. R. Jose, however, said: "He may put the olives into the oil-press and finish pressing them, and bung up the casks in the usual manner."

GEMARA: It begins with mourning and ends with the middle days (without stating the law relating to the former)? Said R. Shesha, son of R. Idi: "Infer from this, that things permitted on the middle days are, nevertheless, prohibited during mourning." R. Ashi says to the contrary: "Not only in the mourning time, which is only rabbinical, are these things allowed, but even on the middle days, during which work is prohibited biblically, in the case of loss the rabbis permitted it."

The following Boraitha is in support of the assertion of R. Shesha, son of R. Idi: The following things are done by *others* for one who is in mourning: If his olives are turned, the press-block may be put on, the cask bunged, his flax removed from the buck, his wool taken out of the boiler, and his land watered when his turn comes on. R. Jehudah said: "Even his ploughed land may be sown and the flax-field planted." The sages, however, maintain, that if not sown early in the season it can be done so late in the season; and if not flax, other plants can be raised. R. Simeon b. Gamaliel, however, said that if he is the only specialist in the place, of all those things mentioned above, they may be done by himself privately. And even more than that the same Rabban allowed: If he were the only mechanic in the place employed by the public, or a barber, or a bather, and the feast was approaching, he might perform his functions. Contractors of all kinds must have others to do their work (during their mourning).

Those who hire out asses, camels, or ships to others, must not do their work. But if at the time (their mourning commences) they were already hired out, they might continue. A day laborer, although in a place where he is not known, must not work. If he were to work for others in his own house, whether under contract to do it for a definite time or not, he must not do it. If others were working for him in his own house, they must postpone their work; but in a house other than his own, they might continue. Marian, son of Rabhin, and Mar, son of A'ha son of Rabha, had a team of oxen in copartnership. One day a death occurred in the family of Mar b. A'ha and he kept in his ox. Said R. Ashi: Why should a great man like Mar do such a thing? If he does not consider his own loss, he must consider that of another. As stated above: "If they were hired out at the time, they might proceed with their work." He (Mar), however, was of the opinion that the case is different when a prominent person is concerned. Samuel said: "Those who do their work under contract for a definite period of time, if *within* the legal limits, may not; if *outside* those limits, they may do it." R. Papa, however, said: Even where it is outside the legal limits, the case is only when there is no town adjacent. R. Mesharshia, however, said that even where there is no town adjacent the case is so only in reference to Sabbath days and festivals, for on those days people are few; but as regards the middle days, during which people are numerous, it is not permitted. Mar Zutra, son of R. Na'hman, had a house built under contract outside of the legal limits. R. Saphra and R. Huna bar Hinna happened to be in the neighborhood of that house and declined to enter it; and according to others, R. Zutra himself also declined to enter it. But has not Samuel said that if it was outside of the legal limits it is permitted? R. Zutra himself assisted them in placing the straw during the progress of the work. R. Hama permitted the Abunagars (waiters) of the Exilarch to do their work on the middle days; for, he said, they receive no salary, and work only for their board. (It is therefore not considered labor, and does not matter.)

The rabbis taught: Work may be taken under contract during the middle days to be done after the feast. But on the middle days it is not permitted. The rule is: All that one himself may do, he may have a Gentile do it for him, but not what he may not. We have learned in another Boraitha: "Work may be taken under contract on the middle days to be performed

after the feast, provided always he does not measure, weigh, or count in the usual manner."

The rabbis taught: "No animals should be copulated on the middle days; the same applies to the firstborn and also to the desecrated ones at any time."

The rabbis taught: Cattle must not be brought into the field for the purpose of manuring, either on Sabbath days, feast days, or middle days. But if they come there of themselves it is permitted. And no assistance may be afforded to those in charge, neither a watchman assigned them to watch their sheep. But the case is different if they are hired by the week, month, year, or for a period of seven years. Rabbi, however, says: "On Sabbath days it may be done without compensation; on feasts days, for food only; and on the middle days, even for compensation." Said R. Joseph: "The Halakha prevails as Rabbi decreed."

MISHNA: The same is the case when one whose wine is in the press-pit and a death occurred in his family or another accident happened; or if he had been disappointed, he may pour the wine into casks, cooper, and bung them up in the usual manner. Such is the dictum of R. Jose. But R. Jehudah said: "He must only cover the pit with boards, so that the wine may not grow sour."

GEMARA: Said R. Itz'hak bar Abba: "The Tana who holds that on the middle days it must not be done in the usual manner, does not accord with R. Jose." Said R. Joseph: "The Halakha, however, prevails as decreed by R. Jose." A question was propounded to Na'hman bar Itz'hak: "Is it permitted to bung up a beer barrel on the middle days?" He answered: "Sinai (R. Joseph) had already stated that the Halakha prevails as decreed by R. Jose." But R. Jose's statement relates only to wine, but not to beer? What was the reason for wine—because there is a great loss? The same is the case with beer. R. Hama bar Guriah said in the name of Rabh: The laws regarding the middle days are distinct from each other and cannot be compared for the purpose of inference. As Samuel said: "A jug may, but a barrel may not be covered with tar." R. Dimi of Nehardea holds the reverse. The one considers the loss involved; the other, the trouble with which it is accompanied.

The rabbis taught: Grinding is permitted on the middle days for use on those days only, but not otherwise; but if some of the flour remain till after the festival, it may be used. Such is also

the case with wood-cutting and beer-brewing, but one must not go too far. R. Hananel said in the name of Rabh: "One may fell a tree, even if he needs only the splinters." Abayi, however, censured that. R. Ashi owned a forest in the neighborhood of Shalnayi, and he went there once during the middle days to chop wood. Said R. Shela of Shalnayi to R. Ashi: "You do this, relying on the statement of R. Hananel in the name of Rabh? But has not Abayi censured it?" And he replied: "I do not care for that." When he commenced to chop, his axe slipped off the handle and almost injured his shoulder. He thereupon left the forest (for he took it as a punishment for his statement in reference to Abayi). R. Jehudah permitted to pluck flax, hops, and poppy. Said Abayi to R. Joseph: "This would be correct as regards flax and hops, for the one may be used for covering (figs, etc.), and the other in beer-brewing; but what use can be made of poppy? Its seed can be used. R. Janai owned an orchard the fruit of which got ripe on the middle days, and he gathered in the fruit; on the following year every one postponed the gathering in of his fruit until the middle days. R. Janai (as a punishment to himself for having caused others to postpone their work until the middle days) gave away on the very same year that orchard to the free use of the public.

MISHNA: One may house his fruit from (dread of) thieves, and take flax out of the buck, that it be not spoiled, provided he does not intentionally defer doing it till the middle days; but should he have so deferred, then in all these cases he forfeits the articles in question.

GEMARA: A Boraitha states: "Provided he does it privately." R. Joseph had removed beams to his house in the day-time. Said Abayi to him: "Have we not learned that it should be done privately?" He answered: "In this case it may be considered more privately in the day-time than in the night-time; for in the night-time it must be done by light, and it requires therefore more men."

"*And take the flax out of the buck*," etc. R. Jeremiah propounded the question to R. Zera: "One who deferred intentionally doing it until the middle days and soon afterwards died, shall we impose the fine on his sons? Shall we assume that the rabbis intended to punish him personally, and, therefore, his sons are released? or shall we assume that the fine was directed against his property, and, therefore, his sons must pay it?" And he answered: "This we have learned in the following Mishna: A

field which has been cleaned from prickles during the Sabbatical year may be sown immediately thereafter; but this is not the case if it was manured either by man's labor or by animals." Said R. Jose bar Hanina: "There is a tradition that if one had manured his field (on the Sabbatical year) and soon afterwards died, his son might sow it." Hence we see that the fine was directed against him, and not against his son. The same is the case with working on the middle days, stated above.

MISHNA: One must not purchase houses, slaves, or cattle, excepting for the use of the whole festival, or for the use of the vendor, who otherwise might have nothing to eat.

GEMARA: Rabha asked R. Na'hman: "What is the law if a laborer has nothing to eat?" And he answered him: "This we have learned in our own Mishna, 'or for the use of the vendor,' which intends to include the case of the laborer." (For the case of the vendor is included in the statement, "for the use of the *whole* festival," which includes the middle days.) Rejoined Rabha: Perhaps the Mishna explains only what is meant by the expression "use of the vendor."

MISHNA: One must not remove things from one house to another, but this may be done from the house of another court to his court. Things must not be brought home from the mechanic's house, but if he fears (that they might be lost) he may remove them to another court.

GEMARA: Did not the Mishna begin with the statement that it must not be removed at all? Said Abayi: The last clause of the Mishna means to say, that it may be removed from the court-house to the court (but not to another house).

MISHNA: Dried figs may be covered with straw. R. Jehudah says: "They may, likewise, be put in layers. Dealers in fruit, garments, or utensils may privately sell what is required for use on the middle days. Huntsmen (fishers) and manufacturers of peeled barley and grits may carry on their occupations in private, as the exigencies of the festival may require it." R. Jose said: "They have of their own accord adopted the more rigorous observance and do not carry on their occupations (on the middle days)."

GEMARA: R. Hyya bar Abba and R. Assi, both in the name of Hezekiah and R. Johanan, differ. One holds that "covering," mentioned in the Mishna, means "thinly covering," and "put in layers" means "thickly covering"; and the other one holds that "covering" means both thinly and thickly covering, and "put in

layers" means "heaping up." So also we have learned in a Boraitha: "Putting in layers—placing in a heap. Such is the dictum of R. Jehudah."

"*The dealers in fruit*," etc. The schoolmen propounded a question: "Does it mean that they adopted a rigorous, etc., not to do any work at all, or only not in public?" Come and hear: The dealers in fruit, garments, and utensils may sell in private, for use on the middle days. R. Jose said: "The dealers of Tiberias adopted of their own accord a more rigorous observance and did not sell at all." (The Boraitha states further on that R. Jose said that the same was the case with the hunters and fishers of Achu and the manufacturers of grits of Sepphoris.) Abayi said: "It is called grits, if it (the kernel) is crushed into two; pearl grits, if into three; and meal, if crushed into four parts." When R. Dimi came he said: "It (grits) means spelt." R. Huna permitted the dealers in spices to trade in their usual way. R. Kahana objected: We have learned elsewhere: A store opening into a gallery may be locked and unlocked in the usual way, but if it opens into a public street he must open one door and lock the other; and on the eve of the last day of Tabernacles one may decorate his stores with fruit in honor of the last day of the festival. But not otherwise? This presents no difficulty: the one is the case regarding fruit; the other, regarding spices (which may be done in the usual way).

CHAPTER III.

REGULATIONS REGARDING MOURNING ON FESTIVALS, REGARDING THOSE WHO ARE UNDER THE BAN, AND WASHING.

MISHNA: The following may shave (trim their hair) on the middle days: One who arrives from the sea countries, or returns from captivity, or has been discharged from prison; or one who was absolved by the sages from the ban, or from his vow (not to cut his hair for a certain period of time); also a Nazarite and the leper who is restored to cleanness. The following may wash their garments on the middle days: One who arrives from the sea countries, or returns from captivity, or has been discharged from prison; and one whom the sages have absolved from the ban, or from his vow. Towels, barbers' napkins, and bathing towels (may be washed). Men and women who have had a running issue, women after their courses or lying-in, and all persons who from uncleanness are restored to cleanness, are permitted to wash their garments; but all other persons are forbidden.

GEMARA: What is the reason for not permitting other persons? As we have learned in the following Mishna (Taanith): "The priests of the weekly watch and the standing Israelites are prohibited from shaving their beards and washing their clothes; but on Thursday they are allowed to do so in honor of the Sabbath." And Rabba bar bar Hana in the name of R. Elazar said: "The reason why they are prohibited to do so the whole week is in order that they shall not enter upon the fulfilment of their duties when they are filthy (if they would be allowed to do so during the days of their duty)." The same reason applies to the festival (if they will be allowed to do so in the middle days they will not shave themselves before the festival).

"*Who arrive from the sea countries.*" Our Mishna is not in accordance with R. Jehudah of the following Boraitha: R. Jehudah said: "One who returns from the sea countries may not shave, for he went to sea of his own accord." Said Rabha: "If he went to sea for adventurous purposes, all agree that he may not; if to earn his bread, all agree that he may. They only

differ in case he went to sea to accumulate profits (*i.e.*, one who was well provided with an income, but went to sea to increase his riches). One equals it to the case of adventurous purpose; and the other, to that for the purpose of earning his bread. Samuel said: "A minor (child) may be shaved on the middle days, and it makes no difference whether he was born on or before the middle days." Said R. Pin'has: "We also have a Mishna to the same effect: All those who were permitted to shave on the middle days may also do so during their mourning." From this we must assume that those prohibited to shave on the middle days are also prohibited from doing so during their mourning? Now, if a minor would be prohibited, then mourning would be customary to a minor also, but the following Boraitha states: "The garments of a minor mourner are rent for the purpose of moving others to mourn?" Hence we see that to a minor himself mourning is not customary? Said R. Ashi: Does, then, the Mishna state "those who are prohibited"? (It only states "those who are allowed") and possibly some are prohibited who are not mentioned in the Mishna.

A mourner must not observe mourning on festivals, for it is written [Deut. xvi. 14]: "And thou shalt rejoice on thy feast." Then, if the mourning commences before the festival the positive commandment of the rejoicing of the feast which relates to the whole public is relieving from the positive commandment of mourning of an individual; and in case it began on the festival, the commandment of mourning to an individual cannot relieve from the commandment (of rejoicing) to the public. What is the law of one who is under the ban as regards the festival? Said R. Joseph: Come and hear: "Cases involving capital punishment or stripes, or civil cases, may be tried (on the middle days), and if one (of the parties) is in contempt he may be put under the ban." Now then, if you should think that if one who was *already* under the ban the festival comes and postpones it, how could we put one under the ban *originally* on the festival? Said Abayi to him: "Perhaps the Boraitha meant, by 'tried,' the examination only (but not the result)?" Therefore said Abayi: This can be decided from our Mishna, which states: "One whom the sages absolved from the ban." And if the festival would postpone it, why then the absolving by the sages?

Said Rabha: Does, then, the Mishna state: The *sages have absolved* the ban? It states: "Who was *absolved by the sages* from the ban," which means that he has previously arrived at an

understanding with his opponent and then come to ask the rabbis that they should absolve him. (Hence the question remains undecided.)

Is the law of leprosy customary on the festival? Said Rabha: Come and hear: It is written [Lev. xiii. 45]: "And the leper." That means to include even if it was the high-priest. Now, it is certain that as to the high-priest all the week-days are considered feast-days, as we have learned in a Mishna (Sebo'him): "The high-priest may sacrifice in his mourning before the interment of the corpse, but not to eat of it." Infer from this that the law of leprosy is customary on festivals. *

Rabha said: Whence do we know that the court has power to summon one to appear before them; to appoint a time for the trial before the chief of the court; and to fix a time for the appearance of both parties? It is written [Num. xvi. 12–16]: "And Moses sent to call Dathan and Abiram, the sons of Eliab," etc. "And Moses said unto Korah, thou and thy company be ye before the Lord," etc. "Thou and they and Aaron to-morrow." And whence do we know that the court has power to postpone the trial to another day? It is written [Jerem. xlvi. 17]: "They called out there," etc., "he hath let the time appointed pass by." And whence do we know that the report of the court messenger, that the summons is disobeyed, is not considered slander? From the report of the messengers to Moses [Num. xvi. 14]. And whence do we know that a great man has the power to put one under the ban? From [Judges, v. 23]: "Curse ye Meroz, said the messenger of the Lord." [It means that he was a great man.] And whence do we know that the court has power to excommunicate him and to prohibit to eat or drink in his company, or to stand near him within a distance of four ells? From the passage [ibid., ibid.]: "Curse ye bitterly, curse its inhabitants." And whence, that his disobedience is made public? From [ibid., ibid.]: "Because they came not to the help of the Lord." And whence, that his property may be confiscated (made ownerless)? From [Ezra, x. 8]: "And that whosoever should not come within three days," etc., "all his substance should be forfeited † and himself separated from the congrega-

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* All the laws of mourning not belonging to festivals we transfer to Tract Ebel Rabbathi (Great Mourning) as the proper place, and they will be published in the next volume, which will complete this section.

† Leeser translates "devoted."

tion of the exiles." Whence, that he may be cursed, beaten, his hair plucked, and made to swear? From [Nehem. xiii. 25]: "And I contended with them, and cursed them, and smote certain of them, and plucked out their hair, and made them swear," etc. Whence, that his hands and feet may be bound, and he may be tied to the whipping post, and prosecuted? From [Ezra, vii. 26]: "Whether it be unto death, or to banishment, or to a fine on goods, or to imprisonment." What is meant by "banishment"? Said Ada Mari in the name of Ne'hemiah bar Baruch in the name of R. Hyya bar Abin, quoting R. Jehudah: "It means, prosecution." What kind of prosecution? Said R. Jehudah, son of R. Samuel bar Shilath, in the name of Rabh: "It means that he is put under the ban at once, and if he does not repent within thirty days the ban is continued; and if he still continues to be disobedient, he is excommunicated after the lapse of sixty days." Said R. Huna bar Hinna to him: "But has not R. Hisda stated: He is first warned on a Monday, Thursday, and the following Monday"? This relates only to cases involving money; but if he is accused of having denounced the authorities, he is at once put under the ban. A certain butcher was disobedient to R. Tubi bar Mathna, and he was put under the ban by the concurrence of Abayi and Rabha. Subsequently he came to an understanding with his opponent. Said Abayi: "What shall be done in such a case? Shall we absolve him? Thirty days have not passed yet? Shall we not? The rabbis need him?" And he turned to R. Idi bar Abin and asked him: "Do you know anything about such a case?" And the latter answered him: "R. Ta'hlipha bar Abimi said in the name of Samuel: 'The horn that announced that he was placed under the ban, may announce that he was absolved.'" And Abayi rejoined: "This is only in cases involving money; but in the case of denouncing the authorities, the ban must continue for thirty days." Ameimar said: "The Halakha prevails, that if scholars declare the ban over a person, he may be absolved therefrom by three other scholars." Said R. Ashi to Ameimar: Have we not learned in a Boraitha: R. Simeon b. Gamaliel said: If one of the scholars who declared the ban over a person died, his part cannot be absolved from? Shall we not assume that it cannot be absolved from at all? Nay; that means, only until other three absolve him.

The rabbis taught: The ban is declared for not less than thirty days; rebuke, however, is only for seven days; and al-

though there is no explicit proof for that, there is a hint [Num. xii. 14]: "If her father had spit in her face, would she not be ashamed seven days?" R. Hisda said: "Our (Babylonian) ban equals in point of time their (Palestinian) rebuke; and their rebuke is only for seven days." Is that so? Has it not happened that R. Simeon bar Rabbi and Bar Qappara have been studying together, and they came across a difficult question? Said R. Simeon to Bar Qappara: "This question must be solved by Rabbi (my father)." And Bar Qappara answered him: "What could Rabbi say to this?" * R. Simeon reported this statement to his father, and he became angry. Subsequently Bar Qappara came to visit him, and Rabbi said to him: "Bar Qappara, I have never known thee." Bar Qappara understood this reproach, and he reprimanded himself for thirty days? It also happened that Rabbi ordered not to teach disciples in the public streets. R. Hyya disregarded the order, and did teach his two nephews, Rabh and Rabba bar bar Hana, in a public street. When Rabbi heard of it, he was angry. Subsequently R. Hyya came to visit him, and Rabbi said to him: "Eyya, you are wanted in the street." R. Hyya understood what was hinted at, and he reprimanded himself for thirty days.

[On the thirtieth day Rabbi sent a message to him to come; and a short while after he sent him another message not to come. Subsequently R. Hyya came. Said Rabbi to him: "Why didst thou come?" He answered: "Because the Master sent for me to come." Said Rabbi: "But did I not subsequently send thee not to come?" And he replied: "The first message I received, the second one I did not." And Rabbi applied to him the following passage [Proverbs, xvi. 7]: "When the Lord receiveth in favor a man's ways, he maketh even his enemies to be at peace with him."] Hence we see from this that the rebuke of the Palestinians is for thirty days? The rebuke of a prince is different.

For how long, however, is *our* rebuke? For one day only, as seen from the following: Samuel and Mar Uqba, *studying* together, the latter used to sit (out of respect to Samuel) four ells distant from the former; but when sitting as a court, the reverse used to be the case, and Mar Uqba used to sit on a low platform (near the candelabrum †) in order that his voice might be heard

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* Rashi explains this to mean: "There is no scholar who could answer this." But our explanation seems to us more proper.

† For Mar Uqba was an Exilarch.

well. Mar Uqba was in the habit of accompanying Samuel every day to his residence. One day he was so engrossed in a case that he forgot to do it, and the latter, instead, followed *him* to his house. When they reached the house, Samuel said to him: "Is this sufficient for thee? May I now return?" And Mar Uqba understood that Samuel was angry, and he reprimanded himself for one day. There was a woman who was sitting in a pathway, and was in the habit of stretching out her foot to pick up the barley. A young scholar happened to pass by and she paid no attention to him, and he remarked: "How insolent this woman is!" The woman came before R. Na'hman and he asked her: "Did he utter the ban?" And she answered: "Nay." He then ordered her to be reprimanded for one day. Zutra bar Tubiah was once arranging biblical passages before R. Jehudah. When he came upon the passage [II Sam. xxiii. 1]: "And these are the last words of David," he said to him: "If these were the last, what were the first words of David?" R. Jehudah remained silent. But when he (Mar Zutra) repeated the question, R. Jehudah said: "Art thou of the opinion that if one cannot explain this he is no more a great man?" And Mar Zutra understood that R. Jehudah was angry, and he reprimanded himself for one day. How is this passage, however, to be explained? It plainly reads "the last"; then there must be the first words? [Ibid. xxi. 1]: "And David spoke unto the Lord the words of this song, on the day that the Lord had delivered him out of the hand of all his enemies, and out of the hand of Saul." This passage was expounded thus: The Holy One, blessed be He, said unto David: "David, thou singest songs over the downfall of Saul; if thou wert Saul and he were David, I would annihilate many a David for his sake." And this is meant by [Psalms, vii. 1]: "A Shiggayon of David * which he sang unto the Lord, concerning the affairs of Cush (the Ethiopian) the Benjamite." Was then his name Cush? It was Saul, but as an Ethiopian is distinguished from others by the color of his skin, so was Saul distinguished from others by his good deeds. Likewise [Num. xii. 1]: "On account of the Ethiopian woman which he had married." Was then her name Ethiopian? Was it then not Ziporah? But it is to state, that as an Ethiopian is distinguished by the color of his skin, so was she distinguished by her kind deeds. Likewise [Jerem. xxxviii. 7]: "Now when the slave of the king, the Ethio-

* The root of Shiggayon is שגה, meaning "error."

pian," etc. Was then his name Ethiopian? * Was it then not Zedekiah? But as it is stated above. Likewise [Amos, ix. 7]: "Are ye not like the children of the Ethiopians, O children of Israel?" Was then their name Ethiopians? Was it then not "Israel"? But as the Ethiopians differ from others in the color of their skin, so does Israel differ from all idolaters by their good deeds.

R. Tan'hum said in the name of R. Huna, and according to others R. Huna himself said it: A disciple who put one under the ban for disobedience to himself, the ban is valid, as we have learned in a Boraitha: "One who is put under the ban by the Master is considered so also towards the disciple; but if put by a disciple, is not so towards the Master." Hence towards the Master he is not so, but as towards the general public he is so. Now, then, let us see: To what case is this applicable? Shall we assume that it applies to Heavenly things? Is it not written [Psalms, xxi. 30]: "There is no wisdom nor understanding nor counsel *against the Lord*"? Hence it must be assumed, even for the disobedience to himself. R. Joseph said: "Even a young scholar, if only he is certain that his demand against another is just, may render judgment in his own favor." There was one young scholar concerning whom evil rumors were current. Said R. Jehudah: "What shall be done in this case? Shall we put him under the ban? The rabbis need him. Shall we not? The name of Heaven will be profaned." And he asked Rabba bar bar Hana: "Do you know anything about such a case?" He answered him: So said R. Johanan: "It is written [Malachi, ii. 7]: 'The priest's lips are ever to keep knowledge, and the law are they to seek from his mouth, for he is the messenger† of the Lord of hosts.' That means: If the Master is equal to an angel, law may be sought from his mouth, but not otherwise." Thereupon R. Jehudah put him under the ban. Subsequently, R. Jehudah was taken ill and the rabbis made him a sick-call, among whom was also that young scholar. When R. Jehudah beheld him, he smiled. Said he to R. Jehudah: "Is it not enough that you put me under the ban, that you still laugh at me?" R. Jehudah answered him: "I do not laugh at you, but in the world to come I will be proud to say that I was not biased even towards so great a man as you."

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* The Talmud translates the meaning of the words literally. Hence our translation.

† The text reads "Malach," which means a messenger, and also an angel.

When R. Jehudah died the young scholar came to the college and asked to be absolved from the ban, and the rabbis answered him: "There is not here a man equal in esteem to R. Jehudah to absolve you. Go to R. Jehudah the Second, and he may absolve you." He went to him. Said the Nasi to R. Ami: "Go and examine his case, and if found favorable, absolve him." R. Ami did so, and was about to absolve him when R. Samuel bar Na'hmeni arose and said: "Even when the maid-servant of the house of Rabbi declared one under the ban the sages did respect it for three years, and so much the more we must respect Jehudah our colleague." Said R. Zera: "How did it happen that this old man came to-day to college after an absence of several years? It is a token that the young scholar is not to be absolved." He left weeping, and on the way he was stung by a bee and he died. He was brought to the vaults of the Pious, and was not accepted; he was then removed to those of the Judges, and was accepted. Why so? For he acted as R. Ilai of the following Boraitha: "If one cannot withstand the temptation, he shall go to a place where he is not known, and shall dress in black and wrap himself in black and do as he pleases, but shall not profane the name of Heaven openly."

What was the occurrence with the maid-servant of the house of Rabbi? The maid-servant of the house of Rabbi saw once one beating his grown-up son, and she said: "Let that man be under the ban, for he has transgressed the commandment [Lev. xix. 14]: 'Thou shalt not put a stumbling-block before the blind.'" And the following Boraitha states that this passage relates to one who beats his grown-up son. Resh Lakish was watching an orchard, and there came a certain man and ate of the figs. Resh Lakish shouted to him not to do it, but he paid no attention to him. Resh Lakish then said: "Let this man be under the ban." And the man answered him: "On the contrary, let *that* man be under the ban; for if I am responsible to thee in damages, am I then liable to be put under the ban?" When Resh Lakish came to the college, he was told: "His placing you under the ban is valid, but not yours." "How can it be corrected?" "Go and ask his pardon." "But I do not know where to find him?" And he was told: "You have to go to the Nasi in order to be absolved, as we have learned in a Boraitha: 'One who was put under the ban and he does not know the person, he must go to a Nasi in order to be absolved.'"

R. Huna said: It was enacted in Osha that if the chief of the court should be delinquent, if for the first time he should not be put under the ban, but should only be told: "Be dignified and stay at home." But if for the second time, he should be put under the ban, lest the name of Heaven be profaned. This is not in accordance with the following statement of Resh Lakish: A scholar who is delinquent is not put under the ban publicly, for it is written [Hosea, ii. 5]: "Therefore shalt thou stumble in the day-time, and the prophet also shall stumble with thee in the night," which means: See that he is devoid of publicity, as the night is devoid of daylight.

Mar Zutra the Pious, when a young scholar was delinquent and deserving to be reprimanded, first reprimanded *himself* and then the young scholar. When he entered his residence, he first absolved *himself* and then the young scholar. R. Giddel said in the name of Rabh: "A scholar may first put himself under the ban (for a certain period of time) and afterward absolve himself therefrom." Said R. Papa: "I may be rewarded; for, as a matter of fact, I have never put a young scholar under the ban."

"*And the Nazarite and the leper*," etc. R. Jeremiah questioned R. Zera: "Does it mean in the case when they had no opportunity to do so before, or even when they had?" And he answered him: "We have learned this in the following Boraitha: All those who were said to be permitted to shave on the middle days, may do so only when they had no opportunity to do it before, but not otherwise. A Nazarite, however, may do so, although he had the opportunity to do so before, in order that his sacrifice be not delayed.

The rabbis taught: "All those who were said to be permitted to shave on the middle days, may also do so in their mourning." But have we not learned in another Boraitha that they may not? Said R. Hisda in the name of R. Shila: "The first Boraitha relates to a case where the mournings succeeded one another." If this is the case, why only "those who were said," etc.? Why not every one? As we have learned in a Boraitha: "When one mourning succeeds the other, and so on for a long time, and his hair has become heavy, it may be made light by a razor, and he may wash his clothes in water?" Yea, but as to this, it was taught that R. Hisda said: The Boraitha means by a razor only, but not by scissors; in water, but not with Spanish chalk (which was used then instead of soap) or lye. Said R. Hisda:

"From this it may be inferred that a mourner must not wash his clothes."

The rabbis taught: "As it is not allowed to shave on the middle days, so also is it not allowed to trim the nails. Such is the dictum of R. Jehudah. R. Jose, however, permits it." And the same is the case in regard to mourning. Said Ula: "The Halakha prevails according to R. Jehudah in regard to mourning, and according to R. Jose in regard to the middle days." Samuel, however, said: "The Halakha prevails according to R. Jose in regard to both mourning and the middle days." As Samuel said elsewhere: The Halakha prevails according to the one who is lenient, in regard to mourning. R. Shaman bar Aba said: I was present once on the middle days in the college of R. Johanan, and saw him trimming his nails with his teeth and throwing the parings away. And from the above occurrence three things were inferred: that the nails may be trimmed on the middle days; that there is no aversion to trimming them with the teeth; and that the parings may be thrown away.* R. Itz'hak bar Jacob bar Geurah in the name of R. Johanan sent the following message: "Flaxen garments may be washed on the middle days."

MISHNA: The following documents may be written on the middle days: contracts of betrothing, bills of divorce, and receipts in discharge of debts; also wills or codicils; deeds of gift; premonitions; and deeds of maintenance, certificates of Halitza, and certificates of refusal; arbitration bonds; decrees of the Beth Din; and powers of attorney.

GEMARA: Samuel said: "One is permitted to become betrothed to a woman on the middle days, for fear that he may be preceded by another one." Rabh said in the name of R. Reuben b. Atztrubli: It appears from the Law, the Prophets, and the Hagiographa that the union of a woman to her husband comes from God himself. The Law [Gen. xxiv. 50]: "Then Laban and Bethuel answered and said: The thing hath proceeded *from the Lord*," etc.; the Prophets [Judges, xiv. 4]: "But his father and his mother knew not that it was from *the Lord*"; the Hagiographa [Prov. xix. 14]: "Houses and wealth are an inheritance from fathers; but from the *Lord* cometh an intelligent wife."† Rabh further said in the name of the same authority; and according to others this was learned in a Boraitha:

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* This subject will be explained in Tract Niddah.

† See our "Maamar Ha'ishuth," Wien, 1887, p. 6.

" R. Reuben b. Atztrubli said: ' No one is suspected of having done something (wrong), unless he has really done it; and if he has not done it all, he has done part of it; and if not even that much, he at least had in mind to do it; and if not even that much, he probably approved of it when it was done by others.' " An objection was made: Come and hear [Psalm cvi. 16]: " Moreover, they envied Moses in the camp and Aaron the holy one of the Lord." And R. Samuel bar Itz'hak said: " From this it is inferred that every one suspected his own wife of having relations with Moses ?" (Hence we see that one may be suspected although there is no particle of foundation for it ?) In that case it was different, for it was done out of hatred. Another objection was made: Come and hear: R. Jose said: " May my share in the world to come be with those who were *groundlessly* suspected." And R. Papa said: " I was once suspected without any ground whatever ?" This presents no difficulty. The one is the case when the suspicion has ceased; the other is, when it has not. What is meant by not having ceased ? Said Abayi: " My mother told me: ' A town rumor is for a day and a half.' ". The case is only if it has not ceased at intervals, but if it has it does not matter; and if, however, it has ceased out of fear, it is not taken into consideration; and even if it was not out of fear, the case is when it was not circulated again more vigorously. All this, however, is the case when the person suspected has no enemies; but if he has, the latter circulated it.

MISHNA: Bonds of debts must not be written on the middle days; but if the lender does not otherwise want to trust the borrower, or the latter has nothing to eat, they may be written. Holy Scrolls, Phylacteries, or Mezuzoth must not be written on the middle days, and not a single letter may be corrrected—even in the Book of Ezra.* R. Jehudah, however, says : " One may write Phylacteries and Mezuzoth for his own use, and he may also spin sky-blue wool for show-threads in his garment."

GEMARA: The rabbis taught: One may write Phylacteries and Mezuzoth for his own use and may spin sky-blue wool for show-threads in his garment; but for others he may do it as a favor only (without compensation). Such is the dictum of

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* It means the first Pentateuch which Ezra wrote. Rashi, however, says that he heard that it should not be read " Ezra," but עזרה, which means the Temple ; as to his knowledge, there was a correct copy of the Holy Scrolls, from which all the others were corrected.

R. Meir. R. Jehudah, however, said: "One may connive and sell his own, and then write another one for his own use." But R. Jose said: "He may write and sell in the usual way as much as necessary for his living expenses." Rabh, and according to others Rabba bar bar Hana, rendered his decision to R. Hananel: "The Halakha prevails, that one may write and sell in the usual way as much as necessary for his living expenses."

MISHNA: One who buried his dead three days before the commencement of the festival is freed from the observance of the seven (days of deep mourning); if eight days before the festival, he is freed from the observance of the thirty days; for the sages hold: "The Sabbath enters into the computation, but does not supersede the mourning, whereas the festivals supersede the mourning, but do not enter into the computation." R. Elazar said: "Since the destruction of the Temple, Pentecost is to be considered (in respect to mourning) like the Sabbath." R. Gamaliel said: "The New Year and the Day of Atonement are to be considered like festivals; the sages, however, say that it is neither as the one nor as the other, but hold that there is no distinction between the Pentecost and any other festival, but the New Year and the Day of Atonement are like the Sabbath."

GEMARA: Rabh said: "Only the *observance* of the thirty days is dispensed with, but not the days themselves." So also said R. Huna. R. Shesheth, however, said: "Even the days are dispensed with." In what case may it happen that the days shall still not be dispensed with? If (the observance of the thirty days being dispensed with) one had not shaved himself on the eve of the festival, he may not do so after the festival (during all the thirty days). We have so also learned in a Boraitha: One who buries his dead three days before the festival is freed from the observance of the seven days; if eight days, he is freed from the observance of the thirty days, and he may shave himself on the eve of the festival; if he, however, failed to do so on the eve of the festival, he must not do so after the festival. Abba Saul, however, said: "He may do so, for as the observance of the three days frees from the observance of the seven days, so also does the observance of the seven days free from the observance of the thirty days." Seven days? Have we not learned eight? Abba Saul is of the opinion that a portion of a day counts for a whole day, and the seventh day enters into the computation of both. Said R. Hisda in the

name of Rabina bar Shila: "The Halakha prevails according to Abba Saul, and even the sages concede to Abba Saul that in case the eighth day falls on a Sabbath which is incidentally the eve of a festival, he may shave on the eve of Sabbath." According to whom is the statement of R. Amram in the name of Rabh: "A mourner, as soon as his condolers have left him, is permitted to wash himself"? It is according to Abba Saul. Said Abayi: The Halakha prevails according to Abba Saul in regard to the seventh day; and the sages concede, in regard to the thirtieth day, that a portion of a day counts for a whole day. Rabha said: The Halakha prevails according to Abba Saul regarding the thirtieth day, but not regarding the seventh day. But the sages of Nehardea maintained that the Halakha prevails according to Abba Saul in both cases, as Samuel said: "The Halakha prevails according to the one who is lenient in regard to mourning." Abayi inquired of Rabba: "If one buried his dead on the festival, does, or does not, the festival enter into the computation of the thirty days? Certain it is to me that it does not enter in regard to the seven days, for the observance of the seven is not customary on the festival; but my question is in regard to the thirty days, because the observance of the thirty days *is* customary on the festival?" And he answered him: "It does not enter." Abayi raised an objection based on the following Boraitha: The festival enters into the computation of the thirty days. How so? If the burial took place in the beginning of the festival, the observance of the seven days begins after the festival, and his work may be done by others, and his male and female servants may do their work privately, and the public need not condole with him during the seven days, for they have already done so on the festival; and the festival enters into the computation of the thirty days? This objection remains unanswered. When Rabbin came from Palestine he said in the name of R. Johanan: "Even if he was buried on the festival" (the festival enters into computation). So also has R. Elazar decided to his son R. Padath.

The rabbis taught: If one has observed the lowering of the couch for three days prior to the festival, he need not observe it any more after the festival. Such is the dictum of R. Eliezer. The sages, however, hold: "Even one day, and even one hour." Said R. Elazar b. R. Simeon: These are, respectively, the decrees of the school of Shammai and the school of Hillel. For the school of Shammai decrees: "Three days"; and the school

of Hillel decrees: "Even one day." Said R. Huna in the name of R. Hyya bar Abba, quoting R. Johanan, and according to others R. Johanan said to R. Hyya bar Abba and R. Huna: "Even one day, and even one hour." Rabha said: "The Halakha prevails according to our Tana (of the Boraitha), who holds three days."

Rabina happened to be in Sura of Euphrates. Said R. Habibha to him: "What is the Halakha?" And he answered him: "Even one day, and even one hour." R. Jose bar Abin said: "One who receives information which is recent on the festival, but becomes remote after the festival, the latter counts, and mourning is observed only one day." Rabbi Ada of Kisri taught before R. Johanan: "One who receives information which is recent on the Sabbath but becomes remote thereafter, must mourn one day only." Must he rend (his garments) or not? R. Mani said: "He may not." R. Hanina, however, said: "He may." Said R. Mani to R. Hanina: "As to my statement, it is correct, because rending is customary only together with the observance of the seven days; but as to your statement, is then there a case in which one must rend although there is no mourning of the seven days?" Is there not such a case? But has not R. Isi the father of R. Zera, and according to others the brother of R. Zera, taught before R. Zera: "One who has no garment to rend and he becomes a mourner, if within the seven days, he must rend; if after the seven days, he may not"? And R. Zera rejoined: "This is the case only in the five cases of relatives whom one is bound to bury, but over his father and mother he must rend notwithstanding (the lapse of the seven days?). In this case it is only out of respect to his father and mother."

"*Because the sages held that Sabbath enters into computation,*" etc. The inhabitants of Judea and the inhabitants of Galilea: Those hold that the law of mourning applies on Sabbath (to things done privately), because the Mishna states: "It enters into computation"; and these hold that it does not apply, because the Mishna states: "But it does not supersede."

But does not the Mishna state that it enters into computation? It is only because it has to state in the latter part, that it does not enter, he uses also in the first past "enter." But did not the Mishna state plainly "it does not supersede"? This is for the same reason, as it has to state in the latter part "it does supersede" it uses the same term in the first part also.

Raphram bar Papa said: "We have learned in Tract 'Great Mourning': 'A mourner is prohibited to have sexual intercourse during his mourning. It happened once that one did have sexual intercourse with his wife during his mourning, and his corpse was dragged about by hogs.'" Samuel said: "To remove the wrapping from the head, the rent from the front to the back, and to put the couch in proper condition (on the Sabbath) is obligatory; but to wear shoes, to have sexual intercourse, and to bathe the hands and feet in warm water on Friday evening is optional." Rabh, however, said that even removing the wrapping is also only optional.

Abayi found R. Joseph during his mourning walking around in the house with his mantle wrapped around his head (on the Sabbath), and he said to him: "Does not the Master hold that mourning is not customary on the Sabbath?" And he answered him: "So said R. Johanan: 'Things of a private nature are permitted.'"

"*R. Elazar said: Since the destruction of the Temple,*" etc. R. Giddel bar Menasiah said in the name of Samuel: "The Halakha prevails according to Rabban Gamaliel (Berachoth), who said that a mourner on the Sabbath is bound to observe all the commandments."

R. Anni bar Shashan lectured in front of the house of the Nasi: "If (the mourning is) observed one day before Pentecost and on Pentecost, it is considered to have been observed fourteen days." (For Pentecost counts for seven days, and so also does the day preceding it, as stated above.) When R. Ami heard of this he was angry, and said: "Is this then his own? This was stated long ago by R. Elazar in the name of R. Oshiya." The same thing was stated in a lecture by R. Itz'hak of Napli'ha in Babylon at the cottage of the Exilarch, and R. Shesheth became angry because R. Elazar in the name of R. Oshiya, the author of this statement (Hagiga, 40), was not mentioned. R. Papa, accompanying R. Avia the elder, lectured: "One day (of observance of mourning) before the New Year and the day of New Year count for fourteen days." Said Rabina: "Therefore, one day before the Tabernacles, the Tabernacles, and the eighth day (which counts for a separate festival) count (regarding mourning) twenty-one days." Rabina happened to be in Sura of Euphrates. Said R. Habibha of same place to him: "Do you, Master, hold: 'If observed one day before the New Year and on the New Year it counts four-

teen days'?" And he answered him: "I have only stated that it seems to me that the Halakha prevails according to R. Gamaliel."

MISHNA: The garments are not rent, nor the shoulders laid bare, nor the funeral meal eaten (on the middle days), unless by the near relatives of the deceased. The funeral meal is not to be taken except on a couch standing up properly.

GEMARA: Does this apply to a scholar also? Have we not learned in a Boraitha: "When a scholar dies, all must rend their garments, bare their shoulders, and partake of the funeral meal served in the public thoroughfare, for all are considered as his relatives"? Nay, this Mishna refers to one who is not a scholar, but an upright man over whom also rending is obligatory, as we have learned in the following Boraitha: "Why do little children die? Because their parents failed to weep (mourn) over the death of an upright man; to one who does so, all his sins are forgiven, for the honor he has done to the deceased." In the case of the death of an ordinary person, however, rending is obligatory only on the one who is present at the time of the death, as we have learned in the following Boraitha: "R. Simeon b. Elazar said: 'One who is present at the time when the death occurs is bound to rend his garments, for it is similar to the case of one who is present at the time the Holy Scrolls are burned, in which case he is bound to rend his garments.'" When R. Saphra's soul passed unto rest, the rabbis intended not to rend their garments, for they said: "We received no teachings from him." Said Abayi to them: "Does, then, the Boraitha treat of a rabbi? It treats of a scholar, and still more so in the present case, when his Halakhas are always on our lips in the college?" Still they were inclined not to rend, for they said: "The time for doing so has already passed." Said Abayi to them: "We have learned: In the case of a scholar, so long as the funeral orations are still going on, one is bound to rend." They then wanted to rend at once (without holding funeral orations). Said Abayi to them: "There is a Boraitha that states that the honor paid to the remains of a scholar lies in the funeral oration." When R. Huna departed, it was intended to place the Holy Scrolls on his bier. Said R. Hisda to them: "Shall we now act against his will? Has not R. Ta'hlipha said: 'I was once present when R. Huna wanted to sit down on a cot on which the Holy Scrolls were lying, and he first removed the latter and then sat down'? Hence we see that he was of the

opinion that one must not sit on a cot on which the Holy Scrolls are placed?" When the cot was to be removed from the house, it was found out that it could not pass through the door; and it was about to be removed through the roof opening, when R. Hisda remarked: "We have a tradition from him that the honor to a deceased scholar demands that he be removed through the door opening." They then wanted to place him on a cot of smaller dimensions, but R. Hisda again remarked: "We have a tradition from him that the respect to a deceased scholar demands that he be removed in the cot he died on." Then they broke away the door-posts, and passed him out. Then R. Abba began the following eulogy: "Our rabbi was worthy that the Shekhina should rest upon him, but Babylon prevented it." When his corpse arrived in Palestine, R. Ami and R. Assi were informed that "R. Huna had arrived." And they said (under the impression that he was alive): "When we were in Babylon we could not raise our heads on account of him (for his great learning), and now he has followed us here." And they were then told: "His *coffin* has arrived." R. Ami and R. Assi went out (to pay their respects). R. Aila and R. Hanina remained in the house. Others, however, said that only R. Hanina remained. What was the reason of those who went out? The following Boraitha: "When a coffin is being removed from one place to another, those present must stand in a row and must pronounce the mourning benediction and the words of consolation." The reason, however, of those who did not go out is the following Boraitha: "When a coffin is being removed from one place to another, those present need not stand in a row," etc. But do not these Boraithas contradict each other? Nay, the one relates to a case where the skeleton is still in good condition; the other where it is not. But R. Huna's skeleton was still in good condition? They were not aware of that. They then began to deliberate where to place his remains, and concluded to place them alongside of those of R. Hyya. For they said: "R. Huna diffused the Torah among Israel as much as did R. Hyya." The question then came up as to who should do the placing. Said R. Haga to them: "*I* will do it, for I was his disciple since the age of eighteen. I never had a wet-dream, and I have served him since then and knew his ways: once it happened that one of his phylactery fillets turned over, and he fasted forty days." When R. Haga brought in the coffin into the arch, he noticed that Jehudah was sleeping at the right of his father and

Hezekiah at his left. He heard Jehudah say to his brother: "Rise, for it would not be correct not to pay respect to R. Huna." When he arose, a pillar of fire arose with him. R. Haga became frightened and, lifting up the coffin of R. Huna, left the arch.

When R. Hisda died they wanted to place the Holy Scrolls on his bier. Said R. Itz'hak: "A thing which was not approved by his Master (R. Huna), we must not do to him." They also intended to leave their rent garments unmended, when R. Itz'hak bar Ami said to them: "In case of a scholar, the rent may be sewed together as soon as those who follow the coffin turn away their faces from the latter." When Rabba bar Huna and R. Hamnuna had died in Babylon, their bodies were brought on camels to Palestine. Arrived at a narrow bridge, where the two camels could not pass at once, both remained standing. An Ishmaelitish merchant present, surprised at the interruption of the journey, asked for the reason, and was told that each of the deceased wished to give the other the preference of the way. "If I were to give my view of the matter," the Arab said, "I should decide in favor of Rabba bar Huna (as he was known to me as a venerable man)." The Arab had hardly concluded his remarks, when the camel bearing Rabba passed the bridge. (As a punishment for not paying proper respect to R. Hamnuna), the molars and front teeth of the Arab fell out. A disciple declaimed the following elegy:

A learned scion of an ancient race
Upward to Sacred Palestina draws,
And bears into illimitable space
The code of battles, the great book of laws.
The cormorant and the hedgehog nightly gloat
Upon destruction spreading far and wide;
For God His wrath upon the earth has hurled,
Our pious sage His voice has called away;
And God is glad that from this sinful world
His dearest servant has come home to stay.*

When Rabina died, the funeral orator held the following oration:

Bend, ye majestic palms, in grief sincere
O'er one who like a palm had flourished here;
Nor cease your mourning when the moon's soft ray
Changes to shadowy night the brilliant day.

* From "The Poetry of the Talmud," by Sekels, with metrical corrections, as also the verses following.

For moon's broad glare had oft to midnight waned
Ere slumber o'er his studious eyelids reigned.

R. Ashi said to Bar Kipuk (the funeral orator): "What oration will you make on *that* day (of my death)?" And he answered him: "The following:

How can the lowly hyssop still survive,
When with devouring flames the cedars strive?
With huge Leviathan the angler's prey,
What have the fishes of the pond to say?
If the dry torrents shame the fisher's hook,
How fares it with the waters of the brook?"

Said Bar Abhin to him: "Heaven forbid that 'net' and 'flame' be used in orations over the righteous." "What, then, would *you* say?" "I would say: 'Weep for the losers but not for the lost (deceased), for *he* passed into rest but we into grief.'" R. Ashi felt discouraged (for one orator used the words "net" and "flame," and the other the word "lost"), and their (of the orators) feet upturned. When he died, neither of the orators came to hold orations. And this was meant by R. Ashi when he said: "Neither Bar Kipuk nor Bar Abhin would be bound to perform the ceremony of Halitza." (*Vide* Yebamoth, 103*a*, where it is stated that those who have deformed feet are not bound to perform Halitza.)

When Rabha came to Hiddekel, he said to Bar Abhin: "Pronounce an (appropriate) prayer," and the latter began: "The major part of Israel went through water; remember, and have mercy. We went astray from Thee as a woman goeth astray from her husband; do not cast us off, for it may have the same indication as that of the bitter-water." [*Vide* Num. v. 11–28.]

R. Hanin, the son-in-law of the Nasi, had been for a long time childless; he prayed and was answered. On the day of the birth of the child he died. The funeral orator on this occasion declaimed the following elegy:

Parental joy was changed to hopeless pain:
Where bliss had entered, grief was doomed to reign;
For in the moment of his hope fulfilled,
The joyful beating of that heart was stilled.

The child was named Hanin after his father. When R. Johanan died, R. Itz'hak b. Elazar began the eulogy as follows: "This day is as momentous to Israel as the day of which the prophet

spoke [Amos, viii. 9]: 'And it shall come to pass in that day that I will cause the sun to go down at noon,'" which R. Johanan explained to have reference to the day of the death of the King Josiah. When R. Johanan departed, R. Ami observed both the seven and the thirty days (of mourning). Said R. Abba the son of R. Hyya bar Abba: "R. Ami stands alone in his action, for so said my father in the name of R. Johanan: 'Even over an instructor in science one need not mourn more than one day.'" When R. Zera departed, the funeral orator delivered the following oration:

In Babylon this noble sage was born,
In Palestine he was admired and cherished;
"Woe unto me!" doth Reketh * sadly mourn,
"For my most precious jewel now has perished."

When R. Abuhu died, the pillars of Kisri shed tears; when R. Jose died, the gutters of Sepphoris were overrun with blood; when R. Jacob died, the stars were seen in the day-time; when R. Assi, all the trees were rooted out; when R. Hyya, fire-balls fell from heaven; when R. Mena'ham (ben R. Simai), all the images became obliterated and as smooth as if passed upon with a roller; when R. Tan'hum bar Hyya died, all the impressions upon the images were effaced; when R. Eliashib, seventy burglaries were committed in Nehardea; when R. Hamnuna, hail-stones fell from heaven; when Rabba and R. Joseph died, the bridge-arches of Euphrates collapsed; when Abayi and Rabha, the bridge-arches of Hiddekel collapsed; when R. Mesharshia died, the trees were laden with thorns (instead of fruit).†

MISHNA: The food for the funeral meal is not placed before the mourners on a table, nor in a silver tureen, nor in a dish, but in wicker baskets. The mourning prayers must not be pronounced on the middle days, but the rows are formed and the consolation is pronounced and the people assembled are at once dismissed. The bier must not be set down in any public place, that the mourning may not spread (in the middle days). The bier of women must at *no* time be there set down, on account of respect (to the sex of the deceased). ‡

"*The bier must not be set down in any public street.*" Said R.

* Reketh is Tiberias. (Rashi.)

† All this must not be understood literally but allegorically.

‡ The Gemara belonging to this Mishna, which properly does not come in here, will be found in its proper place.

Papa: "No middle days are considered in regard to a scholar (Talmid-Hakham), and so much the more so the half-feast of Hanuka or Purim. This, however, is the case only in the presence of the corpse." This is not so? Has not R. Kahana lamented over the death of R. Zbhid of Nehardea on the banks of the river (and surely the corpse was not there)? Said R. Papa: "That was on the very day he received the information, which is equivalent to the presence of the corpse."

MISHNA: The mourning women may wail during the middle days, but not clap (their palms together). R. Ishmael said: The nearest to the bier may clap. On the days of the New Moon, on the half-festivals of Hanuka and Purim, they may wail and clap, but must not sing lamentations; but when the corpse is interred, they must neither wail aloud nor clap.

What is meant by wailing? When all of them join in one chorus. What is meant by lamentation? When one recites and the others respond, as it is written [Jer. ix. 20]: "Teach your daughters wailing and every one her neighbor lamentation." But of the age that is to come it is written [Isa. xxv. 8]: "He will destroy death to eternity; and the Lord Eternal will wipe away the tear from off all faces."

GEMARA: R. Levi bar Hitha said: One who takes leave of the dead shall not say, "Go *in* peace," but "Go *with* peace," as it is written [Gen. xv. 15]: "But thou shalt come to thy fathers *with* peace" (*Be*sholom); but the contrary must be said when taking leave of the living. When David said to Absalom: "Go *with* peace" [II Sam. xv. 9], the latter hanged himself; while, when Jethro said to Moses [Exod. iv. 18]: "Go *in* peace" (*Le*sholom), Moses went and was successful. R. Levi further said: One who goes from the college to the prayer-house, and *vice versa*, is rewarded by receiving the appearance of the Shekhina, as it is written [Psalms, lxxxiv. 8]: "They go from strength (college) to strength (the prayer-house); each of them appeared before God in Zion." R. Hyya bar Ashi said in the name of Rabh: "Scholars (Talmide-Hakhamim) have no rest even in the world to come, as it is written [ibid.]: 'They go from strength to strength; each of them appeareth before God in Zion.'"

END OF TRACT MOED KATAN (MINOR FESTIVALS).